

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-21

MSRF, INC. v. YANG MING MARINE TRANSPORT CORPORATION

RESPONDENT'S APPENDIX

PUBLIC VERSION – CONFIDENTIAL MATERIALS EXCLUDED

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Yang Ming Marine Transport Corporation*

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2. Public Materials	
Joe Brock, <i>COVID Curbs Bite at Chinese Ports, Threatening Global Supply Chains</i> , Reuters, March 16, 2022	RX_000082
Greg Knowler, <i>Carriers Warn of Looming Post-Suez China Box Shortage</i> , Journal of Commerce, April 9, 2021	RX_000088
Keith Wallace, <i>Carriers Skipping Second-Tier Chinese Ports Amid Congestion, Delays</i> , Journal of Commerce, May 27, 2021	RX_000092
Antonis Karamalegkos, <i>South China Ports Disruption Triggers More than 130 Omissions</i> , Container News, June 17, 2021	RX_000098
Antonis Karamalegkos, <i>Yantian Port Back to Normal at Midnight, Container Crisis Remains</i> , Container News, June 23, 2021	RX_000096

Bill Mongelluzzo, <i>Trans-pac Ocean Reliability Shows Slight Gains Off Low Base</i> , Journal of Commerce, June 25, 2021	RX_000101
Weizhen Tan, <i>China's Zero-COVID Policy is So Strict That It Shut Down a Whole Shipping Terminal After Just One Case</i> , CNBC, August 12, 2021	RX_000105
Joe Deaux, Yvonne Yue Li, Ann Koh, <i>China's COVID port terminal shutdown raises fear of worldwide shipping slowdown</i> , Los Angeles Times, August 13, 2021	RX_000109
Greg Miller, Freightwaves, <i>Zero Ships Waiting Off Southern California for First Time Since 2020</i> , November 23, 2022	RX_000112
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3. Discovery Documents	
Yang Ming Shipment Worksheet (produced by MSRF on 3 17 2023)	RX_000134-
<i>MSRF Responses to Requests for Admission</i>	
<i>MSRF Response to Request for Admission 16</i> 16. According to the original terms of Service Contract Number 494721, MSRF agreed to tender 100 Twenty-foot Equivalent Units (TEUs)(“Minimum Quantity Commitment” or “MQC”) to Yang Ming between during the term of the Contract.1 RESPONSE: Admitted.	RX_000142
<i>MSRF Response to Request for Admission 17</i>	RX_000142
<i>MSRF Response to Request for Admission 18</i> 18. Service Contract Number 494721 did not specify, in the MQC or otherwise, the amount of cargo that was to be tendered or carried to/from any particular port in Asia or to/from any particular port on the United States East or West coasts. RESPONSE: Admitted.	RX_000144
<i>MSRF Response to Request for Admission 20.</i> 20. Article 12 [SIC] of Service Contract Number 494721 contains a liquidated damages provision that govern the remedies either party may pursue in the event of non-performance. RESPONSE: Admitted.	RX_000144
<i>MSRF Response to Request for Admission No. 21</i> 21. The Parties amended Service Contract Number 494721 several times, including on October 30, 2021 (Amendment 6) and April 14, 2022 (Amendment 7). RESPONSE: Admitted.	RX_000144

<i>MSRF Response to Request for Admission 22</i> 22. Service Contract Number 494721, as amended for the last time on or about April 18, 2022, provided for a total minimum MQC of 10 TEUs. RESPONSE: Admitted.	RX_000144
<i>MSRF Response to Request for Admission 33.</i> 33. When the demand for service during a particular time frame exceeds the available vessel capacity, the Shipping Act, as interpreted by the Federal Maritime Commission, requires that that ocean common carrier reasonably pro rate its available capacity. RESPONSE: Admitted.	RX_000146
<i>MSRF Responses to Interrogatories</i>	
<i>MSRF Response to Interrogatory 14</i> 14. With respect to Allegation 7, explain in detail what were the “agreed intervals” contained in the Service Contract. RESPONSE: The agreed intervals are those referred to in paragraph 7 of the Service Contract.	RX_000430
<i>MSRF Response to Interrogatories 27 & 28 (served as compelled by Order).</i> 27. Identify precisely what “actions” of Respondent alleged in Allegation 18 are asserted to constitute “unfair and unduly discriminatory practices,” including what entity(ies) received more favorable treatment, the nature of that more favorable treatment, what ports the discrimination was in relation to and what ports received more favorable treatment. 28. Identify precisely what “actions” of Respondent alleged in Allegation 19 are asserted to have given “undue and unreasonable preference and advantage to shippers other than MSRF” “imposed undue and unreasonable prejudice and disadvantage on MSRF” including what specific shippers received more favorable treatment, the nature of that more favorable treatment, what ports the prejudice was in relation to and what ports received more favorable treatment. RESPONSE: 27-28. Pursuant to the Commission’s decision in <i>OJ Commerce, LLC v. Hamburg Südamerikanische Dampschiffahrts-Gesellschaft A/S/ & Co., KG and Hamburg SudNorth America, Inc.</i>, FMC Docket No. 21-11 (August 31, 2022), the claims asserted by MSRF in Allegations 18 and 19 of the complaint are not violations of 46 USCA Sections 41104(a)(5) and (9). The referenced decision was issued after MSRF filed its complaint.	RX_000147
<i>MSRF Response to Interrogatory 31</i> 31. Explain in detail how MSRF can claim in Allegation 25 that the Service Contract provided an MQC of 100 FEUs, when the contract itself shows that it was amended on April 18, 2022 to revise the MQC to 10 TEUs. ANSWER: See, YM_00089, noting 100 TEUs as the agreed MQC. Yang Ming did not provide MSRF with the contracted for space when MSRF needed it, and the contract was later amended at the	RX_000148

end of the contract period to conform the contract with the actual quantities shipped as a routine practice in the industry.	
<i>MSRF Response to Interrogatory 43</i> 43. Explain in detail the factual basis for Complainant asserting that Service Contract 494721 required Complainant to tender or Respondent to carry any cargo, or any specific amount of cargo, between specific port pairs. ANSWER: Complainant is not alleging that the Service Contract contained any specific requirement as to the amount of cargo shipped between any port pair.	RX_000149
<i>MSRF Responses to Supplemental Interrogatories (served March 10, 2023)</i>	
<i>MSRF Response to Supplemental Interrogatory 1</i> 1. Explain, with explicit reference to the terms of the Service Contract, how the Service Contract required Respondent to provide space “as it was requested by MSRF.” See MSRF response to First Set of Interrogatories, Interrogatory 15 (mis-typed as 16 in the response). ANSWER: See Complaint at Paragraphs 24-26 and the Service Contract. The Service Contract required Yang Ming to provide 100 TEU of space during the contract period. In order for Yang Ming to provide the space it was necessary for MSRF to request the booking of a shipment.	RX_000150
<i>MSRF Response to Supplemental Interrogatory 6</i> 6. If you assert that Complainant did not agree to any/all of the modifications made to the Service Contract, including the amendment made on April 18, 2021, identify the principal facts on which you base your assertion that Complainant did not agree to any such change. ANSWER: MSRF does not make this assertion	RX_000151
<i>MSRF Response to Supplemental Interrogatory 8.</i> 8. With respect to MSRF’s denial of Request for Admission 24, identify each instance in which Respondent demanded that MSRF pay a rate higher than the service contract rate, including the identity of the shipper/consignee, the date of the shipment (or requested shipment), the commodity(ies) involved, the size of the shipment, the rate allegedly demanded by Respondent, and the rate actually paid by Complainant. ANSWER: After further review, MSRF supplements its original response to RFA 24 to admit the request.	RX_000152
<i>MSRF Response to Supplemental Interrogatory 13.</i> 13. Identify any overlap between this proceeding and FMC Docket No. 22-20 with respect to shipments/attempted shipments for which reparations are sought – e.g., any proposed shipment declined by both HMM and Yang Ming included in Complainant’s calculation of reparations in both dockets. ANSWER: There is no overlap.	RX_000153
4. Sample invoices	
Invoice showing ocean freight charge	RX_000155

Invoice showing charge for demurrage and administrative fee	RX_000156
5.Emails	
4 24 2020-MSRF decides not to accept YM's service contract offer.	RX_000273
1 22 2021-MSRF seeks bids from YM for 2021-2022 service contract.	RX_000270
2 10 2021-MSRF cannot forecast total MQC for 2021-22; requests 100 TEU MQC contract with YM.	RX_000272
2 23 2021-MSRF and YM negotiate for 2021-2022 service contract.	RX_000257
3 16 2-21 – MSRF tells Chinese agent to try to book container	RX_000186
3 18 2021-MSRF/YM contract negotiation; MSRF indicates wants their us their own trucker.	RX_000264
3 22 2021-YM response to MSRF RFP – says YM will maintain first round offer as final offer for 2021-22 bid.	RX_000257
4 11 2021-Trucker has problems reaching MSRF warehouse.	RX_000290
4 11 2021-Trucker makes MSRF warehouse appointment.	RX_000289
4 14 2021-MSRF tells Chinese agent to book with multiple carriers.	RX_000177
4 16 2021-MSRF agent asks for help booking.	RX_000255
4 21 2021-YM receives duplicate bookings from MSRF agents.	RX_000254
4 21 2021-MSRF makes booking on 4 21 2021; on 5 11 2021: MSRF tells YM booking is cancelled (YCH848828).	RX_000254
4 21 2021-YM sends MSRF booking confirmation for YHU712953.	RX_000254
4 28 2021-MSRF tells YM to cancel YHU713552.	RX_000253
5 3 2021-MSRF tells shipper to send the YM booking number.	RX_000198
5 4 2021-MSRF rolls YHU712953.	RX_000250
5 6 2021-MSRF shipper gives MSRF YM booking information.	RX_000197
5 10 2021-MSRF asks about reefers in Canada and agrees to Amendment 2.	RX_000293
5 11 2021-MSRF cancels a booking.	RX_000245
5 19 2021-YM suggest adding POLB.	RX_000285
5 25 2021-YM tells MSRF space fully booked May, June.	RX_000287
5 26 2021-YM asks MSRF whether YHU12953 will be cancelled or rolled, per trucker product is not ready at this time.	RX_000242
5 26 2021-YM tells MSRF Chinese ports affected by COVID closures.	RX_000244
5 27 2021-MSRF asks to load at 2 different warehouses; YM cannot accommodate.	RX_000291
6 10 2021-MSRF asserts its contract with YM entitled it to 50 TEUs.	RX_000239
6 10-18 2021-YM tells MSRF Yantian congestion and how will affect schedule; MSRF is only interested in Qingdao.	RX_000236
6 11 2021-MSRF tells YM to give it 1 FEU per week from Qingdao	RX_000241
6 11 2021-YM tells MSRF that YM has set up a space plan of 1 FEU per month, and warns space and equipment will be extremely tight for the next several months; effect of blanked sailings on capacity. YM asks MSRF about using other origins.	RX_000238

6 11 2-21-MSRF asks YM about “surge price” and protection; YM responds there is no space and it will not accept rates increase for space.	RX_000239
6 18 2021-MSRF cancels booking YHU712593.	RX_000234
7 2 2021-Agent has not been given access by MSRF to YM system.	RX_000232
8 10 2021-MSRF tells YM about a booking.	RX_000231
8 16 2021-YM tells MSRF that overseas office hasn’t received a request from MSRF’s agent.	RX_000229
8 18 2021-MSRF tells Chinese agent to use a forwarder.	RX_000201
8 27 2021-MSRF’s Chinese agent tells MSRF the YM contract number is wrong.	RX_000228
8 30 2021-MSRF asks YM for port to port rates (Tacoma).	RX_000227
9 8 2021-YM confirms has reserved 1 FEU for MSRF and asks MSRF to ensure its Chinese agent books.	RX_000226
9 9 21-MSRF tells Chinese agent to try another ocean common carrier and YM.	RX_000199
10 11 21-MSRF requests YM booking of hot sauce for export from St. Martinsville, LA to Qingdao.	RX_000225
10 22 2021-MSRF’s trucker refuses to serve MSRF account.	RX_000224
10 29 21-MSRF agrees to amendment.	RX_000220
11 3 2021-YM responds to MSRF’s demand for explanation about why vessel arrival to Los Angeles is delayed.	Rx_000274- RX_000284
11 2 2021-YM explains to help avoid storage.	RX_000213
3 3 2022-MSRF cancels booking YHU764211.	RX_000206; RX_000212
4 13 2022-MSRF rolls a shipment because cargo won’t be ready.	RX_000203
4 28 2022-MSRF tells Chinese agent to only use a certain contract	RX_000297
5 8 2022: Chinese agent tells MSRF it booked with YM in 2021, YM provided a container, but “due to urgent delivery, you let us choose the earlier container provided by [another carrier].	RX_000158- RX_000159
6. Declarations	
Paul Goeke Declaration and Exhibit A (lifting report)	RX_000303
7. Unpublished Opinions	
<i>Government of the Territory of Guam v. Sea-Land Service, Inc.</i> (FMC 2005)	RX_000310
<i>Johnson v. County of Santa Clara</i> (N.D. Cal 2023)	RX_000334
<i>MAVL Capital Inc. v. Marine Transport Logistics, Inc.</i> (FMC 2022)	RX_000363
<i>Muzorori v. Canada States Africa Lines</i> (I.D. 2015)	RX_000372
<i>OJ Commerce LLC v. Hamburg-Sud</i> (ALJ, Admin. Final 2022)	RX_000385
<i>Santa Fe Discount Cruise v. The Board of Trustees of the Galveston Wharves</i> , (ALJ 2014)	RX_000398
<i>Thompson Pipe Group, Inc. v. OMNI Logistics LLC</i> (ALJ, February 24, 2023)	RX_000415

1. SERVICE CONTRACT TERMS AND PERFORMANCE



Service Contract - #Customer Copy#

Ver: 050713 Created on: 4/13/2021

S/C Holder	MSRF, INC.		
S.C. Number	494721		
Customer Type	BCO	Trade	TPEB
AMD #.	0	Effective Date	2021/5/1
Signing Office	USCHI	Region	MW
Filing Date	2021/5/1	Sales Rep.	PAUL GOEKE
Pricing Center	TPEB:CTEC	P.I.C	NEO LIN
Duration	2021/5/1	~	2022/4/30

MQC

Trade	Qty	Remarks
TP	100	TPEB+IPWB
Total	100	TEU

AMD Ver.	0	Sales Mail	PAULGOEKE@US.YANGMING.COM
Remarks			

MSRF, Inc.
3319 N. Elston Ave.
Chicago, IL 60618
TEL: (773)227-1115
FAX: (773)227-2031

BY: _____
David Reich/President
E-mail: Dreich@msrf.com

BY: _____
Jeffrey Reich/Vice President
E-mail: Jreich@msrf.com

BY: _____
Rochi Mirasol/Logistic, Customs Compliance
Procurement
E-mail: Rmirasol@msrf.com

Yang Ming (America) Corporation
as agent for:
YANGMING MARINE TRANSPORT
CORPORATION
1085 Raymond Boulevard,
9th Floor Newark, New Jersey 07102
TEL: 281-295-8600
FAX: 281-292-0478

BY: _____
CHRIS WIMBERLY
REGIONAL DIRECTOR OF SALES AND
MARKETING

Country	Origin/Destination
CHINA	ORIGIN
HONG KONG	ORIGIN
CANADA	DESTINATION
UNITED STATES OF AMERICA	DESTINATION

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

Formula

new rate	substitution shipment?	old rate	operator	factor	Amd. Version	Amd. Type	Location	Service Mode(D/S)	Remarks
20'DC	NO	40'DC	*						
40'HQ	NO	40'DC	*						
45'HQ	NO	40'DC	*						

Affiliate(s)

Affiliate Name	Affiliate Type	PIC	Address
CONCEPT GOURMET DU VILLAGE ULC	Direct Account		539 Chemin Du Village Morin-Heights, QC J0R 1HO, Canada

Commodity

Group	Group Description
A	DRY FOODS, COCOA, COFFEE, TEA, , COOKIES, CANDIES, CHOCOLATES, DRINK MIXES, SPICE, OIL, VINEGAR, BBQ/HOT SAUCE, GIFTWARE'S, BASKETS, DECORATIVE ITEMS, BAMBOO WARE, WICKER PRODUCTS, TEA WOOD CHEST, HOUSEWARES: CERAMIC, STONEWARE, PORCELAIN, GLASSWARE, WOODENWARE, SILICON, PLASTIC WARE, TOYS, TIN PLATE, TEA PRESS, PACKING MATERIAL - RIBBONS, CARDBOARD, PAPERS, PLASTIC

Port_Group

Group	Origin/Destination	Locations
USWC	Destination	LOS ANGELES, CA/LONG BEACH, CA/SEATTLE, WA/TACOMA, WA/OAKLAND, CA
USEC	Destination	NEW YORK, NY/NORFOLK, VA/WILMINGTON, NC/CHARLESTON, SC/SAVANNAH, GA/JACKSONVILLE, FL
BASEPORTS	Origin	YANTIAN/HONG KONG/SHANGHAI/NINGBO/QINGDAO/XIAMEN

(6-1)Ocean Freight

Commodity	Origin	POD	Destination	20'DC	40'DC	40'HQ	45'HQ	Service Mode(D/S)
A	BASEPORTS	USTIW/USSEA	ALSIP,IL					CY-Door
A	BASEPORTS	USTIW/USSEA	BEDFORD PARK,IL					CY-Door
A	BASEPORTS	USTIW/USSEA	DES PLAINES,IL					CY-Door
A	BASEPORTS	USTIW/USSEA	ITASCA,IL					CY-Door
A	BASEPORTS	USTIW/USSEA	CHICAGO,IL					CY-CY
A	BASEPORTS	USNYC	NEW YORK,NY					CY-CY
A	BASEPORTS	USLAX/USLGB	LOS ANGELES,CA					CY-CY
A	BASEPORTS	USOAK	OAKLAND,CA					CY-CY
A	BASEPORTS	USSAV	SAVANNAH,GA					CY-CY
A	BASEPORTS	USLAX/USLGB	APPLE VALLEY,CA					CY-Door
A	BASEPORTS	USTIW/USSEA	COLUMBUS,OH					CY-Door
A	BASEPORTS	USLAX/USLGB	DURANT,OK					CY-Door
A	BASEPORTS	USEC	MONTGOMERY,AL				6854	CY-Door
A	BASEPORTS	USOAK	RICHMOND,CA					CY-Door
A	BASEPORTS	CAVAN	MONTREAL,QC					CY-Door
A	BASEPORTS	USLAX/USLGB	HOUSTON,TX					CY-CY

Accessorial Surcharge

Charge Code	Origin / Destination	Currency	20'DC	40'DC	40'HQ	45'HQ	Amount	Calculation Base	Expiry Date	Option Reference
CD:CY DELIVERY CHARGE	All	USD:U.S. Dollar						BOX		
CF:CURRENCY ADJUSTMENT FACTOR	All	USD:U.S. Dollar						BOX		
AO:ALAMEDA CORRIDOR SURCHARGE	All	USD:U.S. Dollar						BOX		
GI:GENERAL RATES INCREASE/RESTORATION	All	USD:U.S. Dollar						BOX		
IJ:INTERMODAL DOOR DELIVERY SURCHARGE	All	USD:U.S. Dollar						BOX		
PE:PEAK SEASON SURCHARGE	All	USD:U.S. Dollar						BOX		
BK:BUNKER CHARGE	All	USD:U.S. Dollar							2021/6/30	Transit Port at Dest.,USWC,CAVAN/
BK:BUNKER CHARGE	All	USD:U.S. Dollar							2021/6/30	Transit Port at Dest.,USEC/
LR:LOW SULPHUR CHARGE	All	USD:U.S. Dollar							2021/6/30	Transit Port at Dest.,USWC,CAVAN/
LR:LOW SULPHUR CHARGE	All	USD:U.S. Dollar							2021/6/30	Transit Port at Dest.,USEC/
LB:LOW SULPHUR FUEL SURCHARGE	All	USD:U.S. Dollar						BOX		

Detention&Demurrage

Charge	Occure At	Top On Tariff	Calendar D ys	Service Mode(D/S)
Detention	Destination	Total		
Chassis	Destination	Total		Door

<i>Equipment</i>	Full name
FO	Open Top Container
TK	Tanker Container
FR	Flat Rack Container
FC	Flat Rack Container-Collapsible
DH	Hanger Container/Hanger Bar Inside
DS	DC with Floor Special Coatg
HD	Hard Open Top Container
HS	Seacell-Geseaco
PF	Plat Form Container

Surcharge abbreviation

Abbreviation	Full name	Charge Code
ACC	Alameda Corridor Charge	AO
BK	Bunker Charge	BK
CAF	Currency Adjustment Factor	CF
CB	Carbon Tax Surcharge In Canada	CB
CC	CONTAINER CLEANING CHARGE (FOR ABOVE Reefers)	CC
CG	Congestion Surcharge	CG
CM	The Collection fee for 3rd Place Payment	CM
CX	TRI-AXLE CHASSIS CHARGE	CX
CYRC	CY Receiving Charge	CY
CZ	Chassis Usage Charge	CZ
D8	GENSET FEE	D8
DB	DOC FEE FOR ISSUE OB/L AT 3RD PLACE	DB
DDC	Destination Delivery Charge	CD
DF	Documentation Fee	DF
EK	EIR (Equipment Interchange Report)	EK
GH	Garment on Hanger Surcharge	GH
GORC	Guangdong Receiving Charge	SR
GP	Gateway Infrastructure Fee	GP
GRI	General Rate Increase/Restoration	GI
HAZ	Hazardous Cargo Surcharge	IA
IJ	Intermodal Door Delivery Surcharge	IJ
LB	Low Sulphur Fuel Surcharge	LB
LR	Low Sulphur Charge	LR
OAC	Outport Arbitrary Charge	OA
OCP	OVERLAND COMMON POINT CHARGE	OL
PA	Panama Canal Freshwater Surcharge	PA
PSS	Peak Season Surcharge	PE
PU	Port Security Charge	PU
RC	Cost Recovery Charge	RC
RI	General Rate Increase(For Canadian Trade Use Only)	RI
SJ	Seal Fee	SJ
SMDC	Security Manifest Documentation Charge	SQ
SOC	SHIPPER'S OWN CONTAINER CHARGE	SO
TP	Topping Charge	TP
TT	Telex Release/Surrender Charge	TT
TX	Tax	TX
VAT	Value Added Tax	VA
VS	Carrier Security Charge	VS

RX_000012



Service Contract - #Customer Copy#

Ver: 050713 Created on: 4/14/2022

S/C Holder	MSRF, INC.		
S.C. Number	494721		
Customer Type	BCO	Trade	TPEB
AMD #.	7	Effective Date	2022/4/18
Signing Office	USCHI	Region	MW
Filing Date	2022/4/18	Sales Rep.	PAUL GOEKE
Pricing Center	TPEB:CTEC	P.I.C	NEO LIN
Duration	2021/5/1	~	2022/4/30

MQC

Trade	Qty	Remarks
TPEB	8	
Total	8	TEU

AMD Ver.	7	Sales Mail	PAULGOEKE@US.YANGMING.COM
Remarks			

MSRF, Inc.
3319 N. Elston Ave.
Chicago, IL 60618
TEL: (773)227-1115
FAX: (773)227-2031

BY: _____
David Reich/President
E-mail: Dreich@msrf.com

BY: _____
Jeffrey Reich/Vice President
E-mail: Jreich@msrf.com

BY: _____
Rochi Mirasol/Logistic, Customs Compliance Procurement
E-mail: Rmirasol@msrf.com

Yang Ming (America) Corporation
as agent for:
YANGMING MARINE TRANSPORT CORPORATION
1085 Raymond Boulevard,
9th Floor Newark, New Jersey 07102
TEL: 281-295-8600
FAX: 281-292-0478

BY: _____
CHRIS WIMBERLY
REGIONAL DIRECTOR OF SALES AND MARKETING

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

Formula

new rate	substitution shipment?	old rate	operator	factor	Amd. Version	Amd. Type	Location	Service Mode(D/S)	Remarks
20'DC	NO	40'DC	*	■					
40'HQ	NO	40'DC	*	■					
45'HQ	NO	40'DC	*	■					

Affiliate(s)

Affiliate Name	Affiliate Type	PIC	Address
CONCEPT GOURMET DU VILLAGE ULC	Direct Account		539 Chemin Du Village Morin-Heights, QC J0R 1H0, Canada

Commodity

Group	Group Description
A	DRY FOODS, COCOA, COFFEE, TEA, , COOKIES, CANDIES, CHOCOLATES, DRINK MIXES, SPICE, OIL, VINEGAR, BBQ/HOT SAUCE, GIFTWARE'S, BASKETS, DECORATIVE ITEMS, BAMBOO WARE, WICKER PRODUCTS, TEA WOOD CHEST, HOUSEWARES: CERAMIC, STONEWARE, PORCELAIN, GLASSWARE, WOODENWARE, SILICON, PLASTIC WARE, TOYS, TIN PLATE, TEA PRESS, PACKING MATERIAL - RIBBONS, CARDBOARD, PAPERS, PLASTIC

Port_Group

Group	Origin/Destination	Locations
USWC	Destination	LOS ANGELES, CA/LONG BEACH, CA/SEATTLE, WA/TACOMA, WA/OAKLAND,CA
USEC	Destination	NEW YORK,NY/NORFOLK,VA/WILMINGTON,NC/CHARLESTON,SC/SAVANNAH,GA/JACKSONVILLE,FL
BASEPORTS	Origin	YANTIAN/HONG KONG/SHANGHAI/NINGBO/QINGDAO/XIAMEN

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

(6-1)Ocean Freight

Commodity	Origin	POD	Destination	20 DC	40 DC	40 HQ	45 HQ	Service Mode(D/S)	Effective Date	Expiry Date	Amd. Version	Amd. Type
A	BASEPORTS	USTIW/USSEA	ALSIP,IL	■	■	■	■	CY-Door	2021/10/30	2021/10/31	6	MODIFY
A	BASEPORTS	USTIW/USSEA	BEDFORD PARK,IL	■	■	■	■	CY-Door	2021/10/30	2021/10/31	6	MODIFY
A	BASEPORTS	USTIW/USSEA	DES PLAINES,IL	■	■	■	■	CY-Door	2021/10/30	2021/10/31	6	MODIFY
A	BASEPORTS	USTIW/USSEA	ITASCA,IL	■	■	■	■	CY-Door	2021/10/30	2021/10/31	6	MODIFY
A	BASEPORTS	USTIW/USSEA	CHICAGO,IL	■	■	■	■	CY-CY				
A	BASEPORTS	USNYC	NEW YORK,NY	■	■	■	■	CY-CY				
A	BASEPORTS	USLAX/USLGB	LOS ANGELES,CA/LONG BEACH,CA	■	■	■	■	CY-CY	2021/5/20		3	MODIFY
A	BASEPORTS	USOAK	OAKLAND,CA	■	■	■	■	CY-CY				
A	BASEPORTS	USSAV	SAVANNAH,GA	■	■	■	■	CY-CY				
A	BASEPORTS	USLAX/USLGB	APPLE VALLEY,CA	■	■	■	■	CY-Door				
A	BASEPORTS	USTIW/USSEA	COLUMBUS,OH	■	■	■		CY-Door				
A	BASEPORTS	USLAX/USLGB	DURANT,OK	■	■	■	■	CY-Door				
A	BASEPORTS	USEC	MONTGOMERY,AL	■	■	■	■	CY-Door				
A	BASEPORTS	USOAK	RICHMOND,CA	■	■	■	■	CY-Door				
A	BASEPORTS	CAVAN	MONTREAL,QC	■	■	■	■	CY-Door				
A	BASEPORTS	USLAX/USLGB	HOUSTON,TX	■	■	■	■	CY-CY				
A	SHANGHAI	USTIW/USSEA	TACOMA,WA/SEATTLE,WA	■	■	■	■	CY-CY	2021/9/2		5	ADD

(6-2)Origin IHC

Receiving points	POL	POD	Route Code	Commodity	Currency	20'DC	20'RF	40'DC	40'HQ	45'HQ	40'RQ	Service Mode(D/S)	Effective Date	Expiry Date	Amd. Version	Amd. Type	Remarks	Option Reference
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(6-2)Destination IHC

Destination	POL	POD	Route Code	Commodity	Currency	20'DC	20'RF	40'DC	40'HQ	45'HQ	40'RQ	Service Mode(D/S)	Effective Date	Expiry Date	Amd. Version	Amd. Type	Remarks	Option Reference
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(6-3)Bullet Rate

Commodity	Origin	POL	POD	Destination	20'DC	20'RF	40'DC	40'HQ	45'HQ	40'RQ	Service Mode(D/S)	Included Surcharge	Effective Date	Expiry Date	Amd. Version	Amd. Type	Remarks	Option Reference
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(6-4)Outport Arbitrary Charge

Country	Location	Origin / Destination	Baseport	Currency	20'DC	20'RF	40'DC	40'HQ	45'HQ	40'RQ	Effective Date	Expiry Date	Amd. Version	Amd. Type	Service Mode(D/S)	Remarks	Option Reference
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PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

Accessorial Surcharge

Charge Code	Origin / Destination	Currency	20'DC	40'DC	40'HQ	45'HQ	Amount	Calculation Base	Expiry Date	Option Reference
CD:CY DELIVERY CHARGE	All	USD:U S Dollar						BOX		
CF:CURRENCY ADJUSTMENT FACTOR	All	USD:U S Dollar						BOX		
AO:ALAMEDA CORRIDOR SURCHARGE	All	USD:U S Dollar						BOX		
GI:GENERAL RATES INCREASE/RESTORATION	All	USD:U S Dollar						BOX		
IJ:INTERMODAL DOOR DELIVERY SURCHARGE	All	USD:U S Dollar						BOX		
PE:PEAK SEASON SURCHARGE	All	USD:U S Dollar						BOX		
BK:BUNKER CHARGE	All	USD:U S Dollar							2021/6/30	Transit Port at Dest ,USWC,CAVAN/
BK:BUNKER CHARGE	All	USD:U S Dollar							2021/6/30	Transit Port at Dest ,USEC/
LR:LOW SULPHUR CHARGE	All	USD:U S Dollar							2021/6/30	Transit Port at Dest ,USWC,CAVAN/
LR:LOW SULPHUR CHARGE	All	USD:U S Dollar							2021/6/30	Transit Port at Dest ,USEC/
LB:LOW SULPHUR FUEL SURCHARGE	All	USD:U S Dollar						BOX		

Detention&Demurrage

Charge	Occure At	Top On Tariff	Calendar Days	Service Mode(D/S)
Detention	Destination	Total		
Chassis	Destination	Total		Door

<i>Equipment</i>

FO

TK

FR

FC

DH

DS

HD

HS

PF

Full name

Open Top Container

Tanker Container

Flat Rack Container

Flat Rack Container-Collapsible

Hanger Container/Hanger Bar Inside

DC with Floor Special Coatg

Hard Open Top Container

Seacell-Geseaco

Plat Form Container

Surcharge abbreviation

Abbreviation	Full name	Charge Code
ACC	Alameda Corridor Charge	AO
BK	Bunker Charge	BK
CB	Carbon Tax Surcharge In Canada	CB
CC	CONTAINER CLEANING CHARGE (For Active Reefer)	CC
DDC	Destination Delivery Charge	CD
CAF	Currency Adjustment Factor	CF
CG	Congestion Surcharge	CG
CM	The Collection fee for 3rd Place Payment	CM
CX	TRI-AXLE CHASSIS CHARGE	CX
CYRC	CY Receiving Charge	CY
CZ	Chassis Usage Charge	CZ
D8	GENSET FEE	D8
DB	DOC FEE FOR ISSUE OB/L AT 3RD PLACE	DB
DF	Documentation Fee	DF
EK	EIR (Equipment Interchange Report)	EK
GH	Garment on Hanger Surcharge	GH
GRI	General Rate Increase/Restoration	GI
GP	Gateway Infrastructure Fee	GP
HAZ	Hazardous Cargo Surcharge	IA
IJ	Intermodal Door Delivery Surcharge	IJ
LB	Low Sulphur Fuel Surcharge	LB
LR	Low Sulphur Charge	LR
OAC	Outport Arbitrary Charge	OA
OCP	OVERLAND COMMON POINT CHARGE	OL
PA	Panama Canal Freshwater Surcharge	PA
PSS	Peak Season Surcharge	PE
PU	Port Security Charge	PU
RC	Cost Recovery Charge	RC
RI	General Rate Increase(For Canadian Trade Use Only)	RI
SJ	Seal Fee	SJ
SOC	SHIPPER'S OWN CONTAINER CHARGE	SO
SMDC	Security Manifest Documentation Charge	SQ
GORC	Guangdong Receiving Charge	SR
TP	Topping Charge	TP
TT	Telex Release/Surrender Charge	TT
TX	Tax	TX
VAT	Value Added Tax	VA
VS	Carrier Security Charge	VS
WF	Wharfage	WF

OCEAN SERVICE CONTRACT

Service Contract Number: 494721

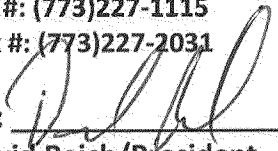
Amendment version: 0

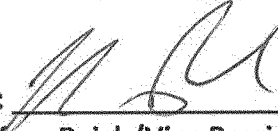
This Ocean Service Contract ("Contract") is entered into by and between MSRF, INC. (hereinafter called "Shipper") and YANG MING MARINE TRANSPORT CORPORATION (hereinafter called "Carrier") for the ocean transport services of commodities as set forth in the commodity section pursuant to the terms and conditions herein.

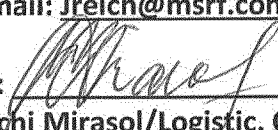
This Contract is Duly Signed at Newark, New Jersey, USA on the 1st day of May, 2021 by the Shipper & the Carrier

SHIPPER:

MSRF, Inc.
3319 N. Elston Ave.
Chicago, IL 60618
Tel #: (773)227-1115
Fax #: (773)227-2031

BY: 
David Reich/President
E-mail: Dreich@msrf.com

BY: 
Jeffrey Reich/Vice President
E-mail: Jreich@msrf.com

BY:  4/18/21
Rochi Mirasol/Logistic, Customs Compliance Procurement
E-mail: Rmirasol@msrf.com



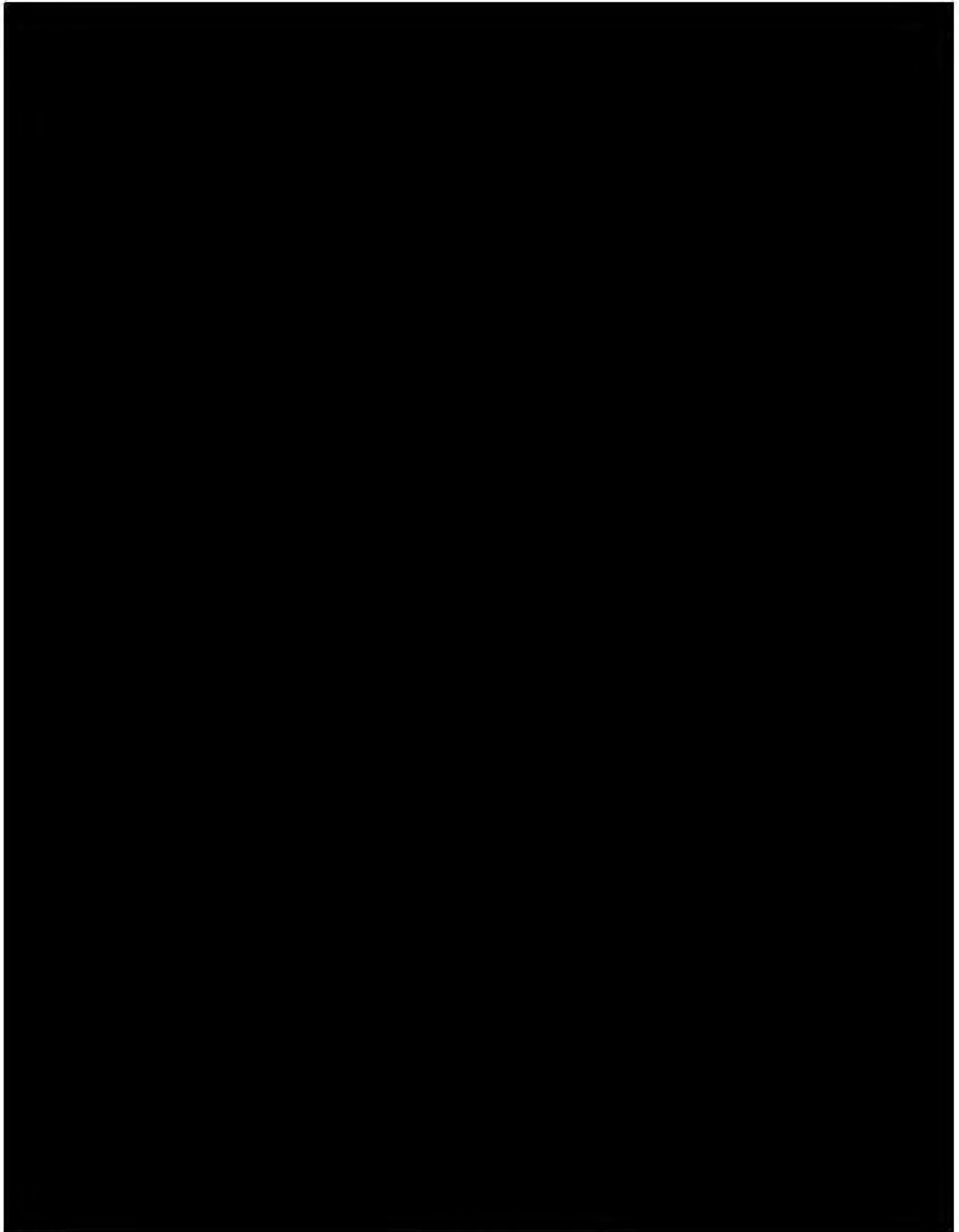
CARRIER:

Yang Ming (America) Corporation
as agent for:
YANGMING MARINE TRANSPORT CORPORATION
1085 Raymond Boulevard,
9th Floor Newark, New Jersey 07102
TEL: 281-295-8600
FAX: 281-292-0478

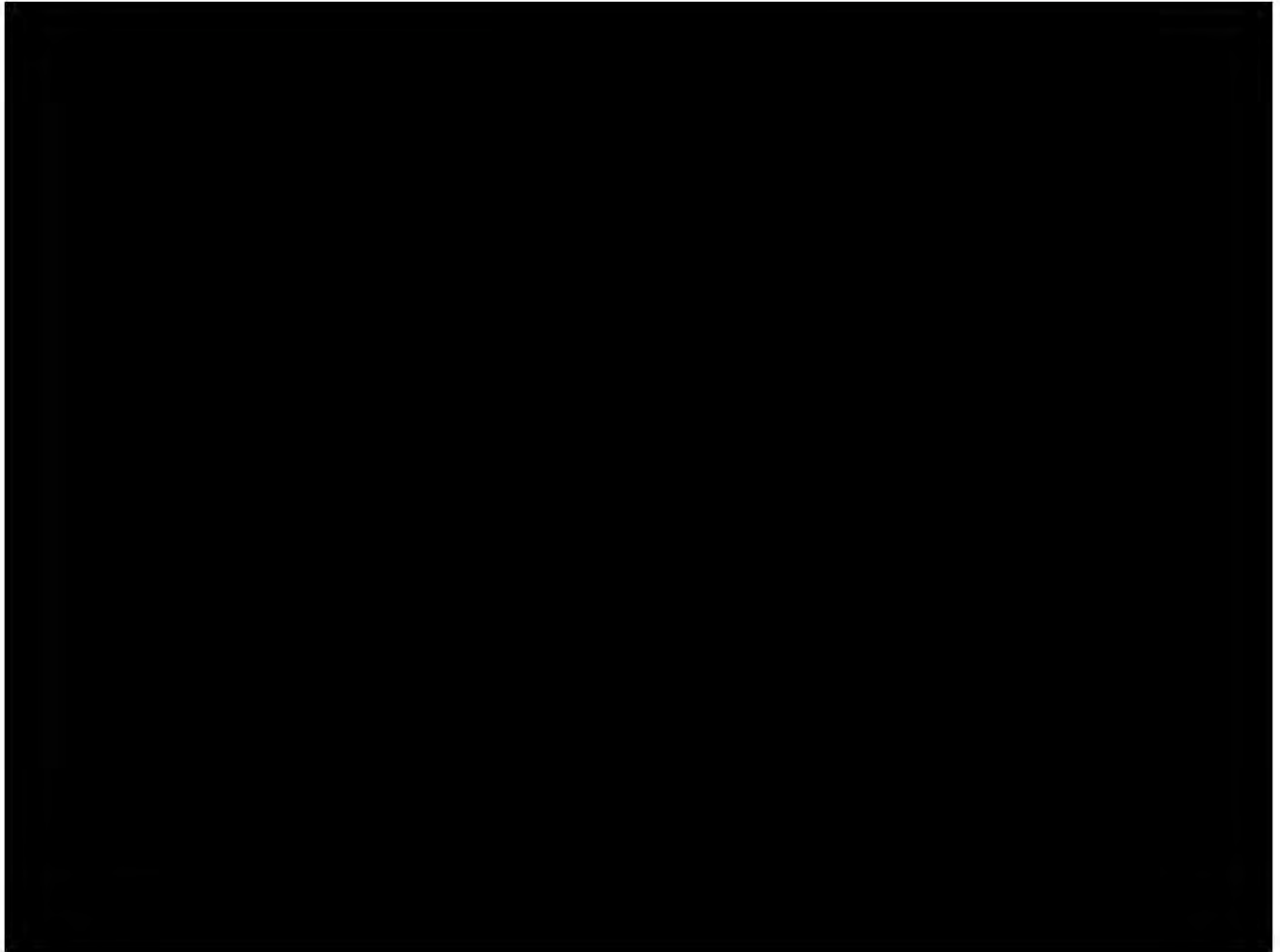
BY: _____

RX_000028

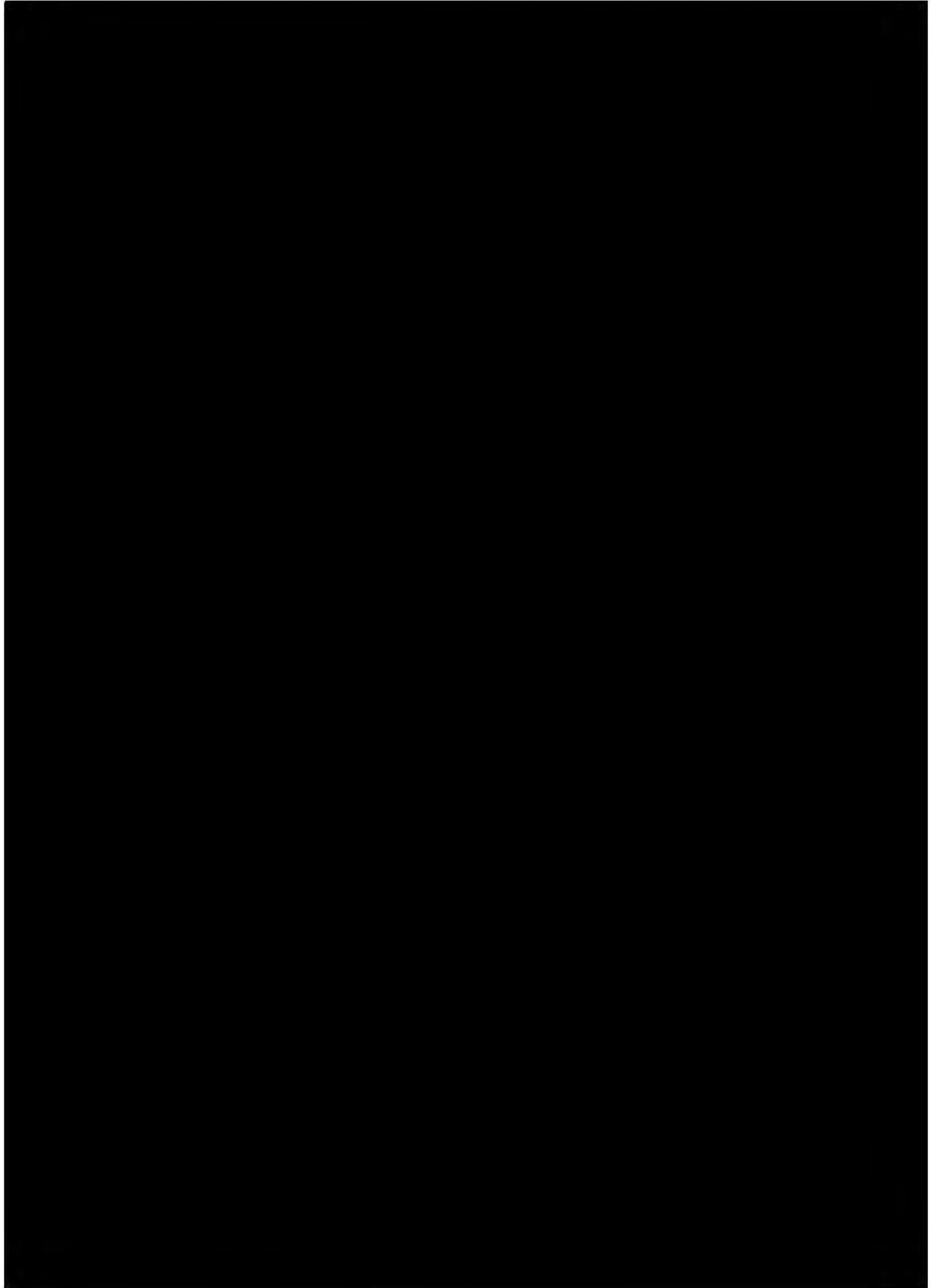
CHRIS WIMBERLY
REGIONAL DIRECTOR OF SALES AND MARKETING

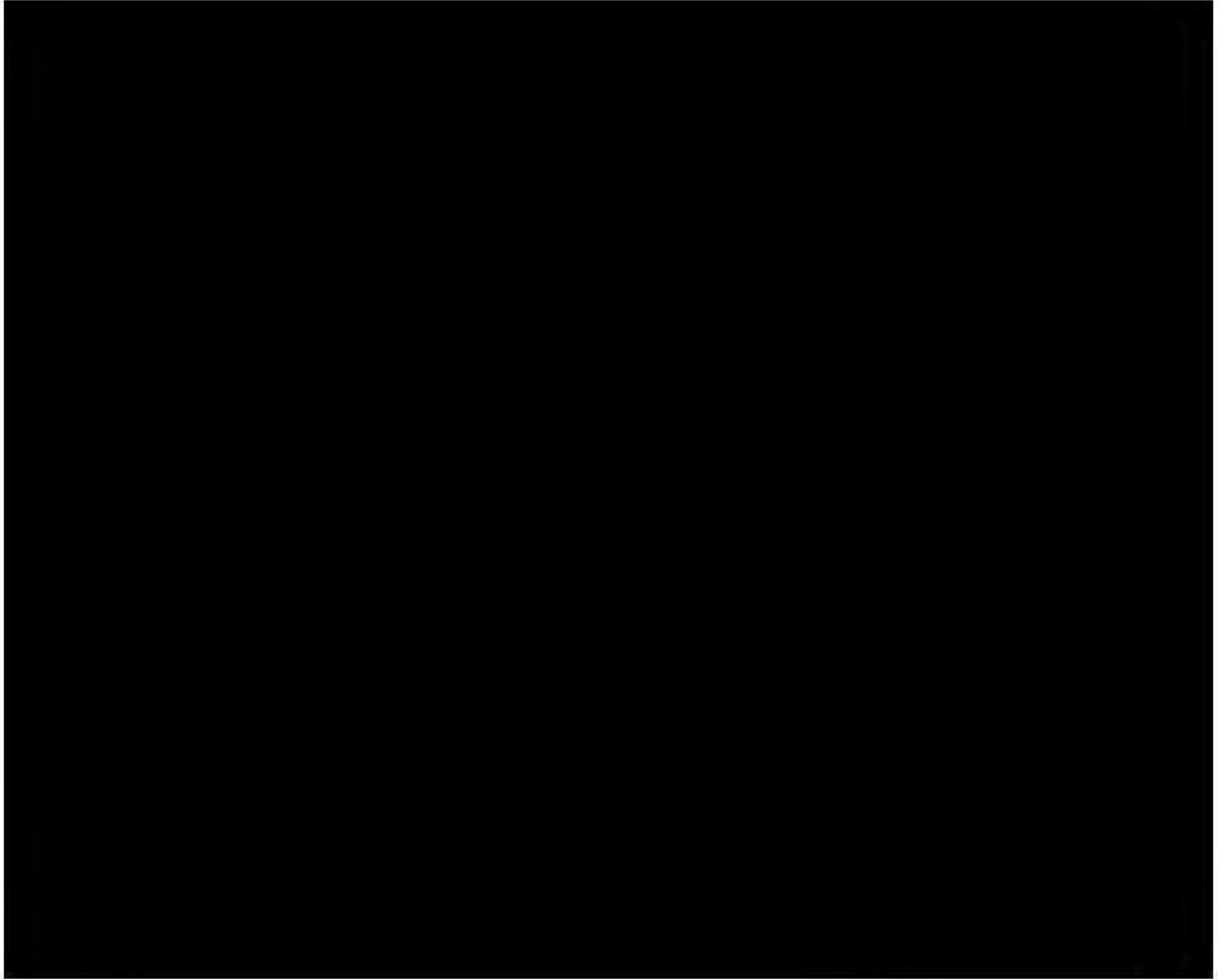


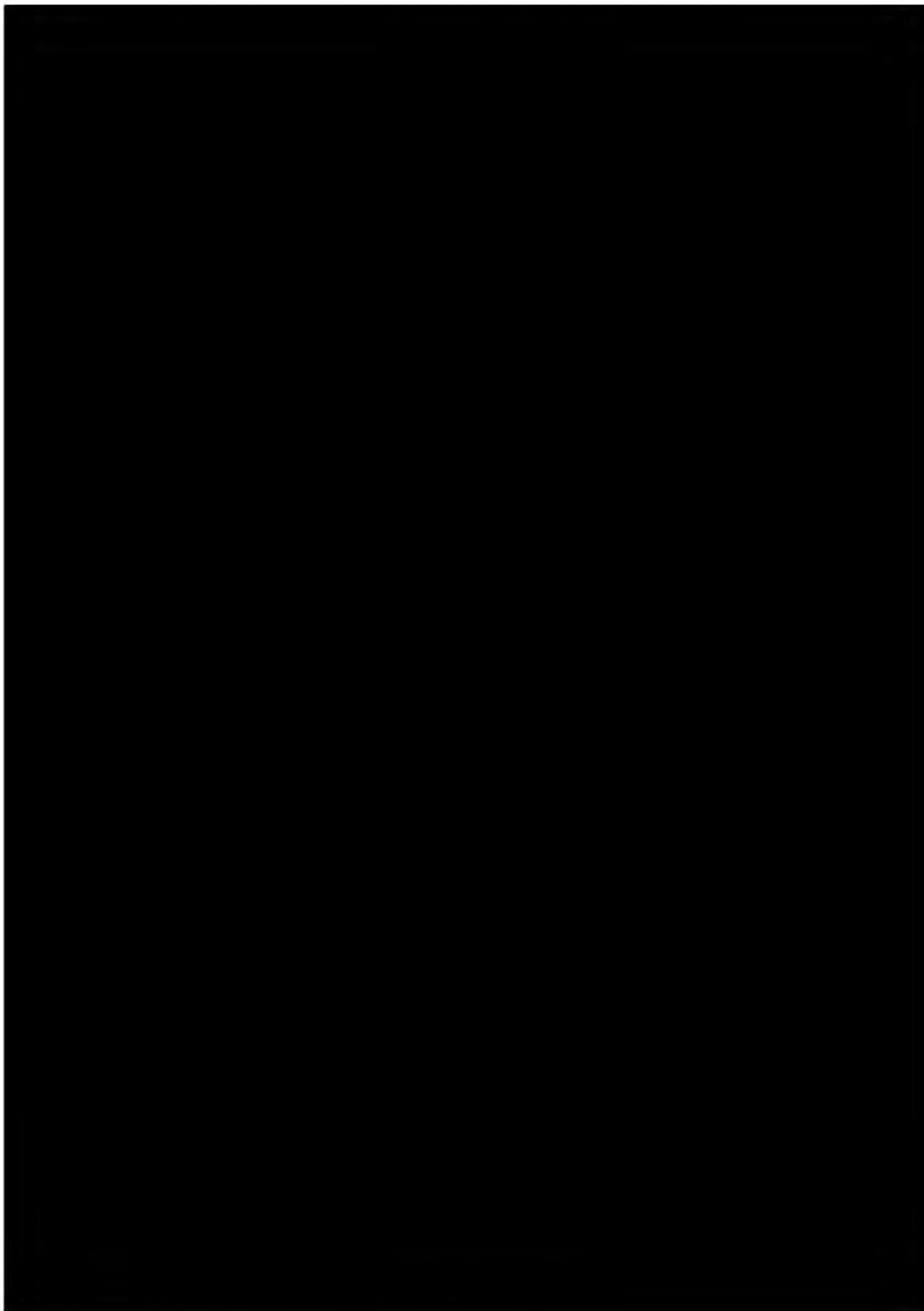
RX_000029











Booking Number: YHU764211		ITN Number :	Shipper Ref: PO # 70025507
Vessel : SHANGHAI EXPRESS		SVC NO. : 494721	
YML Voyage : EC2204W		COM Voyage : 041W	Trade Service : NORTH AMERICA EAST COAST LOOP 2
		** for US Customs purpose	POL Cut-off: 04/01/2022 DOC/ ITN Cut-off: 03/31/2022
Place of Receipt : FORT MILL, SC			POR Cut-off : 03/24/2022 16:00 *ERD Date: 03/21/2022
Port of Loading : CHARLESTON, SC			POL Sailing Date : 04/04/2022 Pickup Date :
Port of Discharge : QINGDAO,CHINA			POD Arrival Date : 05/12/2022 Dest ETA : 05/12/2022
Port of Delivery : QINGDAO,CHINA,CN			Booked Date : 02/10/2022 14:22:40
ORIGIN OFFICE		BOOKED BY	
Office : YANG MING (AMERICA) CORPORATION - HSC		Name : Jerry Tsao	
Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042		Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042	
Phone : 281 295-8600		Email : HOUSATEXP@US.YANGMING.COM	
Fax : 281 295-8679		Phone : 281-295-8180	
SI E Fax No : 1800 530-5920		Fax : 281 295-8679	
SI E-Mail : iedc@yangming.com			
SHIPPER/NVOCC		FORWARDER	
Company : MSRF INC.		Company : SCHMIDT PRITCHARD & CO INC	
Address : 3319 N ELSTON AVE. CHICAGO, IL 60618		Address : 9801 W LAWRENCE AVE SCHILLER PARK, IL 60176	
CTC Name : MS. ROCHI MIRASOL X310		CTC Name : BILL HELMS	
Phone : 773-227-1115		Phone : 847-671-5134	
Fax : 773-227-2031		Fax : 847-671-1894	

Cargo Details :

**Booking subject to vessel space and equipment availability.
 **Door Booking subject to truck power.
 **Vessel schedule on the booking confirmation is an estimate.
 **Rail cutoffs and early receiving date are subject to change.
 **All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location
1	40' HIGH CUBE CONTAINER	ITS ConGlobal Charleston Depot 1451 Bainbridge Connector Rd Charleston, SC 29405 US Janet Peterson	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464

Commodity Description	Gross Wt./Unit	Gross Cube./Unit
DRY: COCOA MIXES	44000.000	0.000

Booking Remarks: This booking is for direct calling service.
 **HECS1000011- Please check terminal website to ensure vessel is open for receiving.
 **AECC1000004- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return.
 Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.

Domestic Export TSP Mode: D-Door		Destination Export TSP Mode: Y-CY
Origin Haulage Mode: Road		
IPI Instruction:		
No.	Customer	Address
1	McClancy Seasoning Co.	8746 Charlotte Hwy Fort Mill, SC 29707 CTC: Renee Denton or Mona Munteanu Tel : 803-548-2659 Fax: Call Renee Denton or Mona Munteanu to set up an appointment at their direct line at 803-548-2659.



陽明海運股份有限公司
Yang Ming Marine Transport Corporation

BOOKING CONFIRMATION

FAX : 773-227-2031

FROM : CindyLei@us.yangming.com

If they do not pick up their phone, please email them and CC me at:
shipping@mcclancy.com; Mona.Munteanu@mcclancy.com for Mona,
Renee.Denton@mcclancy.com for Renee. **The loading dock of this company is
limited and needs to be there as early as possible.
Reference # -PO PO #70025123/124

Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).

If there is no applicable rate filed to the contract by the time Shipper renders containers to Carrier, according to FMC regulations, Carrier shall apply its tariff rate plus all applicable surcharges to the shipment involved.

Shipper's Acceptance Signature For Reefer/Special Cargo



Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

We wish to bring to your attention to the first line of the "Booking Remarks", where you find the hazardous cargo approval number. This reference number starts with "USSOL" followed by 11 digits. Effective immediately, it is to be added to the final Hazardous declaration. We urge Your team to review the accuracy of this reference number when writing or typing it on the declaration.

We focus on the accuracy to ensure the container(s) are laden in a timely manner and on the vessel/voyage for which they are booked. The vessel operator has the full authority to leave behind container(s) with declarations missing USSOL# or mistyped number. In the event this occurs and the container remains behind all charges assessed by the terminal are for the account of the shipper.

We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.



Booking Number: YHU776555		ITN Number :	Shipper Ref: PO #70025682
Booking Status : CANCEL		Reason : NO REASON PER ROCHI/JT427 - Freeze Category : BYCUSTOMERREQUEST	
Vessel : ONE HAWK	Quote Ref : LW03012201		
YML Voyage : EC2208W	COM Voyage : 022W	Trade Service : NORTH AMERICA EAST COAST LOOP 2	
	** for US Customs purpose	POL Cut-off: 05/13/2022	DOC/ ITN Cut-off: 05/12/2022
Place of Receipt : CHARLESTON, SC		POR Cut-off: 05/13/2022 16:00	*ERD Date: 05/09/2022
Port of Loading : CHARLESTON, SC		POL Sailing Date : 05/18/2022	Pickup Date :
Port of Discharge : QINGDAO,CHINA		POD Arrival Date : 06/28/2022	Dest ETA : 06/28/2022
Port of Delivery : QINGDAO,CHINA,CN		Booked Date : 04/19/2022 10:41:09	
ORIGIN OFFICE		BOOKED BY	
Office : YANG MING (AMERICA) CORPORATION - HSC		Name : LUCIA SZE	
Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042		Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042	
Phone : 281 295-8600		Email : HOUSATEXP@US.YANGMING.COM	
Fax : 281 295-8679	SI E Fax No : 1800 530-5920	Phone : 281-295-8600	
	SI E-Mail : icdc@yangming.com	Fax : 281-295-8550	
SHIPPER/NVOCC		FORWARDER	
Company : MSRF INC.		Company : SCHMIDT PRITCHARD & CO INC	
Address : 3319 N ELSTON AVE. CHICAGO, IL 60618		Address : 9801 W LAWRENCE AVE SCHILLER PARK, IL 60176	
CTC Name : ROCHI MIRASOL		CTC Name :	
Phone : 773-227-1115 310		Phone : 847-671-5134	
Fax : 773-227-2031		Fax : 847-671-1894	

Cargo Details :

**Booking subject to vessel space and equipment availability.
**Door Booking subject to truck power.
**Vessel schedule on the booking confirmation is an estimate.
**Rail cutoffs and early receiving date are subject to change.
**All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location
1	20' DRY CARGO CONTAINER	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464
Commodity Description		Gross Wt./Unit	Gross Cube./Unit
COCOA & COOKIE MIX		36000.000	0.000

Booking Remarks: This booking is for direct calling service.
**HECS1000011- Please check terminal website to ensure vessel is open for receiving.
**AECC1000004- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return.
Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.

Domestic Export TSP Mode: Y-CY	Destination Export TSP Mode: Y-CY	
No.	Customer	Address
Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).		
Shipper's Acceptance Signature For Reefer/Special Cargo		



Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

We wish to bring to your attention to the first line of the "Booking Remarks", where you find the hazardous cargo approval number. This reference number starts with "USSOL" followed by 11 digits. Effective immediately, it is to be added to the final Hazardous declaration. We urge Your team to review the accuracy of this reference number when writing or typing it on the declaration.

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We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.



陽明海運股份有限公司
Yang Ming Marine Transport Corporation

BOOKING CONFIRMATION

FAX : 773-227-2031

FROM : housatexp@us.yangming.com

Shipper's Acceptance Signature For Reefer/Special Cargo



Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

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Booking Number: YHU771539		ITN Number :		Shipper Ref:	
Booking Status : CANCEL		Reason : NO REASON PER ROCHI/JT427 - Freeze Category : BYCUSTOMERREQUEST			
Vessel : HYUNDAI PRIDE		Quote Ref : LW03012201			
YML Voyage : EC2207W		COM Voyage : 042W		Trade Service : NORTH AMERICA EAST COAST LOOP 2	
		** for US Customs purpose		POL Cut-off: 05/23/2022 DOC/ ITN Cut-off: 05/20/2022	
Place of Receipt : CHARLESTON, SC		POR Cut-off : 05/23/2022 16:00 *ERD Date: 05/19/2022			
Port of Loading : CHARLESTON, SC		POL Sailing Date : 05/26/2022		Pickup Date :	
Port of Discharge : QINGDAO,CHINA		POD Arrival Date : 06/17/2022		Dest ETA : 06/17/2022	
Port of Delivery : QINGDAO,CHINA,CN		Booked Date : 03/21/2022 17:15:45			
ORIGIN OFFICE		BOOKED BY			
Office : YANG MING (AMERICA) CORPORATION - HSC		Name : Dominique Knowlton			
Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042		Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042			
Phone : 281 295-8600		Email : housatexp@us.yangming.com			
Fax : 281 295-8679		SI E Fax No : 1800 530-5920		Phone : 281 295-8600	
		SI E-Mail : icdc@yangming.com		Fax : 281 295-8679	
SHIPPER/NVOCC		FORWARDER			
Company : MSRF INC.		Company : SCHMIDT PRITCHARD & CO INC			
Address : 3319 N ELSTON AVE. CHICAGO, IL 60618		Address : 9801 W LAWRENCE AVE SCHILLER PARK, IL 60176			
CTC Name : MS. ROCHI MIRASOL X310		CTC Name : BILL HELMS			
Phone : 773-227-1115		Phone : 847-671-5134			
Fax : 773-227-2031		Fax : 847-671-1894			

Cargo Details :

**Booking subject to vessel space and equipment availability.

**Door Booking subject to truck power.

**Vessel schedule on the booking confirmation is an estimate.

**Rail cutoffs and early receiving date are subject to change.

**All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location
1	20' DRY CARGO CONTAINER	ITS ConGlobal Charleston Depot 1451 Bainbridge Connector Rd Charleston, SC 29405 US Janet Peterson	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464
Commodity Description		Gross Wt./Unit	Gross Cube./Unit
COCOA AND BROWNIE MIX,		36000.000	0.000
Booking Remarks: This booking is for direct calling service. **HECS1000011- Please check terminal website to ensure vessel is open for receiving. **AECC1000004- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return. Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.			

Domestic Export TSP Mode: Y-CY		Destination Export TSP Mode: Y-CY	
No.	Customer	Address	
Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).			

Shipper's Acceptance Signature For Reefer/Special Cargo			



Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

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We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.

Booking Number: YHU771536		ITN Number :		Shipper Ref:	
Booking Status : CANCEL		Reason : NO REASON PER ROCHI/JT427 - Freeze Category : BYCUSTOMERREQUEST			
Vessel : HYUNDAI PRIDE		SVC NO. : TRF043			
YML Voyage : EC2207W		COM Voyage : 042W		Trade Service : NORTH AMERICA EAST COAST LOOP 2	
		** for US Customs purpose		POL Cut-off: 05/23/2022 DOC/ ITN Cut-off: 05/20/2022	
Place of Receipt : CHARLESTON, SC		POR Cut-off : 05/23/2022 16:00 *ERD Date: 05/19/2022			
Port of Loading : CHARLESTON, SC		POL Sailing Date : 05/26/2022		Pickup Date :	
Port of Discharge : QINGDAO,CHINA		POD Arrival Date : 06/17/2022		Dest ETA : 06/17/2022	
Port of Delivery : QINGDAO,CHINA,CN		Booked Date : 03/21/2022 17:10:38			
ORIGIN OFFICE			BOOKED BY		
Office : YANG MING (AMERICA) CORPORATION - HSC			Name : Dominique Knowlton		
Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042			Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042		
Phone : 281 295-8600			Email : housatexp@us.yangming.com		
Fax : 281 295-8679		SI E Fax No : 1800 530-5920		Phone : 281 295-8600	
		SI E-Mail : icdc@yangming.com		Fax : 281 295-8679	
SHIPPER/NVOCC			FORWARDER		
Company : MSRF INC.			Company : SCHMIDT PRITCHARD & CO INC		
Address : 3319 N ELSTON AVE. CHICAGO, IL 60618			Address : 9801 W LAWRENCE AVE SCHILLER PARK, IL 60176		
CTC Name : MS. ROCHI MIRASOL X310			CTC Name : BILL HELMS		
Phone : 773-227-1115			Phone : 847-671-5134		
Fax : 773-227-2031			Fax : 847-671-1894		

Cargo Details :

**Booking subject to vessel space and equipment availability.

**Door Booking subject to truck power.

**Vessel schedule on the booking confirmation is an estimate.

**Rail cutoffs and early receiving date are subject to change.

**All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location	
1	20' DRY CARGO CONTAINER	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	
Commodity Description			Gross Wt./Unit	Gross Cube./Unit
COCOA			36000.000	0.000
1	40' HIGH CUBE CONTAINER	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	
Commodity Description			Gross Wt./Unit	Gross Cube./Unit
COCOA			44000.000	0.000

Booking Remarks: This booking is for direct calling service.

**HECS1000011- Please check terminal website to ensure vessel is open for receiving.

**AECC1000004- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return.

Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.

Domestic Export TSP Mode: Y-CY **Destination Export TSP Mode:** Y-CY

No.	Customer	Address
Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).		



If there is no applicable rate filed to the contract by the time Shipper renders containers to Carrier, according to FMC regulations, Carrier shall apply its tariff rate plus all applicable surcharges to the shipment involved.

Shipper's Acceptance Signature For Reefer/Special Cargo

Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

We wish to bring to your attention to the first line of the "Booking Remarks", where you find the hazardous cargo approval number. This reference number starts with "USSOL" followed by 11 digits. Effective immediately, it is to be added to the final Hazardous declaration. We urge Your team to review the accuracy of this reference number when writing or typing it on the declaration.

We focus on the accuracy to ensure the container(s) are laden in a timely manner and on the vessel/voyage for which they are booked. The vessel operator has the full authority to leave behind container(s) with declarations missing USSOL# or mistyped number. In the event this occurs and the container remains behind all charges assessed by the terminal are for the account of the shipper.

We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.



Booking Number: YHU764211		ITN Number :		Shipper Ref: PO # 70025507	
Booking Status : CANCEL		Reason : CANCEL PER ROCHI DUE TO ETA DESTINATION TOO FAR OUT 3/3 CL - Freeze Category : BYCUSTOMERREQUEST			
Vessel : SHANGHAI EXPRESS		SVC NO. : 494721			
YML Voyage : EC2204W		COM Voyage : 041W		Trade Service : NORTH AMERICA EAST COAST LOOP 2	
		** for US Customs purpose		POL Cut-off: 04/01/2022 DOC/ ITN Cut-off: 03/31/2022	
Place of Receipt : FORT MILL, SC				POR Cut-off : 03/24/2022 16:00 *ERD Date: 03/21/2022	
Port of Loading : CHARLESTON, SC				POL Sailing Date : 04/04/2022 Pickup Date :	
Port of Discharge : QINGDAO,CHINA				POD Arrival Date : 05/12/2022 Dest ETA : 05/12/2022	
Port of Delivery : QINGDAO,CHINA,CN				Booked Date : 02/10/2022 14:22:40	
ORIGIN OFFICE			BOOKED BY		
Office : YANG MING (AMERICA) CORPORATION - HSC			Name : Jerry Tsao		
Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042			Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042		
Phone : 281 295-8600			Email : HOUSATEXP@US.YANGMING.COM		
Fax : 281 295-8679			Phone : 281-295-8180		
SI E Fax No : 1800 530-5920			Fax : 281 295-8679		
SI E-Mail : icdc@yangming.com					
SHIPPER/NVOCC			FORWARDER		
Company : MSRF INC.			Company : SCHMIDT PRITCHARD & CO INC		
Address : 3319 N ELSTON AVE. CHICAGO, IL 60618			Address : 9801 W LAWRENCE AVE SCHILLER PARK, IL 60176		
CTC Name : MS. ROCHI MIRASOL X310			CTC Name : BILL HELMS		
Phone : 773-227-1115			Phone : 847-671-5134		
Fax : 773-227-2031			Fax : 847-671-1894		
Cargo Details :					
**Booking subject to vessel space and equipment availability.					
**Door Booking subject to truck power.					
**Vessel schedule on the booking confirmation is an estimate.					
**Rail cutoffs and early receiving date are subject to change.					
**All dates/times are best reasonable estimates and may change.					
Qty	Equipment	Pick Up Location		Return Location	
1	40' HIGH CUBE CONTAINER	ITS ConGlobal Charleston Depot 1451 Bainbridge Connector Rd Charleston, SC 29405 US Janet Peterson		PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	
Commodity Description				Gross Wt./Unit	Gross Cube./Unit
DRY: COCOA MIXES				44000.000	0.000
Booking Remarks: This booking is for direct calling service.					
**HECS1000011- Please check terminal website to ensure vessel is open for receiving.					
**AECC1000004- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return.					
Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.					
Domestic Export TSP Mode: D-Door			Destination Export TSP Mode: Y-CY		
Origin Haulage Mode: Road					
IPI Instruction:					
No.	Customer	Address			
1	McClancy Seasoning Co.	8746 Charlotte Hwy Fort Mill, SC 29707 CTC: Renee Denton or Mona Munteanu Tel : 803-548-2659			



陽明海運股份有限公司
Yang Ming Marine Transport Corporation

Booking Cancellation Notice

FAX : 773-227-2031

FROM : CindyLei@us.yangming.com

Fax:

Call Renee Denton or Mona Munteanu to set up an appointment at their direct line at 803-548-2659.

If they do not pick up their phone, please email them and CC me at:

shipping@mcclancy.com; Mona.Munteanu@mcclancy.com for Mona,

Renee.Denton@mcclancy.com for Renee. **The loading dock of this company is

limited and needs to be there as early as possible.

Reference # -PO PO #70025123/124

Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).

If there is no applicable rate filed to the contract by the time Shipper renders containers to Carrier, according to FMC regulations, Carrier shall apply its tariff rate plus all applicable surcharges to the shipment involved.

Shipper's Acceptance Signature For Reefer/Special Cargo

Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

We wish to bring to your attention to the first line of the "Booking Remarks", where you find the hazardous cargo approval number. This reference number starts with "USSOL" followed by 11 digits. Effective immediately, it is to be added to the final Hazardous declaration. We urge Your team to review the accuracy of this reference number when writing or typing it on the declaration.

We focus on the accuracy to ensure the container(s) are laden in a timely manner and on the vessel/voyage for which they are booked. The vessel operator has the full authority to leave behind container(s) with declarations missing USSOL# or mistyped number. In the event this occurs and the container remains behind all charges assessed by the terminal are for the account of the shipper.

We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.



Booking Number: YHU712953

ITN Number :

Shipper Ref:

Vessel : ONE HAWK

SVC NO. : 494721

YML Voyage : EC2118W

COM Voyage : 019W
** for US Customs purpose

Trade Service : NORTH AMERICA EAST COAST LOOP 2

Place of Receipt : FORT MILL, SC

POL Cut-off: 06/25/2021 DOC/ ITN Cut-off: 06/24/2021

POR Cut-off: 06/24/2021 16:00 *ERD Date: 06/21/2021

Port of Loading : CHARLESTON, SC

POL Sailing Date : 06/27/2021

Pickup Date :

Port of Discharge : QINGDAO, CHINA

POD Arrival Date : 07/30/2021

Dest ETA : 07/30/2021

Port of Delivery : QINGDAO, CHINA, CN

Booked Date : 04/20/2021 11:12:51

ORIGIN OFFICE

BOOKED BY

Office : YANG MING (AMERICA) CORPORATION - HSC

Name : Dominique Knowlton

Address : 3250 BRIARPARK DRIVE, SUITE 201
HOUSTON, TX 77042

Address : 3250 BRIARPARK DRIVE, SUITE 201
HOUSTON, TX 77042

Phone : 281 295-8600

Email : housatexp@us.yangming.com

Fax : 281 295-8679

SI E Fax No : 1800 530-5920

Phone : 281 295-8600

SI E-Mail : iedc@yangming.com

Fax : 281 295-8679

SHIPPER/NVOCC

FORWARDER

Company : MSRF INC.

Company : SCHMIDT PRITCHARD & CO INC

Address : 3319 N ELSTON AVE. CHICAGO, IL 60618

Address : 9801 W LAWRENCE AVE
SCHILLER PARK, IL 60176

CTC Name : MS. ROCHI MIRASOL X310

CTC Name : BILL HELMS

Phone : 773-227-1115

Phone : 847-671-5134

Fax : 773-227-2031

Fax : 847-671-1894

Cargo Details :

**Booking subject to vessel space and equipment availability.
**Vessel schedule on the booking confirmation is an estimate.
**Rail cutoffs and early receiving date are subject to change.
**All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location
1	40' HIGH CUBE CONTAINER	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464
Commodity Description		Gross Wt./Unit	Gross Cube./Unit
COCOA MIXES, SEASON SALT MIXES		44000.000	0.000

Booking Remarks: **HECS1000011- Please check terminal website to ensure vessel is open for receiving.
**AECC1000004- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return.
Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.

Special Remarks: Voyage has been Changed from EC2115W to EC2118W and port USCHS for the Reason Roll per RoChi

Domestic Export TSP Mode: D-Door

Destination Export TSP Mode: Y-CY

Origin Haulage Mode: Road

IPI Instruction:

No.	Customer	Address
1	McClancy Seasoning Co.	8746 Charlotte Hwy Fort Mill, SC 29707 CTC: Renee Denton or Mona Munteanu Tel : 803-548-2659 Fax: Call Renee Denton or Mona Munteanu to set up an appointment at their direct line at 803-548-2659. If they do not pick up their phone, please email them and CC me at: shipping@mcclancy.com; Mona.Munteanu@mcclancy.com for Mona,



陽明海運股份有限公司
Yang Ming Marine Transport Corporation

BOOKING CONFIRMATION

FAX : 773-227-2031

FROM : CindyLei@us.yangming.com

Renee.Denton@mcclancy.com for Renee. **The loading dock of this company is limited and needs to be there as early as possible.
Reference # - PO #70025123/124
Mc Clancy SO # - SO020780/779

Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).

If there is no applicable rate filed to the contract by the time Shipper renders containers to Carrier, according to FMC regulations, Carrier shall apply its tariff rate plus all applicable surcharges to the shipment involved.

Shipper's Acceptance Signature For Reefer/Special Cargo



Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

We wish to bring to your attention to the first line of the "Booking Remarks", where you find the hazardous cargo approval number. This reference number starts with "USSOL" followed by 11 digits. Effective immediately, it is to be added to the final Hazardous declaration. We urge Your team to review the accuracy of this reference number when writing or typing it on the declaration.

We focus on the accuracy to ensure the container(s) are laden in a timely manner and on the vessel/voyage for which they are booked. The vessel operator has the full authority to leave behind container(s) with declarations missing USSOL# or mistyped number. In the event this occurs and the container remains behind all charges assessed by the terminal are for the account of the shipper.

We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.



Booking Number: YCH933392		ITN Number :	Shipper Ref:
Vessel : YM TOTALITY		SVC NO. : TRF045	
YML Voyage : PS6216W		COM Voyage : 009W	Trade Service : PACIFIC SOUTH WEST COAST LOOP 6
		** for US Customs purpose	POL Cut-off: 05/10/2022 DOC/ ITN Cut-off: 05/09/2022
Place of Receipt : CHICAGO, IL			POR Cut-off: 05/03/2022 18:00 *ERD Date: 05/02/2022
Port of Loading : LOS ANGELES, CA			POL Sailing Date : 05/16/2022 Pickup Date :
Port of Discharge : QINGDAO,CHINA			POD Arrival Date : 06/03/2022 Dest ETA : 06/03/2022
Port of Delivery : QINGDAO,CHINA,CN			Booked Date : 04/08/2022 09:39:59
ORIGIN OFFICE		BOOKED BY	
Office : YANG MING (AMERICA) CORPORATION - HSC		Name : Jessica Xu	
Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042		Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042	
Phone : 281 295-8600		Email : JessicaXu@us.yangming.com	
Fax : 281 295-8679		Phone : 281 295-8600	
SI E Fax No : 1800 530-592		Fax : 281 295-8679	
SI E-Mail : iedc@yangming.com			
SHIPPER/NVOCC		FORWARDER	
Company : MSRF INC.		Company : SCHMIDT PRITCHARD & CO INC	
Address : 3319 N ELSTON AVE. CHICAGO, IL 60618		Address : 9801 W LAWRENCE AVE SCHILLER PARK, IL 60176	
CTC Name : ROCHI MIRASOL		CTC Name : BILL HELMS	
Phone : 773-227-1115(310)		Phone : 847-671-5134	
Fax : 773-227-2031		Fax : 847-671-1894	

Cargo Details :

**Booking subject to vessel space and equipment availability.
**Door Booking subject to truck power.
**Vessel schedule on the booking confirmation is an estimate.
**Rail cutoffs and early receiving date are subject to change.
**All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location
1	20' DRY CARGO CONTAINER	BNSF RAIL - LOGISTICS PARK CONTAINER YARD (Lot 16) 26353 Elwood International Port Rd. Elwood, IL 60	BNSF RAIL - LPC,ELWOOD-26664 Elwood International Port Road, Elwood, IL 60421
Commodity Description		Gross Wt./Unit	Gross Cube./Unit
18 OZ BBQ SAUCE		36000.000	0.000

Booking Remarks: PER ROCHI ROL FROM PS6214AW TO PS6216W ON 04/13 JX
This booking is for direct calling service.
**HECS1000017- Please send all loaded rail billing requests to hxloadedbilling@us.yangming.com.
Please send the following required information:
- Booking number
- Container number including check digit with no spaces or dashes
- Seal number
- Weight in LBS
Please have loaded containers returned between ERD and cut off. Loaded billing requests are valid between the ERD and cut off.
Please be advised that loaded billing requests for containers after the cut off will be cancelled.
**AECC1000005- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return.
Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.
**API1000225- Please be advised that the weight limit for off-dock movement to LAX/LGB port is 38,000 LBS/20' DC, 44,000 LBS/40' DC and 43,700 LBS/40' HQ. Please load shipment within the weight limit or shipment may be delayed/rerouted/rejected. Shipper will be responsible if weight limit is not followed.
**API1000222- IF MOVING VIA RAIL, 20' IPI SHIPMENTS ARE SUBJECT TO DELAY DEPENDING ON MATE AVAILABILITY.

Special Remarks: Voyage has been Changed from PS6214AW to PS6216W and port USLAX for the Reason PER ROCHI ROL FROM PS6214AW TO PS6216W ON 04/13 JX



陽明海運股份有限公司
Yang Ming Marine Transport Corporation

BOOKING CONFIRMATION
FAX : 773-227-2031
FROM : JessicaXu@us.yangming.com

Domestic Export TSP Mode: Y-CY

Destination Export TSP Mode: Y-CY

No.	Customer	Address
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Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).

If there is no applicable rate filed to the contract by the time Shipper renders containers to Carrier, according to FMC regulations, Carrier shall apply its tariff rate plus all applicable surcharges to the shipment involved.

Shipper's Acceptance Signature For Reefer/Special Cargo



Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

We wish to bring to your attention to the first line of the "Booking Remarks", where you find the hazardous cargo approval number. This reference number starts with "USSOL" followed by 11 digits. Effective immediately, it is to be added to the final Hazardous declaration. We urge Your team to review the accuracy of this reference number when writing or typing it on the declaration.

We focus on the accuracy to ensure the container(s) are laden in a timely manner and on the vessel/voyage for which they are booked. The vessel operator has the full authority to leave behind container(s) with declarations missing USSOL# or mistyped number. In the event this occurs and the container remains behind all charges assessed by the terminal are for the account of the shipper.

We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.



No. Customer

Address

Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).

Shipper's Acceptance Signature For Reefer/Special Cargo



Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

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We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.



Booking Number : YCH933286		ITN Number :		Shipper Ref:	
Vessel : EXPRESS BERLIN				Quote Ref : TRF045	
YML Voyage : PS6214AW		COM Voyage : 025W		Trade Service : PACIFIC SOUTH WEST COAST LOOP 6	
		** for US Customs purpose		POL Cut-off: 05/04/2022 DOC/ ITN Cut-off: 05/03/2022	
Place of Receipt : CHICAGO, IL				POR Cut-off : 04/26/2022 18:00 *ERD Date: 04/25/2022	
Port of Loading : LOS ANGELES, CA				POL Sailing Date : 05/18/2022 Pickup Date :	
Port of Discharge : QINGDAO,CHINA				POD Arrival Date : 05/30/2022 Dest ETA : 05/30/2022	
Port of Delivery : QINGDAO,CHINA,CN				Booked Date : 04/07/2022 16:04:49	
ORIGIN OFFICE				BOOKED BY	
Office : YANG MING (AMERICA) CORPORATION - HSC				Name : Jessica Xu	
Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042				Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042	
Phone : 281 295-8600				Email : JessicaXu@us.yangming.com	
Fax : 281 295-8679				Phone : 281 295-8600	
SI E Fax No : 1800 530-592				Fax : 281 295-8679	
SI E-Mail : icdc@yangming.com					
SHIPPER/NVOCC				FORWARDER	
Company : MSRF INC.				Company : SCHMIDT PRITCHARD & CO INC	
Address : 3319 N ELSTON AVE. CHICAGO, IL 60618				Address : 9801 W LAWRENCE AVE SCHILLER PARK, IL 60176	
CTC Name : ROCHI MIRASOL				CTC Name : BILL HELMS	
Phone : 773-227-1115(310)				Phone : 847-671-5134	
Fax : 773-227-2031				Fax : 847-671-1894	
Cargo Details :					
**Booking subject to vessel space and equipment availability.					
**Door Booking subject to truck power.					
**Vessel schedule on the booking confirmation is an estimate.					
**Rail cutoffs and early receiving date are subject to change.					
**All dates/times are best reasonable estimates and may change.					
Qty	Equipment	Pick Up Location		Return Location	
1	40' HIGH CUBE CONTAINER	BNSF RAIL - LOGISTICS PARK CONTAINER YARD (Lot 16) 26353 Elwood International Port Rd. Elwood, IL 60		BNSF RAIL - LPC,ELWOOD-26664 Elwood International Port Road, Elwood, IL 60421	
Commodity Description				Gross Wt./Unit	Gross Cube./Unit
TEA POPCORN				44000.000	0.000
MBDC Remarks: LW03012201(04/01/22--06/30/22)					
Booking Remarks: This booking is for direct calling service.					
**HECS1000017- Please send all loaded rail billing requests to hxloadedbilling@us.yangming.com.					
Please send the following required information:					
- Booking number					
- Container number including check digit with no spaces or dashes					
- Seal number					
- Weight in LBS					
Please have loaded containers returned between ERD and cut off. Loaded billing requests are valid between the ERD and cut off.					
Please be advised that loaded billing requests for containers after the cut off will be cancelled.					
**AECC1000005- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return.					
Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.					
**APII1000225- Please be advised that the weight limit for off-dock movement to LAX/LGB port is 38,000 LBS/20' DC, 44,000 LBS/40' DC and 43,700 LBS/40' HQ. Please load shipment within the weight limit or shipment may be delayed/rerouted/rejected. Shipper will be responsible if weight limit is not followed.					
Domestic Export TSP Mode: Y-CY			Destination Export TSP Mode: Y-CY		



No. Customer

Address

Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).

Shipper's Acceptance Signature For Reefer/Special Cargo

Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

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We focus on the accuracy to ensure the container(s) are laden in a timely manner and on the vessel/voyage for which they are booked. The vessel operator has the full authority to leave behind container(s) with declarations missing USSOL# or mistyped number. In the event this occurs and the container remains behind all charges assessed by the terminal are for the account of the shipper.

We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.



Booking Number: YHU717247

ITN Number :

Shipper Ref:

Vessel : HYUNDAI HONOUR

SVC NO. : 494721

YML Voyage : EC2119W

COM Voyage : 026W
** for US Customs purpose

Trade Service : NORTH AMERICA EAST COAST LOOP 2

Place of Receipt : FORT MILL, SC

POL Cut-off: 07/01/2021 DOC/ ITN Cut-off: 06/30/2021

POR Cut-off: 06/30/2021 16:00 *ERD Date: 06/28/2021

Port of Loading : CHARLESTON, SC

POL Sailing Date : 07/01/2021 Pickup Date :

Port of Discharge : QINGDAO, CHINA

POD Arrival Date : 08/06/2021 Dest ETA : 08/06/2021

Port of Delivery : QINGDAO, CHINA, CN

Booked Date : 05/17/2021 17:37:26

ORIGIN OFFICE

BOOKED BY

Office : YANG MING (AMERICA) CORPORATION - HSC

Name : LUCIA SZE

Address : 3250 BRIARPARK DRIVE, SUITE 201
HOUSTON, TX 77042

Address : 3250 BRIARPARK DRIVE, SUITE 201
HOUSTON, TX 77042

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SHIPPER/NVOCC

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Company : SCHMIDT PRITCHARD & CO INC

Address : 3319 N ELSTON AVE. CHICAGO, IL 60618

Address : 9801 W LAWRENCE AVE
SCHILLER PARK, IL 60176

CTC Name : MS. ROCHI MIRASOL X310

CTC Name : BILL HELMS

Phone : 773-227-1115

Phone : 847-671-5134

Fax : 773-227-2031

Fax : 847-671-1894

Cargo Details :

**Booking subject to vessel space and equipment availability.
**Vessel schedule on the booking confirmation is an estimate.
**Rail cutoffs and early receiving date are subject to change.
**All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location		
1	20' DRY CARGO CONTAINER	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464		
Commodity Description			Gross Wt./Unit	Gross Cube./Unit	
CAKE MIXES, LATTE MIXES, COCOA MIXES, SEASONED SALTS			36000.000	0.000	
1	40' HIGH CUBE CONTAINER	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464		
Commodity Description			Gross Wt./Unit	Gross Cube./Unit	
CAKE MIXES, LATTE MIXES, COCOA MIXES, SEASONED SALTS			44000.000	0.000	

Booking Remarks: **HECS1000011- Please check terminal website to ensure vessel is open for receiving.
**AECC1000004- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return.
Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.

Special Remarks: Voyage has been Changed from EC2118W to EC2119W and port USCHS for the Reason Roll from EC2118W to EC2119W CHS per Rochi 5/24 CL

Domestic Export TSP Mode: D-Door

Destination Export TSP Mode: Y-CY

Origin Haulage Mode: Road

IPI Instruction:

No.	Customer	Address
1	McClancy Seasoning Co.	8746 Charlotte Hwy Fort Mill, SC 29707 CTC: Renee Denton or Mona Munteanu



陽明海運股份有限公司
Yang Ming Marine Transport Corporation

BOOKING CONFIRMATION

FAX : 773-227-2031
FROM : CindyLei@us.yangming.com

Tel : 803-548-2659

Fax:

Call Renee Denton or Mona Munteanu to set up an appointment at their direct line at 803-548-2659.

If they do not pick up their phone, please email them and CC me at:

shipping@mcclancy.com; Mona.Munteanu@mcclancy.com for Mona,

Renee.Denton@mcclancy.com for Renee. **The loading dock of this company is limited and needs to be there as early as possible.

Reference # -PO #70025272/95/99/301/02/03

Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).

If there is no applicable rate filed to the contract by the time Shipper renders containers to Carrier, according to FMC regulations, Carrier shall apply its tariff rate plus all applicable surcharges to the shipment involved.

Shipper's Acceptance Signature For Reefer/Special Cargo



Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

We wish to bring to your attention to the first line of the "Booking Remarks", where you find the hazardous cargo approval number. This reference number starts with "USSOL" followed by 11 digits. Effective immediately, it is to be added to the final Hazardous declaration. We urge Your team to review the accuracy of this reference number when writing or typing it on the declaration.

We focus on the accuracy to ensure the container(s) are laden in a timely manner and on the vessel/voyage for which they are booked. The vessel operator has the full authority to leave behind container(s) with declarations missing USSOL# or mistyped number. In the event this occurs and the container remains behind all charges assessed by the terminal are for the account of the shipper.

We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.

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Business

COVID curbs bite at Chinese ports, threatening global supply chains

By Joe Brock

March 16, 2022 3 2 AM EDT Updated a year ago



A cargo ship carrying containers is seen near the Yantian port in Shenzhen, following the novel coronavirus disease (COVID-19) outbreak, Guangdong province, China May 17, 2020. REUTERS/Martin Pollard

Summary

- Container ship congestion builds at Chinese ports
- COVID-19 curbs keep port, factory, truck workers home
- Knock-on impact on goods to U.S., inflation

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SINGAPORE, March 16 (Reuters) - The queues of container ships outside major Chinese ports are lengthening by the day as COVID-19 outbreaks in manufacturing export hubs threaten to unleash a fresh wave of global supply chain shocks, ship owners, logistics firms and analysts say.

China is experiencing its biggest spike in COVID-19 infections since an initial outbreak in the central city of Wuhan was contained in early 2020. [read more](#)

The spread of the highly-infectious Omicron variant this month has led to movement controls across China, including in key manufacturing hubs of Shenzhen and Dongguan, paralysing factories making goods from flash drives to car parts. [read more](#)

While China's main ports remain open and vessels are continuing to dock, congestion is building up and some container ships are re-routing to avoid expected delays, according to ship owners, analysts and supply chain managers.

Charter rates are expected to ramp up, while delays to shipping freight grow longer, they said.

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Container vessel congestion builds off China's key manufacturing hubs as COVID cases climb

Movement restrictions to curb the spread of COVID-19 infections have slowed supply chains around China's key industrial zones

Key anchorages off Pearl River/Guangzhou/Hong Kong



Key anchorages off Shanghai/Zhoushan



PORTS, BERTHS, ANCHORAGES (66/4475)
CONTAINER AND RO-RO (207/7352)

Source: Refinitiv

Container vessel congestion builds off China's key manufacturing hubs as COVID cases climb

SUPPLY CHAIN CRISIS

Container loading is "decreasing massively" at Shenzhen's Yantian port, the world's fourth largest container terminal, as port workers, truckers and factory workers stayed at home, said Jasmine Wall, Asia-Pacific manager at SEKO Logistics.

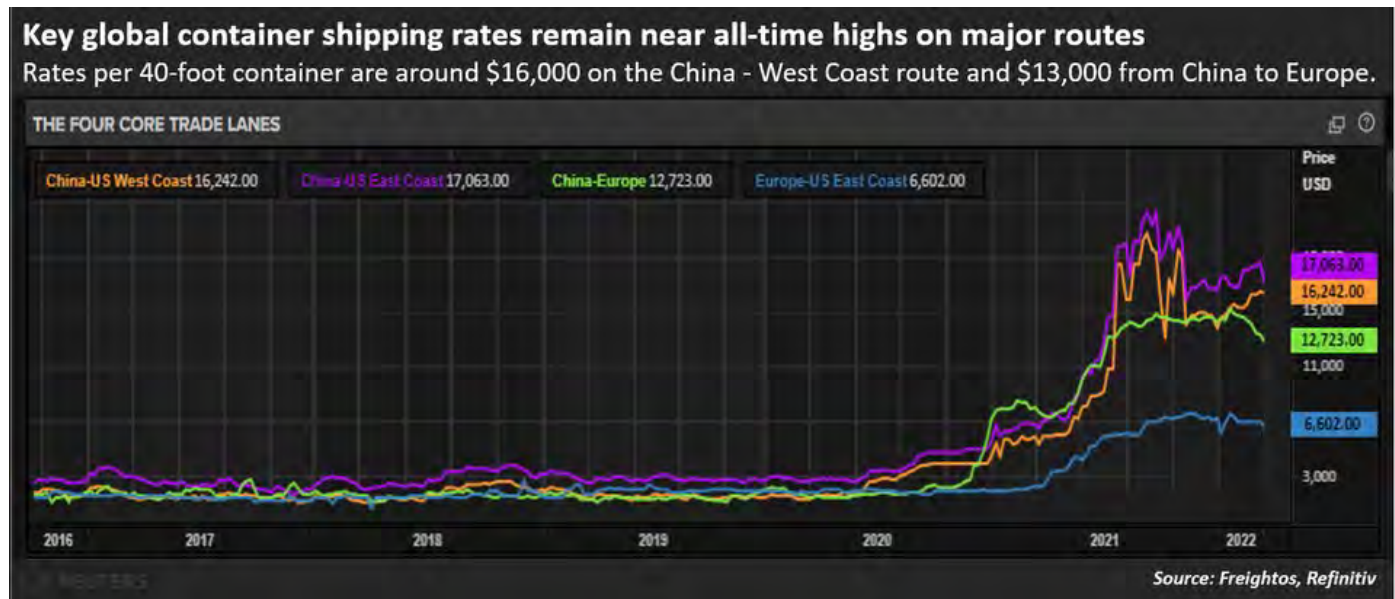
"This implies that it will become difficult to get cargo to and from the ports and hence whether the terminals are open or not becomes a moot point," said Lars Jensen, CEO at Vespucci Maritime, a container shipping advisor.

"It will have a disruptive impact on the supply chain - in turn prolonging the current supply chain crisis."

Currently there are 34 vessels off Shenzhen waiting to dock, compared to an average of seven a year ago, according to Refinitiv ship tracking data. At Qingdao, an eastern Chinese port city, there are around 30 vessels waiting to dock compared to an average of seven last year.

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Charter rates per 40-foot container remain close to all-time highs across major global shipping routes, trading at around \$16,000 on the China-U.S. West Coast route and nearly \$13,000 from China to Europe, according to Freightos shipping index.



Key global container shipping rates remain near all-time highs on major routes

"WHIPLASH EFFECT"

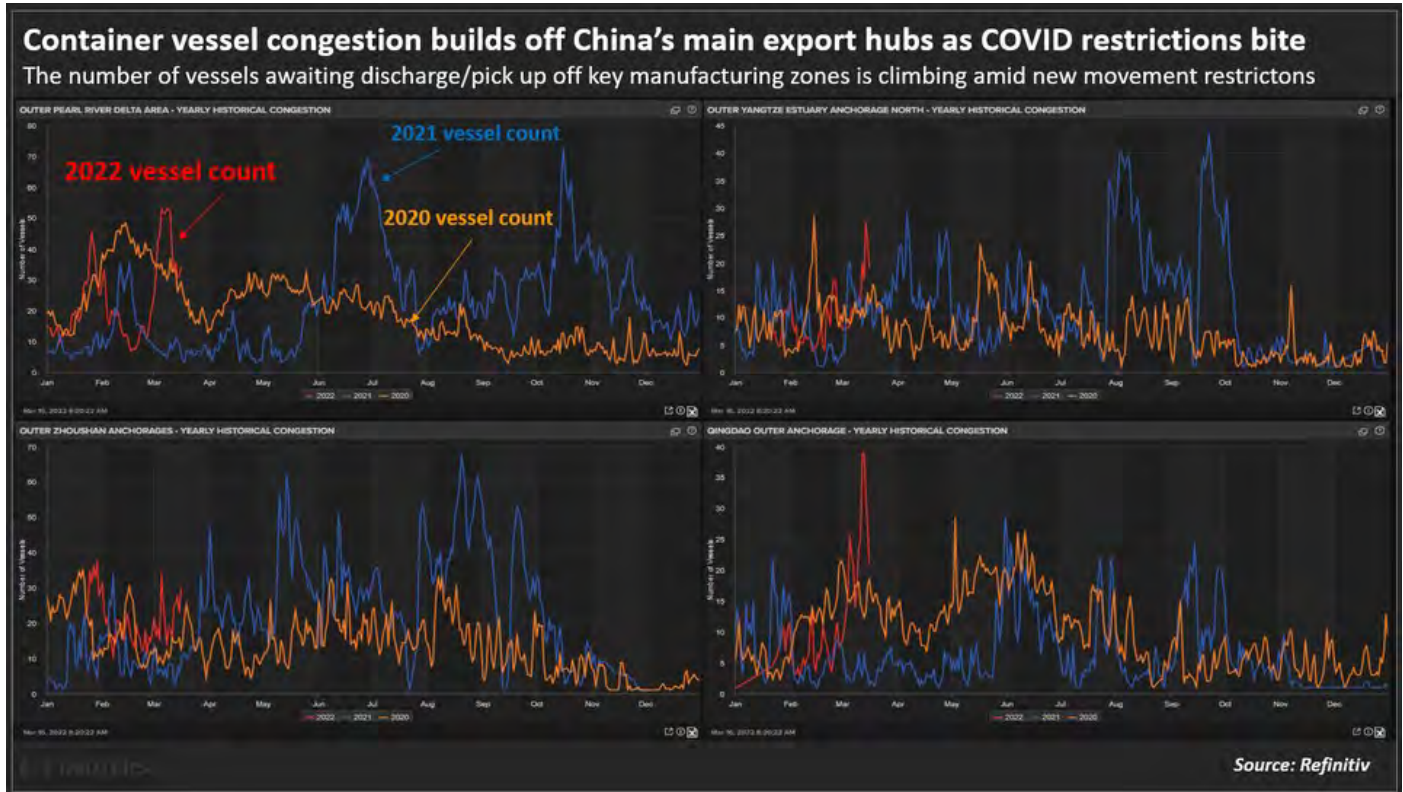
Similar COVID lockdowns last year saw operations at Yantian cut to one-third of capacity, leading to a bigger disruption of global shipping than the one caused by the closure of the Suez Canal for six days last year after the Ever Given container vessel ran aground, a director of Maersk, the world's largest container liner, noted last year

Although supply chain experts say that Chinese ports are more resilient now to staff shortages and transport disruptions, there remains the fear that Yantian may have to shut if infections and restrictions spread.

Supplier and shipping delays, while still elevated, had eased to their lowest level since early 2021 in February, according to JP Morgan Global PMI.

"If the (Yantian) port does close, then the whiplash effect when it reopens will lay waste to all the progress made in the U.S.," said Bjorn Vang Jensen, vice president at consultancy Sea-Intelligence.

Even if ocean freight terminals remain open, the lack of truck drivers and warehouse operators means there will be delays in filling shipping containers and taking them to port.



Container vessel congestion builds off China's main export hubs as COVID restrictions bite

INFLATION

With other nearby export hubs also suffering from bottlenecks, including Hong Kong and Shanghai, vessels may have to wait until congestion eases to load cargo and that will mean phones, televisions and toys take longer to get to the United States, said Peter Sand, Chief Analyst at Xeneta, a freight analytics firm.

"I expect the consumers in the U.S. and shippers with cargo going for North America will be hardest hit," Sand said.

Shipping lines are also contending with the possibility of a rapid escalation of Omicron variant COVID cases in China, as seen elsewhere in the world, which could result in more widespread disruptions and have implications for already rising global inflation.

"The Chinese authorities' zero-tolerance policy would seem to indicate a high likelihood of further lockdowns," said Niels Rasmussen, Chief Shipping Analyst at BIMCO, a shipowner association.

"A slowdown in Chinese exports will exacerbate supply chain delays and reduce inventories held by businesses, which could drive further price increases."

Reporting by Joe Brock; additional reporting by Brenda Goh in Shanghai, Sayantani Ghosh and Kevin Krolicki in Singapore and Jamie Freed in Sydney; Graphics by Gavin Maguire; Editing by Simon Cameron-Moore



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Carriers warn of looming post-Suez China box shortage



Shippers exporting via Chinese hubs will soon be facing container shortages as ship delays and congestion in Europe resulting from the Suez blockage slow the return of boxes urgently needed to serve heavy demand, especially from US retailers. Photo credit: Shutterstock.com.

Greg Knowler, Senior Europe Editor | Apr 9, 2021, 12:00 PM EDT

The availability of container equipment at China's export hubs will decline sharply in mid-April and well into May in the wake of the Suez Canal blockage, carriers are warning, with the heavily used 40-foot boxes in particularly short supply.

This raises the prospect of another rate surge out of China, where short-term prices are already at highly elevated levels on the trans-Pacific and Asia-North Europe trades.

With ship delays in Europe of up to two weeks as a result of the six-day Suez Canal closure and subsequent congestion as vessels arrive at hub ports in close succession, carriers have warned that repositioning containers will be severely affected. This will

apply mostly to 40-foot containers, which accounts for around 75 percent of boxes on the major east-west trades.

Maersk and Hapag-Lloyd outlined their equipment concerns in separate press briefings this week, citing the knock-on effects of the Suez blockage. The shortage of equipment will be felt acutely on the trans-Pacific trade, where US retailers expect import volumes to remain at record or near-record levels through August as they scramble to replenish inventories in preparation for the busy back-to-school and holiday shopping seasons.

“With five to 11 days’ delay at ports in Asia, there will also be delays in equipment, particularly 40-foot



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containers,” James Wroe, head of Asia Pacific liner operations center at Maersk, said Friday. He told reporters the equipment shortage would be felt across Chinese ports, as well as in the South Korean hub of Busan, with the availability of empties beginning to normalize from May 10.

“The impact of this will begin in April in Shanghai, starting with containers for pickup in the week of April 12,” Wroe said. “The following week starting April 19 through to the beginning of May will see the largest impact when empty containers coming back to Asia are delayed, and import returns are lower.”

Hapag-Lloyd CEO Rolf Habben Jansen told reporters this week that shippers should expect the availability of containers in Asia to be tight for another six to eight weeks.

"Equipment remains tied up on ships waiting outside ports and from extended dwell and transit times on the land side," he said, adding that Hapag-Lloyd has made significant investment in new containers, with an additional 300,000 TEU joining the fleet over the past year.

China box supply starts to tighten

A spokesman for ContainerXChange, which produces the container availability index (CAx), said the severe equipment shortages experienced in China in 2020 and early 2021 had begun to ease after the Lunar New Year, with more empty containers arriving in Shanghai that were being exported. But that trend is now in reverse, with CAx values dropping in Shanghai this week, and expected to fall further.

"We expect the liquidity to remain stable for the next two weeks and then drop quite significantly for a period of at least two to three weeks, pushing back the recovery across Chinese ports and keeping it difficult for exporters to find available equipment, [leading to] high container prices and freight rates," the CAx spokesman said.

Jon Monroe, a consultant to non vessel operating common carriers (NVOs), said in a recent note to customers that given most vessels on the Asia to Europe trade were in the 18,000 to 24,000 TEU class, the number of empties being delayed is considerable.

"Most carriers will have this issue," he said. "Vessel port rotations in Asia are already out of sync. Qingdao might be the worst of all ports as it pertains to containers and space, since it is first port of



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call on many services and sometimes gets skipped as carriers move direct to Ningbo and Shanghai.”

Asia-Europe and trans-Pacific container freight rates skyrocketed last summer as rampant demand in Europe and North America resulted in the slowing of global container circulation, which removed available capacity from the entire international supply chain. Rate marketplace Freightos has predicted the looming equipment shortages in Asia will again push up freight rates on the major east-west trade lanes.

“The reduction in capacity and the resulting additional shortage of containers back in Asian-origin ports could put renewed pressure on ocean rates,” said Judah Levine, research lead at Freightos.

Short-term rates for 90 days or less from Asia to North Europe fell 1.7 percent this week to \$7,637 per FEU on April 9, up 419 percent year over year and 531 percent higher compared to the same week in 2019, according to data from rate benchmarking platform Xeneta. The rate from China to US West Coast ports remained flat at \$4,014 per FEU this week, up 176 percent year over year, and an increase of 145 percent compared to the same week in 2019.

Contact Greg Knowler at greg.knowler@ihsmarkit.com and follow him on Twitter: [@greg_knowler](https://twitter.com/greg_knowler).

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Carriers skipping second-tier Chinese ports amid congestion, delays



The managing director of one Hong Kong-based forwarder said the ability to export from second-tier ports in China, such as Qingdao (above), is “getting extremely critical.” Photo credit: Shutterstock.com.

Keith Wallis, Special Correspondent | May 27, 2021, 1:41 PM EDT

Chinese exporters are having a harder time shipping goods from second-tier ports as mainline carriers skip calls and curtail direct calls to improve schedule reliability and equipment availability. And as the two-day partial shutdown of a Yantian terminal showed, local COVID-19 outbreaks and the quarantine rules that follow are adding another level of uncertainty.

Carriers are dropping calls at Qingdao, Xingang/Tianjin, and Ningbo as congestion at marine terminals builds and container services suffer delays due to congestion at US and European ports. Adding to shipper woes, recent customer advisories from Ocean Network Express (ONE) show ships have omitted calls at Busan “to mitigate schedule

delays.” The South Korean gateway is an important transshipment center for cargo from ports such as Xiamen.

“The reduction in calls is mainly due to the ongoing COVID-19 pandemic and the recent Suez Canal incident. Compared with Asia, western countries have not yet gone back to business as usual, so there is a delay in ships berthing at the main ports like Los Angeles or Rotterdam,” Cliff Xu, chief executive of Rhenus Air & Ocean Greater China, told JOC.com. “This delay has affected carrier schedules and led to blank sailings, which essentially leads to a reduction in calls at China’s ports.”

The managing director of one Hong Kong-based forwarder said the ability to export from second-tier ports is “getting extremely critical.” “Currently only very few carriers have direct calls into Tianjin and Qingdao, including Cosco Shipping Lines and Evergreen Marine,” the source said.

“With westbound schedules seriously affected by port congestion and delays, carriers are deciding to skip Tianjin and Qingdao so as to catch up with the planned sailing schedule and increase vessel turnaround times,” the executive added. “Xiamen is also seriously affected.”

These reductions were highlighted in an updated sailing schedule from ONE earlier this week that showed a total of 21 blanked trans-Pacific sailings in May, June, and July, including services starting from Qingdao and Xiamen.

That comes as US shippers have voiced their concern to JOC.com at the significant reduction in calls in northern China, especially Qingdao and Xingang/Tianjin, the main port serving Beijing.

Maersk highlights container shortages

Maersk announced it is omitting Ningbo on six southbound services to Australia, along with Busan and Japanese ports on several of these services. Maersk also said it is forecasting two missed sailings and could slide four vessels in the coming weeks on Asia-US services as US port congestion continues to affect schedule reliability and capacity. The carrier is also mulling multiple port omissions on Asia-Latin America services to mitigate the impact of delays and improve schedule reliability.

Maersk highlighted further pain for shippers, saying the supply of 40-foot dry, high cube, and reefer containers in mainland China, Hong Kong, and Taiwan is insufficient to need demand. Shippers in South Korea, Japan, and Vietnam also faced an insufficient supply of 40-foot containers, the carrier said in a market summary last week.

“Container shortages for China less-than-container load [LCL] shipments are expected throughout May,” the carrier said. “LCL space will be impacted by general ocean capacity and schedule reliability. Lead time for LCL shipments is expected to be longer than usual as carriers are omitting ports, putting pressure on LCL capacity.”

The Hong Kong forwarder executive pointed out that some forwarders are using the booking slots released by carriers at gateway ports including Shanghai, Ningbo, and even Shenzhen, about 1,400 miles south of Tianjin and a five- or six-day trip, to truck containers from Qingdao and Tianjin to overcome the problems.

“Of course, the overall cost is very high,” the source said. “Right now, the space issue is even worse than before Chinese New Year in January and February. It’s likely the situation will not improve until the end of this year and quite possibly to the next Chinese New Year in 2022.”

Forwarders are uncertain about the impact on the peak season.

“The peak season in the West doesn’t really have much effect on ocean freight, as such it is generally easier to predict the volumes,” Xu from Rhenus Air & Ocean Greater China said. “But with the space constraints this year, it may become an issue. We are monitoring the situation closely, and it is unlikely to improve this year.”

That comes as Maersk predicted that strong demand for exports from Asia would continue in the third quarter “and ocean networks are projected to be highly utilized.”

COVID-19 suspension in Yantian

Meanwhile, shippers in southern China are facing further issues this week as a coronavirus outbreak at Shenzhen’s Yantian International Container Terminal led to a two-day suspension in accepting laden export containers.

The Mediterranean Shipping Co. said in a customer advisory laden that export containers would be accepted, but only within four days of vessel arrival. The measure will end on June 3 and is intended to tackle severe congestion within the terminal. Ironically, the ban caused major traffic jams outside the terminal as laden trucks waited outside.

Lars Jensen, CEO and partner at Vespucci Maritime, warned in a LinkedIn post that any COVID-19–related news from China should draw the attention of the shipping sector.

“Shippers globally, and not just from China, should follow such developments closely,” he said. “Any material flare-up of the pandemic in China has the potential of delaying

the resolution of the current severe bottleneck and capacity issues in container shipping into next year.”

Contact Keith Wallis at keithwallis@hotmail.com.

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Yantian port back to normal at midnight, container crisis remains

June 23, 2021

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The Port of Yantian is expected to return to normal operations from midnight (00:00, local time) on 24 June, after around a month that the Chinese hub is fighting with challenges caused by the Covid-19 outbreak.

Hutchison Ports Yantian has confirmed that all berths, including the West Port area, will essentially resume normal operations and the number of laden gate-in tractors will be increased to 9,000 per day, while the pickup of empty containers and import laden containers remain normal.

Additionally, the arrangements of accepting export laden containers will resume normal with "ETA -7" (within seven days of the vessel's ETA), according to an announcement.

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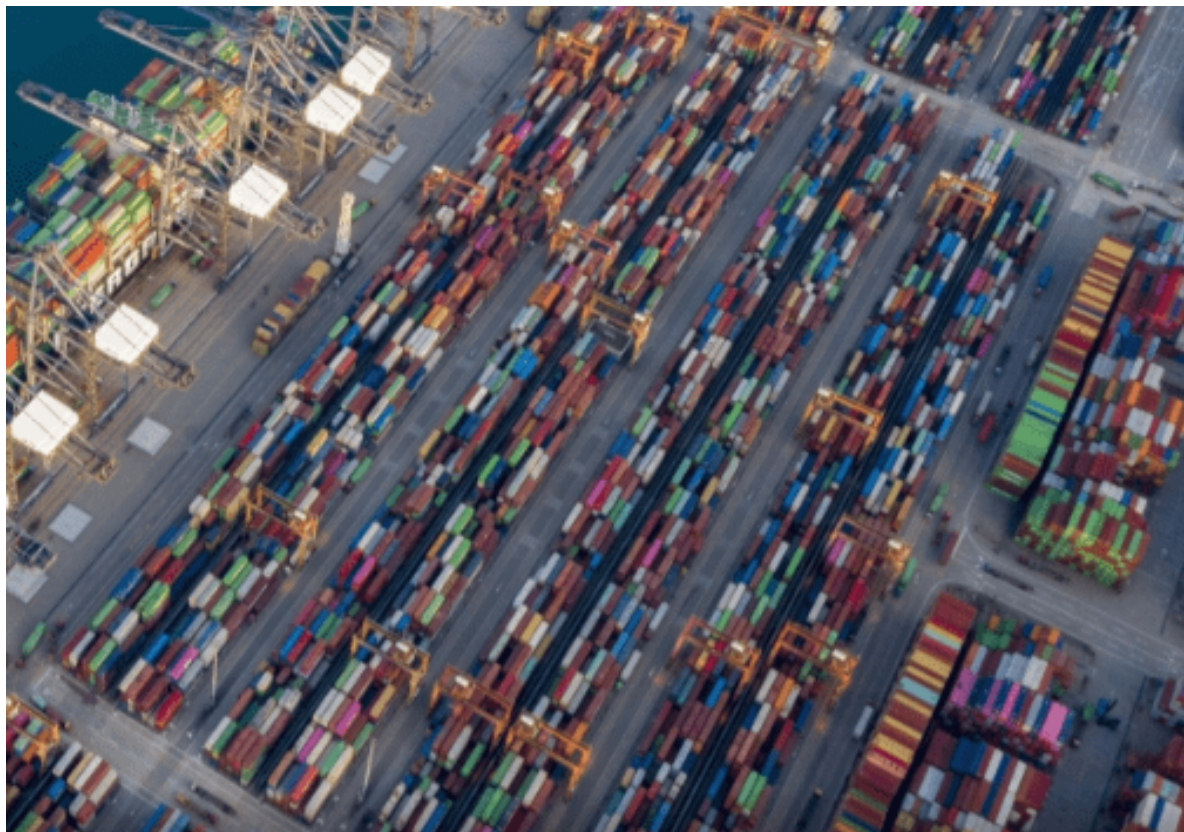
"With the full support of relevant government departments and on the premise of strict epidemic prevention, Hutchison Ports Yantian has taken proactive measures to steadily resume normal terminal operations," said the port operator in a statement. "Currently, Covid-19 has been effectively under control in the port area, and the operation capacity of the terminals have steadily recovered."

However, the Yantian terminal's return to normal operations will not instantly normalise the situation in the region, according to the container shipping analyst, Lars Jensen, who said, "There is a considerable queue of vessels waiting to be serviced – and the queue can be said to be 'artificially short' with the many port omissions both executed and still planned into July from the carriers."

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South China ports disruption triggers more than 130 omissions

June 17, 2021



Source: YICT

More than 130 omitted call and over 60 added call have been noted for the period 23 May - 26 June due to low productivity and congestion caused by Covid-19 restrictions at South China ports.

Based on vessel schedule data updated by 11 June, [EZOCEAN](#) which belongs K Line Chang ha Data Processing Company, a subsidiary of K Line China, has summarized all omitted and added calls on Asia North America and Europe trades from week 22 to week 26, reporting a total of 135 omitted and 63 added ones.

As expected, the Port of Yantian is the most affected port in the region, suffering 128 omitted calls. The number of omissions has peaked during week 24 (6-12 June), but is gradually declining in the following two weeks, according to EZOCEAN.

Meanwhile, the Port of Nansha, as the main [backup port for Yantian](#), has seen 32 added call and only two omission on an Asia MED service. The Port of Shekou has also been an

alternative solution during the Yantian crisis with 12 added calls and 4 omitted ones.

	Omit Call						Add Call					
Port	wk22	wk23	wk24	wk25	wk26	Total	wk22	wk23	wk24	wk25	wk26	Total
Yantian	6	27	45	33	17	128						
Nansha			1			1	1	4	12	11	4	32
Shekou			2	1	1	4		2	5	3	2	12
HongKong	1		1			2			1	1		2
Xiamen									1	2		3
Shanghai									2	2		4
Kaohsiung								1		2	1	4
Ningbo								1	1			2
Busan								1	1			2
Qingdao										1		1
Taipei										1		1
Total	7	27	49	34	18	135	1	9	23	23	7	63

Counting by container alliance, Ocean alliance, which includes CMA CGM/APL, Cosco Shipping/OOCL and Evergreen Line, shows the most changes with 55 omitted calls and 24 added calls, followed by non consortium services with 25 omitted calls and 24 added calls.

Additionally, THE Alliance, which comprises Hapag-Lloyd, Yang Ming, ONE and HMM, and 2M Alliance of Maersk and MSC have similar changes with 30 omitted/nine added calls, and 25 omitted/nine added calls, respectively.

	Omit Call						Add Call					
Alliance	wk22	wk23	wk24	wk25	wk26	Total	wk22	wk23	wk24	wk25	wk26	Total
2M	1	8	8	5	3	25			3	3		6
OCEAN	6	15	17	13	4	55	1	7	9	5	2	24
THE		2	14	6	8	30			2	5	2	9
OTHER		2	10	10	3	25		2	9	10	3	24
Total	7	27	49	34	18	135	1	9	23	23	7	63

If we compare figures by trade, we will see Asia TPWC having the most changes with 61 omitted calls and 32 added calls, followed by Asia NEU trade with 33 omitted calls and 16 added calls. At the same time, Asia-TPEC has 29 omitted and 15 added calls, while Asia-MED only has 12 omitted calls.

	Omit Call						Add Call					
Trade	wk22	wk23	wk24	wk25	wk26	Total	wk22	wk23	wk24	wk25	wk26	Total
Asia-TPWC	2	7	24	19	9	61		3	11	14	4	32
Asia-TPEC	1	8	9	9	2	29	1	4	5	5		15
Asia-NEU	3	8	12	4	6	33		2	7	4	3	16
Asia-MED	1	4	4	2	1	12						
Total	7	27	49	34	18	135	1	9	23	23	7	63

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Trans-Pac ocean reliability shows slight gains off low base



With ocean and inland supply chains strained, schedule integrity in the eastbound trans-Pacific is likely to suffer through the fall peak-shipping season. Photo credit: Shutterstock.com.

Bill Mongelluzzo, Senior Editor | Jun 25, 2021, 4:22 PM EDT

Trans-Pacific carriers in May improved their schedule reliability to the West and East coasts for the second consecutive month despite congestion at both ends that disrupted vessel departures from Asia and arrivals at North American ports.

Nevertheless, the 23.7 percent on-time arrival to the West Coast and 29 percent on-time arrival at East Coast ports in May were still the lowest ever recorded for that month, according to the Global Liner Performance report from Sea-Intelligence Maritime Analysis, released Friday.

On a global basis, carriers' schedule reliability on the 34 trade lanes analyzed in the report ticked lower by 0.2 percent, with 38.8 percent of the arrivals hitting on schedule.

That was down a “massive” 36 percent from 74.8 percent in May 2020, according to Sea-Intelligence.



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Many of the global shipping lanes continue to experience elevated import volumes, and pockets of port congestion in Europe, Asia, and North America are disrupting shipping schedules.

“Schedule reliability has been largely consistent these past few months, albeit at a much lower level than the industry stakeholders would have preferred,” the Global Liner Performance report said.

On time arrivals in May increased 2 percent from April to the West Coast and 9.2 percent to the East Coast. April was the first month this year when on time arrivals improved to both the East and West coasts.

US imports from Asia have been exceptionally strong since the US economy began to reopen last summer following initial COVID-19 lockdowns. According to PIERS, a JOC.com sister product within IHS Markit, last month was the busiest May on record, with imports from Asia up 44.7 percent from May 2020 and 19.5 percent from May 2019. Also, May, which is usually one of the slower months of the year, was the third-busiest

month in the Asia-US trade since import volumes began to accelerate in late June last year.

Ocean, inland supply chains strained

The nonstop spike in imports from Asia has taken a toll on international supply chains, from the Asian load ports to the US receiving ports and on to the inland rail hubs such as Chicago and Dallas. The ports of Los Angeles, Long Beach, Oakland, the Northwest Seaport Alliance of Seattle and Tacoma, New York-New Jersey, and Savannah have experienced congested port related supply chains at various times since last fall.

The six-day shutdown of the Suez Canal in March after a container ship went aground and the closure of most of the capacity of the Yantian terminal in South China due to a COVID-19 outbreak further disrupted supply chains in the trans-Pacific trades.

North American ports in May showed modest improvement in the average delays experienced by late arriving vessels. The average delay to both coasts for those vessels that arrived late decreased 0.84 day from April to 10 days for the West Coast and 5.86 days for the East Coast, according to Sea Intelligence.

All three alliances underperform

The three large vessel sharing alliances of 2M (Maersk Line and Mediterranean Shipping Co.), THE Alliance (Hapag Lloyd, Ocean Network Express [ONE], Yang Ming, and HMM), and the Ocean Alliance (CMA CGM/APL, Cosco Shipping/OOCL, and Evergreen Line) recorded 23.7 percent on time reliability to the West Coast in May and 29 percent to the East Coast.

THE Alliance had the best performance overall to North American ports in May with 23.3 percent schedule reliability, followed by 18.8 percent for 2M and 13.2 percent for The Ocean Alliance, according to the report.

Retailers project continued strong import volumes at least through the peak-shipping season this fall. According to the Global Port Tracker published by the National Retail Federation and Hackett Associates, US imports are projected to increase 32.8 percent in June, 14.2 percent in July, 7.5 percent in August, and 1.7 percent in September from the same months last year. Imports are projected to decline 6.5 percent in October.

Although year-over-year percentage growth numbers each month will slip into the single digits, the import volumes will be compared with record or near-record imports during the 2020 peak season, so port-related supply chains will still be taxed. Imports in calendar-year 2021 are on track to set a new record, according to Global Port Tracker.

Contact Bill Mongelluzzo at bill.mongelluzzo@ihsmarkit.com and follow him on Twitter: [@billmongelluzzo](https://twitter.com/billmongelluzzo).

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CHINA ECONOMY

China's zero-Covid policy is so strict that it shut down a whole shipping terminal after just one case

PUBLISHED THU, AUG 12 2021-11:48 PM EDT UPDATED FRI, AUG 13 2021-8:28 PM EDT

Weizhen Tan
@WEIZENT

WATCH LIVE

KEY POINTS

Local officials said at a press briefing that all inbound and outbound services at the Meishan terminal at the Zhoushan port have been suspended till further notice. That's a key terminal servicing shipments to Europe and North America.

Nick Marro, lead of global trade at the Economist Intelligence Unit, said that China's "zero Covid" approach suggests that this latest port disruption may not be the last

Dawn Tiura, CEO of Sourcing Industry Group, said that shippers will likely pass costs on to consumers, heating up global inflation further ahead of the key holiday season.



MARKETS



CNBC TV



WATCHLIST



MENU



China has shut down a key terminal at its Ningbo-Zhoushan port, the third busiest port in the world, after one worker was found to be infected by Covid — a move that will likely put further pressure on already stretched supply networks.

It was the second time this year that the country suspended operations at one of its key ports.

Analysts say China's "zero tolerance" approach toward Covid will exacerbate already stressed supply chains this year. Some warn that this may not be the last closure at a port as long as Beijing continues to take this stance.

Dawn Tiura, CEO of Sourcing Industry Group — an association for the sourcing and procurement industry, said China's stance will lead to "severe" supply chain consequences.

"China has a zero tolerance for COVID. One person testing positive is enough to shut down (the) port," she told CNBC in an email.



VIDEO 05:06

Covid 19 patient zero may have worked at a lab in Wuhan, China

Ningbo-Zhoushan is the third busiest in the world by container volume. In 2019, it handled 27.49 million twenty-foot equivalent units (TEUs) of container throughput, according to the World Shipping Council. Container volume in 2020 rose nearly 5% to reach 28.72 million TEUs.

“As long as authorities maintain this ‘zero Covid’ stance, the risk of sudden disruptions caused by testing or lockdowns will persist...”

—Nick Marro

ECONOMIST INTELLIGENCE UNIT

All inbound and outbound services at the Meishan terminal at the Zhoushan port were suspended on Wednesday until further notice, [according to Chinese state media](#). The terminal is key to servicing shipments to Europe and North America.





Guangzhou ports the first time that China suspended operations at ports due to Covid cases

Implications of China's 'zero Covid' stance

China's zero tolerance for Covid approach suggests that this latest port disruption may not be the last, said Nick Marro, lead of global trade at the Economist Intelligence Unit.

"China's 'zero Covid' approach means that officials will prioritise pandemic mitigation over everything else, especially given the highly contagious nature of the Delta strain, and the risks that the current outbreak poses to future economic performance over the third quarter," he said in a note on Wednesday



VIDEO 01:50

China aims to slow Covid spread with new restrictions

"As long as authorities maintain this 'zero Covid' stance, the risk of sudden disruptions caused by testing or lockdowns will persist, which closely ties any hopes of normalcy to factors like national vaccination timelines," he added.

[China has been experiencing a resurgence of Covid cases](#) due to the highly transmissible delta variant. Daily cases crossed the 140 mark on Monday the highest number of daily infections since January, according to Reuters Chinese authorities have ordered [mass testing in a few areas and imposed widespread movement restrictions](#) in major cities including Beijing

The suspension of services at the Meishan terminal comes as container shipping rates continue to soar this year Container shipping rates from China and East Asia to the west coast of North America have surged over 270% this year to over \$15,800 per TEU, according to the Freightos Baltic global container freight index Meanwhile, rates to the east coast have soared over 220% to hit over \$17,500 per TEU, according to the index

Read more about China from CNBC Pro

[This fund puts a spin on emerging markets investing with bets from Nvidia to Chinese spirits](#)





Tesla vs. BYD: Here's why one fund manager prefers the Buffett-backed automaker

Analysts warn that there will be further delays, and consumers will likely have to bear the costs as the holiday season approaches.

Tiura pointed out that the earlier June Covid outbreak led to Shenzhen's key Yantian terminal slashing 70% of exports as a result. It tripled the wait time for processing shipments from 3 days to 8 or 9 days.

“Given that Ningbo Zhoushan is the third largest container port in the world, this shutdown makes an already bad situation much worse.”

—Dawn Tiura

CEO, SOURCING INDUSTRY GROUP

“If we experience something similar here, and the time to move ships through the port doubles or triples, we'll see a substantial and long-term impact on exports that affects the holiday shopping season and furthers inflation,” she said.

“Container shortages were already straining global supply chains. Given that Ningbo-Zhoushan is the third-largest container port in the world, this shutdown makes an already bad situation much worse,” Tiura said.

She said container capacity will likely get more expensive, and shippers will likely pass costs on to consumers, heating up global inflation further ahead of the key holiday season.

Mario Ciabarra, CEO of digital analytics firm Quantum Metric, said retailers will face much uncertainty heading into the holiday season, and inventory challenges will be one of them.

“Inventory levels will be retailers' primary concern as they are faced with the decision to either have limited or no stock of certain items or manage higher costs associated with air shipping goods instead,” he told CNBC.

Marro from the EIU also pointed to disruptions which will be compounded by key demand ahead of the holiday season.

“Interruptions to trade not only pose problems for shipping and consumers, but also manufacturers who rely on critical imported components,” he said.

—CNBC's Iris Wang contributed to this report.

TRENDING NOW



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WATCHLIST

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BUSINESS

China's COVID port terminal shutdown raises fear of worldwide shipping slowdown



Men work against a backdrop of shipping containers at the Port of Los Angeles, which has been handling record import volumes, as has the Port of Long Beach. A COVID-related port terminal shutdown in China is raising fears of shipping slowdowns. (Genaro Molina / Los Angeles Times)

BY JOE DEAUX, YVONNE YUE LI, ANN KOH | BLOOMBERG

AUG. 13, 2021 12:28 PM PT

A COVID-19 outbreak that has partially shut one of the world's busiest container ports is heightening concerns that the rapid spread of the Delta variant will lead to a repeat of last year's shipping nightmares.

The Port of Los Angeles, which saw its volumes dip because of a June COVID outbreak at the Yantian port in China, is bracing for another potential decline because of the latest shutdown at the Ningbo-Zhoushan port in China, a spokesman said. A major terminal at Ningbo-Zhoushan, the world's third-busiest port, was closed Wednesday after a worker tested positive for the Delta variant of the coronavirus.



BUSINESS

These companies are requiring employees get vaccinated

Aug. 25, 2021

Even with that cargo decline, the L.A. port set a June record for number of freight containers handled as [coronavirus-related limitations on economic activity](#) were lifted nationwide. The neighboring Long Beach port also has been posting record container volumes.

China's partial port closures come as the peak shipping season gets started, with retailers stocking up for back-to-school and holiday shopping. Strong consumer demand for imported goods has been driving the record traffic — and containership traffic jams — at Southern California ports, which handle nearly half of U.S. imports from Asia.

Anton Posner, chief executive of supply-chain management company Mercury Resources, said that many companies chartering ships are already adding COVID contract clauses as insurance so they won't have to pay for stranded ships.

Although container shipments dipped in June from May's record, it seemed as if things were just starting to calm down, "and we're now into Delta delays," Emmanouil Xidias, a partner at Ifchor North America, said in a phone interview. "You're going to have a secondary hit."

The shutdown at Ningbo-Zhoushan is raising fears that ports around the world will soon face the same kind of outbreaks and COVID restrictions that [slowed the flow of everything](#) from perishable food to electronics last year as the pandemic took hold.

Infections are threatening to spread at docks just as the world's shipping system is already struggling to handle unprecedented demand with economies reopening and manufacturing picking up.

The Ningbo-Zhoushan port said in a statement late Thursday that all other terminals aside from Meishan have been operating normally. The port is actively negotiating with shipping companies, directing them to other terminals, and releasing information on a real-time data platform, it said.

Some ships that docked at the Meishan terminal before the closure are suspending cargo operations until the terminal reopens, according to a notice sent by shipping line CMA CGM to shippers.

"We are working on contingency plans in order to mitigate the likely impact on our vessel schedules and cargo operations," Orient Overseas Container Line, a subsidiary of Orient Overseas International Ltd., said via email.

Container prices have soared, with the benchmark cost of shipping a container from Shanghai to Los Angeles up more than 220% over the last year to \$10,322 this week.

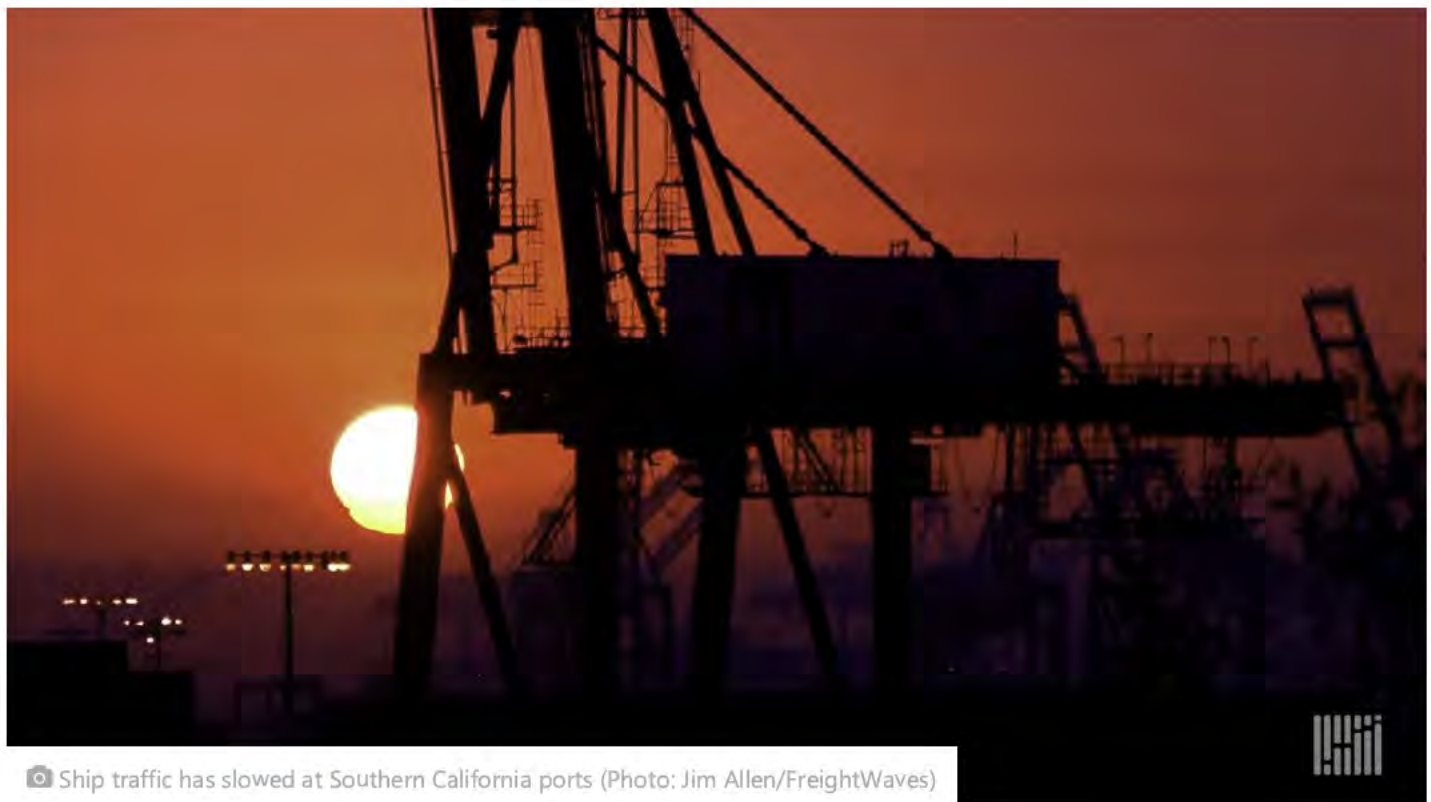
The Baltic Dry Index, which serves as a global benchmark for bulk shipping prices, is up more than 10% since a month ago as the Delta variant began to spread rapidly. Although there haven't been significant effects on U.S. ports, the problems in China could hurt companies that rely on container exports from the nation.

Zero ships waiting off Southern California for first time since 2020

Backlog off Los Angeles/Long Beach now the result of 'choice' not bottlenecks



Greg Miller • Wednesday, November 23, 2022



Ship traffic has slowed at Southern California ports (Photo: Jim Allen/FreightWaves)

Not a single container ship waited offshore of the ports of Los Angeles or Long Beach on Nov. 22-23. It was the first time the queue had gone to zero since October 2020, in the early days of the COVID-era consumer boom.

"The container-ship backup for the ports of Los Angeles and Long Beach has ended," declared Kip Louttit, executive director of the Marine Exchange of Southern California, in a statement to the media. "It is time to move into a different phase of operations."

The backup may be over in Southern California, but it's not yet over for North America overall.

An American Shipper survey of MarineTraffic ship-position data and port queue lists showed 59 container ships waiting off North American ports on Nov. 23, mainly along the East and Gulf coasts.

That's still well above pre-COVID levels, when numbers were in the single digits. But congestion is clearly easing: The count is down 60% from the peaks earlier this year.

The rise and fall of the SoCal queue

The traffic jam of container ships off Southern California began garnering headlines in early 2021 and became emblematic of the supply chain crisis ([see aerial video here](#)).

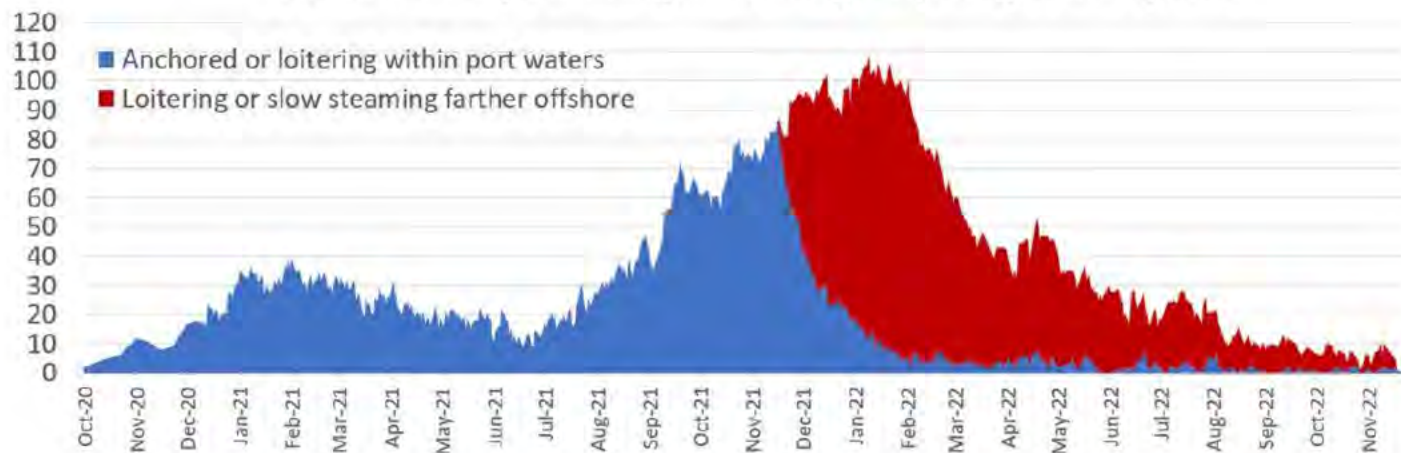
Southern California's ship queue shot to new heights in the second half of 2021. The extremely high number of vessels anchored and loitering in close proximity to each other in San Pedro Bay and the surrounding waters raised both safety and environmental concerns.

A new queuing system was launched on Nov. 16, 2021, to address those concerns. Instead of securing a spot on the waiting list on a first-come, first-served basis, inbound ships were assigned a so-called "Calculated Time of Arrival" (CTA) as soon as they sailed from their prior ports. Their position in line was dictated by the CTA, so they had no need to race across the Pacific and wait close by. Ships were urged to voluntarily wait outside port waters. Most loitered off the Baja peninsula.

The new queueing system didn't do anything to reduce the number of waiting ships. The tally kept rising, hitting an all-time high of 109 container vessels on Jan. 9, 2022.

The numbers have been falling ever since, driven down by decreased import demand and [a shift by shippers to East and Gulf Coast ports](#), partly due to concerns about the expiring West Coast labor contract.

Container ships waiting in Los Angeles/Long Beach queue



(Chart: American Shipper based on data from Marine Exchange of Southern California)

Ships still in queue are there 'by choice'

While Nov. 22 was declared the end of the backlog by the Marine Exchange, the backlog had effectively been over for the prior three months.

Since Aug. 24, there has only been an average of seven ships in the queue per day. There have been three or less ships on multiple occasions.

The queue could build up again if there is a resurgence in import demand or some new supply chain disruption. Barring that, the count seems likely to hover at very low levels but not completely vanish, mirroring [the single-digit counts seen since late August](#).

The reason is that the queuing system instituted in November 2021 will remain in place, with ships still assigned a CTA. Under this system, a ship is considered "in the queue" if its CTA is before the time the queue count is taken by the Marine Exchange. But unlike the situation during the supply chain crisis, ships are no longer in the same rush to dock at the moment their CTA comes up. (This also likely explains why the queue didn't go to zero earlier.)

According to Louttit, "Ocean carriers, working together with their terminals, are sometimes choosing to arrive after their CTA ... because it optimizes their vessel operations." The queue used to exist because of supply chain bottlenecks. What's left of the queue now exists "by choice."

Queues off other ports are shrinking

Looking at all North American ports, the total queue reached a high of around 150 container ships in early 2021, with most waiting vessels off West Coast ports, primarily Los Angeles/Long Beach.

The overall count declined through the spring as the Southern California backlog eased. Then queues began to build off East and Gulf Coast ports as shippers directed more cargo away from the West Coast.

The North American queue rebounded to around 150 in late July, this time driven by queues off the East and Gulf Coast ports.

East and Gulf Coast port congestion has gradually eased over recent months. New York/New Jersey and Houston have significantly reduced ship backlogs.

As of Nov. 23, the largest East Coast backlog was off Savannah, Georgia, with 28 vessels waiting.



Ship positions as of Nov. 23 (Map: [MarineTraffic](#))

There were 11 ships off the coast of Virginia, one off New York/New Jersey and one off Freeport, Bahamas.

On the Gulf Coast, six container vessels waited off Houston and one off Mobile, Alabama. On the West Coast, Oakland, California, had the largest queue, with nine ships waiting. Another two vessels waited off Vancouver, British Columbia.

The queue has remained at roughly the same level in the days since the Thanksgiving holiday. As of Tuesday morning, there were 65 ships waiting off North American ports, with the Los Angeles/Long Beach queue back up to nine vessels.

[Click for more articles by Greg Miller](#)

Related articles:

- [Los Angeles imports keep sinking as East Coast gains more ground](#)
- [Hapag-Lloyd CEO: Container market volatile but not collapsing](#)
- [US imports from China falling faster than from other countries](#)
- [Container imports to Los Angeles and Long Beach are plummeting](#)
- [Container-ship logjams off US ports finally easing as imports fall](#)

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Greg Miller

Greg Miller covers maritime for FreightWaves and American Shipper. After graduating Cornell University, he fled upstate New York's harsh winters for the island of St. Thomas, where he rose to editor-in-chief of the Virgin Islands Business Journal. In the aftermath of Hurricane Marilyn, he moved to New York City, where he served as senior editor of Cruise Industry News. He then spent 15 years at the shipping magazine Fairplay in various senior roles, including managing editor. He currently resides in Manhattan with his wife and two Shih Tzus.





Ocean volume

Chart

This data in context

US imports from Asia (PIERS)

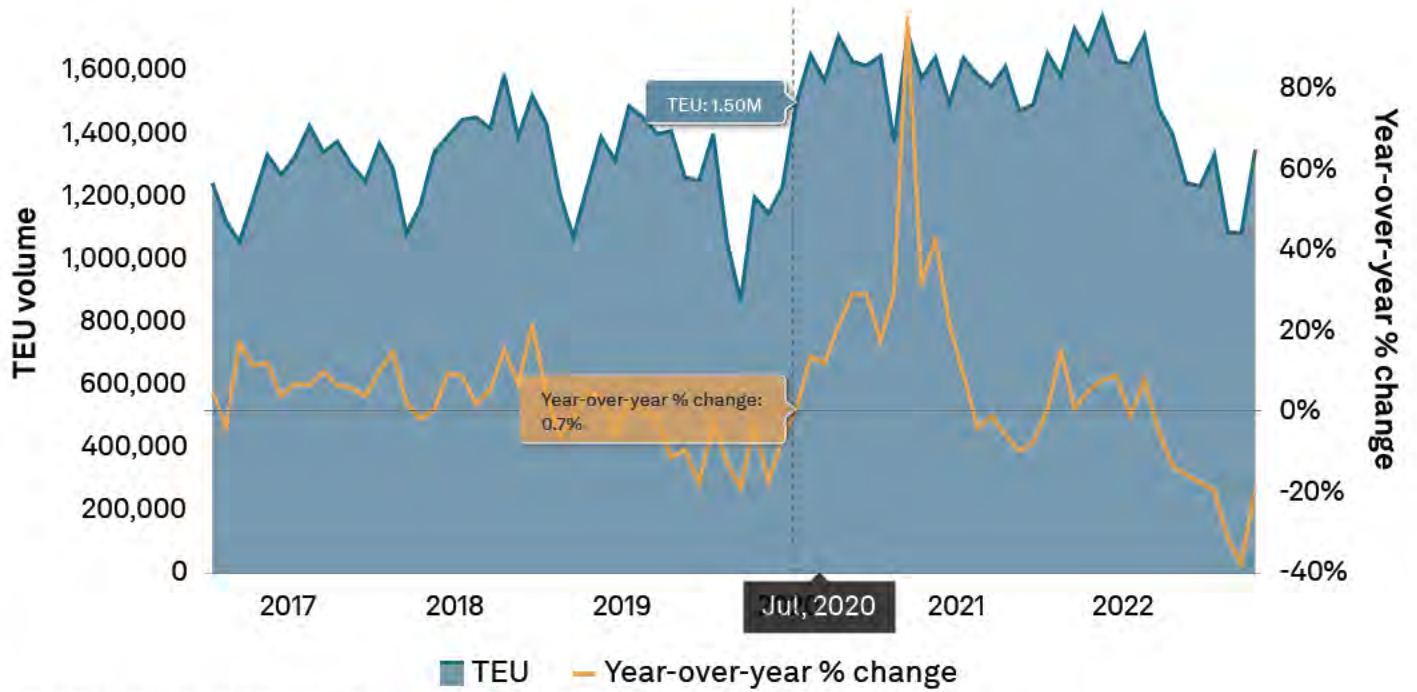
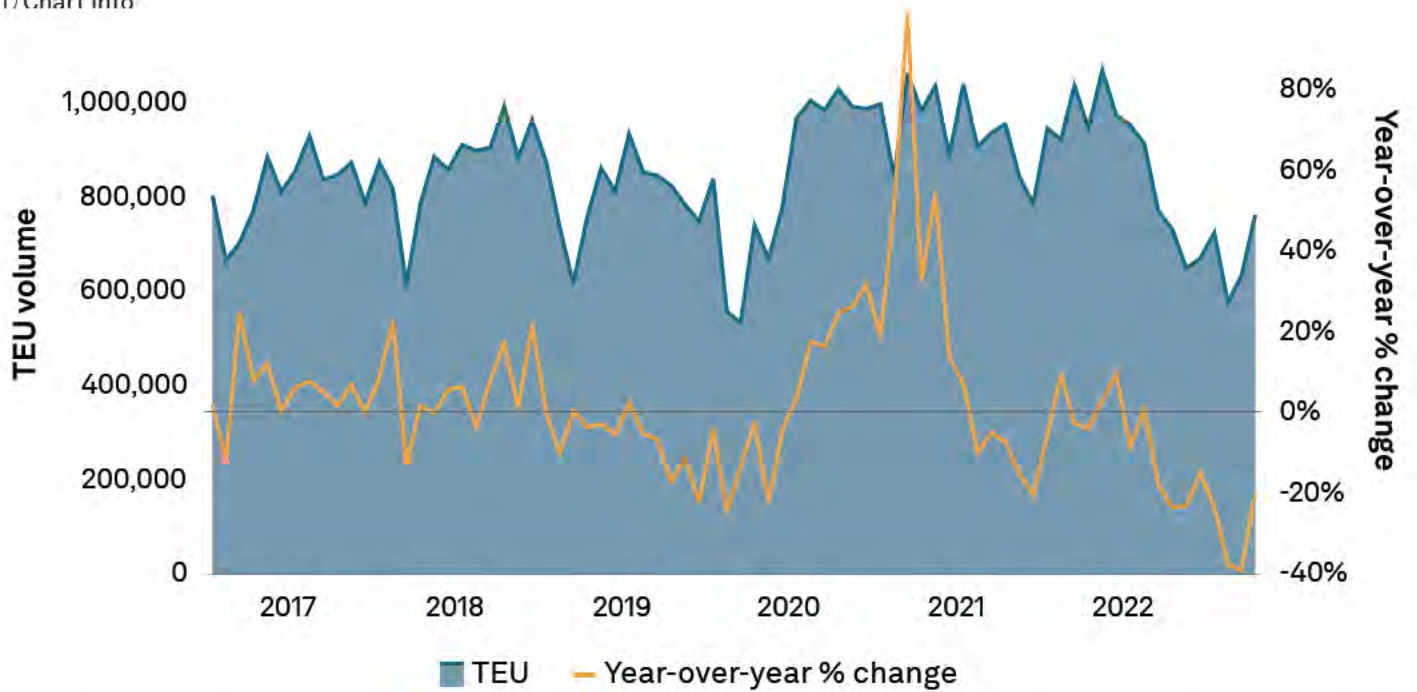


Chart info



Source: PIERS, S&P Global

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Chart info

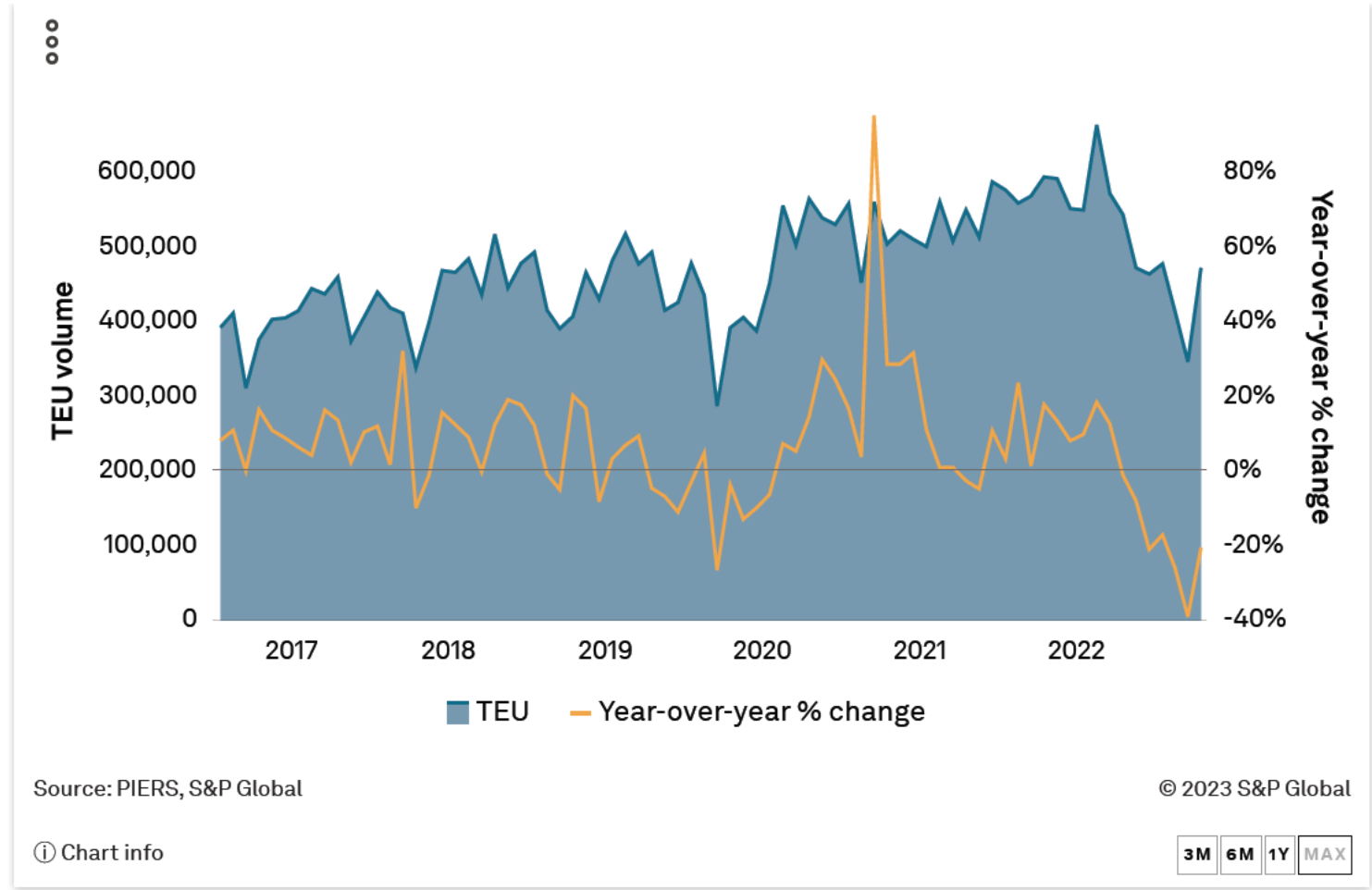
3M 6M 1Y MAX

Chart

This data in context

US containerized imports from Asia to East Coast (PIERS)

RX_000119





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MSRF was founded in 1995 as a manufacturer and importer of gourmet foods and food gifts. Since then we have operated on the principles of offering high quality, compelling and competitively priced products. We have cultivated our partner relationships based on these ideals and proven reliability. We partner with the best iconic brands today as well as the most progressive retailers. With our wealth of experience, strong level of service and proven results, we strive to be your most reliable source.

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Asia/US, Asia/Mediterranean, Asia/Europe, Europe/US, Mediterranean/US, Asia/Middle East, Asia/Red Sea, Europe/Mediterranean, other potential markets and cooperation in regional services for East Mediterranean/Black Sea, Northwestern Europe/Scandinavia are considered to improve our service network and develop the niche markets such as Northern Africa and Central and South America. Given the advantage of the Company deploying its new building in THE Alliance this year, the capacity share to the Asia/North America services will increase, thereby enhancing the Company's commercial competitiveness, lowering unit cost, and facilitating profitability.

(2) Short-Term Business Plans

In addition to deepening the existing east-west routes, the short-term business plan will improve service quality and maintain capacity and service frequency as well as punctuality. Using THE Alliance's mechanism and focusing on fast response regarding market disturbances and global supply-chain disruption caused by COVID-19, THE Alliance will implement a flexible vessel cascading plan to quickly respond to the supply and demand variations and maintain service competitiveness.

Consider the impossibility to systematically resolve the capacity erosion caused by global terminal congestions and stricter COVID-19 measures worldwide, in addition to partnership with THE Alliance on capacity recovery, the Company will evaluate vessel deployment plan and business profitability to organize private extra loaders, serving profitable sectors between Asia to/from Europe and Asia to/from US West Coast, while also responding to the demand from our main markets and customers.

2. Long-term and Short-term Plans for Near-Sea Shipping Services

(1) Long-Term Business Plans

The long-term business development goal for the Company's near-sea lines is to gradually build an overall transportation network that reflects the natural growth of the market. The medium and long-term plans of the Company's near-sea lines will be based on existing routes and built on high-potential markets in emerging countries such as China and the ASEAN region, as well as Japan and Korea. The Company will gradually build a comprehensive service network, such as the Southeast Asian shipping fleet route, the North-South route in Northeast Asia/Southeast Asia, the Far East/India and Pakistan route, the Far East/Australia route, and the Far East/South American East Coast/West Coast route. We will also expand joint ventures to optimize rationalization of routes and ports, develop ship upgrades to reduce unit costs, and operate routes in a more efficient manner by integrating ship resources to ensure niche edge and remain competitive. We expect our line services to be more flexible and profitable.

(2) Short-term Business Plans

In response to the rapid changes in the Asian market and being optimistic about the development potential of the ASEAN market, the Company began in 2021 to expand the layout of Northeast Asia to Southeast Asia routes and joint ventures, and partner with ONE, KMTC and SITC to operate the Korea - China- Southeast Asia Express Service (KCX) to strengthen the service network connecting Northeast Asia and ASEAN members. In addition, we secured the Taiwan Chinese Indonesia (TCI) service through slot swap to develop the South East Asian market. Moreover, We will launch a new Australia service (CA2) in March 2022 so as to expand Australian market share. To consolidate the service layout, we will continue to seek opportunities for slot exchange cooperation to provide more convenient and excellent delivery service to enhance overall competitiveness.



Customer Advisory - Update of Ningbo Situation (Meishan Terminal)

2021/08/16

[Back](#)

Dear Valued Customers,

We would like to inform you that Ningbo Meishan Terminal was closed and operation had suspended due to pandemic management. A delay in planned SA3/SA4/SA6 sailings and port congestion are expected, other services are running as usual so far.

Yang Ming is constantly monitoring the situation and will keep you updated of any further information. We appreciate your continued support of Yang Ming.

Should you have any queries, please feel free to contact our Local Office.

Thank you and best regards,

Commercial Group
Yang Ming Marine Transport Corp

Customer Advisory - Update of Ningbo Situation (Meishan Terminal).pdf



Customer Advisory: PN2 YM TURTH incident causes further delay

2021/08/24

[Back](#)

Dear Valued YANG MING Customer:

PN2: MV YM TRUTH 006E

This is to inform you that MV YM TRUTH 006E deployed on our Far East – Pacific North West Coast Loop 2- PN2 service, reported one of the crews has passed away in an incident before she arrived at Yantian, China. As of now, the ship owner of above chartering vessel is making necessary arrangement for this incident. However, due to COVID-19 restriction has been tighten recently, it is expected the vessel will be further delayed.

More detail and recovery schedule will be provided as it become available. Should you have any questions or concerns, please contact your sales representative for additional information.

Thanks and Regards, Yang Ming Marine Transport Corporation

Customer Advisory PN2 YM TURTH incident causes further delay.pdf

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Customer Advisory - Update of Ningbo Situation (Meishan Terminal) 2021- AUG-26 update

2021/08/27

[Back](#)

Dear Valued Customers,

Further to our Customer Advisory of 20th August, 2021, we would like to inform you that according to the press release from Information Office of Ningbo Municipal People's Government, Ningbo Meishan Terminal has reopened and resumed normal operation on 25th August, 2021. The latest situation is as follows.

Terminal Situation

1. Ningbo Meishan Terminal has resumed all cargo operation (container gate-in & gate-out) from 25th August.
2. All the Ningbo Terminal has announced that the CY Open time will be reduced to 2 days.
3. DG / OOG / REEFER will be restricted except for those containers with direct shipside delivery.

Vessel Situation

Till now, 12 container vessels have been affected as outlined below:

Vessel Name	Comn Voy	Voyage Code	ETA	Contingency Plan
XIN FEI ZHOU	079W	SA3129W	14-Aug	Ningbo omission
EVER LUCENT	1445-047W	SA3130W	11-Aug	Ningbo omission
ANTHEA Y	028W	SA3131W	24-Aug	Ningbo omission
CMA CGM JACQUES JUNIOR	0AA9VW1MA	SA3132W	22-Aug	Change to Beilun Third Container Terminal
YM TIPTOP	002W	SA3133W	5-Sep	Ningbo omission
EVER LAWFUL	0533-045E	SA4129E	18-Aug	Ningbo omission and Qingdao additional call
CSCL ASIA	147E	SA4130E	26-Aug	Ningbo omission
EVER LOADING	0535-045E	SA4131E	24-Aug	Change to Beilun Third Container Terminal
YM UTILITY	073E	SA4132E	5-Sep	Ningbo omission
KOTA CANTIK	063E	SA6131E	16-Aug	Ningbo omission
XIN FU ZHOU	067E	SA6132E	21-Aug	Ningbo omission
RDO ENDEAVOUR	E050	SA6133E	27-Aug	Ningbo omission

Yang Ming is constantly monitoring the situation and will keep you updated of any further information. We appreciate your continued support of Yang Ming. Should you have any queries, please feel free to contact our Local Office.

Thanks and best regards,

Yang Ming Marine Transport Corp.

Customer Advisory - Update of Ningbo Situation (Meishan Terminal) 2021-AUG-26 update.pdf

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Customer Advisory_ PN2 YM TRUTH incident causes further delay_2021-SEP-15 update

2021/09/15

Back

Dear Valued YANG MING Customer:

PN2: MV YM TRUTH 006E

Further to our Customer Advisory of 24th August, 2021, we would like to provide you with the latest situation of YM TRUTH 006E as follows.

Owner of YM TRUTH decide to port out this case at Philippine. After all local quarantine policies and procedures have been followed and fully complied, YM TRUTH has sailed from Manila on 12th Sep and Yantian ETA is 14th Sep.

More detail and recovery schedule will be provided as it become available. Should you have any questions or concerns, please contact your sales representative for additional information and thank you for your support to Yang Ming.

Thanks and Regards, Yang Ming Marine Transport Corporation

Customer Advisory_ PN2 YM TRUTH incident causes further delay_2021-SEP-15 update.pdf

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PS8 Hyundai Earth 030W COVID19 Cases

2022/02/09

Back

Dear Valued Customers,

This is to inform you of current updated progress on PS8142W HYUNDAI EARTH 030W. After the vessel arrived in Russia on 06th FEB, PCR test and preventive measure against epidemics has been carried out and decided to replace entire crew members to prevent further deterioration. The replacement is expected to be completed on 11th FEB and additional disinfection measure will be taken after full crew members are substituted. Once counter measure are finalized, the subject vessel will sail out to next port, Kwangyang

Ship operator is closely monitoring current status and working with relevant authorities as well as ship owner in order to make vessel operation back to normal. Will keep you posted with additional update

Thanks and Regards,

Yang Ming Marine Transport Corporation

Customer Advisory_Hyundai Earth 030W_00.pdf

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3. DISCOVERY MATERIALS

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Shipment #	Column1	Carrier	Equipment	Volume	Origin	Destination	Date of tender	To whom tendered	Date loaded at origin	Carried by	Declined by
Your reference number	Vendor	To whom did you tender this shipment? If tendered to multiple carriers, list all	What was type of equipment was requested for this shipment? How many of each type of equipment? (i.e., 1X40HQ, or 3x40, or 6x20, other?)	What was the total volume measured in TEUs of this shipment?	What was the port of origin (or inland origin location)	What was the destination location?	What was the date MSRF first contacted an ocean carrier or NVOCC seeking to ship this cargo?	Who (MSRF? MSRF's Shipper at Origin? Other?) contacted an ocean carrier or NVOCC seeking to ship this cargo?	What was the date the cargo was loaded into a container?	Which ocean carrier or NVOCC or air carrier actually carried this shipment?	Which ocean carrier or NVOCC declined to carry this shipment?
30	Qingdao Giftpackers	EGL,NNR,CENEVER	2 x 40HC	4.50	Qingdao, China	CHICAGO,IL	2021.4.25	MSRF	2021.5.8	NNR/Hapag-Lloyd	EGL,CENEVER
42	Qingdao Giftpackers	EGL,NNR,CENEVER,RSL	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.5.19	MSRF	2021.6.16	KWISSE/HPL	EGL,NNR,CENEVER,RSL
43	Qingdao Giftpackers	EGL,NNR,CENEVER,RSL	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.5.19	MSRF	2021.6.16	Top Ocean/COSCO	EGL,NNR,CENEVER,RSL
44	Qingdao Giftpackers	EGL,NNR,CENEVER,RSL	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.4.1	MSRF	2021.6.21	Hyundai	EGL,NNR,CENEVER,RSL
46	Qingdao Giftpackers	EGL,NNR,CENEVER,HMM	3 x 40HC	6.75	Qingdao, China	CHICAGO,IL	2021.4.21	MSRF	2021.6.30	TopOcean/Maersk	EGL,NNR,CENEVER,HMM
47	Qingdao Giftpackers	NNR,CENEVER,HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.5.10	MSRF	2021.6.30	Sunny Int'l/CMA-CGM	NNR,CENEVER,HMM,RSL
48	Qingdao Giftpackers	EGL,NNR,CENEVER,HMM	2 x 40HC	4.50	Qingdao, China	CHICAGO,IL	2021.5.11	MSRF	2021.6.30	TopOcean/MSC	EGL,NNR,CENEVER,HMM
49	Qingdao Giftpackers	EGL,RSL	2 x 40HC(EGL booked 1 x 40HC)	4.50	Qingdao, China	CHICAGO,IL	2021.5.11	MSRF	2021.7.6	RSL/ONE	EGL
52	Qingdao Giftpackers	EGL,HMM,RSL,CENEVER	1 x 40'RQ	2.25	Qingdao, China	CHICAGO,IL	2021.6.24	MSRF	2021.7.8	MAXWIDE/MSC	EGL,HMM,RSL,CENEVER
53	Qingdao Giftpackers	Weifang Kaimax booked	1 x 40'HQ	2.25	Qingdao, China	Houston, TX					
55	Qingdao Giftpackers	EGL,HMM,RSL,CENEVER	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.6.18	MSRF	2021.7.9	TopOcean/OOCL	EGL,HMM,RSL,CENEVER(HMM provided 1 space which were used on 1101-24)
56	Qingdao Giftpackers	NNR,CENEVER,HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.5.10	MSRF	2021.6.30	TopOcean/OOCL	NNR,CENEVER,HMM,RSL
57	Qingdao Giftpackers	EGL,HMM,YML,CENEVER	3 x 40HC	6.75	Qingdao, China	CHICAGO,IL	2021.6.17	MSRF	2021.7.11	MAXWIDE/MSC	EGL,HMM,YML,CENEVER
58	Qingdao Giftpackers	EGL,HMM,YML,CENEVER	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.6.17	MSRF	2021.7.11	MAXWIDE/MSC	EGL,HMM,YML,CENEVER
61	Qingdao Giftpackers	EGL,HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	Columbus, OH	2021.6.17	MSRF	2021.7.17	MAXWIDE/OOCL	EGL,HMM,RSL
62	Qingdao Giftpackers	Weifang Kaimax booked	1 x 40'HQ	2.25	Qingdao, China	Tremont, PA					
63	Qingdao Giftpackers	EGL,HMM,RSL	2 x 40HC	4.50	Qingdao, China	Montgomery, AL	2021.6.17	MSRF	2021.7.16	Topocean/OOCL	EGL,HMM,RSL
64	Qingdao Giftpackers	EGL,HMM,RSL,CENEVER	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.6.18	MSRF	2021.7.9	RSL/ONE	EGL,HMM,RSL,CENEVER
65	Qingdao Giftpackers	EGL,HMM,YML,CENEVER	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-29/38	MSRF	2021.7.14	MAXWIDE/ONE	EGL,HMM,YML,CENEVER
66	Qingdao Giftpackers	HMM,RSL	2 x 40HC	4.50	Qingdao, China	Durant, OK	No record	MSRF	2021.7.18	MAXWIDE/CMA-CGM	HMM,RSL
67	Qingdao Giftpackers	HMM,RSL,EGL,CENEVER	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	No record	MSRF	2021.7.22	RSL/ONE	HMM,EGL,CENEVER
73	Qingdao Giftpackers	EGL,HMM	1 x 40'HQ	2.25	Qingdao, China	Tremont, PA	2021.6.23	MSRF	2021.7.23	Topocean/OOCL	EGL,HMM
74	Qingdao Giftpackers	HMM,RSL,YML	1 x 40'HQ	2.25	Qingdao, China	HOUSTON, TX	2021.7.9	MSRF	2021.7.24	RSL/ONE	HMM,YML
76	Qingdao Giftpackers	HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	Apple Valley, CA	2021.6.29	MSRF	2021.7.26	Topocean/YML	HMM,RSL
79	Qingdao Giftpackers	HMM,RSL,YML	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	No record	MSRF	2021.7.24	MAXWIDE/ONE	HMM,RSL,YML(YML provided 1 space which were used on 1101-73)
80	Qingdao Giftpackers	HMM,RSL,EGL,CENEVER	1 x 40'HQ	2.25	Qingdao, China	Lebanon, TN	2021.6.30	MSRF	2021.7.24	RSL/Evergreen	HMM,EGL,CENEVER
81	Qingdao Giftpackers	HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	Apple Valley, CA	2021.6.29	MSRF	2021.7.27	Topocean/YML	HMM,RSL
82	Qingdao Giftpackers	HMM,RSL,EGL	3 x 40'HQ	6.75	Qingdao, China	CHICAGO,IL	No record	MSRF	2021.7.28	MAXWIDE/ONE	HMM,RSL,EGL
83	Qingdao Giftpackers	EGL,HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	Columbus, OH	2021.6.17	MSRF	2021.7.28	MAXWIDE/ONE	EGL,HMM,RSL
85	Qingdao Giftpackers	RSL,YML	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	No record	MSRF	2021.8.8	RSL/ONE	YML
86	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Los Angeles, CA	No record	MSRF	2021.8.8	RSL/HYUNDAI	YML,HMM
89	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	AIR		Qingdao, China			MSRF			
90	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Middleborough, MA	No record	MSRF	2021.8.11	RSL/CMA-CGM	YML,HMM
93	Qingdao Giftpackers	RSL,YML,HMM	1 x 20GP	1.00	Qingdao, China	Middleborough, MA	No record	MSRF	2021.8.14	RSL/ONE	YML,HMM
94	Qingdao Giftpackers	HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.8.10	MSRF	2021.8.19	Centrans/Hapag Lloyd	HMM,RSL
95	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Montgomery, AL	2021.7.21	MSRF	2021.8.13	MAXWIDE/ONE	RSL,YML,HMM
96	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Montgomery, AL	2021.7.21	MSRF	2021.8.19	MAXWIDE/ONE	RSL,YML,HMM
97	Qingdao Giftpackers	YML,HMM	2 x 40'RQ	4.50	Qingdao, China	CHICAGO,IL	2021.8.4	MSRF	2021.8.22	Sky G/MSC	YML,HMM
98	Qingdao Giftpackers	RSL,YML,HMM	2 x 40'HQ	2.25	Qingdao, China	Los Angeles, CA	No record	MSRF	2021.8.21	UCC/HMM	RSL,YML,HMM
100	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'RQ	2.25	Qingdao, China	Los Angeles, CA	No record	MSRF	2021.8.22	Sky G/CMA	RSL,YML,HMM
101	Qingdao Giftpackers	RSL,HMM	1 x 40'RQ	2.25	Qingdao, China	CHICAGO,IL	2021.7.27	MSRF	2021.8.15	MWL/CMA	RSL,HMM
102	Qingdao Giftpackers	HMM,RSL,EGL,CENEVER	1 x 40'HQ	2.25	Qingdao, China	Lebanon, TN	2021.6.30	MSRF	2021.8.24	Top Ocean/COSCO	HMM,RSL,EGL,CENEVER
104	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	4 x 40'HQ	9.00	Qingdao, China	CHICAGO,IL				MAXWIDE/MSC	
105	Qingdao Giftpackers	HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.8.10	MSRF	2021.8.21	MAXWIDE/SMI	HMM,RSL
106	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Tampa, FL	2021.7.22	MSRF	2021.8.24	GJ/ZIM	RSL,YML,HMM
110	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.8.10	MSRF	2021.8.23	REALHONG/ONE	RSL,YML,HMM
111	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	New York, NY	2021.8.9	MSRF	2021.8.24	REALHONG/Hapag-Lloyd	RSL,YML,HMM
112	Qingdao Giftpackers	RSL,HMM	1 x 40'RQ	2.25	Qingdao, China	Tacoma, WA	2021.7.5	MSRF	2021.8.29	COHESION/YML	
113	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-55	MSRF	2021.8.26	High Season/COSCO	HMM,RSL

114	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Los Angeles, CA	Split from 1101-80	MSRF	2021.8.26	Topocean/OOCL	RSL,YML,HMM
115	Qingdao Giftpackers	RSL,YML,HMM	1 X 40'HQ	2.25	Qingdao, China	Los Angeles, CA	No record	MSRF	2021.8.29	MAXWIDE/EGE	RSL,YML,HMM
116	Qingdao Giftpackers	HMM,RSL,EGE,CENEVER	1 x 20GP	1.00	Qingdao, China	TACOMA, WA	Split from 1101-30	MSRF	2021.8.30	UCC/YML	HMM,RSL,EGE,CENEVER
121	Qingdao Giftpackers	HMM,RSL	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-55	MSRF	2021.8.22	REALHONG/Hapag-Lloyd	HMM,RSL
122	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.8.10	MSRF	2021.9.2	RSL/SML	RSL,YML,HMM
123	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Durant, OK	2021.7.21	MSRF	2021.9.5	Topocean/WANHAI	RSL,YML,HMM
124	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Apple Valley, CA	2021.7.21	MSRF	2021.9.4	GJ/HLC	RSL,YML,HMM
125	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	No record	MSRF	2021.9.4	TAIPULITONG/SML	RSL,YML,HMM
126	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.8.10	MSRF	2021.9.4	RSL/SML	RSL,YML,HMM
129	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	No record	MSRF	2021.9.9	Top Ocean/Cosco	RSL,YML,HMM
130	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-101	MSRF	2021.9.10	RSL/SML	RSL,YML,HMM
131	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Long Beach, CA	Split from 1101-76	MSRF	2021.9.13	Hsty/MSC	RSL,YML,HMM
133	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Tampa, FL	Split from 1101-94	MSRF	2021.9.15	GJ/ZIM	RSL,YML,HMM
134	Qingdao Giftpackers	RSL,YML,HMM	1 x 20'	1.00	Qingdao, China	Apple Valley, CA	Split from 1101-91	MSRF	2021.9.15	MAXWIDE/COSCO	RSL,YML,HMM
135	Qingdao Giftpackers	RSL,YML,HMM	1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-101	MSRF	2021.9.16	Hsty/CMA	RSL,YML,HMM
136	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.		1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	MSRF		MAXWIDE/ONE	
137	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.		1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	MSRF		Top Ocean/Cosco	
138	Qingdao Giftpackers	RSL,YML,HMM	1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-101	MSRF	2021.9.13	lylogistics/CMA	RSL,YML,HMM
139	Qingdao Giftpackers	RSL,YML,HMM	1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-101	MSRF	2021.9.14	lylogistics/CMA	RSL,YML,HMM
140	Qingdao Giftpackers	RSL,YML,HMM	1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-101	MSRF	2021.9.13	lylogistics/CMA	RSL,YML,HMM
141	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.		1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	MSRF		RSL/ONE	
142	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.		1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	MSRF		TopOcean/Cosco	
143	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.		1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	MSRF		PUDONG/HLC	
144	Qingdao Giftpackers	RSL,YML,HMM	1x40'HQ	2.25	Qingdao, China	Los Angeles, CA	Split from 1101-76	MSRF	2021.9.13	GJ/WHL	RSL,YML,HMM
146	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Durant, OK	Split from 1101-90	MSRF	2021.9.18	TopOcean/WHL	RSL,YML,HMM
147	Qingdao Giftpackers	RSL,YML,HMM	1x40'HQ	2.25	Qingdao, China	CHICAGO,IL	Split from 1101-109	MSRF	2021.9.20	TopOcean/Cosco	RSL,YML,HMM
148	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.		3x40'HQ	6.75	Qingdao, China	CHICAGO,IL	MSRF		RSL/WHL	
149	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Tremont, PA	2021.7.21	MSRF	2021.9.8	TopOcean/WHL	RSL,YML,HMM
150	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Tremont, PA	Split from 1101-89	MSRF	2021.9.20	TopOcean/WHL	RSL,YML,HMM
152	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Columbus, OH	Split from 1101-87	MSRF	2021.9.20	Columbus, OH	RSL,YML,HMM
156	Qingdao Giftpackers	EGE,YML,HMM	1 x 40'HQ	2.25	Qingdao, China	Los Angeles, CA	2021.7.17	MSRF	2021.9.18	GJ/WHL	EGE,YML,HMM
157	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'	2.00	Qingdao, China	Los Angeles, CA	Split from 1101-82	MSRF	2021.9.22	RSL/EGE	RSL,YML,HMM
158	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'	2.00	Qingdao, China	CHICAGO,IL	No record	MSRF	2021.9.22	RSL/HMM	YML,HMM
159	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'	2.00	Qingdao, China	Los Angeles, CA	Split from 1101-79	MSRF	2021.9.18	TAIPULITONG/EGE	RSL,YML,HMM
159	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'	2.00	Qingdao, China	Los Angeles, CA	No record	MSRF	2021.9.18	TAIPULITONG/EGE	RSL,YML,HMM
160	Qingdao Giftpackers	HMM,RSL,YML	1 x 40'HQ	2.25	Qingdao, China	Los Angeles, CA	Split from 1101-62	MSRF	2021.9.22	GJ/ONE	HMM,RSL,YML

161	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	1 x 40'HQ	2.250	Qingdao, China	CHICAGO,IL	MSRF	GJ/HMM
162	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	1 x 40'HQ	2.250	Qingdao, China	CHICAGO,IL	MSRF	GJ/HMM
163	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	1 x 40'HQ	2.250	Qingdao, China	CHICAGO,IL	MSRF	PUDONG/ONE
164	Qingdao Giftpackers	RSL,YML,HMM	1 x 40'HQ	2.250	Qingdao, China	LOS ANGELES,CA	Split from 1101-102	MSRF 2021.9.23 GJ/ONE RSL,YML,HMM
166	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	2 x 40'HQ	4.50	Qingdao, China	CHICAGO,IL	MSRF	RSL/SML
175	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	MSRF	RSL/ONE
176	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	2 x 40'HQ	4.50	Qingdao, China	CHICAGO,IL	MSRF	RSL/ONE
188	Qingdao Giftpackers	Those were not booked with the designated shipping company as they released few spaces, and based on our cargo ready time we directly booked the shipping space with our agent in order to catch earlier vessel.	1 x 40'HQ	2.25	Qingdao, China	CHICAGO,IL	MSRF	RSL/EGL
192	Qingdao Giftpackers	RSL	1 X 40'HQ	2.25	Qingdao, China	CHICAGO,IL	2021.11.9	MSRF 2021.11.16 RSL/HMM
194	Qingdao Giftpackers	AIR						

13. [OMITTED]
14. [OMITTED]
15. [OMITTED]
16. According to the original terms of Service Contract Number 494721, MSRF agreed to tender 100 Twenty-foot Equivalent Units (TEUs)(“Minimum Quantity Commitment” or “MQC”) to Yang Ming between during the term of the Contract.¹

RESPONSE: Admitted.

17. According to the terms of Service Contract Number 494721 (both original and as amended), Yang Ming agreed to “make available sufficient vessel capacity adequate to

¹ The Complaint repeatedly refers to the MQC as 100 FEUs, rather than TEUs. This is simply incorrect, as review of the Service Contract itself plainly shows. In these requests for admission we use 100 TEUs as the actual MQC.

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carry (1) the Minimum Quantity Commitment ["MQC"] of cargo under the terms of this Contract, and (2) at Carrier's sole option any additional cargo tendered by the Shipper that if carried would exceed the MQC, provided always that such cargo shall be subject to rates to be mutually agreed upon by the parties, if so required by the Carrier."

RESPONSE: Admitted.

18. Service Contract Number 494721 did not specify, in the MQC or otherwise, the amount of cargo that was to be tendered or carried to/from any particular port in Asia or to/from any particular port on the United States East or West coasts.

RESPONSE: Admitted.

19. Service Contract Number 494721 did not require Complainant to tender, or Yang Ming to carry, any specified amount of cargo in any time frame other than the entire term of the contract.

RESPONSE: Admitted. However, the course of dealing between the parties in previous years and discussions between the parties established that MSRF's shipments would primarily occur in the first 6 months of the contract.

20. Article 12 of Service Contract Number 494721 contains a liquidated damages provision that govern the remedies either party may pursue in the event of non-performance.

RESPONSE: Admitted.

21. The Parties amended Service Contract Number 494721 several times, including on October 30, 2021 (Amendment 6) and April 14, 2022 (Amendment 7).

RESPONSE: Admitted.

22. Service Contract Number 494721, as amended for the last time on or about April 18, 2022, provided for a total minimum MQC of 10 TEUs.

RESPONSE: **Admitted.**

- 30. [OMITTED]
- 31. [OMITTED]
- 32. [OMITTED]
- 33. When the demand for service during a particular time frame exceeds the available vessel capacity, the Shipping Act, as interpreted by the Federal Maritime Commission, requires that that ocean common carrier reasonably pro rate its available capacity.

RESPONSE: **Admitted.**

27-28. Pursuant to the Commission's decision in *OJ Commerce, LLC v. Hamburg Südamerikanische Dampschiffahrts-Gesellschaft A/S/ & Co., KG and Hamburg Sud North America, Inc.*, FMC Docket No. 21-11 (August 31, 2022), the claims asserted by MSRF in Allegations 18 and 19 of the complaint are not violations of 46 USCA Sections 41104(a)(5) and (9). The referenced decision was issued after MSRF filed its complaint.

ANSWER: Complainant objects to Interrogatory No. 30 as irrelevant and compound. Subject to these objections, see Service Contract, YN_00089.

31. Explain in detail how MSRF can claim in Allegation 25 that the Service Contract provided an MQC of 100 FEUs,¹ when the contract itself shows that it was amended on April 18, 2022 to revise the MQC to 10 TEUs.

ANSWER: See YM_00089, noting 100 TEUs as the agreed MQC. Yang Ming did not provide MSRF with the contracted for space when MSRF needed it, and the contract was later amended at the end of the contract period to conform the contract with the actual quantities shipped as a routine practice in the industry.

32. Explain in detail how MSRF can claim in Allegation 26 that Respondent refused to provide MSRF with more than 4 FEUs (the equivalent of 8 TEUs) of space when in fact Respondent carried 10.75 TEUs of MSRF cargo.

ANSWER: See response to Interrogatory No, 31, above.

33. Explain in detail the assertion in Allegation 26 that Respondent “continuously refused” to provide MSRF with space, including an identification of each shipment tendered by MSRF that Respondent refused to carry, including the date on which cargo was tendered by MSRF, the amount of cargo (in TEUs or FEUS) tendered, the nature of the cargo (container size(s), commodity(ies), and all communications between MSRF and Respondent regarding such shipment.

¹ The Complaint repeatedly refers to the MQC as 100 FEUs, rather than TEUs. This is simply incorrect, as review of the Service Contract itself plainly shows. In these Interrogatories and Requests for Production of Documents, we use 100 TEUs as the actual MQC.

ANSWER: Will supplement.

41. For each shipment as to which Complainant allegedly had to “forego shipping such cargo altogether,” identify and describe such shipment in detail, including what contract or other arrangement Complainant had with the supplier for the payment of transportation.

ANSWER: None.

42. Identify each service contract made between Complainant and Respondent during the Relevant Period, including original MQC, how many TEUs Complainant actually tendered, and whether Respondent agreed to amend the contract so as to reduce the MQC to the amount actually tendered.

ANSWER: Complainant objects to this Interrogatory as compound. Subject to this objection, the relevant service contract and amendments thereto are already in Respondent’s possession but will also be produced by Complainant.

43. Explain in detail the factual basis for Complainant asserting that Service Contract 494721 required Complainant to tender or Respondent to carry any cargo, or any specific amount of cargo, between specific port pairs.

ANSWER: Complainant is not alleging that the Service Contract contained any specific requirement as to the amount of cargo shipped between any specific port pairs.

44. Explain in detail the claim for damages asserted in Allegation 58, including details regarding the specific “direct, proximate, and ongoing financial damages,” the amounts

10-11. The documents covered by this request were produced by MSRF in the damages worksheet and attachments provided to Yang Ming on February 14, 2023.

C. Supplemental Interrogatories

1. Explain, with explicit reference to the terms of the Service Contract, how the Service Contract required Respondent to provide space “as it was requested by MSRF.” See MSRF response to First Set of Interrogatories, Interrogatory 15 (mis-typed as 16 in the response).

ANSWER: See Complaint at Paragraphs 24-26 and the Service Contract. The Service Contract required Yang Ming to provide 100 TEU of space during the contract period. In order for Yang Ming to provide the space it was necessary for MSRF to request the booking of a shipment.

6. If you assert that Complainant did not agree to any/all of the modifications made to the Service Contract, including the amendment made on April 18, 2021, identify the principal facts on which you base your assertion that Complainant did not agree to any such change.

ANSWER: MSRF does not make this assertion.

8. With respect to MSRF's denial of Request for Admission 24, identify each instance in which Respondent demanded that MSRF pay a rate higher than the service contract rate, including the identity of the shipper/consignee, the date of the shipment (or requested shipment), the commodity(ies) involved, the size of the shipment, the rate allegedly demanded by Respondent, and the rate actually paid by Complainant.

ANSWER: After further review, MSRF supplements its original response to RFA 24 to admit the request.

13. Identify any overlap between this proceeding and FMC Docket No. 22-20 with respect to shipments/attempted shipments for which reparations are sought – e.g., any proposed shipment declined by both HMM and Yang Ming included in Complainant’s calculation of reparations in both dockets.

ANSWER: There is no overlap.

4. SAMPLE INVOICES



NNR GLOBAL LOGISTICS USA INC

1701 NICHOLAS BLVD, ELK GROVE VILLAGE, IL, 60007, TEL: 847-952-1289, FAX: 847-593-9224

INVOICE(OCEAN)

CODE: 10025052

TO: SCHMIDT PRITCHARD & CO INC
9801 WEST LAWRENCE AVENUE
SCHILLER PARK, IL 60176
US

INVOICE NO: 104143599

DATE: 07/01/2021

REF:

D/MAWB : HLCUTA12104FCMT9

HAWB: TAOO21057466

FILE NO TAOO21057466

ENTRY NO .

SHIPPER NAME : QINGDAO GIFTPACKERS LTD

CONSIGNEE NAME : MSRF INC

CARRIER: HAPAG LLOYD SHANGHAI

MODE: OCEAN

PCS: 2,105

GROSS WT. : 21,063.00 K

CHGBL WT. : 21,063.00 K

CBM : 130.50 M

ARRIVAL DATE : 06/25/2021

Page 1 of 1

ITEM	INVOICE AMOUNT
IMPORT CHARGE	110.00
DOCUMENT TURN OVER FEE	100.00
HANDLING CHARGE	25 00
MESSENGER FEE	18.00
OCEAN FREIGHT CHARGE (C.O.D.) - 13,250.00	26500.00
MS FEE	35 00

Total USD 26788.00

REMARKS .

Rules and Regulations:

If you are the importer of record, payment to the broker will not relieve you of liability for Customs charges (duties, taxes or other debts owed Customs) in the event the charges are not paid by the broker. Therefore, if you pay by check, Customs charges may be paid with separate check payable to "U S Customs Service" which shall be delivered to Customs by the broker

This constitutes notice under the Truth in Lending Act that NNR's terms are NET 10 working days from the date of the invoice. Any accounts remaining unpaid beyond the terms are subject to 1 5% per month interest and collection costs including attorney's fees.

NNR HANDLES SHIPMENTS SUBJECT TO ITS TERMS AND CONDITIONS FOUND AT NNRGLOBAL.COM OR AS OTHERWISE AGREED IN WRITING.

TERMS OF PAYMENT : NET FROM DATE OF INVOICE. A SERVICE CHARGE OF 1.5% PER MONTH WILL BE CHARGED ON ALL OVERDUE AMOUNTS

ASE REMIT TO: NNR GLOBAL LOGISTICS USA INC
28574 NETWORK PLACE
CHICAGO, IL 60673-1285 US

OFFICE : 100

INVOICE NO : 104143599

PLEASE REFERENCE OUR INVOICE NO. ON CHECK

Report R082mt

RX_000155

BIG COTS - CA

QOP #76 / WK #51

Apple Valley

TOPOCEAN CONSOLIDATION SERVICE (LAX) INC.

2727 WORKMAN MILL ROAD, CITY OF INDUSTRY, CA 90601 USA

TEL: (562)-908-1688 FAX: (562)-908-1699

FAX: (562)-908-2978 (OCEAN IMPORT/FREIGHT CASHIER)

*** INVOICE ***

ADDITIONAL

To: MSRF INC

3319 NORTH ELSTON AVENUE
CHICAGO ILLINOIS 60618 UNITED STATES

ATTN: ROCHI MIRASOL

TEL# (773)227-1115 x310

FAX#

INVOICE NO	LL804436
FILE NO	QLL80011
LOT NO	QDOLAX2180423
INVOICE DATE	10/04/2021
DUE DATE	10/04/2021
PREPARE BY	Sherine Maria Lynn
VESSEL	YM TRAVEL
GATE IN	07/26/2021
E T D.	08/03/2021
A.T.D.	08/03/2021
E.T.A	09/18/2021
M B/L NO.	YMLUW240280764
B/L NO.	QDOLAXL84055
ISF NO	
CARGO TYPE	CY/DOOR
SHIPPER	QINGDAO GIFTPACKERS LTD.
PLACE OF REC	QINGDAO,CHINA
ORIGIN	QINGDAO,CN
DESTINATION	APPLE VALLEY,CA
FINAL DEST	
COMMODITY	COCOA GIFT SET,COFFEE GIFT SET,COLORED BOX WITH MUG AND COCOA,TRAVEL MUG WITH COCOA
PIECES	1,869
WEIGHT	7,976 KGS / 17,583.89 LBS
VOLUME	51 800/CBM
HQDRY	1

QOP - 18.10 - \$97.84
WK - 33.70 - \$182.16

DESCRIPTION

CHARGES

DEMURRAGE

230.00

ADMINISTRATION FEE

50.00

PLEASE PAY THIS AMOUNT

►► USD

280.00

Containers

CAIU7695004/HQDRY

PO#:

NA

OK
10/28/21

PLEASE NOTE EXAM CHARGES MAY BE BILLED LATER EVEN AFTER SHIPMENT IS PICKED UP.

RX_000156

5. EMAILS

To: David Reich[dreich@msrf.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Mon 5/9/2022 4:28:44 PM (UTC)
Subject: 2021 SC carriers

HongFan – SBUX travel Mugs

From: salebj@wyhongfan.com <salebj@wyhongfan.com>
Sent: Monday, May 9, 2022 6:44 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: Re: FW: 2021 SC carriers

Hi Rochi,

Below is the feedback for booking container in 2021.

Evergreen – SC85977:The shipping company asked us to book vessel through the forwarder and wait for the release. But we haven't received any notice from the shipping company to release space.

YangMing – 494721:The shipping company provided a container, but due to urgent delivery, you let us choose the earlier container provided by RSL

Hyundai – US2124083:The shipping company informed us that space is very tight, so they do not recommend booking space.

The contact number is:0574-87658800.

Stephone
salebj@wyhongfan.com

To: David Reich[dreich@msrf.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Mon 5/9/2022 4:29:11 PM (UTC)
Subject: 2021 SC carriers

Boyue – Popcorn Bucket

From: Rubio <sales10@jiasheng-china.com>
Sent: Sunday, May 8, 2022 8:53 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: Re:FW: 2021 SC carriers

Hi Rochi,

I booked through my forwarder, please check booking details as below email.
I booked with YML and EGL (2021).

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.
No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020
Tel:0086-576-84188368
Fax:0086-576-84192080
Mobile :0086-13456682228
Whatsapp:008613456682228
Wechat:Rubio5522
Website:www.jiasheng-china.com
E-mail:sales10@jiasheng-china.com/rubio5522@foxmail.com

Did you booked with either YML, EGL and HMM last year (2021) and was refuse of space/container? If you did, please forward email to me or if done over the phone, please narrate.

Rochi Mirasol
MSRF, Inc.
9815 Leland Ave. |Schiller Park, IL 60176
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: "Rubio <sales10@jiasheng-china.com>"
To: "Rochi Mirasol <rmirasol@msrf.com>"
CC: "Claire Danielecki <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"
Sent: 2021-06-07 14:32
Subject: Re:RE: New booking #143150116543

RX_000159

CONFIDENTIAL

MSRF_YANG MING_0000027

Hi Rochi,

we received confirmed space email from evergreen.

waiting for the empty container. thanks

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com/rubio5522@foxmail.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>", "Jeff Reich <jreich@msrf.com>", "David Reich <dreich@msrf.com>"

Sent: 2021-06-04 00:02

Subject: RE: New booking #143150116543

From: AdamTurnquist@evergreen-shipping.us <AdamTurnquist@evergreen-shipping.us>

Sent: Thursday, June 3, 2021 10:42 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: RE: 143150108095 - 1x40'HQ - Boyue

Hi Rochi,

With respect, they follow explicit instructions. We would not have turned this into a port to port booking if they were not instructed to. I will push and do what I can and send a note to origin. Thanks.

Thanks and Best Regards,
Adam Turnquist

Import Sales - Midwest Region (Chicago)

Evergreen Shipping Agency (America) Corp. (Chicago)

as Agents for: Evergreen Line

E-mail : adamturnquist@evergreen-shipping.us

Office: (630) 575-4963 / Cell: (630) 730-9505 / Fax: (888) 699-6011

www.shipmentlink.com

www.evergreen-shipping.us

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

CONFIDENTIAL

RX_000160

MSRF_YANG MING_0000028

Sent: Thursday, June 3, 2021 4:40 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>
Subject: New booking #143150116543

Hi Rochi,

Your shipping agent is right, they booked as a port to port.
 My forwarder said evergreen in china made the mistake, our booking information is to Alsip,IL Door.

New booking # EGLV143150116543,please help us to get confirm booking.

工作编号	托运编号	VIP客户	类型	提单号	SMART跟踪状态	船名 航次	舱单数据			
							件	包装	毛	体
HD2106031278	NBHYZ02104069E	宁波合一国际货运	整单	EGLV143150116543	▶	EVER LIVELY V.0964E	1000	CTNS	9800	37

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com/rubio5522@foxmail.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"

Sent: 2021-06-03 09:08

Subject: 143150108095

Rubio,

I do not know what are you doing with your booking. This new booking is cancelled according to Evergreen here, read below message

From: AdamTurnquist@evergreen-shipping.us <AdamTurnquist@evergreen-shipping.us>

Sent: Wednesday, June 2, 2021 1:04 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: RE: 143150108095 - 1x40'HQ - Boyue

Did they try and re-book again? I show 143150108095 as still cancelled because they booked it as a port to port bkg.

Thanks and Best Regards,

Adam Turnquist

Import Sales - Midwest Region (Chicago)

Evergreen Shipping Agency (America) Corp. (Chicago)

as Agents for: Evergreen Line

E-mail : adamturnquist@evergreen-shipping.us

RX_000161

CONFIDENTIAL

MSRF_YANG MING_0000029

Office: (630) 575-4963 / Cell: (630) 730-9505 / Fax: (888) 699-6011

www.shipmentlink.com

www.evergreen-shipping.us

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Thursday, May 27, 2021 8:44 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:Re:RE: Re:RE: Re:RE: Re:RE: Re:143150070195 - 1x40'HQ

too be honest,even if booking is confirmed,I'm still worried about if they will give us empty container.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

----- Original Message -----

From:Rubio <sales10@jiasheng-china.com>

To: Rochi Mirasol <rmirasol@msrf.com>

CC: Claire Danieleski <cdanieleski@msrf.com> Jeff Reich <jreich@msrf.com> David Reich <dreich@msrf.com>

Sent: 2021-05-27 21:34

Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:143150070195 - 1x40'HQ

Hi Rochi,

In fact,evergreen is lack of empty container in China. We applied for three days. There is no reason that we cancelled booking. Please help get confirmed booking first,then we can apply the empty container.

RX_000162

CONFIDENTIAL

MSRF_YANG MING_0000030

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan Distric Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

----- Original Message -----

From:Rochi Mirasol <rmirasol@msrf.com>

To: Rubio <sales10@jiasheng-china.com>

CC: Claire Danielecki <cdanieleski@msrf.com> Jeff Reich <jreich@msrf.com> David Reich <dreich@msrf.com>

Sent: 2021-05-27 21:26

Subject: RE: Re:RE: Re:RE: Re:RE: Re:143150070195 - 1x40'HQ

This is what I got from Chicago office regarding your original booking, You cancelled it. I will ask them again to work on this new booking; EGLV143150108095 that you have

From: AdamTurnquist@evergreen-shipping.us <AdamTurnquist@evergreen-shipping.us>

Sent: Thursday, May 27, 2021 7:28 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: RE: 143150070195 - 1x40'HQ

Rochi,

Customer cancelled this one. 143150070195. That is the only feedback I have. Please talk to them and advise what you need me to do.

****All Evergreen America offices will be closed Monday, May 31 in observance of Memorial Day****

Thanks and Best Regards,

Adam Turnquist

Import Sales - Midwest Region (Chicago)

Evergreen Shipping Agency (America) Corp. (Chicago)

as Agents for: Evergreen Line

E-mail : adamturnquist@evergreen-shipping.us

Office: (630) 575-4963 / Cell: (630) 730-9505 / Fax: (888) 699-6011

www.shipmentlink.com

www.evergreen-shipping.us

RX_000163

CONFIDENTIAL

MSRF_YANG MING_0000031

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>
Sent: Wednesday, May 26, 2021 8:41 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Claire Danielecki <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>
Subject: Re:RE: Re:RE: Re:RE: Re:143150070195 - 1x40'HQ

Hello Rochi,

Here is the contact information: kittyzhou@evergreen-shipping.cn 0086-574-87073646

by the way, this is the new booking no. EGLV143150108095,

工作编号	托运编号	VIP客户	类型	提单号	SMART跟踪状态	船名/航次	舱单数据			
							件	包装	毛	体
HD2105261164	NBHYZ02104069D	宁波合一国际货运	整单	EGLV143150108095	▶	EVER LIVELY V.0964E	1000	CTNS	9800	37.2

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danielecki <cdanieleski@msrf.com>", "Jeff Reich <jreich@msrf.com>", "David Reich <dreich@msrf.com>"

Sent: 2021-05-27 07:19

Subject: RE: Re:RE: Re:RE: Re:143150070195 - 1x40''HQ

Give me the name of the person you are talking to there. What you are saying is different from what I am getting here in Evergreen Chicago.

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

RX_000164

From: Rubio <sales10@jiasheng-china.com>
Sent: Wednesday, May 26, 2021 5:33 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>
Subject: Re:RE: Re:RE: Re:143150070195 - 1x40'HQ

Hi Rochi,

As we talked with evergreen in China,new sailing date not means confirmed booking,they just give us new booking no.
We can only get confirmed booking if confirmed by your side.
The original booking was cancelled because evergreen was lack of empty container very seriously. we applied for three days,but failed.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

----- Original Message -----

From:Rochi Mirasol <rmirasol@msrf.com>
To: Rubio <sales10@jiasheng-china.com>
CC: Claire Danieleski <cdanieleski@msrf.com> Jeff Reich <jreich@msrf.com> David Reich <dreich@msrf.com>
Sent: 2021-05-27 02:56
Subject: RE: Re:RE: Re:143150070195 - 1x40'HQ

Rubio,

I talked to Evergreen here in Chicago and as what I can see it here, this 14150070195 booking is confirmed. If they are giving you June 14th sailing date, take it and so you don't have to create a new booking,

This original booking cut off was last Saturday and the sailing was yesterday? What happened? This booking was confirmed since May 6th. Where is the disconnection here?

RX_000165

MSRF YANG MING 0000034

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>
Sent: Wednesday, May 26, 2021 4:06 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>
Subject: Re:RE: Re:143150070195 - 1x40'HQ

Hello Rochi,

Evergreen just informed us booking no. 143150070195 is cancel.

The latest ship date is 14th,we need to use new booking no. to get confirm space.
the booking no. is not ready now.

▶ [首页](#) > [货柜追踪](#) > [货物追踪](#) > [货柜动态查询](#)

货柜动态查询

搜索方式 ☐ 提单号码 (e.g., 012345678900)
☐ 箱号 (e.g., EISU1234567)
☒ 订舱号码 (e.g., 012345678900)

143150101490

提交

	订舱号码	143150101490	船名 航次	EVER LEADING
---	------	--------------	-------	--------------

基本资料					
		VGM 截关日期 (via Hard Copy)	VGM 截关日期 (via EDI/WEB/APP)	截关日期	预计到达日期
收货地(出口国)	NINGBO, CHINA (CN)				
装货港	NINGBO, CHINA (CN)				
卸货港	LOS ANGELES, CA (US)				
交货地(进口国)	ALSIP, IL (US)				
汇率	To be advised			装载代码	

订舱货柜信息				
柜型	毛重	提柜时间	提柜堆场	
1*40'(SD)	9,800.00 KGS			

共计订舱 = 40' X 1

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020
Fax:0086-576-84192080
Mobile :0086-13456682228
Whatsapp:008613456682228
Wechat:Rubio5522

RX_000167

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danielewski <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"

Sent: 2021-05-25 22:18

Subject: RE: Re:143150070195 - 1x40'HQ

From: AdamTurnquist@evergreen-shipping.us <AdamTurnquist@evergreen-shipping.us>

Sent: Tuesday, May 25, 2021 7:45 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: Re: 143150070195 - Boyue

143150070195 is confirmed.

****All Evergreen America offices will be closed Monday, May 31 in observance of Memorial Day****

Thanks and Best Regards,

Adam Turnquist

Import Sales - Midwest Region (Chicago)

Evergreen Shipping Agency (America) Corp. (Chicago)

as Agents for: Evergreen Line

E-mail : adamturnquist@evergreen-shipping.us

Office: (630) 575-4963 / Cell: (630) 730-9505 / Fax: (888) 699-6011

www.shipmentlink.com

www.evergreen-shipping.us

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Tuesday, May 25, 2021 1:04 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danielewski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:143150070195 - 1x40'HQ

Hello Rochi,

This is new booking information - EGLV143150101490:

HD2105211559	NBHY202104069E	宁波合一国际货运	整单	EGLV143150101490	▶	EVER LEADING V. 0963E	1000 CTNS	9800	37.2
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We still need to confirm space by your side.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

RX_000168

CONFIDENTIAL

MSRF_YANG MING_0000036

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"

Sent: 2021-05-24 23:14

Subject: 143150070195 - 1x40'HQ

Hello Rubio,

That is fine, as long as you got the container and you finish loading? Please send over the ISF paper.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Friday, May 21, 2021 6:28 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Hi Rochi,

Thanks for your explain. We are ready to ship.

The sea freight is so crazy, the container is not full,only 42 CBM.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

----- Original Message -----

From:Rochi Mirasol <rmirasol@msrf.com>

To: Rubio <sales10@jiasheng-china.com>

CC: Claire Danieleski <cdanieleski@msrf.com> Jeff Reich <jreich@msrf.com> David Reich <dreich@msrf.com>

RX_000169

CONFIDENTIAL

MSRF_YANG MING_0000037

Sent: 2021-05-21 23:55

Subject: RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Rubio,

Your booking is not useless because this is a "valid" and confirm booking for June 7th. Hold on to it, as we cannot get any earlier booking nor a confirm booking from any carrier. We will not pay over \$15,000 to use an NVO to get a container.

Our Evergreen sales person here in Chicago is working to get your shipping order ASAP so you can p/u up the equipment to load. .

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Friday, May 21, 2021 3:56 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Hi Rochi,

We called Evergreen for a whole day. Now,they said we will not get container anymore,they are lack of empty container.

Our confirmed booking is useless. The new shipment date is 7th. June.

We need to wait new confirm booking.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"

Sent: 2021-05-20 22:12

Subject: RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Rubio,

I don't know what your forwarder is telling you but this booking is confirm and please call Evergreen to get your S/O for P/U release. Your cut-ff is on Saturday the 22nd and what are you waiting for?

RX_000170

CONFIDENTIAL

MSRF_YANG MING_0000038

ShipmentLink - Cargo Tracking

ShipmentLink

Trace shipments by

☐ Bill of Lading No. (e.g., 012345678900)
☐ Container No. (e.g., EISU1234567)
☒ Booking No. (e.g., 012345678900)

143150070195

Submit

Booking No. 143150070195 Vessel Voyage EVER LEADER 0960-053E (長榮輪)

EVERGREEN LINE on behalf of EVERGREEN MARINE (SINGAPORE) PTE LTD.

Basic Information

	VGM Cut Off Date (via Hard Copy)	VGM Cut Off Date (via EDI/WEB/APP)	Cut Off Date	Estimated Arrival Date	Estimated Departure Date	Estimated On Board Date	Issue Date
Place of Receipt	NINGBO, CHINA (CN)						
Port of Loading	NINGBO, CHINA (CN)	MAY-22-2021 20:00	MAY-22-2021	MAY-24-2021	MAY-25-2021	MAY-25-2021	
Port of Discharge	LOS ANGELES, CA (US)			JUN-07-2021			
Place of Delivery	ALSIP, IL (US)			JUN-05-2021			
Exchange Rate	US\$1=RMB 6.4319						
Stowage Code	USLA2						
Booking Status	Confirmed						

Booked Container Information

Size/Type	Gross Weight	Pickup Date	Pickup Depot	Full return to
1*40'(SD)	9,800.00 KGS		寧波長勝物流中心	寧波北甬第一集裝箱碼頭有限公司(原:寧波二期碼頭)

Total Booked = 40' X 1

DISCLAIMER : The Carrier does not make any guarantee as to the accuracy or correctness of any information contained in the tentative schedule set forth in this notice, and the Carrier may amend, revise this schedule from time to time without any prior notice.

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Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Thursday, May 20, 2021 3:33 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Hi Rochi,

My forwarder just inform me, Evergreen is lack of container.

I'm not sure if i can get container from them, i'll check again tomorrow.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

CONFIDENTIAL

RX_000171

MSRF_YANG MING_0000039

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"

Sent: 2021-05-06 21:13

Subject: RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Your Evergreen booking is now confirm. See below. For Yangming, is the booking # YMCEM139228? I will find out with Hyundai.

From: AdamTurnquist@evergreen-shipping.us <AdamTurnquist@evergreen-shipping.us>

Sent: Thursday, May 6, 2021 7:14 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: Re: 143150070195 - Boyue

Hi Rochi,

I was able to get one container with a 5/25 ETD for **143150070195**

Thanks and Best Regards,

Adam Turnquist

Import Sales - Midwest Region (Chicago)

Evergreen Shipping Agency (America) Corp. (Chicago)

as Agents for: Evergreen Line

E-mail : adamturnquist@evergreen-shipping.us

Office: (630) 575-4963 / Cell: (630) 730-9505 / Fax: (888) 699-6011

www.shipmentlink.com

www.evergreen-shipping.us

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Thursday, May 6, 2021 3:20 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Dear Rochi,

Here is the booking information for YangMing

宁波合一国际货运	整单	YMCEM139228		YM UNIFORMITY V.053E	1000 CTNS	9800	27.2 PLASTIC	YML	2021/5/1
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RX_000172

CONFIDENTIAL

MSRF_YANG MING_0000040

We contact with Hyundai ,they said we can not book in china.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"

Sent: 2021-05-03 23:02

Subject: RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Rubio,

You need to make the booking with Yangming because I cannot help you or our YM sales person here in Chicago, if I do not have the booking # for reference. Our Sales guy at Evergreen is still working on your booking.

Here's Hyundai Service contact and try booking with them as well.

Hyundai SC #: US2124083

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Thursday, April 29, 2021 7:08 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Here is the booking information of evergreen:

EGLV143150070195	▶	EVER LEADER V.0960E	1000CTNS	9800	37.2	LASTIC P▶	EMC	2021/5/18	LOS ANGELES, CA▶
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No have booking information of Yangming now.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020 **RX_000173**

CONFIDENTIAL

MSRF_YANG MING_0000041

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>", "Jeff Reich <jreich@msrf.com>", "David Reich <dreich@msrf.com>"

Sent: 2021-04-29 23:08

Subject: RE: Re:RE: Re:Re: [External] MSRF 检测 (Quotation_Q000472732)

Where is your booking # with Yangming?

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Thursday, April 29, 2021 12:23 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:RE: Re:Re: [External] MSRF 检测 (Quotation_Q000472732)

Dear Rochi,

I checked with shipping company again,still no space.

any news from your side?

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>", "Jeff Reich <jreich@msrf.com>", "David Reich <dreich@msrf.com>"

Sent: 2021-04-23 00:21

Subject: RE: Re:Re: [External] MSRF 检测 (Quotation_Q000472732)

Did you also book with YangMing?

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000174

CONFIDENTIAL

MSRF_YANG MING_0000042

From: Rubio <sales10@jiasheng-china.com>
Sent: Thursday, April 22, 2021 4:20 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>
Subject: Re:Re: [External] MSRF 检测 (Quotation_Q000472732)

Dear Rochi,

I just received information from my agent, see attached picture:

EGLV143150070195	▶	EVER LEADER V 0960E	1000CTNS	9800	3Y. 2	LASTIC P▶	EMC	2021/5/18	LDS ANGELES, CA▶
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Please help contact evergreen in your side, make sure that we can get space.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>", "Jeff Reich <jreich@msrf.com>", "David Reich <dreich@msrf.com>"

Sent: 2021-04-16 20:16

Subject: Re: [External] MSRF 检测 (Quotation_Q000472732)

How many containers you need & what size? 20? 40? 40HQ?

Get [Outlook for iOS](#)

From: Rubio <sales10@jiasheng-china.com>

Sent: Thursday, April 15, 2021 10:33:18 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:RE: Re:RE: Re:[External] MSRF 检测 (Quotation_Q000472732)

Hello Rochi,

I already booked. will send booking information when I get it.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

CONFIDENTIAL

RX_000175

MSRF_YANG MING_0000043

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

----- Original Message -----

From:Rochi Mirasol <rmirasol@msrf.com>

To: Rubio <sales10@jiasheng-china.com>

CC: Claire Danieleski <cdanieleski@msrf.com> Jeff Reich <jreich@msrf.com> David Reich <dreich@msrf.com>

Sent: 2021-04-15 23:02

Subject: RE: Re:RE: Re:[External] MSRF 检测 (Quotation_Q000472732)

Rubio,

I'll talk to Evergreen here. Go ahead, book your cargo using the new SC#, and I need that booking #.

I'll talk to YangMing

From: Rubio <sales10@jiasheng-china.com>

Sent: Wednesday, April 14, 2021 10:21 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>

Subject: Re:RE: Re:[External] MSRF 检测 (Quotation_Q000472732)

Hello Rochi,

I contact with Evergreen and YangMing.

Yangming has no shipping space plan for May.

Evergreen said we can book,but no confirm space. We can only get confirm space until they get permission from Evergreen in USA.

Please help contact Evergreen in USA,ask them to send an email to Evergreen in China (Ningbo port).

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

RX_000176

CONFIDENTIAL

MSRF_YANG MING_0000044

Tel:0086-576-84188368
Fax:0086-576-84192080

Mobile :0086-13456682228
Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"
To: "Rubio <sales10@jiasheng-china.com>"
CC: "Claire Danielecki <cdanieleski@msrf.com>", "Jeff Reich <jreich@msrf.com>"
Sent: 2021-04-15 03:50
Subject: RE: Re:[External] MSRF 检测 (Quotation_Q000472732)

Hello Rubio,

Here's the 2 carrier SC effective May 1st. You can start your booking process for both carrier, since your ship date is May and see which one will give you the confirm space.

Evergreen – SC85977
YangMing – SC 494721

Attached is YangMing booking contact information

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>
Sent: Monday, April 12, 2021 6:38 PM
To: Rochi Mirasol <rmirasol@msrf.com>; Claire Danielecki <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>
Subject: Re:[External] MSRF 检测 (Quotation_Q000472732)

Dear Rochi,

OK

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368
Fax:0086-576-84192080

Mobile :0086-13456682228
Whatsapp:008613456682228

CONFIDENTIAL

RX_000177

MSRF_YANG MING_0000045

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

----- Original Message -----

From:Rochi Mirasol <rmirasol@msrf.com>

To: Rubio <sales10@jiasheng-china.com> Claire Danieleski <cdanieleski@msrf.com> Jeff Reich <jreich@msrf.com>

CC:

Sent: 2021-04-12 23:25

Subject: [External] MSRF 检测 (Quotation_Q000472732)

The SC for Evergreen is on the process of renewal. You can still go ahead and start your booking.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Sunday, April 11, 2021 9:11 PM

To: Rochi Mirasol <rmirasol@msrf.com>; Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Dear Rochi,

Evergreen said contract No. SC81629 would expire at April 30th.

They need new contract No. for booking in May.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

RX_000178

CONFIDENTIAL

MSRF_YANG MING_0000046

From: "Rochi Mirasol <rmirasol@msrf.com>"
To: "Rubio <sales10@jiasheng-china.com>", "Claire Danielecki <cdanieleski@msrf.com>", "Jeff Reich <jreich@msrf.com>"
Sent: 2021-04-09 23:43
Subject: RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)
Rubio,

Did your forwarder called Evergreen? I cannot book here in the US if the origin port is China. Please ask your forwarder to contact evergreen.

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>
Sent: Friday, April 9, 2021 12:49 AM
To: Claire Danielecki <cdanieleski@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>; Jeff Reich <jreich@msrf.com>
Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Dear Claire,

My forwarder just informed me that it's difficult for them to book shipping space now.
Can you book by your side? The attached is shipping details.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368
Fax:0086-576-84192080

Mobile :0086-13456682228
Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Claire Danielecki <cdanieleski@msrf.com>"
To: "Rubio <sales10@jiasheng-china.com>", "Rochi Mirasol <rmirasol@msrf.com>", "Jeff Reich <jreich@msrf.com>"
Sent: 2021-04-07 20:33
Subject: RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)
Dear Rubio,

Thank you. That is very good news.

RX_000179

CONFIDENTIAL

MSRF_YANG MING_0000047

Best regards,
Claire

From: Rubio <sales10@jiasheng-china.com>

Sent: Tuesday, April 6, 2021 7:55 PM

To: Claire Danieleski <cdanieleski@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>; Jeff Reich <jreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Dear Claire,

We will delivery on May 10th, ETD May 16th. Already booked.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Claire Danieleski <cdanieleski@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>","Rochi Mirasol <rmirasol@msrf.com>","Jeff Reich <jreich@msrf.com>"

Sent: 2021-04-05 20:19

Subject: RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

New logo is approved,

From: Rubio <sales10@jiasheng-china.com>

Sent: Monday, April 5, 2021 4:02 AM

To: Claire Danieleski <cdanieleski@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>; Jeff Reich <jreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Dear Claire,

Please see new logo in attached.

Thanks&best regards

Rubio

RX_000180

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Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

Sent: 2021-03-19 23:27

Subject: RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Did Intertek started the additional test?

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Monday, March 15, 2021 7:01 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Hi Rochi,

OK, noted.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

CONFIDENTIAL

RX_000186

MSRF_YANG MING_0000054

Mobile :0086-13456682228
Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"
To: "Rubio <sales10@jiasheng-china.com>"
Sent: 2021-03-16 00:36

Subject: RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

I copied you on the email I sent to Intertek. Please follow up with them. Once you start the production, please try to book your cotnainer because its very hard to get a confirm booking especially the intended sailing dates.

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>
Sent: Sunday, March 14, 2021 9:37 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Dear Rochi,

I check with Johnny about the testing. He still waiting for your confirmation.

If i can't get your permission to start prodution this week, i can't delivery on time.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368
Fax:0086-576-84192080

Mobile :0086-13456682228
Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Johnny ZH Yin Intertek <johnny.zh.yin@intertek.com>"
To: "Rochi Mirasol <rmirasol@msrf.com>", "Rubio <sales10@jiasheng-china.com>", "Sally YS Liu Intertek <sally.ys.liu@intertek.com>"
Sent: 2021-03-11 11:16

RX_000187

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No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020
Tel:0086-576-84188368
Fax:0086-576-84192080
Mobile :0086-13456682228
Whatsapp:008613456682228
Wechat:Rubio5522

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com / rubio5522@foxmail.com

From: "Rochi Mirasol <rmirasol@msrf.com>"
To: "Rubio <sales10@jiasheng-china.com>"
CC: "Claire Danieleski <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"
Sent: 2021-05-06 21:13
Subject: RE: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)
Your Evergreen booking is now confirm. See below. For Yangming, is the booking # YMCEM139228? I will find out with Hyundai.

From: AdamTurnquist@evergreen-shipping.us <AdamTurnquist@evergreen-shipping.us>
Sent: Thursday, May 6, 2021 7:14 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: Re: 143150070195 - Boyue

Hi Rochi,

I was able to get one container with a 5/25 ETD for 143150070195

Thanks and Best Regards,
Adam Turnquist

Import Sales - Midwest Region (Chicago)
Evergreen Shipping Agency (America) Corp. (Chicago)
as Agents for: Evergreen Line
E-mail : adamturnquist@evergreen-shipping.us
Office: (630) 575-4963 / Cell: (630) 730-9505 / Fax: (888) 699-6011
www.shipmentlink.com
www.evergreen-shipping.us

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>
Sent: Thursday, May 6, 2021 3:20 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>
Subject: Re:RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Dear Rochi,

Here is the booking information for YangMing

宁波合一国际货运	整单	YMCEM139228		YM UNIFORMITY V.053E	1000 CTNS	9800	27.2 PLASTIC	YML	2021/5/1
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RX_000197

We contact with Hyundai ,they said we can not book in china.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020

Tel:0086-576-84188368

Fax:0086-576-84192080

Mobile :0086-13456682228

Whatsapp:008613456682228

Website:www.jiasheng-china.com

E-mail:sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>","Jeff Reich <jreich@msrf.com>","David Reich <dreich@msrf.com>"

Sent: 2021-05-03 23:02

Subject: RE: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Rubio,

You need to make the booking with Yangming because I cannot help you or our YM sales person here in Chicago, if I do not have the booking # for reference. Our Sales guy at Evergreen is still working on your booking.

Here's Hyundai Service contact and try booking with them as well.

Hyundai SC #: US2124083

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Thursday, April 29, 2021 7:08 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>; David Reich <dreich@msrf.com>

Subject: Re:RE: Re:RE: Re:RE: [External] MSRF 检测 (Quotation_Q000472732)

Here is the booking information of evergreen:

EGLV143150070195	▶	EVER LEADER V.0960E	1000CTNS	9800	37.2	LASTIC P▶	EMC	2021/5/18	LOS ANGELES, CA▶
------------------	---	---------------------	----------	------	------	-----------	-----	-----------	------------------

No have booking information of Yangming now.

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020 **RX_000198**

CONFIDENTIAL

MSRF_YANG MING_0000041

To: Zhao[zhao@kaimax.com]
From: Rochi Mirasol[o=ExchangeLabs/ou=Exchange Administrative Group (FYDIBOHF23SPDLT)/cn=Recipients/cn=642319e6de184737ad52e913334d188d-rmirasol]
Sent: Thur 9/9/2021 7:40:27 PM (UTC)
Subject: FW: Itasca -- 22101D68 - booking # 140103068924

Please try Hyundai and Yangming for this
Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: AdamTurnquist@evergreen-shipping.us <AdamTurnquist@evergreen-shipping.us>
Sent: Thursday, September 9, 2021 1:25 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: Re: Itasca -- 22101D68 - booking # 140103068924
Hi Rochi,

Right now no we can not accept. I have sent a note on the port to port booking that you sent.

Thanks and Best Regards,

Adam Turnquist

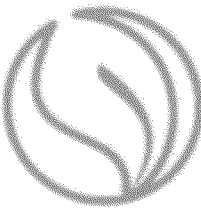
Import Sales - Midwest Region (Chicago)
Evergreen Shipping Agency (America) Corp. (Chicago)
as Agents for: Evergreen Line
E-mail : adamturnquist@evergreen-shipping.us
Office: (630) 575-4963 / Cell: (630) 730-9505 / Fax: (888) 699-6011
www.shipmentlink.com
www.evergreen-shipping.us

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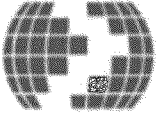


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From: Rochi Mirasol <rmirasol@msrf.com>
To: "AdamTurnquist@evergreen-shipping.us" <AdamTurnquist@evergreen-shipping.us>,
Date: 09/09/2021 12:40 PM
Subject: Itasca -- 22101D68 - booking # 140103068924

Adam,
Is EGL can accept Chicago booking? If so, please help get this booking confirm: # 140103068924

RX_000199

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Zhao <zhao@kaimax.com>
Sent: Thursday, September 9, 2021 3:18 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Claire Danieleski <cdanieleski@msrf.com>
Subject: The last Container to Itasca -- 22101D68

Hello Rochi,

Good morning!

For the last container to Itasca, I have submitted the booking to EGL already, and the booking number is 140103068924, please kindly confirm with EGL rep to see if they can release this container to us.

The vessel name and sailing date are as below.

		SEP-19-2021 12:00	EVER-ALAN				
QINGDAO, CHINA		SEP-28-2021 06:00	IPN	TACOMA, WA	TACOMA, WA		
2	SEP-30-2021	SEP-28-2021 12:00	EVER SMART 0338-114E	OCT-21-2021	***	23	Details
QINGDAO, CHINA			TGN	TACOMA, WA	TACOMA, WA		

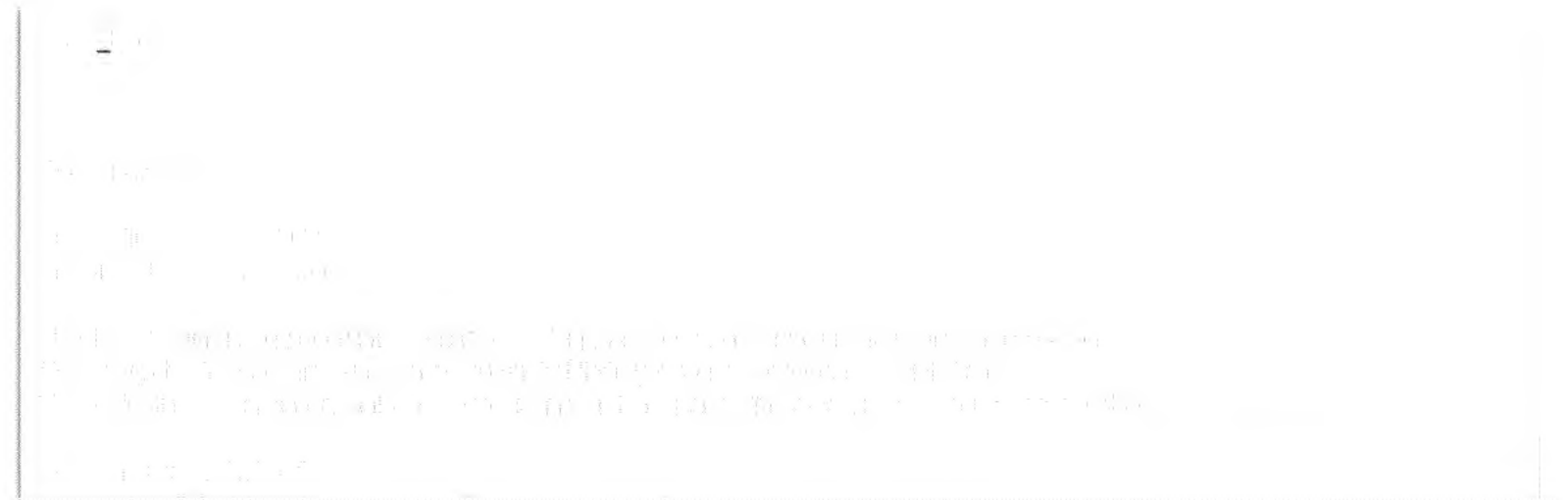
Thanks and best regards

Zhao

To: Zhao[zhao@kaimax.com]
From: Rochi Mirasol[/o=ExchangeLabs/ou=Exchange Administrative Group (FYDIBOHF23SPDLT)/cn=Recipients/cn=642319e6de184737ad52e913334d188d-rmirasol]
Sent: Wed 8/18/2021 2:36:41 PM (UTC)
Subject: RE: EGL Booking# 140102657144 - Itasca, ETD Aug 21 Change to Chicago EGL booking #140102774591 ETD Aug 31

Zhao,
If RSL cannot give you one as well, please use your forwarder. We need to keep our container moving.

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com



To: Williams, R. Kevin[kwilliams@clarkhill.com]
From: David Reich[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=3B127FDD91AC4AAEAE6698C251D9EE68-DREICH]
Sent: Mon 5/9/2022 4:36:45 PM (UTC)
Subject: FW: 2021 SC carriers

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Monday, May 9, 2022 11:29 AM
To: David Reich <dreich@msrf.com>
Subject: 2021 SC carriers

Boyue – Popcorn Bucket

From: Rubio <sales10@jiasheng-china.com>
Sent: Sunday, May 8, 2022 8:53 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: Re:FW: 2021 SC carriers

Hi Rochi,

I booked through my forwarder, please check booking details as below email.
I booked with YML and EGL (2021).

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.
No.95 Shiyuan Road NanCheng Huangyan District Taizhou City,Zhejiang Province, China,318020
Tel:0086-576-84188368
Fax:0086-576-84192080
Mobile :0086-13456682228
Whatsapp:008613456682228
Wechat:Rubio5522
Website:www.jiasheng-china.com
E-mail:sales10@jiasheng-china.com/rubio5522@foxmail.com

Did you booked with either YML, EGL and HMM last year (2021) and was refuse of space/container? If you did, please forward email to me or if done over the phone, please narrate.

Rochi Mirasol
MSRF, Inc.
9815 Leland Ave. | Schiller Park, IL 60176
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

To: 'Jessica Xu - hou exp'[JessicaXu@us.yangming.com]
Cc: Linh Dao - hou exp[LinhDao@us.yangming.com]; Diane Liao - chi sls[dianeliao@us.yangming.com]; Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Wed 4/13/2022 1:56:04 PM (UTC)
Subject: RE: YCH933392 RE: 1x20 - Lincolnwood-CHI/QIN (QGP)

OK, thank you
Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Jessica Xu - hou exp <JessicaXu@us.yangming.com>
Sent: Wednesday, April 13, 2022 8:54 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Linh Dao - hou exp <LinhDao@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: YCH933392 RE: 1x20 - Lincolnwood-CHI/QIN (QGP)

Hello Rochi,
Subject booking rolled to YM TOTALITY~009W~PS6216W ERD:05/02 C/F:05/04
Updated B/C sent, please kindly check if received and review.
Moving forward, please kindly utilize our new booking portal for new booking request. I have included a booking guide and the link to the portal YM Web Booking for your reference.
Thank you & Best regards

Dear valued customers, please note YMA has integrated a new WEB based booking portal for your convenience in submitting your booking requests.

Please follow the link to the YM Website and proceed to login, or create your login to utilize this new e-service feature.

YM Web Booking

Jessica Xu
Export Booking Coordinator
YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER
3250 Briarpark Drive, Suite 201, Houston, TX 77042 EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW
281-295-8600 (Main)
Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: 2022年4月13日 0:56
To: Jessica Xu - hou exp <JessicaXu@us.yangming.com>
Cc: Linh Dao - hou exp <LinhDao@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: Re: YCH933392 RE: 1x20 - Lincolnwood-CHI/QIN (QGP)

Please move this booking 2 weeks after the ERD & send me new confirmation . Our cargo won't be ready.
Thank you
Get Outlook for iOS

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Friday, April 8, 2022 10:46 AM
To: 'Jessica Xu - hou exp' <JessicaXu@us.yangming.com>
Cc: Linh Dao - hou exp <LinhDao@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: YCH933392 RE: 1x20 - Lincolnwood-CHI/QIN (QGP)

Got it, thank you
Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618

RX_000203

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Jessica Xu - hou exp <JessicaXu@us.yangming.com>

Sent: Friday, April 8, 2022 8:42 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Linh Dao - hou exp <LinhDao@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Subject: YCH933392 RE: 1x20 - Lincolnwood-CHI/QIN (QGP)

Hello Rochi,

#YCH933392 made under same vessel EXPRESS BERLIN~025W~PS6214AW ERD:04/18 C/F:04/19(from CHI--Qingdao 1X20DC commodity: BBQ sauce)

Booking confirmation sent in separate email, please review. If any questions, please let us know.

Moving forward, please kindly utilize our new booking portal for new booking request. I have included a booking guide and the link to the portal [YM Web Booking](#) for your reference.

Thank you & Best regards

Dear valued customers, please note YMA has integrated a new WEB based booking portal for your convenience in submitting your booking requests.

Please follow the link to the YM Website and proceed to login, or create your login to utilize this new e-service feature.

[YM Web Booking](#)

Jessica Xu

Export Booking Coordinator

■ YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER

3250 Briarpark Drive, Suite 201, Houston, TX 77042 EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW
281-295-8600 (Main)

Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: 2022年4月7日 17:04

To: Jessica Xu - hou exp <JessicaXu@us.yangming.com>

Cc: Linh Dao - hou exp <LinhDao@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Subject: RE: 1x20 - Lincolnwood-CHI/QIN (QGP)

Yes, it's a CY on the same vessel from the earlier booking.

Thank you

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Jessica Xu - hou exp <JessicaXu@us.yangming.com>

Sent: Thursday, April 7, 2022 4:59 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Linh Dao - hou exp <LinhDao@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Subject: RE: 1x20 - Lincolnwood-CHI/QIN (QGP)

Hello,

Please kindly advise if is a CY booking.

Moving forward, please kindly utilize our new booking portal for new booking request. I have included a booking guide and the link to the portal [YM Web Booking](#) for your reference.

Thank you & Best regards

Dear valued customers, please note YMA has integrated a new WEB based booking portal for your convenience in submitting your booking requests.

Please follow the link to the YM Website and proceed to login, or create your login to utilize this new e-service feature.

[YM Web Booking](#)

Jessica Xu

RX_000204

CONFIDENTIAL

MSRF_YANG MING_0001830

Export Booking Coordinator

■ YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER

3250 Briarpark Drive, Suite 201, Houston, TX 77042 EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW
281-295-8600 (Main)

Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: 2022年4月7日 16:46

To: Jessica Xu - hou exp <JessicaXu@us.yangming.com>

Cc: Linh Dao - hou exp <LinhDao@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls
<PaulGoeke@us.yangming.com>

Subject: 1x20 - Lincolnwood-CHI/QIN (QGP)

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Thank you and please book another 1x20' on the same vessel. This container (1x20') is loading on a different warehouse.

Commodity – 18 oz BBQ sauce

Total gross weight – 4,200 lbs

Sched B – 2103.20.4050

Reference - 70025624

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000205

CONFIDENTIAL

MSRF_YANG MING_0001831

To: Rochi Mirasol[rmirasol@msrf.com]; Diane Liao - chi sls[dianeliao@us.yangming.com]
From: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
Sent: Thur 3/3/2022 6:39:49 PM (UTC)
Subject: RE: *** Vessel Schedule Update *** EC2204W SHANGHAI EXPRESS V041W USCHS (Updates to Port ERD, Port Cut, ETD) - YHU764211=MSRF

Noted..
Best Regards,
Paul Goeke
Account Manager (Sales) - Chicago Region

Yang Ming (America) Corporation
PaulGoeke@us.yangming.com
(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Thursday, March 3, 2022 11:31 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: *** Vessel Schedule Update *** EC2204W SHANGHAI EXPRESS V041W USCHS (Updates to Port ERD, Port Cut, ETD) - YHU764211=MSRF

The current ETA in QIN is too late its 5/12 and not 4/21. I just emailed export dept. to cancel this booking.
Thank you
Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Thursday, March 3, 2022 10:23 AM
To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: FW: *** Vessel Schedule Update *** EC2204W SHANGHAI EXPRESS V041W USCHS (Updates to Port ERD, Port Cut, ETD) - YHU764211=MSRF

Hi Rochi,
Happy Thursday..
Yes your export contract is still valid with Yang Ming, but is subject to equipment and trucking power.



陽明海運股份有限公司
Yang Ming Marine Transport Corporation

BOOKING CONFIRMATION

FAX : 773-227-2031

FROM : CindyLei@us.yangming.com

Booking Number: YHU764211

ITN Number :

Shipper Ref: PO # 70025507

Vessel : SHANGHAI EXPRESS

SVC NO. : 494721

YML Voyage : EC2204W

COM Voyage : 041W

Trade Service : NORTH AMERICA EAST COAST LOOP 2

** for US Customs purpose

POL Cut-off: 04/01/2022

DOC/ ITN Cut-off: 03/31/2022

Place of Receipt : FORT MILL, SC

POR Cut-off: 03/24/2022 16:00

*ERD Date: 03/21/2022

Port of Loading : CHARLESTON, SC

POL Sailing Date : 04/04/2022

Pickup Date :

Port of Discharge : QINGDAO, CHINA

POD Arrival Date : 04/21/2022

Dest ETA : 04/21/2022

Port of Delivery : QINGDAO, CHINA, CN

Booked Date : 02/10/2022 14:22:40

ORIGIN OFFICE

BOOKED BY

Office : YANG MING (AMERICA) CORPORATION - HSC

Name : Jerry Tsao

Address : 3250 BRIARPARK DRIVE, SUITE 201
HOUSTON, TX 77042

Address : 3250 BRIARPARK DRIVE, SUITE 201
HOUSTON, TX 77042

Phone : 281 295-8600

Email : HOUSATEXP@US.YANGMING.COM

Fax : 281 295-8679

SI E Fax No : 1800 530-5920

Phone : 281-295-8180

SI E-Mail : icdc@yangming.com

Fax : 281 295-8679

SHIPPER/NVOCC

FORWARDER

Company : MSRF INC.

Company : SCHMIDT PRITCHARD & CO INC

Address : 3319 N ELSTON AVE. CHICAGO, IL 60618

Address : 9801 W LAWRENCE AVE
SCHILLER PARK, IL 60176

CTC Name : MS. ROCHI MIRASOL X310

CTC Name : BILL HELMS

Phone : 773-227-1115

Phone : 847-671-5134

Fax : 773-227-2031

Fax : 847-671-1894

Cargo Details :

**Booking subject to vessel space and equipment availability.

**Door Booking subject to truck power.

**Vessel schedule on the booking confirmation is an estimate.

**Rail cutoffs and early receiving date are subject to change.

**All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location
1	40'HIGH CUBE CONTAINER	ITS ConGlobal Charleston Depot 1451 Bainbridge Connector Rd Charleston, SC 29405 US Janet Peterson	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464
Commodity Description			Gross Wt./Unit
DRY: COCOA MIXES			44000.000
			Gross Cube./Unit
			0.000

Domestic Export TSP Mode: D-Door

Destination Export TSP Mode: Y-CY

Origin Haulage Mode: Road

IPI Instruction:

No.	Customer	Address
1	McClancy Seasoning Co.	6746 Charlotte Hwy Fort Mill, SC 29707 CTC: Renee Denton or Mona Munteanu Tel : 803-548-2659 Fax: Call Renee Denton or Mona Munteanu to set up an appointment at their direct line at 803-548-2659. If they do not pick up their phone, please email them and CC me at: shipping@mcclancy.com; Mona.Munteanu@mcclancy.com for Mona, Renee.Denton@mcclancy.com for Renee. **The loading dock of this company is

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

CONFIDENTIAL

RX_000207

MSRF_YANG MING_0002301

-----Original Message-----

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Thursday, March 3, 2022 9:48 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: FW: *** Vessel Schedule Update *** EC2204W SHANGHAI EXPRESS V041W USCHS (Updates to Port ERD, Port Cut, ETD) - YHU764211

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

We are still OK with our SC, right? This is an export booking.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

-----Original Message-----

From: Cindy Lei <CindyLei@us.yangming.com>

Sent: Thursday, March 3, 2022 9:42 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: *** Vessel Schedule Update *** EC2204W SHANGHAI EXPRESS V041W USCHS (Updates to Port ERD, Port Cut, ETD) - YHU764211

Please be advised that the vessel schedule for subject vessel is revised as booking confirmation per latest coastal schedule.

Regarding ERD: Terminal is not yet receiving. The schedule on YM booking confirmation is only estimated and subject to change, please ensure to consistently check for terminal announcement for the receiving dates before arrange empty pull out and loads return.

*** These dates are subject to change with another notification if needed ****

For updated departure date and ETA to final destination, please check the website: www.yangming.com for updates. Thank you.

RX_000208

Booking Number: YHU764211		ITN Number :	Shipper Ref: PO # 70025507
Vessel : SHANGHAI EXPRESS		SVC NO. : 494721	
YML Voyage : EC2204W		COM Voyage : 041W	Trade Service : NORTH AMERICA EAST COAST LOOP 2
		** for US Customs purpose	POL Cut-off: 04/01/2022 DOC/ ITN Cut-off: 03/31/2022
Place of Receipt : FORT MILL, SC			POR Cut-off : 03/24/2022 16:00 *ERD Date: 03/21/2022
Port of Loading : CHARLESTON, SC			POL Sailing Date : 04/04/2022 Pickup Date :
Port of Discharge : QINGDAO,CHINA			POD Arrival Date : 05/12/2022 Dest ETA : 05/12/2022
Port of Delivery : QINGDAO,CHINA,CN			Booked Date : 02/10/2022 14:22:40
ORIGIN OFFICE		BOOKED BY	
Office : YANG MING (AMERICA) CORPORATION - HSC		Name : Jerry Tsao	
Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042		Address : 3250 BRIARPARK DRIVE, SUITE 201 HOUSTON, TX 77042	
Phone : 281 295-8600		Email : HOUSATEXP@US.YANGMING.COM	
Fax : 281 295-8679		Phone : 281-295-8180	
SI E Fax No : 1800 530-5920		Fax : 281 295-8679	
SI E-Mail : iedc@yangming.com			
SHIPPER/NVOCC		FORWARDER	
Company : MSRF INC.		Company : SCHMIDT PRITCHARD & CO INC	
Address : 3319 N ELSTON AVE. CHICAGO, IL 60618		Address : 9801 W LAWRENCE AVE SCHILLER PARK, IL 60176	
CTC Name : MS. ROCHI MIRASOL X310		CTC Name : BILL HELMS	
Phone : 773-227-1115		Phone : 847-671-5134	
Fax : 773-227-2031		Fax : 847-671-1894	

Cargo Details :
**Booking subject to vessel space and equipment availability.
**Door Booking subject to truck power.
**Vessel schedule on the booking confirmation is an estimate.
**Rail cutoffs and early receiving date are subject to change.
**All dates/times are best reasonable estimates and may change.

Qty	Equipment	Pick Up Location	Return Location
1	40' HIGH CUBE CONTAINER	ITS ConGlobal Charleston Depot 1451 Bainbridge Connector Rd Charleston, SC 29405 US Janet Peterson	PA-WANDO WELCH TERMINAL- 400 Long Point Rd. Mt. Pleasant, SC 29464
Commodity Description		Gross Wt./Unit	Gross Cube./Unit
DRY: COCOA MIXES		44000.000	0.000
Booking Remarks: This booking is for direct calling service. **HECS1000011- Please check terminal website to ensure vessel is open for receiving. **AECC1000004- For USA origin cargo: detention tariff free time is 4 working days for dry van, 3 working days for reefer, open top or flat rack. Detention free time includes date of empty pick up & date of load return. Any equipment return unused will be subject to \$200/per dry van or \$300/per reefer, open top, flat rack equipment unused fee plus any detention fee if applicable.			

Domestic Export TSP Mode: D-Door		Destination Export TSP Mode: Y-CY
Origin Haulage Mode: Road		
IPI Instruction:		
No.	Customer	Address
1	McClancy Seasoning Co.	8746 Charlotte Hwy Fort Mill, SC 29707 CTC: Renee Denton or Mona Munteanu Tel : 803-548-2659 Fax: Call Renee Denton or Mona Munteanu to set up an appointment at their direct line at 803-548-2659.



陽明海運股份有限公司
Yang Ming Marine Transport Corporation

BOOKING CONFIRMATION

FAX : 773-227-2031

FROM : CindyLei@us.yangming.com

If they do not pick up their phone, please email them and CC me at:
shipping@mcclancy.com; Mona.Munteanu@mcclancy.com for Mona,
Renee.Denton@mcclancy.com for Renee. **The loading dock of this company is
limited and needs to be there as early as possible.
Reference # -PO PO #70025123/124

Please Review the above information to be sure it matches what you show for your booking. If you find any errors, Please notify Yang Ming (America) Corp. as soon as possible, before delivery of the loaded container(s).

If there is no applicable rate filed to the contract by the time Shipper renders containers to Carrier, according to FMC regulations, Carrier shall apply its tariff rate plus all applicable surcharges to the shipment involved.

Shipper's Acceptance Signature For Reefer/Special Cargo

Attachment Details

IMPORTANT NOTICE

Date: September 18, 2018

Dear Shipper,

We wish to bring to your attention to the first line of the "Booking Remarks", where you find the hazardous cargo approval number. This reference number starts with "USSOL" followed by 11 digits. Effective immediately, it is to be added to the final Hazardous declaration. We urge Your team to review the accuracy of this reference number when writing or typing it on the declaration.

We focus on the accuracy to ensure the container(s) are laden in a timely manner and on the vessel/voyage for which they are booked. The vessel operator has the full authority to leave behind container(s) with declarations missing USSOL# or mistyped number. In the event this occurs and the container remains behind all charges assessed by the terminal are for the account of the shipper.

We greatly appreciate your compliance to this THEA requirement.

If you have questions in this regard, or have multiple containers under one booking, please reach out to our DG customer service team for correct assignment of the USSOL# to your containers.

To: 'Cindy Lei - hou exp'[CindyLei@us.yangming.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Thur 3/3/2022 5:28:20 PM (UTC)
Subject: RE: *** Vessel Schedule Update *** EC2204W SHANGHAI EXPRESS V041W USCHS (Updates to Port ERD, Port Cut, ETD) - YHU764211

Yes cancel it.

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave.|Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

-----Original Message-----

From: Cindy Lei - hou exp <CindyLei@us.yangming.com>
Sent: Thursday, March 3, 2022 11:28 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: RE: *** Vessel Schedule Update *** EC2204W SHANGHAI EXPRESS V041W USCHS (Updates to Port ERD, Port Cut, ETD) - YHU764211

Dear Rochi,

I just sent a revised confirmation a couple minutes ago to you, please review once received. That one will show updated ETA 5/12.

Will it still need to cancel?

Thank you,

Please note: The schedule on YM booking confirmation is only estimated and subject to change, please ensure to consistently check for terminal announcement for the receiving dates before arrange empty pull out and loads return.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via e-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Kind regards,
Cindy Lei
Export Vessel Closer

Yang Ming (America) Corporation
3250 Briarpark Drive, Ste 201
Houston, TX 77042
Phone: (281)295-8600 | Direct: (281)295-9129
Email: cindylei@us.yangming.com
Website: <http://www.yangming.com/>

RX_000212

CONFIDENTIAL

MSRF_YANG MING_0002323

773)227-2031

Email: Rmirasol@msrf.com



From: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>

Sent: Tuesday, November 2, 2021 11:18 AM

To: Rochi Mirasol <rmirasol@msrf.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>

Subject: RE: COD FOR TERMINATION PLZ ADVISE RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

You requested the p/u# and we provided it to you. The trucker you sent it to, picked it up.

If you had waited for the COD to be processed, you would have to pay for storage charges.

Your shipper never confirmed they would agree to the diversion as well.

thanks

*****I am pleased to inform you that from 8/16/2021 I have transferred to MWE/ PNW & NCA Import team, for assistance for East Coast, please forward emails to HSCSATGULIMP@us.yangming.com*****

Kathryn Alexander

Manager- MWE/ NCA/ PNW Imports

Houston Service Center

3250 Briarpark Drive, Suite 201,

Houston, TX 77042



TEL# 281 295 8657

CELL# 832 302 9643

EMAIL: kathrynalexander@us.yangming.com

TEAM EMAIL: HSCMWEIMP@us.yangming.com

web: www.yangming.com

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, November 2, 2021 11:09 AM

To: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>;

Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: COD FOR TERMINATION PLZ ADVISE RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Why bother asking if what do we want for the BL?

Rochi Mirasol

RX_000213

CONFIDENTIAL

MSRF_YANG MING_0002524

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>

Sent: Tuesday, November 2, 2021 10:25 AM

To: Rochi Mirasol <rmirasol@msrf.com>; Michele C. - hou imp <MicheleC@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: COD FOR TERMINATION PLZ ADVISE RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Rochi,

Unit has out gated, therefore origin will no longer issue to CY.

*****I am pleased to inform you that from 8/16/2021 I have transferred to MWE/ PNW & NCA Import team, for assistance for East Coast, please forward emails to HSCSATGULIMP@us.yangming.com*****

Kathryn Alexander
Manager- MWE/ NCA/ PNW Imports
Houston Service Center
3250 Briarpark Drive, Suite 201,
Houston, TX 77042

 **YANG MING**



TEL# 281-295-8657
CELL# 832-302-9643
EMAIL: kathrynalexander@us.yangming.com
TEAM EMAIL: HSCMWEIMP@us.yangming.com
web: www.yangming.com

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, November 2, 2021 9:42 AM

To: Michele C. - hou imp <MicheleC@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: COD FOR TERMINATION PLZ ADVISE RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Revised it CY/Cy

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Michele C. - hou imp <MicheleC@us.yangming.com>

Sent: Friday, October 29, 2021 10:59 AM

To: Rochi Mirasol <rmirasol@msrf.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: COD FOR TERMINATION PLZ ADVISE RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Importance: High

Dear Rochi,

I had not seen your response to advise to proceed with bl revision to cy only AND confirm guarantee of COD fees? (With bl to be re-rated for cy only.)

Or

Did you wish to leave the bl as is and confirm understanding no revision to the bl and no re-rate or refund?

****ADVISORY: Effective April 1st, 2021, Yang Ming Houston office new address will be:**

3250 Briarpark Drive, Suite 201, Houston, TX 77042.

Our telephone number for this new location will remain the same (281) 295-8600.**

RX_000214

CONFIDENTIAL

MSRF_YANG MING_0002525

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED
** It is recommended to consider using EFT (ACH or WIRE TRANSFER) to send all payments as a safer & more efficient method to avoid the potential delay on your OBL or Cargo release. Our banking information can be provided upon request.**

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner.

Thank you for your business.

***Please note for Yang Ming door move containers, all releases and delivery orders need to be received five business days prior to arrive destination**

- * YM will not be responsible for any rail storage due to late release.

* For container movement tracking please use https://www.yangming.com/e-service/track/trace/track_trace_cargo_tracking.aspx

>> Our New remittance address is: **3250 Briarpark Drive, Suite 201, Houston, TX 77042** <<

Michele R. CartaFalsa
Senior IPI Coordinator
Houston Service Center



Yang Ming (America) Corp.
3250 Briarpark Drive., Suite 201
Houston, TX 77042
Tel# 281-295-8667

Email: MicheleC@us.yangming.com

From: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>

Sent: Wednesday, October 27, 2021 12:16 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Rochi Mirasol <rmirasol@msrf.com>

Cc: Michele C. - hou imp <MicheleC@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; HSC MWE IMP <HSCMWEIMP@us.yangming.com>

Subject: COD FOR TERMINATION SAMPLE LETTER ///// RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Rochi,

Costs to terminate at CY are below. This is the only way to receive a refund, however there are admin fees that will need to be paid to cover the BL changes.

If we send you the P/U# without BL change, no refund will be granted. Please let us know how you want to proceed.

request, COD B/L#W240283287 to USCHI (CY) i/o USITS (DOOR) is acceptable subject to following charges and terms.

Please kindly have A/C confirm acceptance of below charges in writing for involved offices to follow up on C/A and further COD arrangement.

1.Applicable rate to USCHI (CY) in S/C# 494721

2.Administration fee [REDACTED] per B/L

3.ACE [REDACTED] fee [REDACTED] per B/L, if necessary

4. DV [REDACTED] per B/L for addition to cover OP feasibility on late COD charge in necessary.

4.A/C should be responsible for any demurrage incurred by this COD or due to non-availability of trucker/equipment for inland move.

5.Other local extra charges, if any

Commodity Group	SC No.	CRD	Voyage	Rating	Container No.
A	494721	12-SEP-21	PN4136E	[REDACTED]	BMOU3177429

***I am pleased to inform you that from 8/16/2021 I have transferred to MWE/ PNW & NCA Import team, for assistance for East Coast, please forward emails to HSCSATGULIMP@us.yangming.com **RX 000215**

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Kathryn Alexander
Manager- MWE/ NCA/ PNW Imports
Houston Service Center
3250 Briarpark Drive, Suite 201,
Houston, TX 77042

 **YANG MING**



TEL# 281-295-8657
CELL# 832-302-9643
EMAIL: kathrynalexander@us.yangming.com
TEAM EMAIL: HSCMWEIMP@us.yangming.com
web: www.yangming.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Wednesday, October 27, 2021 11:27 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; HSC MWE IMP <HSCMWEIMP@us.yangming.com>

Subject: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Hi Rochi,

Thanks for your below email. See attached emails from yesterday from Schmidt Pritchard regarding who will be handling the door delivery to Itasca, IL (Instant- SCAC - ITBK) for this BL (W240283287); Cntr#BMOU3177429.

Any questions about the refund or other issues please address to YM's MWE Import team (HSCMWEIMP@us.yangming.com).

Kathryn Alexander
Manager- MWE/ NCA/ PNW Imports
Houston Service Center
3250 Briarpark Drive, Suite 201,
Houston, TX 77042

 **YANG MING**



TEL# 281-295-8657
CELL# 832-302-9643
EMAIL: kathrynalexander@us.yangming.com
TEAM EMAIL: HSCMWEIMP@us.yangming.com
web: www.yangming.com

Or

Michele R. CartaFalsa
Senior IPI Coordinator
Houston Service Center
 **YANG MING**
Yang Ming (America) Corp.
3250 Briarpark Drive., Suite 201
Houston, TX 77042
Tel# 281-295-8667
Email: MicheleC@us.yangming.com

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

 **YANG MING**

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, October 27, 2021 9:09 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; HSC MWE IMP <HSCMWEIMP@us.yangming.com>

RX_000216

CONFIDENTIAL

MSRF_YANG MING_0002527

Subject: RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Paul, **PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

I will have Schmidt Pritchard look for the trucker because they were the one who did the issue with CST/Forward air that resulted this problem. This container has been paid up to DR and we should get the refund back if this will be on a CY now. I have no idea and I do not have anybody to replace the trucker on our SC. I think this is the only container we have with you on the Chicago area.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Tuesday, October 26, 2021 1:27 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>;

Diane Liao - chi sls <dianeliao@us.yangming.com>; HSC MWE IMP <HSCMWEIMP@us.yangming.com>

Subject: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Importance: High

Hi Rochi,

Happy Tuesday..

I wanted to follow up on my voicemail message from this morning. MSRF has an import container (BMOU3177429) moving in-transit under BL (W240283287) from Tacoma to door Itasca, IL. (see below details). We were told by your CNT (Customer Nominated Trucker)-Forward Intermodal that they have severed their relationship with MSRF. Please advise if you have another trucker to handle this door delivery for this container and your other door destinations in the Chicago area. Due to the supply chain issues Yang Ming's Import department isn't handling any door deliveries anymore. We need MSRF to provide a new trucker as soon as possible to handle your door deliveries otherwise your shipments will stop at the CY destination (in this case CY Chicago, IL-BNSF/LPC). In addition MSRF, Inc will be responsible for all rail storage charges for this container in question and all future shipments into CY Chicago, IL.

YM will not be responsible for any rail storage due to late release. See the below emails between Yang Ming's Midwest Import department and MSRF's CNT (Forward Intermodal).

We look forward to your soonest/positive reply to this request..

FYI, please see the BNSF's Rail storage policy for all containers arriving in CY Chicago, IL:

As of 8/2, the BNSF has announced that they will only allow 24 hours for pick up of containers instead of the usual 48 hours. Rail storage will be due after 24 hours. BNSF also raised the rail storage rate to \$150/each for Day 1 and Day 2, \$225/each for Day 3 and Day 4, \$500/day for every day thereafter.

Yang Ming's Midwest Import dept wrote:

From: Michele C. - hou imp <MicheleC@us.yangming.com>

Sent: Monday, October 25, 2021 11:13 AM

To: Intermodal CSR - New <im.ordcsr@forwardair.com>

Cc: Debbie Guhl <DGuhl@forwardair.com>; Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Kevin Wagner <KWagner@forwardair.com>; Chad Schafer <CSchafer@forwardair.com>

Subject: CNT PREFERRED FOR MSRF / ITASCA door RE: WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)]

Importance: High

Ana.... CSAC was confirmed and updated on CNT List in April 2021. Please confirm this workorder is accepted.

MSRF, INC.	USCHI (via BN)	ITASCA, IL, US(USITS)	Forward Intermodal	CSAC	(ii).INCLU
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** It is recommended to consider using EFT (ACH or WIRE TRANSFER) to send all payments as a safer & more efficient method to avoid the potential delay on your OBL or Cargo release. Our banking information can be provided upon request.**

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result , we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner.

Thank you for your business.

RX_000217

CONFIDENTIAL

MSRF_YANG MING_0002528

> For container movement tracking please use https://www.yangming.com/e-service/track/trace/track_trace_cargo_tracking.aspx

Michele R. CartaFalsa
Senior IPI Coordinator
Houston Service Center
Yang Ming (America) Corp.
3250 Briarpark Drive., Suite 201
Houston, TX 77042
Tel# 281-295-8667

Email: MicheleC@us.yangming.com

MSRF's CNT (Forward Intermodal) wrote:

-----Original Message-----

From: Intermodal CSR - New <im.ordcsr@forwardair.com>

Sent: Friday, October 22, 2021 3:55 PM

To: Michele C. - hou imp <MicheleC@us.yangming.com>; Intermodal CSR - New <im.ordcsr@forwardair.com>; Debbie Guhl <DGuhl@forwardair.com>

Subject: RE: WO from Yang Ming - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)]

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello,

Please note we are no longer handling the 4c logistics load please assist to reach out to the customer

Please assist cancel with Forward Intermodal

Depending on chassis availability and rail conditions, we will do our best to deliver your containers within the free time allowance but yard pull charges or rail storage along with additional per diem charges may be incurred from the steamship lines for your account.

Yard pull containers will be delivered ASAP.

During this time we will do our very best to keep your cost down .

As of 8/2, the BNSF has announced that they will only allow 24 hours for pick up of containers instead of the usual 48 hours. Rail storage will be due after 24 hours. BNSF also raised the rail storage rate to \$150/each for Day 1 and Day 2, \$225/each for Day 3 and Day 4, \$500/day for every day thereafter.

Ana Unzueta

Intermodal Customer Service

O: 630-686-9455

C: 630-595-9540

823 Commerce Drive Suite 200, Oak Brook, IL 60523 im.ordcsr@forwardair.com | cstruck.com | forwardair.com

MSRF's CNT (Forward Intermodal) wrote:

From: Intermodal CSR - New <im.ordcsr@forwardair.com>

Sent: Monday, October 25, 2021 4:46 PM

To: Michele C. - hou imp <MicheleC@us.yangming.com>

Cc: Debbie Guhl <DGuhl@forwardair.com>; Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Kevin Wagner <KWagner@forwardair.com>; Chad Schafer <CSchafer@forwardair.com>

Subject: RE: CNT PREFERRED FOR MSRF / ITASCA door RE: WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)]

Hello,

Please note we were handling this account but since have cut relationship. Please contact the notify party to find out who should be dispatched going forward.

As of 8/2, the BNSF has announced that they will only allow 24 hours for pick up of containers instead of the usual 48 hours. Rail storage will be due after 24 hours. BNSF also raised the rail storage rate to \$150/each for Day 1 and Day 2, \$225/each for Day 3 and Day 4, \$500/day for every day thereafter.

Ana Unzueta

Intermodal Customer Service

O: 630-686-9455

C: 630-595-9540

823 Commerce Drive Suite 200, Oak Brook, IL 60523

im.ordcsr@forwardair.com | cstruck.com | forwardair.com



From: Michele C. - hou imp <MicheleC@us.yangming.com>

RX_000218

CONFIDENTIAL

MSRF_YANG MING_0002529

Sent: Tuesday, October 26, 2021 9:16 AM
To: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>
Subject: FW: CNT PREFERRED FOR MSRF / ITASCA door RE: WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)]
Importance: High
CSAC will not take this CNT Cnsee any longer. Need remove from CNT list. (As per CSAC statement below.)

Container(s) with Latest Event

[Events comp

Container No.	Size	Type	Seal No.	Move Type	Date/Time	Latest Event	Place
BMOU3177429	40	DC-Dry cargo container	YMAK010747	FCL/FCL	2021/10/26 01:24	In Transit	GLASGO

We look forward to your soonest/positive reply!!
Best Regards,

Paul Goeke
Account Manager (Sales) - Chicago Region
 **YANG MING**
Yang Ming (America) Corporation
PaulGoeke@us.yangming.com
(630) 335-4827 (Mobile)

RX_000219

To: Rochi Mira@us.yangming.com];
Cc: HSC MWE IMP[HSCMWEIMP@us.yangming.com]; Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
From: Diane Liao - chi sls[dianeliao@us.yangming.com]
Sent: Fri 10/29/2021 3:00:38 PM (UTC)
Subject: RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

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Well received.

Thanks & Best Regards,

Diane

BUSINESS SUPPORT TEAM MANAGER DIANE LIAO | YANG MING (AMERICA) CORP |3250 Briarpark Drive, Suite 201, Houston, TX 77042 | 281.295.9147 (DIRECT); 281-929-0478 (e-Fax)

Please consider the environment before printing this email

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Friday, October 29, 2021 9:49 AM

To: Diane Liao - chi sls <dianeliao@us.yangming.com>; David Reich <dreich@msrf.com>; Jeff Reich <jreich@msrf.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>;

HSC MWE IMP <HSCMWEIMP@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Subject: RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434

[HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Yes go ahead

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Diane Liao - chi sls <dianeliao@us.yangming.com>

Sent: Friday, October 29, 2021 9:02 AM

To: Rochi Mirasol <rmirasol@msrf.com>; David Reich <dreich@msrf.com>; Jeff Reich <jreich@msrf.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>;

HSC MWE IMP <HSCMWEIMP@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Subject: RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434

[HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Hi Rochi,

To avoid the CNY issue incurred in the future shipment, we have amended S/C to expire IL Door rate and only keep Chicago (CY) rate. We also remove current CNT from S/C.

Please kindly review and confirm if approved for FMC filing.

We can update CNT & Door rates once you nominated the new trucker.

Commodity	Origin	POD	Destination	20'D C	40'D C	40'H Q	45'H Q	S Mo
A	BASEPORTS	USTIW/USSEA	ALSIP,IL					
A	BASEPORTS	USTIW/USSEA	BEDFORD PARK,IL					
A	BASEPORTS	USTIW/USSEA	DES PLAINES,IL					
A	BASEPORTS	USTIW/USSEA	ITASCA,IL					
A	BASEPORTS	USTIW/USSEA	CHICAGO,IL					

Thanks & Best Regards,

Diane

RX_000220

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Wednesday, October 27, 2021 11:33 AM

To: Rochi Mirasol <rmirasol@msrf.com>; David Reich <dreich@msrf.com>; Jeff Reich <jreich@msrf.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>;

Diane Liao - chi sls <dianeliao@us.yangming.com>; HSC MWE IMP <HSCMWEIMP@us.yangming.com>

Subject: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Hi Rochi,

FYI, see attached emails. Actually MSRF's current contract (494721) with Yang Ming will expire on April 30th, 2022. Diane Liao and I have sent an email to Yang Ming's Taiwan HQ to update your contract since Forward Intermodal will not be MSRF's CNT anymore.

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, October 27, 2021 9:11 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; David Reich <dreich@msrf.com>; Jeff Reich <jreich@msrf.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>;

Diane Liao - chi sls <dianeliao@us.yangming.com>; HSC MWE IMP <HSCMWEIMP@us.yangming.com>

Subject: RE: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Paul,

Right now, I will have to look for a trucker to replace CST/ForwardAir in our SC. Our SC will expire on the 30th of March 2022, and at the moment, this is the only container we have with you in the Chicago area. There are no other containers that YML is handling for us.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Tuesday, October 26, 2021 1:37 PM

To: David Reich <dreich@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>; Jeff Reich <jreich@msrf.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>;

Diane Liao - chi sls <dianeliao@us.yangming.com>; HSC MWE IMP <HSCMWEIMP@us.yangming.com>

Subject: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

To David and Jeff,

Based on Rochi's out of office message that I received this afternoon "Thank you for your email. I'm out of the office. During this period, I will have limited access to my emails," can you please assist on the below request?

In addition we need MSRF's new CNT (Customer Nominated Truckers) for your other door deliveries (Door Alsip, IL, Door Bedford Park, IL, Des Plaines, IL and door Itasca, IL) in MSRF's contract (494721) with Yang Ming.

MSRF's SC states for CNT:

1-1) Table of CNT record and rate validity:

Final Port/CY/Ramp	SDD Destination (City, State)	CNT Name (Customer Nominated Trucker)	Trucker's SCAC Code	Rate (Excludes FSC)	FSC (%)	one-way / round trip	Remarks
USCHI (via BN)	Alsip, IL	Forward Intermodal	CSAC		INCLD	R/T	Drop & Pick

RX_000221

USCHI (via BN)	Bedford Park, IL	Forward Intermodal	CSAC		INCLD	R/T	Drop & Pick
USCHI (via BN)	Des Plaines, IL	Forward Intermodal	CSAC		INCLD	R/T	Drop & Pick
USCHI (via BN)	Itasca, IL	Forward Intermodal	CSAC		INCLD	R/T	Drop & Pick

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MATERIALS EXCLUDED

We look forward to your soonest/positive replies!!

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Paul Goeke - chi sls

Sent: Tuesday, October 26, 2021 1:27 PM

To: Rochi C. Mirasol (rmirasol@msrf.com) <rmirasol@msrf.com>

Cc: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Michele C. - hou imp <MicheleC@us.yangming.com>;

Diane Liao (dianeliao@us.yangming.com) <dianeliao@us.yangming.com>; HSC MWE IMP <HSCMWEIMP@us.yangming.com>

Subject: MSRF, Inc (494721) CNT (Forward Intermodal) Refusing to handle door delivery to door Itasca, IL WO - ITMW2104434

[HYUNDAI TOKYO-133E-PN4136E (W240283287)Cntr#BMOU3177429=Need New CNT=Yang Ming=10.26.2021

Importance: High

Hi Rochi,

Happy Tuesday..

I wanted to follow up on my voicemail message from this morning. MSRF has an import container (BMOU3177429) moving in-transit under BL (W240283287) from Tacoma to door Itasca, IL. (see below details). We were told by your CNT (Customer Nominated Trucker)-Forward Intermodal that they have severed their relationship with MSRF. Please advise if you have another trucker to handle this door delivery for this container and your other door destinations in the Chicago area. Due to the supply chain issues Yang Ming's Import department isn't handling any door deliveries anymore. We need MSRF to provide a new trucker as soon as possible to handle your door deliveries otherwise your shipments will stop at the CY destination (in this case CY Chicago, IL-BNSF/LPC). In addition MSRF, Inc will be responsible for all rail storage charges for this container in question and all future shipments into CY Chicago, IL.

YM will not be responsible for any rail storage due to late release. See the below emails between Yang Ming's Midwest Import department and MSRF's CNT (Forward Intermodal).

We look forward to your soonest/positive reply to this request.

FYI, please see the BNSF's Rail storage policy for all containers arriving in CY Chicago, IL:

As of 8/2, the BNSF has announced that they will only allow 24 hours for pick up of containers instead of the usual 48 hours. Rail storage will be due after 24 hours. BNSF also raised the rail storage rate to \$150/each for Day 1 and Day 2, \$225/each for Day 3 and Day 4, \$500/day for every day thereafter.

Yang Ming's Midwest Import dept wrote:

"From: Michele C. - hou imp <MicheleC@us.yangming.com>

Sent: Monday, October 25, 2021 11:13 AM

To: Intermodal CSR - New <im.ordcsr@forwardair.com>

Cc: Debbie Guhl <DGuhl@forwardair.com>; Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Kevin Wagner <KWagner@forwardair.com>; Chad Schafer <CSchafer@forwardair.com>

Subject: CNT PREFERRED FOR MSRF / ITASCA door RE: WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)]

Importance: High

RX_000222

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

CONFIDENTIAL

MSRF_YANG MING_0002968

Ana.... CSAC was confirmed and updated on CNT List in April 2021. Please confirm this workorder is accepted.

MSRF, INC.	USCHI (via BN)	ITASCA, IL, US(USITS)	Forward Intermodal	CSAC	(ii).INCLU
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PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

** It is recommended to consider using EFT (ACH or WIRE TRANSFER) to send all payments as a safer & more efficient method to avoid the potential delay on your OBL or Cargo release. Our banking information can be provided upon request.**

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Thank you for your business.

> For container movement tracking please use https://www.yangming.com/e-service/track_trace/track_trace_cargo_tracking.aspx

Michele R. CartaFalsa
Senior IPI Coordinator
Houston Service Center
Yang Ming (America) Corp.
3250 Briarpark Drive., Suite 201
Houston, TX 77042
Tel# 281-295-8667

Email: MicheleC@us.yangming.com

MSRF's CNT (Forward Intermodal) wrote:

-----Original Message-----

From: Intermodal CSR - New <im.ordcsr@forwardair.com>

Sent: Friday, October 22, 2021 3:55 PM

To: Michele C. - hou imp <MicheleC@us.yangming.com>; Intermodal CSR - New <im.ordcsr@forwardair.com>; Debbie Guhl <DGuhl@forwardair.com>

Subject: RE: WO from Yang Ming - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)]

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello,

Please note we are no longer handling the 4c logistics load please assist to reach out to the customer

Please assist cancel with Forward Intermodal

Depending on chassis availability and rail conditions, we will do our best to deliver your containers within the free time allowance but yard pull charges or rail storage along with additional per diem charges may be incurred from the steamship lines for your account.

Yard pull containers will be delivered ASAP.

During this time we will do our very best to keep your cost down .

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Ana Unzueta

Intermodal Customer Service

O: 630-686-9455

C: 630-595-9540

823 Commerce Drive Suite 200, Oak Brook, IL 60523 im.ordcsr@forwardair.com | cstruck.com | forwardair.com

MSRF's CNT (Forward Intermodal) wrote:

From: Intermodal CSR - New <im.ordcsr@forwardair.com>

Sent: Monday, October 25, 2021 4:46 PM

To: Michele C. - hou imp <MicheleC@us.yangming.com>

Cc: Debbie Guhl <DGuhl@forwardair.com>; Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>; Kevin Wagner <KWagner@forwardair.com>; Chad Schafer <CSchafer@forwardair.com>

Subject: RE: CNT PREFERRED FOR MSRF / ITASCA door RE: WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)]

Hello,

Please note we were handling this account but since have cut relationship. Please contact the notify party to find out who should be dispatched going forward

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED
As of 8/2, the BNSF has announced that they will only allow 24 hours for pick up of containers instead of the usual 48 hours. Rail storage will be due after 24 hours. BNSF also raised the rail storage rate to \$150/each for Day 1 and Day 2, \$225/each for Day 3 and Day 4, \$500/day for every day thereafter.

RX_000223

Ana Unzueta

Intermodal Customer Service

O: 630-686-9455

C: 630-595-9540

823 Commerce Drive Suite 200, Oak Brook, IL 60523

im.ordcsr@forwardair.com | cstruck.com | forwardair.com



From: Michele C. - hou imp <MicheleC@us.yangming.com>

Sent: Tuesday, October 26, 2021 9:16 AM

To: Kathryn Alexander - hou imp <KathrynAlexander@us.yangming.com>

Subject: FW: CNT PREFERRED FOR MSRF / ITASCA door RE: WO - ITMW2104434 [HYUNDAI TOKYO-133E-PN4136E (W240283287)]

Importance: High

CSAC will not take this CNT Cnsee any longer. Need remove from CNT list. (As per CSAC statement below.)

Container(s) with Latest Event

[Events comp

Container No	Size	Type	Seal No	Move Type	Date/Time	Latest Event	Place
BMOU3177429	40	DC-Dry cargo container	YMAK010747	FCL/FCL	2021/10/26 01:24	In Transit	GLASGO

We look forward to your soonest/positive reply!!

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

RX_000224

CONFIDENTIAL

MSRF_YANG MING_0002970

To: hougulexp@us.yangming.com[hougulexp@us.yangming.com]
Cc: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]; Diane Liao - chi sls[dianeliao@us.yangming.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Mon 10/11/2021 4:59:24 PM (UTC)
Subject: SC #: 49721 - St. Martinsville, LA/DR to Qingdao, China/CY (DR/CY) - 1x40'HQ - 70025463

Hello YML – Export Team,

Please book 1x40'HQ (DR/CY) from St. Martinsville, LA to Qingdao, China. The cargo is ready to load now. Please check for the first available schedule this week or next week. Our SC #: 494721. Thank you

Reference #: 70025463

Commodity: 20 pallets - 55 gallon drums (ea) Hot Sauce – 40,720 lbs

Container: 1 x 40'HQ – DR/CY

P/U Address Location:

Peppers Unlimited of Louisiana, Inc.

Warehouse P/U address:

602 West Bridge St.

St. Martinsville, LA 70582

To schedule load please call: Kynan at 337-394-8035 ext 228

Email: kynan@peppersofla.com

Pick-up location require 48 hour notice.

Container is going to:

Weifang Kaimax Co. Ltd. – Zhao / Song

163 Wolong East St. Weifang, Shandong, China

Email: song@kaimax.com

Tel: 0536-8798666 / Fax: 0536 8866686

Shipper: MSRF, INC.

Freight Forwarder:

SCHMIDT PRITCHARD & CO INC

9801 W LAWRENCE AVE

SCHILLER PARK, IL 60176

Attn: Bill Helms

Email: billh@schmidtpritchard.com

P: 847-671-5134

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000225

CONFIDENTIAL

MSRF_YANG MING_0003114

To: Rochi Mirasol[rmirasol@msrf.com]
Cc: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
From: Diane Liao - chi sls[dianeliao@us.yangming.com]
Sent: Wed 9/8/2021 1:41:31 PM (UTC)
Subject: RE: RE: Freight collect booking contract no.: YANG MING - 494721 1*40HQ from Shanghai to Tacoma= MSRF, Inc.

Hi Rochi,
Origin office reserved 1feu on PN4137E.
Please contact VASH for the booking, thanks!
Thanks & Best Regards,

Diane
BUSINESS SUPPORT TEAM MANAGER DIANE LIAO | YANG MING (AMERICA) CORP |3250 Briarpark Drive, Suite 201, Houston, TX 77042 | 281.295.9147 (DIRECT); 281-929-0478 (e-Fax)
Please consider the environment before printing this email

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Tuesday, September 7, 2021 11:00 AM
To: Diane Liao - chi sls <dianeliao@us.yangming.com>
Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: RE: Freight collect booking contract no.: YANG MING - 494721 1*40HQ from Shanghai to Tacoma= MSRF, Inc.
I will have the shipper contact your shanghai office.
Thank you
Rochi Mirasol
MSRF, Inc.

3319 N. Elston Ave. |Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Diane Liao - chi sls <dianeliao@us.yangming.com>
Sent: Tuesday, September 7, 2021 9:10 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: RE: Freight collect booking contract no.: YANG MING - 494721 1*40HQ from Shanghai to Tacoma= MSRF, Inc.

Hi Rochi,
YM SHA office have reserved 1feu from CNSHA to USTIW port on PN4137E.

New Voy Code	Vessel Name	THE A Code	IMO NO	YM Vessel Abbr	Com n Voy	CNTAO		CNNGB		CNSHA		KRPUS		CAPRR		USTIW		CAVAN	
						ETB	ETD	ETB	ETD	ETB	ETD	ETB	ETD	ETB	ETD	ETB	ETD	ETB	ETD
						THU	FRI	SAT	SUN	SUN	MON	TUE	WED	SAT	SUN	TUE	FRI	FRI	MON
						10:00	05:00	12:00	03:00	18:00	18:00	21:00	14:00	08:00	17:00	08:00	05:00	18:00	22:00
PN4137E	YM UPWARD	UPW	9337468	YUPW	073E	09/16	09/17	09/18	09/19	09/19	09/20	09/21	09/22	---	---	10/05	10/08	10/08	10/11
						*	09/21	09/21	09/23	09/23	09/24	09/25	09/26	09/27			10/08	10/11	

We specially reserved this space and added the new rate recently. YM Shanghai advised this morning to contact them directly for the booking.

RX_000226

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Monday, August 30, 2021 4:40 PM

To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: RE: Freight collect booking contract no.: YANG MING - 494721 1*40HQ from Shanghai to Tacoma= MSRF, Inc.
I'll ask YM's Taiwan HQ...

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Monday, August 30, 2021 4:37 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: RE: Freight collect booking contract no.: YANG MING - 494721 1*40HQ from Shanghai to Tacoma= MSRF, Inc.

Then can we file the rate for port of Tacoma?

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Monday, August 30, 2021 4:27 PM

To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: RE: Freight collect booking contract no.: YANG MING - 494721 1*40HQ from Shanghai to Tacoma= MSRF, Inc.

Rochi,

RX_000227

From: salebj@wyhongfan.com <salebj@wyhongfan.com>

Sent: Friday, August 27, 2021 5:31 AM

To: Rochi Mirasol <rmirasol@msrf.com>; admin <admin@greatlink.cc>; Elena/GreatLink <container@greatlink.cc> **Subject:**

Re: RE: Freight collect booking contract no.: YANG MING 494721 1*40HQ from Shanghai to Tacoma

Dear Rochi,

We are informed that the contract number of Yangming is wrong, so we cannot get the space. Please double check.

We have provide the contract number to your two designated forwarders, but none of them got back to me. In order to avoid delay of shipment, we directly called the shipping company to inquire. The following are the replies of the two shipping companies.

RX_000228

To: Rochi Mirasol <rmirasol@msrf.com>
Cc: David Reich <dreich@msrf.com>; Claire Danielewski <cdanieleski@msrf.com>; gary <gary@qingdaogiftpackers.com.cn>;
jason.cao <jason.cao@cn.nestle.com>

Subject: Re: RE: Booking for Shanghai to Chicago,IL OCEAN FREIGHT-HF 浙江洪帆 76293264

Dear Rochi,

Kindly find attached document for your reference.

As for 1 container of Yongming, we were informed by the forwarder that the booking number would be obtained tomorrow. Thank you.

salebj@wyhongfan.com

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Monday, August 16, 2021 10:35 AM

To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF, Inc (494721) Ningbo port - 5x40'HQ - HongFan via Yang Ming=8.12.2021

Hi Rochi,

Yang Ming's overseas booking office has stated the following for your new booking request from Ningbo for HongFan.

They wrote:

"We haven't received the booking from SHPR yet."

Please contact your overseas office...

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Friday, August 13, 2021 9:52 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF, Inc (494721) Ningbo port - 5x40'HQ - HongFan via Yang Ming=8.12.2021

According to the shipper they already booked 1 container. Can you please check and

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rochi Mirasol

Sent: Thursday, August 12, 2021 5:06 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF, Inc (494721) Ningbo port - 5x40'HQ - HongFan via Yang Ming=8.12.2021

Ok, I will send a message to the shipper.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Thursday, August 12, 2021 4:54 PM

To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: MSRF, Inc (494721) Ningbo port - 5x40'HQ - HongFan via Yang Ming=8.12.2021

To Rochi and to all,

RX_000229

CONFIDENTIAL

MSRF_YANG MING_0003305

We received some good news. Even though we are extremely short on equipment, we can confirm 1 FEU on the PN1135E (RDO CONCERT V.106E) to the port of Tacoma, WA.
Please contact your overseas office/supplier and provide this good news..

New Voy. Code	Vessel Name	THEA Code	IMO NO.	YM Vessel Abbr.	Conn Voy.	JPUK8		JPUK8		CCKMN		TW
						ETB	ETD	ETB	ETD	ETB	ETD	ETB
						WED	WED	WED	WED	TUE	WED	WED
						08/03	18/03	08/03	18/03	17/03	10/03	22/03
PN1134E	SAN DIEGO BRIDGE	SAN	9560376	SADB	053E	08/04	08/04	---	---	08/24	08/25	08/25
					*	08/24	08/24			08/27	08/28	08/28
PN1135E	RDO CONCERT	RCT	9415844	RCCT	106E	08/11	08/11	---	---	08/31	09/01	09/01
					*	08/29	08/29			09/02	09/03	09/03
PN1136E	SEATTLE BRIDGE	SEA	9560352	SETB	068E	08/18	08/18	---	---	09/07	09/08	09/08
					*	09/01	09/01					
PN1137E	ARIES	NAL	9262728	ARES	121E	08/25	08/25	---	---	09/14	09/15	09/15
					*	09/07	09/07					
PN1138E	MOL PREMIUM	PMR	9444261	MPMM	061E	09/01	09/01	---	---	09/21	09/22	09/22
					*	09/09	09/09					
PN1139E	MOL PROSPERITY	PSY	9321031	MPRS	212E	09/08	09/08	---	---	09/28	09/29	09/29
					*	09/16	09/16					
PN1140E	SAN DIEGO BRIDGE	SAN	9560376	SADB	054E	---	---	09/29	09/29	10/05	10/06	10/06
PN1141E	RDO CONCERT	RCT	9415844	RCCT	107E	---	---	10/06	10/06	10/12	10/13	10/13
PN1142E	SEATTLE BRIDGE	SEA	9560352	SETB	069E	---	---	10/13	10/13	10/19	10/20	10/20
PN1143E	ARIES	NAL	9262728	ARES	122E	---	---	10/20	10/20	10/26	10/27	10/27

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Paul Goeke - chi sls

Sent: Wednesday, August 11, 2021 12:09 PM

To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF, Inc (494721) Ningbo port - 5x40'HQ - HongFan via Yang Ming=8.11.2021

Hi Rochi,

Sorry, but I'm still waiting to hear back from YM's Taiwan HQ and our Ningbo office regarding your below request. I'll send another message to YM's overseas office..

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Paul Goeke - chi sls

RX_000230

CONFIDENTIAL

MSRF_YANG MING_0003306

Sent: Tuesday, August 10, 2021 11:05 AM

To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF, Inc (494721) Ningbo port - 5x40'HQ - HongFan via Yang Ming=8.10.2021

Noted.. I already sent a message to YM's overseas offices, but I will send another message..

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, August 10, 2021 11:01 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF, Inc (494721) Ningbo port - 5x40'HQ - HongFan via Yang Ming=8.10.2021

Paul,

We actually need 2x40'HQ first

The second batch will be completed on August 20th, and that is 5*40HQ

Total of 7x 40'HQ cntrs

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Tuesday, August 10, 2021 10:21 AM

To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: MSRF, Inc (494721) Ningbo port - 5x40'HQ - HongFan via Yang Ming=8.10.2021

Hi Rochi,

Happy Tuesday. I hope you're doing well and staying cool these days..

Thank you for your below request. Diane Liao and I will send a message to YM's Taiwan HQ and our Ningbo office in hopes of receiving some good news for a future new booking. Once we receive some news we will let you know..

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, August 10, 2021 9:14 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: FW: Ningbo port - 5x40'HQ - HongFan

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello Paul and Diane,

We are in need of 5x40'HQ out of Ningbo to Chicago. Can you please help us get a booking, 1 or 2 or 3 or 5 containers that you can release on the 1st available vessel will greatly appreciated. Thank you

Shipper: Zhejiang Hongfan Industry

Phoenix Mountain Industrial Park

Wuyi, Zhejiang, China 321201

Attn: Stephone

RX_000231

CONFIDENTIAL

MSRF_YANG MING_0003307

To: YM-ICES Amanda Lin 林明樺[amanda.mh.lin@yangming.com]; Bill Helms[billh@schmidtpritchard.com]; Rochi Mirasol[rmirasol@msrf.com]
Cc: hou doc - Houston document[houdoc@us.yangming.com]; Liz Toscano[Liz@schmidtpritchard.com]; Angela Calabrese[angela@schmidtpritchard.com]; YM-ICDC Documentation Center[icdc@yangming.com]; YM-ICES 電子商務暨客服組[ices@yangming.com]; Paul Tang - usa itbp[paultang@us.yangming.com]
From: Cindy Lei - hou exp[CindyLei@us.yangming.com]
Sent: Fri 7/2/2021 3:39:19 PM (UTC)
Subject: RE: *Unable to Submit BL Online* - YHU712953 EC2 CHS
RE: *Unable to Submit BL Online* - YHU712953 EC2 CHS

Dear Amanda/all,
Does shipper booking party still need to be changed? Latest communication attached.
Thank you,
Please note YMA offices will be closed on Monday July 5th in observance of Independence Day. We will resume all normal service operations on Tuesday July 6th during normal hours.
Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via e-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Kind regards,
Cindy Lei
Export Vessel Closer


Yang Ming (America) Corporation
3250 Briarpark Drive, Ste 201
Houston, TX 77042
Phone: (281)295-8600 | Direct: (281)295-9129
Email: cindylei@us.yangming.com
Website: <http://www.yangming.com/>

From: YM-ICES Amanda Lin 林明樺 <amanda.mh.lin@yangming.com>
Sent: Thursday, July 1, 2021 8:05 PM
To: Bill Helms <billh@schmidtpritchard.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Cindy Lei - hou exp <CindyLei@us.yangming.com>
Cc: hou doc - Houston document <houdoc@us.yangming.com>; Liz Toscano <Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>; YM-ICDC Documentation Center <icdc@yangming.com>; YM-ICES 電子商務暨客服組 <ices@yangming.com>; Paul Tang - usa itbp <paultang@us.yangming.com>
Subject: RE: *Unable to Submit BL Online* - YHU712953 EC2 CHS

Dear Bill,
After checking, the booking party on YHU717247 is MSRF.
Therefore, the booking can be managed by MSRF only if you need to use download from booking function to submit SI.
You may also ask MSRF to assign you as sub-user under their account, then you can handle their bookings.
The admin of MSRF is RMIRASOL@MSRF.COM, please kindly check with them.
Should you need further assistance, please be free to contact us.
Thank you.

Dear Cindy,
At the meantime, could you check if it is possible to change booking party as SCHPRI61?
Thank you.
 Amanda Lin | Customer Service Development Team | Yang Ming Marine Transport Corp.

From: Bill Helms <billh@schmidtpritchard.com>
Sent: Friday, July 2, 2021 8:38 AM
To: USA, New Jersey - Paul Tang <paultang@us.yangming.com>; YM-ICES 電子商務暨客服組 <ices@yangming.com>
Cc: USA, Houston - hou_doc <houdoc@us.yangming.com>; Cindy Lei - hou exp <CindyLei@us.yangming.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Liz Toscano <Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>; YM-ICDC Documentation Center <icdc@yangming.com>
Subject: RE: *Unable to Submit BL Online* - YHU712953 EC2 CHS
Still not available

From: Paul Tang - usa itbp <paultang@us.yangming.com>
Sent: Thursday, July 1, 2021 4:02 PM
To: YM-ICES 電子商務暨客服組 <ices@yangming.com>

Cc: hou doc - Houston document <houdoc@us.yangming.com>; Cindy Lei - hou exp <CindyLei@us.yangming.com>; Bill Helms <billh@schmidtpritchard.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Liz Toscano <Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>; ICDC@YANGMING.COM

Subject: RE: *Unable to Submit BL Online* - YHU712953 EC2 CHS

Dear ICES

Pls kindly assist

Thanks !

YMA-ITBP

From: Moses Gloria - hou doc **On Behalf Of** hou doc - Houston document

Sent: Thursday, July 01, 2021 4:08 PM

To: Cindy Lei - hou exp <CindyLei@us.yangming.com>; Bill Helms <billh@schmidtpritchard.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Liz Toscano <Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>; hou doc - Houston document <houdoc@us.yangming.com>; ICDC@YANGMING.COM; Paul Tang - usa itbp <paultang@us.yangming.com>

Subject: RE: *Unable to Submit BL Online* - YHU712953 EC2 CHS

Dear Yang Ming IT Dept/ Paul,

Can you please assist on the message below from Shipper...

Are you able to assist as forwarder Bill is showing below that they are unable to submit B/L online?

To the Shipper if you are having trouble issuing BL instructions on line... Please email your Shipping Instructions to ICDC for the meantime..so ICDC can create your BL for you...

ICDC is the department who creates the BLs for you and corrects the BLs for you..

Please Note: YMA USA offices will be closed on Monday July 5th in observance of Independence Day. We will resume all normal service operations on Tuesday July 6th during normal hours

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Thank you

Moses Gloria

Team Leader HSC Export Documentation

Houston Service Center



Yang Ming America Corp.

3250 Briarpark Drive, Ste 201

Houston, TX 77042

T:281-295-8633 direct

281-295-8600 main

Email: mosesgloria@us.yangming.com

Web:www.yangming.com

From: Cindy Lei - hou exp <CindyLei@us.yangming.com>

Sent: Thursday, July 1, 2021 3:02 PM

To: Bill Helms <billh@schmidtpritchard.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Liz Toscano <Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>; hou doc - Houston document <houdoc@us.yangming.com>; ICDC@YANGMING.COM

Subject: RE: *Unable to Submit BL Online* - YHU712953 EC2 CHS

// Adding Hou Doc and ICDC teams to assist //

Dear Hou Doc and ICDC teams,

Are you able to assist as forwarder Bill is showing below that they are unable to submit B/L online?

Thank you,

Please note YMA offices will be closed on Monday July 5th in observance of Independence Day. We will resume all normal service operations on Tuesday July 6th during normal hours.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via e-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Kind regards,

Cindy Lei

RX_000233

CONFIDENTIAL

MSRF_YANG MING_0003425



Yang Ming (America) Corporation

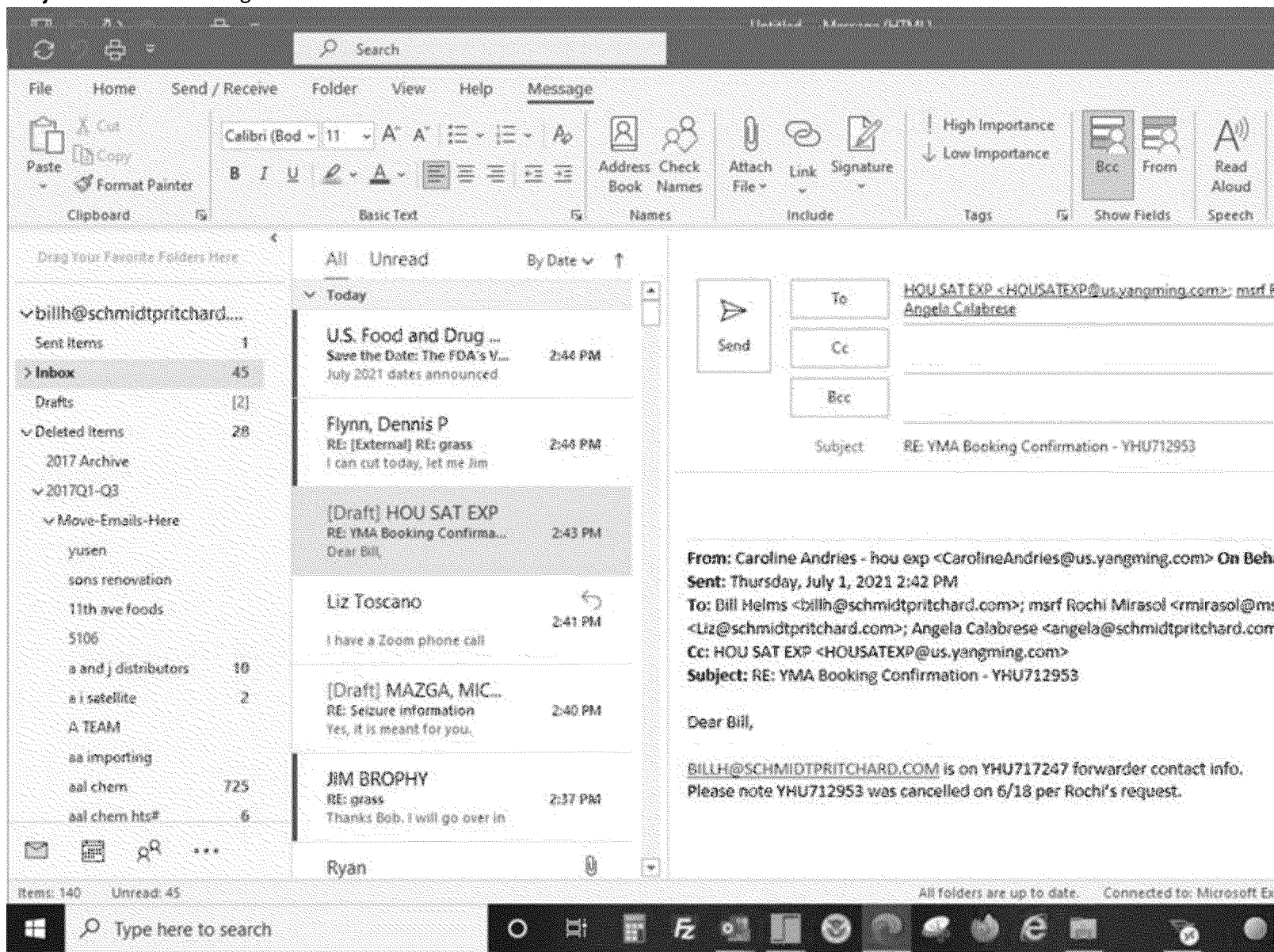
3250 Briarpark Drive, Ste 201

Houston, TX 77042

Phone: (281)295-8600 | Direct: (281)295-9129

Email: cindylei@us.yangming.comWebsite: <http://www.yangming.com/>**From:** Caroline Andries - hou exp <CarolineAndries@us.yangming.com> **On Behalf Of** HOU SAT EXP**Sent:** Thursday, July 1, 2021 2:52 PM**To:** Cindy Lei - hou exp <CindyLei@us.yangming.com>; Bill Helms <billh@schmidtpritchard.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Liz Toscano <Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>**Cc:** HOU SAT EXP <HOUSATEXP@us.yangming.com>**Subject:** RE: YMA Booking Confirmation - YHU712953

Adding vessel closure to advise (YHU717247).

From: Bill Helms <billh@schmidtpritchard.com>**Sent:** Thursday, July 1, 2021 2:48 PM**To:** HOU SAT EXP <HOUSATEXP@us.yangming.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Liz Toscano <Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>**Subject:** RE: YMA Booking Confirmation - YHU712953

See screenshot showing im not allowed

From: Caroline Andries - hou exp <CarolineAndries@us.yangming.com> **On Behalf Of** HOU SAT EXP**Sent:** Thursday, July 1, 2021 2:42 PM**To:** Bill Helms <billh@schmidtpritchard.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Liz Toscano <Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>

Angela Calabrese <angela@schmidtpritchard.com>

Cc: HOU SAT EXP <HOUSATEXP@us.yangming.com>

Subject: RE: YMA Booking Confirmation - YHU712953

Dear Bill,

BILLH@SCHMIDTPRITCHARD.COM is on YHU717247 forwarder contact info.

Please note YHU712953 was cancelled on 6/18 per Rochi's request.

Please note that Houston Service Center (HSC) will be closed on Monday July 5th in observance of Independence Day. We will resume all normal service operations on Tuesday July 6th during normal hours.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Thank You

Best Regards,

Caroline Andries

Please note Yang Ming America HSC East Coast Booking hours are 7:30am – 4:30pm CST / 8:30am – 5:30pm EST.

Any email or EDI requests after 4pm CST/ 5pm EST will be reviewed and handled next business day.

YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | 3250 BRIARPARK DRIVE, SUITE 201 | HOUSTON TX 77042

281.295.8600 (Main) 281.295.9162 (East Coast Export Group) 281.295.9176 (Direct)

Email: HOUSATEXP@us.yangming.com

Web: www.yangming.com

-----Original Message-----

From: Bill Helms <billh@schmidtpritchard.com>

Sent: Thursday, July 1, 2021 2:29 PM

To: HOU SAT EXP <HOUSATEXP@us.yangming.com>; msrf Rochi Mirasol <rmirasol@msrf.com>; Liz Toscano

<Liz@schmidtpritchard.com>; Angela Calabrese <angela@schmidtpritchard.com>

Subject: RE: YMA Booking Confirmation - YHU712953

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Can you please add Schmidt,Pritchard to all bookings Included YHU717247 As I trying to upload instructions now Thanks bill

-----Original Message-----

From: Caroline Andries <HOUSATEXP@us.yangming.com>

Sent: Friday, June 18, 2021 4:12 PM

To: Bill Helms <billh@schmidtpritchard.com>

Subject: YMA Booking Confirmation - YHU712953

Dear Customer,

Attached YMA Booking Confirmation - YHU712953 for your record.

RX_000235

To: Rochi Mirasol[rmirasol@msrf.com]; David Reich[dreich@msrf.com]
Cc: Diane Liao - chi sls[dianeliao@us.yangming.com]; Jeff Reich[jreich@msrf.com]
From: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
Sent: Fri 6/18/2021 8:45:49 PM (UTC)
Subject: RE: MSRF, Inc (494721) 2021 SC via Yang Ming=Yantian Update and Industry articles=6.18.2021

Hi Rochi,
I'll continue to push YM's Taiwan HQ and our Qingdao office for your requests out of Qingdao.
Best Regards,

Paul Goeke
Account Manager (Sales) - Chicago Region

Yang Ming (America) Corporation
PaulGoeke@us.yangming.com
(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Friday, June 18, 2021 3:37 PM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; David Reich <dreich@msrf.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Jeff Reich <jreich@msrf.com>
Subject: RE: MSRF, Inc (494721) 2021 SC via Yang Ming=Yantian Update and Industry articles=6.18.2021

Paul,
I am more interested of Qingdao port updates and to when can you give us a container?
Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Friday, June 18, 2021 2:33 PM
To: Rochi Mirasol <rmirasol@msrf.com>; David Reich <dreich@msrf.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Jeff Reich <jreich@msrf.com>
Subject: MSRF, Inc (494721) 2021 SC via Yang Ming=Yantian Update and Industry articles=6.18.2021

Hi Rochi,
Happy Friday...

Please see the most updated Yantian port congestion information, Gate-in schedule at YICT and the Yang Ming/ALLIANCE Contingency plan on the vessel schedule.

-Update 06172021

Contingency plan on vessel schedule

Loop	Vweek	Voyage	M/V	Contingency plan	Updated Date
PN2	24	PN2124E	SEASPAN AMAZON 022E	Skip YTN	6/16
EC1	25	EC1125E	HYUNDAI HOPE 44E	Skip YTN	6/15
EC4	23	EC4123E	YM WELLHEAD 031E	Skip YTN	6/10

Customer advisory from Yantian port on 6/15

Quote--
With the full support of relevant government authorities and on the premise of strict epidemic prevention, Hutchison Ports YANTIAN (YANTIAN) has taken proactive measures to steadily resume normal terminal operations.
Since today (June 15), the operation of YANTIAN has returned to approximately 70% of its normal levels;
Yard density has dropped significantly to 70%, regaining the more desirable level;
From 00:00 on June 15, export laden containers with ETA-7 (within 7 days of the vessel's ETA) will be accepted. The number of gate-in tractors will be increased to 8,000 per day, and the number is estimated to increase.
We believe that with the efforts and support of all parties, YANTIAN is able to restore normal operating level as soon as possible. It

EX-000236

is projected that full operations will be basically regained in the last week of June.

PS:

Attached please find some recent articles regarding the International Shipping Industry for your reference.

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Paul Goeke – chi sls

Sent: Friday, June 11, 2021 12:38 PM

To: Rochi Mirasol <rmirasol@msrf.com>; David Reich <dreich@msrf.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>; Jeff Reich <jreich@msrf.com>; Chris Wimberly – chi mgm/sls <chriswimberly@us.yangming.com>

Subject: RE: MSRF, Inc (494721) 2021 SC via Yang Ming=6.11.2021

Hi Rochi,

Thanks for your email, but many of my importers have already suggested your below scenario (unless YM will allow us to pull container directly from port then OTR to Chicago and return empty here at the rail depot). Unfortunately YM's Taiwan HQ has denied this option. To answer your below question I

don't believe there is a good chance to receive a new booking to CY Chicago during these tough times. We will push YM's Taiwan HQ and our origin offices for support, but Port to Port (LA/LGB) will be the best option. The main issues these days is a lack of equipment and space at origin. If we continue to bring containers inland we will continue to have a shortage of equipment in Asia.

Regarding the port of Yantian please see the most updated Yantian port congestion information, Gate-in schedule at YICT and the Yang Ming/ALLIANCE Contingency plan on the vessel schedule.

- Update 06092021
- Gate-in schedule at Yantian International Container Terminal (YICT)

YICT has updated the following gate-in guidelines this week:

From 10 June 0000 hours:

- Gate-in of laden containers only if load vessel's ETA is within 7 days
- Pick-up of empty or laden containers remain normal

- Contingency plan on vessel schedule

Loop	Vweek	Voyage	M/V	Contingency plan	Updated Date
PS4	25	PS4125E	YM UNIFORM	Skip YTN	6/8
FP2	21	FP2113B	ONE SWAN 17E	Skip YTN; add XMN/KHH	6/9
PS3	21	PS3119B	YM UBIQUITY 51E	Skip YTN	6/7
PS3	24	PS3122B	SEASPAN ADONIS 63E	Skip HPH&YTN	6/7
PN2	20	PN2120E	SEASPAN ZAMBEZI 23E	Skip YTN but add SHA/PUS	6/8
PN3	20	PN3120E	HYUNDAI COURAGE 096E	Keep YTN but skip SHA	6/8

RX 000237

PS:

Attached please find some recent articles regarding the International Shipping Industry for your reference.

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Friday, June 11, 2021 11:24 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; David Reich <dreich@msrf.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Jeff Reich <jreich@msrf.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>

Subject: RE: MSRF, Inc (494721) 2021 SC via Yang Ming=6.11.2021

Hi Paul,

Port to Port "might" be a good shot for us to get 1 container per week but moving the container's inland from USWC port to Chicago will also be a night mare on our side, it's as bad as getting a container overseas. Not only the issue of the long haul driver, we will have to find a warehouse and a trucker to pull our container from the port to a local warehouse to unload it and then move it to Chicago. Unless Yangming will allow us to pull the container directly from the port then OTR to Chicago and return the empty here at the rail depot.

What is our chances of getting a confirm booking if we will go CY/OR-Chicago instead of CY/CY-port

A	BASEPORTS	USTIW/USSEA	CHICAGO,IL	
---	-----------	-------------	------------	--

We will need Yantian and Ningbo for the Starbucks products by the mid to end of July - about 4x40'HQ (or more?) each port

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Friday, June 11, 2021 11:06 AM

To: David Reich <dreich@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Jeff Reich <jreich@msrf.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>

Subject: MSRF, Inc (494721) 2021 SC via Yang Ming=6.11.2021

Hello David and Rochi,

Thank you for your below email. I apologize for all of these issues, but I have received confirmation overnight from Yang Ming's Taiwan HQ that our Qingdao office has set up a space plan of 1 FEU per month. I know that's not what we agreed to, but right now space and equipment will be extremely tight for the next several months. We recently added new port to port rates to MSRF's contract for all base ports (Yantian/Hong Kong/Shanghai/Ningbo/Qingdao/Xiamen) to Los Angeles and Long Beach. Due to all of the U.S. inland issues with the rail road, truckers, shortage of chassis YM's Taiwan HQ has suggested that MSRF try and book through this option (Port to Port) as all carriers are trying to move containers back to Asia as fast as possible.

Commodity	Origin	POD	Destination	20'DC	40'DC
A	BASEPORTS	USLAX/USLGB	LOS ANGELES,CA/LONG BEACH,CA		

Diane Liao and I will continue to send emails to YM's Qingdao and Ningbo offices, but we must manage expectations based on the feedback that we're receiving. If there is a skip sailing, requests will not just slide to the next vessel. Mathematically, it just doesn't work pushing 2X volume on next week's vessel.

RX_000238

We are hoping these skip/voided sailings will end soon as they are in place to try and bring back service schedule integrity to all trade scopes (especially to help port congestion on the USWC). From what we're seeing, "THE ALLIANCE" (YM's vessel sharing partnership with Hapag Lloyd, ONE and Hyundai) has more skip sailings in place than the other shipping alliances which is further compounding things in the short term for us and our support of our customers (causing vessel capacity issues). Please keep pushing anything/everything to YM's origin offices and we will keep pushing.

PS:

Besides Qingdao and Ningbo is there any other origins that we can push thru the PSW ports for MSRF?

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: David Reich <dreich@msrf.com>

Sent: Thursday, June 10, 2021 5:54 PM

To: paulgoeke@usyangming.com; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Rochi Mirasol <rmirasol@msrf.com>; Jeff Reich <jreich@msrf.com>

Subject: RE: MSRF, Inc (494721) 2021 SC via Yang Ming=6.10.2021

From: David Reich

Sent: Thursday, June 10, 2021 5:52 PM

To: paulgoeke@usyangming.com

Cc: dianeliao@us.yangming.com; Rochi Mirasol <rmirasol@msrf.com>; Jeff Reich <jreich@msrf.com>

Subject: FW: MSRF, Inc (494721) 2021 SC via Yang Ming=6.10.2021

Paul,

Whilst we do understand the situation we are still a bit confused. You signed a contract with us for 50 TEU. That should give us at least 1 container per week and we are not getting that from you.

When will Yang Ming start to honor the contracts that they have accepted ,signed, and committed to

David

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Thursday, June 10, 2021 4:48 PM

To: David Reich <dreich@msrf.com>; Jeff Reich <jreich@msrf.com>

Subject: FW: MSRF, Inc (494721) 2021 SC via Yang Ming=6.10.2021

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Thursday, June 10, 2021 3:29 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: MSRF, Inc (494721) 2021 SC via Yang Ming=6.10.2021

Hi Rochi,

Please find YM's Taiwan HQ answers to your below requests.

#1

"If I have to change our SC to premium, what would be our rate?

YM's Taiwan HQ reply:

=>This is not a rate issue but a space/equipment issue. We aren't accepting increases in rates for space.

#2

Do we need to increase the MQC?

YM's Taiwan HQ reply:

=>We don't have the room to accommodate more space/MQC.

#3

If we will agree to amend the SC to premium, can we get an agreement protection space?

YM's Taiwan HQ reply:

=>We are focusing on how to get closer or improve on our MQC space for all BCO customers.

#4

Please find out if we have to pay extra on top of our contracted rate under our SC, how much would that be? And are we going to get a confirm booking?

YM's Taiwan HQ reply:

=>This is not a rate issue but a space/equipment issue. We aren't accepting increases in rates for space.

#5

What is the surge price rate now per 40'/HQ out of Qingdao port to Chicago rail? Please advise. Thank you"

YM's Taiwan HQ reply:

=>FYR, the current market rate level from China Base Ports to Chicago, IL is about USD \$12,800/40'.

Sorry, but based on the overall demand and lack of equipment/space that we are experiencing YM's Taiwan HQ has declined other importers requesting to pay a premium to get space. Right now we are unable to provide sufficient space for every customer due to "THE ALLIANCE" skip sailing schedule

RX_000239

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MSRF_YANG MING_0003587

based on the USWC port congestion (this is reducing overall capacity).

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Paul Goeke – chi sls

Sent: Wednesday, June 9, 2021 2:31 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao (dianeliao@us.yangming.com) <dianeliao@us.yangming.com>

Subject: MSRF, Inc (494721) 2021 SC via Yang Ming=6.9.2021

Hi Rochi,

Thanks for your below email. I will send your message to Yang Ming's Taiwan HQ, but based on the overall demand and lack of equipment/space that we are experiencing YM's Taiwan HQ has declined other importers requesting to pay a premium to get space. Right now we are unable to provide sufficient space for every customer due to "THE ALLIANCE" skip sailing schedule based on the USWC port congestion (this is reducing overall capacity). In addition it's hard to support more space through the end of August even though import accounts would like to pay for a PSS (Peak Season Surcharge). Once I receive Yang Ming's Taiwan HQ reply I will let you know..

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, June 9, 2021 9:00 AM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Subject: 2021 SC

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I,

If I have to change our SC to **premium**, what would be our rate? Do we need to increase the MQC? If we will agree to amend the SC to premium, can we get an agreement protection space? Please find out if we have to pay extra on top of our contracted rate under our SC, how much would that be? And are we going to get a confirm booking? What is the surge price rate now per 40'/HQ out of Qingdao port to Chicago rail?

Please advise. Thank you

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000240

CONFIDENTIAL

MSRF_YANG MING_0003588

To: David Reich[dreich@msrf.com]; Rochi Mirasol[rmirasol@msrf.com]
Cc: Diane Liao - chi sls[dianeliao@us.yangming.com]; Jeff Reich[jreich@msrf.com]; Chris Wimberly - chi mgm/sls[chriswimberly@us.yangming.com]
From: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
Sent: Fri 6/11/2021 7:53:05 PM (UTC)
Subject: MSRF, Inc (494721) 2021 SC via Yang Ming=6.11.2021

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Hi David, Rochi,

Besides Qingdao and Ningbo does MSRF have any other origins that we can push thru the PSW ports? One a week during these tough times will be hard. As I mentioned in my previous email (with attached industry articles) space and equipment is extremely tight in Asia.

I'll continue to request more space for MSRF out of Qingdao and Ningbo from YM's Taiwan HQ and our origin offices, but can't promise anything.

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: David Reich <dreich@msrf.com>

Sent: Friday, June 11, 2021 2:20 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Jeff Reich <jreich@msrf.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>

Subject: RE: MSRF, Inc (494721) 2021 SC via Yang Ming=6.11.2021

Paul,
Get me 1 a week like that and I will try to find a way to work with it.

David

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Friday, June 11, 2021 11:06 AM

To: David Reich <dreich@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Jeff Reich <jreich@msrf.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>

Subject: MSRF, Inc (494721) 2021 SC via Yang Ming=6.11.2021

Hello David and Rochi,

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Commodity	Origin	POD	Destination	20'DC	40'DC
A	BASEPORTS	USLAX/USLGB	LOS ANGELES,CA/LONG BEACH,CA		

Diane Liao and I will continue to send emails to YM's Qingdao and Ningbo offices, but we must manage expectations based on the feedback that we're receiving. If there is a skip sailing, requests will not just slide to the next vessel. Mathematically, it just doesn't work pushing 2X volume on next week's vessel.

We are hoping these skip/voided sailings will end soon as they are in place to try and bring back service schedule integrity to all trade scopes (especially to help port congestion on the USWC). From what we're seeing, "THE ALLIANCE" (YM's vessel sharing partnership with Hapag Lloyd, ONE and Hyundai) has more skip sailings in place than the other shipping alliances which is further compounding things in the short term for us and our support of our customers (causing vessel capacity issues). Please keep pushing anything/everything to YM's origin offices and we will keep pushing.

PS:

Besides Qingdao and Ningbo is there any other origins that we can push thru the PSW ports for MSRF?

Best Regards,

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

RX_000241

To: Rochi Mirasol[rmirasol@msrf.com]
Cc: HOU SAT EXP[HOUSATEXP@us.yangming.com]; hxdoor[hxdoor@us.yangming.com]
From: Dominique Knowlton - hou exp[DominiqueKnowlton@us.yangming.com]
Sent: Wed 5/26/2021 8:01:53 PM (UTC)
Subject: RE: [RESEND] WO from Yang Ming - ETSA2100174 [YHU712953 - HYUNDAI DRIVE-040W-EC2115W]

Good afternoon,
Kindly confirm if the subject booking will be rolled or cancelled, per trucker product is not ready at this time.
Please be advised that Houston Service Center (HSC) will be closed on Monday, May 31st, 2021, in observance of Memorial Day. We will resume normal business hours on Tuesday June 1st, 2021.
Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result , we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Dominique Knowlton
Export Customer Service
YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | 3250 BRIARPARK DRIVE, SUITE 201 | HOUSTON TX 77042
| 281.295.8600 (Main) 281.295.9162 (East Coast Export Group) | 281.295.9108 (Direct) | 281-295-8555 (Fax)
Please consider the environment before printing this email.



From: Kleyny Vasquez - hou exp ipi <KleynyVasquez@us.yangming.com> **On Behalf Of** hxdoor
Sent: Wednesday, May 26, 2021 10:58 AM
To: hxdoor <hxdoor@us.yangming.com>; HOU SAT EXP <HOUSATEXP@us.yangming.com>
Subject: RE: [RESEND] WO from Yang Ming - ETSA2100174 [YHU712953 - HYUNDAI DRIVE-040W-EC2115W]
Hello booking team,
This product will be ready on 06/09. Please advise if you will roll or cancel the booking.
Best regards,

Kleyny Vasquez | YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | **EXPORT CUSTOMER SERVICE – IPI** | 3250 Briarpark Dr., Ste. 201
Houston, TX 77042 281.295.8606 (Main) (Direct) | 281-295-8615

From: Monique Williams <monique@atsinc.net>
Sent: Wednesday, May 26, 2021 10:51 AM
To: hxdoor <hxdoor@us.yangming.com>; Road <road@atsinc.net>
Subject: Re: [RESEND] WO from Yang Ming - ETSA2100174 [YHU712953 - HYUNDAI DRIVE-040W-EC2115W]

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Good afternoon Kleyny,,
Per the attached email the shipper is advising this will not be ready until 6/9. Please advise if this booking will be cancelled or rolled.
Thanks,

Monique Williams

ATS Logistics, Inc.
Intermodal Road Coordinator
Express Customer Service
D.L. 843-746-0064
Road@atsinc.net

My Hours Are 07:00 am - 04:00 pm.

RX_000242

Effective 01-01-18

- Please note all work orders must be confirmed as accepted/received by ATS, ATS will not be responsible for Demurrage or Per Diem for any container that is not confirmed by ATS*
- Please note ATS Intermodal is not responsible to obtain Last Free Days for containers, this must be provided, ATS will not be responsible for any Demurrage on a container where the LFD is not provided*
- Please note ALL RELEASES must be in place within 24 hours of Last Free Day at the port in order to be pulled out before LFD*
- Please visit www.atsinc.net/contracts.html for updated accessorial rates and FSC Table*

From: Kleyny Vasquez <HXdoo@us.yangming.com>

Sent: Wednesday, May 26, 2021 9:56 AM

To: Road <road@atsinc.net>; hxdoo@us.yangming.com <hxdoo@us.yangming.com>

Subject: [RESEND] WO from Yang Ming - ETSA2100174 [YHU712953 - HYUNDAI DRIVE-040W-EC2115W]

RX_000243

To: Rochi Mirasol[rmirasol@msrf.com]
From: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
Sent: Wed 5/26/2021 3:50:52 AM (UTC)
Subject: Yantian Terminal reports new COVID-19 cases related to freighter operator=MSRF, Inc.=5.25.2021

To Rochi,

Sorry for this late message. FYI, we have received information that there are several confirmed COVID-19 cases at the Yantian terminal today (5/25/2021). The Shenzhen government has taken immediate action to lock down communities where they have people who work in Yantian area. Additionally, the Yantian terminal just announced they will be stopping all operations effective May 25th, 2021 22:00. According to the Yantian terminal, they should be able to resume normal operations on 5/28/2021; however, it is entirely dependent on any additional confirmed cases tomorrow (5/26/2021).

The possible impacts on freight will be as follows:

1. No drivers and truck availability to pick up empties or return loaded cargo.
 2. Vessels may stop calling on Yantian ports, which will cause prior bookings placed to be cancelled by the carriers.
- Below are some articles that I found on the internet regarding this subject for your reference.

<https://www.google.com/amp/s/www.hellenicshippingnews.com/yantian-port-reports-a-new-covid-19-case-related-to-the-freighter-operator-case/amp/>

<https://lloydslist.maritimeintelligence.informa.com/LL1136900/Yantian-Port-halts-entry-for-export-containers>

http://www.xinhuanet.com/english/2021-05/26/c_139969346.htm

If we receive any additional information we will let you know.

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

 **YANG MING**

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

RX_000244

To: Emily Liang - hou exp[emilyliang@us.yangming.com]; Rochi Mirasol[rmirasol@msrf.com];
hxdoor[hxdoor@us.yangming.com]
From: Kleyny Vasquez - hou exp ipi[KleynyVasquez@us.yangming.com]
Sent: Tue 5/11/2021 7:42:08 PM (UTC)
Subject: RE: CANCELLED : YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Hello,
Noted with thanks.
Best regards,

 Kleyny Vasquez | YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | EXPORT CUSTOMER SERVICE – IPI | 3250 Briarpark Dr., Ste. 201
Houston, TX 77042 281.295.8606 (Main) (Direct) | 281-295-8615

From: Emily Liang - hou exp <emilyliang@us.yangming.com>
Sent: Tuesday, May 11, 2021 2:28 PM
To: Rochi Mirasol <rmirasol@msrf.com>; hxdoor <hxdoor@us.yangming.com>
Subject: CANCELLED : YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT
Hi Rochi,
Booking is cancelled.
**

Hi door team,
Please cancel trucker's W/O. Thanks
Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.
Best Regards

 Emily Liang | YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW 3250 Briarpark Drive, Ste 201 Houston, TX 77042 | 281.295.8600 (Main) MWE/PNW/NCA BOOKING 281-295-9164 281-295-8651 (Direct)
 Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Tuesday, May 11, 2021 1:22 PM
To: Emily Liang - hou exp <emilyliang@us.yangming.com>; hxdoor <hxdoor@us.yangming.com>
Subject: RE: SCHEDULE : YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Then we will have a problem because the cargo is not ready to load until the 19th. We are still waiting for the FDA testing report and we cannot load until the cargo is 100% pass. I'll have to cancel this booking then.

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Emily Liang - hou exp <emilyliang@us.yangming.com>
Sent: Tuesday, May 11, 2021 12:49 PM
To: Rochi Mirasol <rmirasol@msrf.com>; hxdoor <hxdoor@us.yangming.com>
Subject: RE: SCHEDULE : YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT
Hi Rochi,
CY cut off is 05/18.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.
Best Regards

 Emily Liang | YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW 3250 Briarpark Drive, Ste 201 Houston, TX 77042 | 281.295.8600 (Main) MWE/PNW/NCA BOOKING 281-295-9164 281-295-8651 (Direct)
 Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Tuesday, May 11, 2021 12:11 PM
To: Emily Liang - hou exp <emilyliang@us.yangming.com>; hxdoor <hxdoor@us.yangming.com>

RX_000245

Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: SCHEDULE : YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Emily,

What is the cut-off date at the rail? The cargo won't be ready to load until the 19th?

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Emily Liang - hou exp <emilyliang@us.yangming.com>

Sent: Tuesday, May 11, 2021 12:05 PM

To: Rochi Mirasol <rmirasol@msrf.com>; hxdor <hxdor@us.yangming.com>

Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: SCHEDULE : YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Hi Rochi,

Adding YM door team to check trucker for schedule. CURRENT ERD 05/17, CUT OFF 05/18.

New Chicago door booking is suspend but not the booking that was made.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Best Regards

 Emily Liang YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW **3250 Briarpark Drive, Ste 201 Houston, TX 77042** | 281.295.8600 (Main) MWE/PNW/NCA BOOKING 281-295-9164 281-295-8651 (Direct)

 Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, May 11, 2021 12:01 PM

To: Emily Liang - hou exp <emilyliang@us.yangming.com>

Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Emily,

Can you please re-confirm this booking. You mention last week that you have a truck issue here in Chicago.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Emily Liang - hou exp <emilyliang@us.yangming.com>

Sent: Monday, April 26, 2021 9:12 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: RE: YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Hi Rochi,

New booking YCH848828 sent. Subject to equipment availability.

Please review booking if the info. is correct.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Best Regards

 Emily Liang YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW **3250 Briarpark Drive, Ste 201 Houston, TX 77042** | 281.295.8600 (Main) MWE/PNW/NCA BOOKING 281-295-9164 281-295-8651 (Direct)

 Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Thursday, April 22, 2021 4:28 PM

To: Emily Liang - hou exp <emilyliang@us.yangming.com>

Subject: YCH848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Emillyyyyyyy – I was asking Jeff Kyo of your last name because I lost my old phone contacts. Call me when you are not

RX_000246

busy. I am here in the office.
I will talk to Paul our sales guy to add Lockport, IL.

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Emily Liang - hou exp <emilyliang@us.yangming.com>

Sent: Thursday, April 22, 2021 4:26 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: RE: 848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Hi Rochi,

It is me. I was thinking Rochi should be the one I know. How are you doing? Haven't talked to you for few years.

I don't see you have LOCKPORT, IL door rate. Booking can not be completed. Thanks

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Best Regards

 Emily Liang YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW **3250 Briarpark Drive, Ste 201 Houston, TX 77042** | 281.295.8600 (Main) MWE/PNW/NCA BOOKING 281-295-9164 281-295-8651 (Direct)

 Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Thursday, April 22, 2021 3:33 PM

To: Emily Liang - hou exp <emilyliang@us.yangming.com>

Subject: RE: 848828 : 1x20 - Lockport, IL - PO # 70025029 / MSRFIN61 uscbj/ USLOT

Emily – are you the Emily from Round the World in New York back in the late 90's?

Anyway, please reduce this booking to 1x20' and the loading will be in Lockport, IL instead of Countryside. Please see below info:

Shipper Ref #: PO # 70025029

Loading: Countryside, IL

Commodity: 6.5 oz BBQ Sauce

Total pallets: 7

Total case: 1,200 cases

Container size: 1x20'

Approx Gross Weight: 9,756 lbs / 4426 Kgs

Cargo ready date: between 18th-21st

Door pick up information:

RJW Lockport Warehouse

14908 S. Gougar Rd.

Lockport, IL 60441

Please schedule appointment at Sokol.solo@RJWGroup.com

Contact Info: Dylan W. 630.343.1513; Celia M. 630.343.1558

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Emily Liang - hou exp <emilyliang@us.yangming.com>

Sent: Thursday, April 22, 2021 11:26 AM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: FW: 848828 : 1x40'HQ - Countryside, IL - PO # 70025165/70025003/70025029 / MSRFIN61 uscbj

Hi Rochi,

Please advise total cargo weight.

First available vsl. PS6118W YM TARGET ETD 05/31, ETA 06/18 with ERD 05/17, CUT OFF 05/18. Please advise if it is OK for you.

RX_000247

CONFIDENTIAL

MSRF_YANG MING_0004033

Thanks

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Best Regards

 Emily Liang YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | EXPORT CUSTOMER SERVICE – GUL/MWE/NCA/PNW **3250 Briarpark Drive, Ste 201 Houston, TX 77042** | 281.295.8600 (Main) MWE/PNW/NCA BOOKING 281-295-9164 281-295-8651 (Direct)

 Please consider the environment before printing this email.

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, April 21, 2021 6:31 PM

To: HOU SAT EXP <HOUSATEXP@us.yangming.com>

Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: 1x40'HQ - Countryside, IL - PO # 70025165/70025003/70025029

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Export Team - Can you please book 1x40'HQ from Countryside, IL (DR) to Qingdao, China (CY). SC #: **494721**. We need the container to be loaded on the 2nd week of May (week of 5/9). Please find the first available vessel. Thank you

Shipper Ref #: PO # PO # 70025165/70025003/70025029

Loading: Countryside, IL

Commodity: 6.5/18 oz's BBQ Sauce

Total pallets: 10

Total case: 1,590 cases

Container size: 1x40'HQ

Cargo ready date: week of May 9th

Cnee will be:

Qingdao Gift Packers Ltd

No. 26 Shandong Road, Beiguan Industrial Park

Jiaozhou, Qingdao, Shandong, China

Attn: Gary Gao or Lisa Wang

Email: gary@qingdaogiftpackers.com.cn / Lisawang@qingdaogiftpackers.com.cn

Tel: 0532-8229-9937 / Fax:0532-8229-0292

Pick up address:

Sokol and Company

5315 Dansher Road

Countryside, IL 60525

Schedule appointment at logistics@solofoods.com or call 708-579-6824 Vic or Jim

Please add our customs broker on the booking

Schmidt Pritchard & Co., Inc.

Attn: Bill Helms

Email: BILLH@SCHMIDTPRITCHARD.COM

9801 W. Lawrence Ave

Schiller Park, IL 60176

T: (847)671-5134

F: (847)671-1894

Rochi Mirasol

CONFIDENTIAL

RX_000248

MSRF_YANG MING_0004034

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

RX_000249

To: HOU SAT EXP[HOU SAT EXP@us.yangming.com]; hxdoor[hxdoor@us.yangming.com]
Cc: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]; Diane Liao - chi sls[dianeliao@us.yangming.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Tue 5/4/2021 6:33:56 PM (UTC)
Subject: RE: YMA Booking Confirmation - YHU712953

The schedule is perfect. Thanks

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave.|Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

-----Original Message-----
From: Caroline Andries - hou exp <CarolineAndries@us.yangming.com> On Behalf Of HOU SAT EXP
Sent: Tuesday, May 4, 2021 11:59 AM
To: Rochi Mirasol <rmirasol@msrf.com>; hxdoor <hxdoor@us.yangming.com>
Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; HOU SAT EXP <HOUSATEXP@us.yangming.com>
Subject: RE: YMA Booking Confirmation - YHU712953

Dear Rochi,

YHU712953 rolled to next available vessel c/o 6/3.
A revised b/c has been sent.

Dear Door team,

Please update WO and inform trucker.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Thank You
Best Regards,
Caroline Andries

Please note Yang Ming America HSC East Coast Booking hours are 7:30am - 4:30pm CST / 8:30am - 5:30pm EST.
Any email or EDI requests after 4pm CST/ 5pm EST will be reviewed and handled next business day.

YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER| 3250 BRIARPARK DRIVE, SUITE 201 | HOUSTON TX 77042
281.295.8600 (Main) 281.295.9162 (East Coast Export Group) 281.295.9176 (Direct)
Email: HOUSATEXP@us.yangming.com
Web: www.yangming.com

-----Original Message-----

CONFIDENTIAL

RX_000250

MSRF_YANG MING_0004139

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Tuesday, May 4, 2021 11:26 AM
To: HOU SAT EXP <HOUSATEXP@us.yangming.com>
Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: YMA Booking Confirmation - YHU712953

OK, I'll take this vessel. Please revise the booking.

Thank you

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave.|Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

-----Original Message-----
From: Caroline Andries - hou exp <CarolineAndries@us.yangming.com> On Behalf Of HOU SAT EXP
Sent: Tuesday, May 4, 2021 11:17 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: HOU SAT EXP <HOUSATEXP@us.yangming.com>
Subject: RE: YMA Booking Confirmation - YHU712953

Dear Rochi,

The first available is EC2115W ERD 06/02 C/O 06/04 ETD 06/08 ETA 07/03.
Please advise.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Thank You
Best Regards,
Caroline Andries

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YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER| 3250 BRIARPARK DRIVE, SUITE 201 | HOUSTON TX 77042
281.295.8600 (Main) 281.295.9162 (East Coast Export Group) 281.295.9176 (Direct)
Email: HOUSATEXP@us.yangming.com
Web: www.yangming.com

-----Original Message-----
From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Tuesday, May 4, 2021 10:10 AM
To: HOU SAT EXP <HOUSATEXP@us.yangming.com>
Subject: FW: YMA Booking Confirmation - YHU712953

RX_000251

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what is the next vessel for this booking? The cargo is not ready to load until the 27th. Please check and let me know.

Thank you

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave.|Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

-----Original Message-----

From: Janet Yao <>
Sent: Wednesday, April 21, 2021 3:32 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: YMA Booking Confirmation - YHU712953

Dear Customer,

Attached YMA Booking Confirmation - YHU712953 for your record.

To: HOU SAT EXP[HOU SAT EXP@us.yangming.com]; Rochi Mirasol[rmirasol@msrf.com]
From: Marlyn Mazariego - hou exp ipi[MarlynMazariego@us.yangming.com]
Sent: Wed 4/28/2021 4:28:33 PM (UTC)
Subject: Re: 2nd REMINDER RE: 70025166/70025167/70025135 - 1x20' - Fort Mills, SC / Qingdao, China

Good day

WO cancelled.

Thanks, HX Door Team

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business

From: Caroline Andries - hou exp <CarolineAndries@us.yangming.com> on behalf of HOU SAT EXP
<HOUSATEXP@us.yangming.com>
Sent: Wednesday, April 28, 2021 10:18 AM
To: Rochi Mirasol <rmirasol@msrf.com>; hxdoor <hxdoor@us.yangming.com>
Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; HOU SAT EXP
<HOUSATEXP@us.yangming.com>
Subject: RE: 2nd REMINDER RE: 70025166/70025167/70025135 - 1x20' - Fort Mills, SC / Qingdao, China

Dear Rochi,
YHU713552 cancelled.

Dear Door team,
Please cancel WO.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Thank You
Best Regards,
Caroline Andries

Please note Yang Ming America HSC East Coast Booking hours are 7:30am – 4:30pm CST / 8:30am – 5:30pm EST.
Any email or EDI requests after 4pm CST/ 5pm EST will be reviewed and handled next business day.

 YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | 3250 BRIARPARK DRIVE, SUITE 201 | HOUSTON TX 77042
281.295.8600 (Main) 281.295.9162 (East Coast Export Group) 281.295.9176 (Direct)
Email: HOUSATEXP@us.yangming.com
Web: www.yangming.com



From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Wednesday, April 28, 2021 10:03 AM
To: HOU SAT EXP <HOUSATEXP@us.yangming.com>; hxdoor <hxdoor@us.yangming.com>
Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: 2nd REMINDER RE: 70025166/70025167/70025135 - 1x20' - Fort Mills, SC / Qingdao, China

Please cancel this booking. Cargo cannot sit at the manufacturers warehouse for 3 weeks to be able to load it in the container for the first available vessel from CHS on June 24th

Rochi Mirasol
MSRF, Inc.

RX_000253

CONFIDENTIAL

MSRF_YANG MING_0004167

F: 847-671-1894

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Janet Yao - hou exp <JanetYao@us.yangming.com> **On Behalf Of** HOU SAT EXP

Sent: Wednesday, April 21, 2021 8:04 AM

To: Rochi Mirasol <rmirasol@msrf.com>; hxdor <hxdor@us.yangming.com>

Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Bill Helms <billh@schmidtpritchard.com>; HOU SAT EXP <HOUSATEXP@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: 70025123/70025124

Importance: High

Dear Rochi,

We had 2 bkg agents made duplicated bkg. We will cancel YHU712831.

Please kindly keep YHU712953.

Dear Door,

Please be advised YHU712831 has been canceled.



Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via E-mail. We are committed to handling your responses in a timely manner. Thank you for your business.

Thank You

Best Regards,

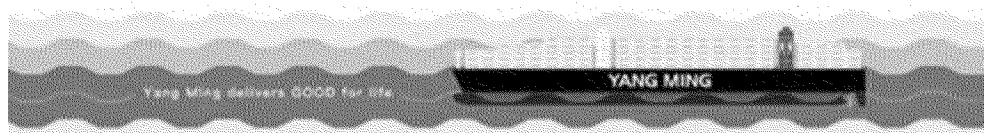
Janet Yao

 YANG MING (AMERICA) CORP | HOUSTON SERVICE CENTER | 3250 BRIARPARK DRIVE, SUITE 201 | HOUSTON TX 77042

281.295.8600 (Main) 281.295.9162 (East Coast Export Group) 281.295.9116 (Direct)

Email: HOUSATEXP@us.yangming.com

Web: www.yangming.com



From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, April 20, 2021 4:58 PM

To: HOU SAT EXP <HOUSATEXP@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Dominique Knowlton - hou exp <DominiqueKnowlton@us.yangming.com>; HOU SAT EXP <HOUSATEXP@us.yangming.com>

Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Bill Helms <billh@schmidtpritchard.com>

Subject: 70025123/70025124

I received 2 bookings on for Hyundai Victory EC2112W. please advise which one is the correct one.

HU712831

YHU712953

Please add our forwarder.

SCHMIDT PRITCHARD & CO INC

9801 W LAWRENCE AVE

SCHILLER PARK, IL 60176

Attn: Bill Helms

Email: billh@schmidtpritchard.com

P: 847-671-5134

F: 847-671-1894

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rochi Mirasol

RX_000254

CONFIDENTIAL

MSRF_YANG MING_0004438

To: Diane Liao - chi sls[dianeliao@us.yangming.com]
Cc: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Fri 4/16/2021 2:19:51 PM (UTC)
Subject: RE: Boyue - Ningbo for MSRF (494721) & Yang Ming=4.15.2021

Alsip, IL - door
Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Diane Liao - chi sls <dianeliao@us.yangming.com>
Sent: Friday, April 16, 2021 9:06 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: Boyue - Ningbo for MSRF (494721) & Yang Ming=4.15.2021

Rochi,
Please also provide the final destination.
Thanks & Best Regards,
Diane

 BUSINESS SUPPORT TEAM MANAGER DIANE LIAO | YANG MING (AMERICA) CORP | 3250 Briarpark Drive, Suite 201, Houston, TX 77042 | 281.295.9147 (DIRECT); 281-929-0478 (e-Fax)
 Please consider the environment before printing this email

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Friday, April 16, 2021 9:04 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: Boyue - Ningbo for MSRF (494721) & Yang Ming=4.15.2021

He just needs 1x40'. Can you please help
Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Thursday, April 15, 2021 6:28 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: Boyue - Ningbo for MSRF (494721) & Yang Ming=4.15.2021

Hi Rochi,
Thanks for your below email. Can you please advise the final destination, volume and equipment type (20, 40', 40'HC) that your below vendor is looking to ship in May?
We look forward to your reply so that we can discuss with YM's Ningbo and Taiwan HQ.
Best Regards,

Paul Goeke
Account Manager (Sales) - Chicago Region

 **YANG MING**
Yang Ming (America) Corporation
PaulGoeke@us.yangming.com
(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Thursday, April 15, 2021 9:54 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: Boyue - Ningbo

CAUTION: This email originated from outside the organization. Do not click links or open attachments

RX_000255

Paul/Diane,

Can you please help us out. This shipper is going to ship in May and he wanted to start the booking process and according to your Ningbo office, you do not have a shipping space plan?

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rubio <sales10@jiasheng-china.com>

Sent: Wednesday, April 14, 2021 10:21 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Claire Danieleski <cdanieleski@msrf.com>; Jeff Reich <jreich@msrf.com>

Subject: Re:RE: Re:[External] MSRF 检测 (Quotation_Q000472732)

Hello Rochi,

I contact with Evergreen and YangMing.

Yangming has no shipping space plan for May.

Evergreen said we can book, but no confirm space. We can only get confirm space until they get permission from Evergreen in USA.

Please help contact Evergreen in USA, ask them to send an email to Evergreen in China (Ningbo port).

Thanks&best regards

Rubio

Taizhou Huangyan Boyue Plastic and Mould Co.Ltd.

No.95 Shiyuan Road NanCheng Huangyan District Taizhou City, Zhejiang Province, China, 318020

Tel: 0086-576-84188368

Fax: 0086-576-84192080

Mobile : 0086-13456682228

Whatsapp: 008613456682228

Website: www.jiasheng-china.com

E-mail: sales10@jiasheng-china.com

From: "Rochi Mirasol <rmirasol@msrf.com>"

To: "Rubio <sales10@jiasheng-china.com>"

CC: "Claire Danieleski <cdanieleski@msrf.com>", "Jeff Reich <jreich@msrf.com>"

Sent: 2021-04-15 03:50

Subject: RE: Re:[External] MSRF 检测 (Quotation_Q000472732)

Hello Rubio,

Here's the 2 carrier SC effective May 1st. You can start your booking process for both carrier, since your ship date is May and see which one will give you the confirm space.

Evergreen – SC85977

YangMing – SC 494721

Attached is YangMing booking contact information

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000256

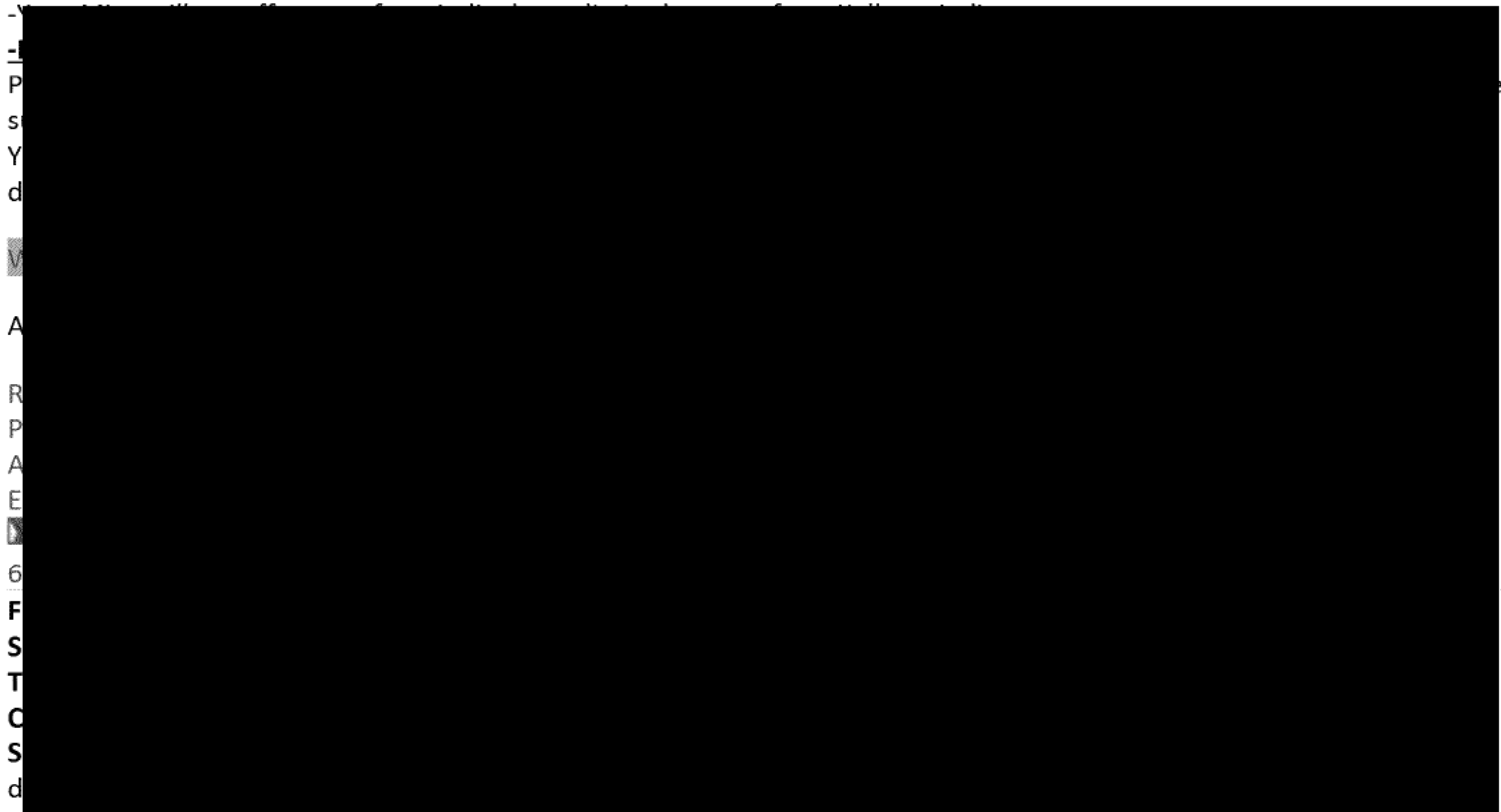
To: Rochi Mirasol[rmirasol@msrf.com]
Cc: Diane Liao - chi sls[dianeliao@us.yangming.com]; Chris Wimberly - chi mgm/sls[chrswimberly@us.yangming.com]
From: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]

[REDACTED]

[REDACTED]

[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

[REDACTED]



Hi Paul,
Attached, please find our counter offer for each lane. Please review and send it back to me by next Friday, the 26th your counter offer.

Thank you
Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rochi Mirasol
Sent: Thursday, March 18, 2021 11:11 AM
To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>
Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>; Chris Wimberly – chi mgm/sls <chriswimberly@us.yangming.com>
Subject: RE: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021–2022 SC bid=YM's rates included CNT for Chicago dooe destinations=Sent 3.18.2021

OK – thanks Paul
Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>
Sent: Thursday, March 18, 2021 11:09 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>; Chris Wimberly – chi mgm/sls <chriswimberly@us.yangming.com>
Subject: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021–2022 SC bid=YM's rates included CNT for Chicago dooe destinations=Sent 3.18.2021

Hi Rochi,
Happy Thursday...
Please find the message that I received from Yang Ming's Taiwan HQ regarding your below question.
–YM's Taiwan HQ wrote:
"It's confirmed that we had used their CNT (Customer Nominated Trucker) to quote for Alsip, Bedford Park, Des Plaines and Itasca, IL via PNW gate port."

Regards,
Paul Goeke
Account Manager (Sales)
Email: paulgoeke@us.yangming.com

RX_000258

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY, SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Paul Goeke – chi sls

Sent: Wednesday, March 17, 2021 5:11 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>; Chris Wimberly – chi mgm/sls <chriswimberly@us.yangming.com>

Subject: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021–2022 SC bid=ReSent 3.17.2021

Hi Rochi,

Happy Wednesday..

As I mentioned in my original email on February 24th that our rates included:

(Yang Ming's General TPEB (Asia to U.S.) rates and terms offered)

*Preferred trucker (Forward Intermodal) will be utilized as indicated in the bid for Chicago area destinations.

I will send a message to Yang Ming's Taiwan HQ right now and reconfirm that our offer included Forward Intermodal's rates for door Alsip, door Bedford Park, door Des Plaines and door Itasca, IL...

Once I receive some news I will let you know..

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY, SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, March 17, 2021 1:03 PM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>; Chris Wimberly – chi mgm/sls <chriswimberly@us.yangming.com>

Subject: RE: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021–2022 SC bid=Sent 2.24.2021

Paul

On the import side: the door move to Alsip, Bedford Park, Des Plaines and Itasca - are these rates base on your in-house trucker? We have a preferred trucker for these specific 4 locations

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rochi Mirasol

Sent: Wednesday, February 24, 2021 2:25 PM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>; Chris Wimberly – chi mgm/sls <chriswimberly@us.yangming.com>

Subject: RE: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021–2022 SC bid=Sent 2.24.2021

I will review and hopefully this year will be the lucky one for you, Paul 😊

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Sent: Wednesday, February 24, 2021 1:37 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>; Chris Wimberly – chi mgm/sls <chriswimberly@us.yangming.com>

Subject: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021–2022 SC bid=Sent 2.24.2021

Hi Rochi,

Happy Wednesday. I hope you're doing well and staying healthy..

Attached please find Yang Ming's 1st Round rates for MSRF's 2021-2022 bid. Also, below is a brief recap of our general rate and term offer for your reference.

-Yang Ming's General TPEB (Asia to U.S.) rates and terms offered for MSRF's 2021/2022 Round #1:

-USWC: \$3200/40'

-USEC: \$4200/40'

-IPI: CHI \$5200/40' via LAX/LGB, \$5100/40' via TIW/SEA

-Premium added on top of Door Level to cover the cost of Chassis

-Ocean Freight inclusive of GRI/PSS/BK/LR/CAF/DDC/ACC/IJ/LB, but rates are subject to CYRC/DF/SJ/SQ/PA/Other (new) surcharges per YML governing tariff.

GRI: General Rate Increase

PSS: Peak Season Surcharge

BK: Bunker Fuel

LR: Low Sulphur

CAF: Currency Adjustment Factor

DDC: Destination Deliver Charge

ACC: Alameda Corridor Charge

IJ: Intermodal Door Delivery Surcharge

LB: Low Sulphur (For China, Taiwan and Hong Kong)

Rates are subject to CYRC/DF/SJ/SQ/PA/Other (new) surcharges per YML's governing tariff

-YML bunker base, BK/LR will be floating per YML's governing tariff and to be reviewed on a quarterly basis

BK: Will be backed out per below from all-in rates and float quarterly per carrier's tariff

LR: Will be backed out per below from all-in rates and float quarterly per carrier's tariff

2021 Q1

BK/LR

2021 Q1 BK/LR		20DC	40DC	40HQ	45HQ
BK	USWC	61	122	122	122
	USEC	118	236	236	236
LR	USWC	3	5	5	5
	USEC	0	0	0	0

CYRC: CY Receiving Fee: Prepaid at Origin

DF: Documentation Fee: Prepaid at Origin

SJ: Seal Fee: Prepaid at Origin

SQ: Security Manifest (SMDC)= USD \$30 per BL

PA: Panama Canal Freshwater Surcharge= \$15/20', \$30/40', \$30/40'HC, \$30/40'HC

*Chassis will not be provided for CY moves.

*Chassis: 10 Calendar Days for door move, per Yang Ming's Tariff after Free Time Expires.

*Preferred trucker (Forward Intermodal) will be utilized as indicated in the bid for Chicago area destinations.

Origin Free Time: Detention & Demurrage Free Time at POL will be per YML's tariff.

Destination Free Time: Detention Free Time will be 10 calendar days at POD; Per Yang Ming's Tariff after Free Time Expires.

Demurrage Free Time will be per YML's tariff.

-Yang Ming will not offer rates from India due to limited sources from Kolkata, India...

-For the TPWB Export Trade:

Please see attachment for TPWB offer with 1st round rates. Yang Ming's rates are all inclusive including DTHC where applicable, but subject to DDF and ODF (Origin Doc Fee) of \$60 per BL.

Yang Ming agrees to offer 15 calendar days of Detention Free Time at destination (China). For Hong Kong we agree to 5 calendar days of Demurrage Free Time and 10 calendar days of Detention.

Please provide your feedback after reviewing all rates as Yang Ming would love to move MSRF's business in 2021/2022.

Any questions please let me know.

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY, SUITE 330 | DOWNERS GROVE, IL 60515

630.335.4827 (Mobile)

From: Paul Goeke – chi sls

Sent: Tuesday, February 23, 2021 5:22 PM

To: 'Rochi Mirasol' <rmirasol@msrf.com>

CONFIDENTIAL

RX_000260

MSRF_YANG MING_0005121

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF – 2021–2022 SC – YANG MING

Hi Rochi,

I'm still waiting for YML's pricing department to offer rates. I hope to receive by your due date this Friday, February 26th.

Once I receive our new rates I will forward to your attention..

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY,SUITE 330 | DOWNERS GROVE, IL 60515

630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, February 23, 2021 3:10 PM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF – 2021–2022 SC – YANG MING

Paul,

Do you have this ready?

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rochi Mirasol

Sent: Wednesday, February 10, 2021 2:06 PM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF – 2021–2022 SC – YANG MING

See below response in “red”

From: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Sent: Wednesday, February 10, 2021 12:41 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>

Subject: FW: MSRF – 2021–2022 SC – YANG MING

Hi Rochi,

Thanks for your below email. I have a few questions if you can answer them before I send MSRF's 2021–22 RFQ to Yang Ming's Taiwan HQ?

#1

What is MSRF's total MQC for 2021–22 in TEU's? we can't forecast right now

#2

What are you willing to sign for a new contract in TEU's with Yang Ming in 2021–22? 100

#3

I understand what PSS stands (Peak Season Surcharge), but what does PSC stand for? – peak season charge

#4 – you can use/quote your own in-house trucker as they will not give this list until the season starts.

****For all “DOOR” Delivery outside Chicago area (direct delivery), if possible, please use the inhouse preferred trucker of the customer to avoid “drop/pull” charges.**

1. **Big Lots – OH, OK, PA, CA, AL, NJ**
2. **Christmas Tree Shop – MA**
3. **Given's – CA**

Can you please supply the above customer's inhouse preferred trucker information as Yang Ming doesn't work directly with these importers?

I look forward to your soonest/positive reply to the above questions. If we have any further questions we will let you know..

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY,SUITE 330 | DOWNERS GROVE, IL 60515

630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, February 10, 2021 10:22 AM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Subject: FW: MSRF – 2021–2022 SC – HMM

RX_000261

I am sending you this updated lane. Please send your quote back on or before 2/26

Attached, please find MSRF preliminary bid spreadsheet 2021-2022 SC. Rates should be “**all inclusive**”. The spreadsheet is detailed of which origin to which destination. It is also noted, which one is a door move (DR) and which one are the port/rail only (CY). We “**requires**” 5 days demurrage and 10 days Detention to all destination ports. Please review

**I am open for suggestions with regards to additional charges (if needed) so we can secure a confirm space slot and container’s availability. But, as an FYI – below are MSRF requirements for the SC

MSRF contract requirements are:

1. NO – GRI
2. NO – PSS
3. NO - DTHC
4. NO – PSC
5. NO – DDC
6. Chassis charge is no more than \$60.00 (?)
7. Detention charges are “negotiable” (?)

****For all “DOOR” Delivery outside Chicago area (direct delivery), if possible, please use the inhouse preferred trucker of the customer to avoid “drop/pull” charges.**

1. **Big Lots – OH, OK, PA, CA, AL, NJ**
2. **Christmas Tree Shop – MA**
3. **Given’s – CA**

Free Time:

Origin: Demurrage 7 days & Detention 7 days

Destination: Demurrage 5 days & Detention 10 days (ALL Big Lots DC and Burlington Coat LGB/LAX)

For Alsip, Bedford Park, Des Plaines and Itasca, we have 2 truckers that you can partner with, Central State and Northshore. Please call both truckers to get your best rate for the door move for the Chicagoland area. Please make sure that door move is “all inclusive” as well of tolls & FSC. **We prefer Central State Trucking (aka: ForwardAir).**

Attn: Victor

North Shore Logistics

PH 708-496-8222

FX 708-496-8449

Email: noshwork@gmail.com

Attn: Michael S Oliver

C S T

O: 630.590.9786 | C: 708.828.0687

moliver@cstruck.com | www.CSTruck.com

Please note:

1. Heavy Import Lane (Mid-July to October)

Dest: Alsip, IL / Origin: Qingdao, China

2. Export Destination: Qingdao, China
3. Whole year shipment

a. **From** Kolkata, India to multiple US destinations

4. **All-inclusive charges (USA inbound) should be broken down one by one on “foot notes”.**
5. All origin charges (shipper) must be on foot notes

RX_000262

Commodities: DRY Cargo / FAK

Dry Foods, Cocoa, Coffee, Tea, , Cookies, Candies, Chocolates, drink mixes

Spice, oil, vinegar, BBQ/Hot Sauce

Giftware's, baskets, decorative items, bamboo ware, wicker products, tea wood chest

Housewares: ceramic, stoneware, porcelain, glassware, woodenware

silicon, plastic ware, toys, tin plate, Tea press

packing material - ribbons, cardboard, papers, plastic

I look forward for a 2021-2022 partnership

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000263

To: Paul Goeke - chi sls [PaulGoeke@us.yangming.com]
Cc: Diane Liao - chi sls [dianeliao@us.yangming.com]; Chris Wimberly - chi mgm/sls [chriswimberly@us.yangming.com]
From: Rochi Mirasol [/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Thur 3/18/2021 4:44:37 PM (UTC)
Subject: RE: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021-2022 SC bid=YM's rates included CNT for Chicago dooe destinations=Sent 3.18.2021
2021-2022 SC Bid.xlsx

Hi Paul,
 Attached, please find our counter offer for each lane. Please review and send it back to me by next Friday, the 26th your counter offer.

Thank you
Rochi Mirasol

MSRF, Inc.
 3319 N. Elston Ave. | Chicago, IL 60618
 T: (773)227-1115 x310 | F: (773)227-2031
 Email: Rmirasol@msrf.com

From: Rochi Mirasol
Sent: Thursday, March 18, 2021 11:11 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>
Subject: RE: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021-2022 SC bid=YM's rates included CNT for Chicago dooe destinations=Sent 3.18.2021

OK – thanks Paul
Rochi Mirasol

MSRF, Inc.
 3319 N. Elston Ave. | Chicago, IL 60618
 T: (773)227-1115 x310 | F: (773)227-2031
 Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Thursday, March 18, 2021 11:09 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>
Subject: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021-2022 SC bid=YM's rates included CNT for Chicago dooe destinations=Sent 3.18.2021

Hi Rochi,
 Happy Thursday...
 Please find the message that I received from Yang Ming's Taiwan HQ regarding your below question.
 -YM's Taiwan HQ wrote:
 "It's confirmed that we had used their CNT (Customer Nominated Trucker) to quote for Alsip, Bedford Park, Des Plaines and Itasca, IL via PNW gate port."

Regards,
 Paul Goeke
 Account Manager (Sales)
 Email: paulgoeke@us.yangming.com

 YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY, SUITE 330 | DOWNERS GROVE, IL 60515
 630.335.4827 (Mobile)

From: Paul Goeke - chi sls
Sent: Wednesday, March 17, 2021 5:11 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>
Subject: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021-2022 SC bid=ReSent 3.17.2021

Hi Rochi,
 Happy Wednesday..
 As I mentioned in my original email on February 24th that our rates included:
(Yang Ming's General TPEB (Asia to U.S.) rates and terms offered)

*Preferred trucker (Forward Intermodal) will be utilized as indicated in the bid for Chicago area destinations.

I will send a message to Yang Ming's Taiwan HQ right now and reconfirm that our offer included Forward Intermodal's rates for door Alsip, door Bedford Park, door Des Plaines and door Itasca, IL...

Once I receive some news I will let you know..

Regards,
 Paul Goeke
 Account Manager (Sales)

RX_000264

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY, SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, March 17, 2021 1:03 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>

Subject: RE: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021-2022 SC bid=Sent 2.24.2021

Paul

On the import side: the door move to Alsip, Bedford Park, Des Plaines and Itasca - are these rates base on your in-house trucker? We have a preferred trucker for these specific 4 locations

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rochi Mirasol

Sent: Wednesday, February 24, 2021 2:25 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>

Subject: RE: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021-2022 SC bid=Sent 2.24.2021

I will review and hopefully this year will be the lucky one for you, Paul 😊

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Wednesday, February 24, 2021 1:37 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>

Subject: Yang Ming's 1st Rd Rates for MSRF, Inc.'s 2021-2022 SC bid=Sent 2.24.2021

Hi Rochi,

Happy Wednesday. I hope you're doing well and staying healthy..

Attached please find Yang Ming's 1st Round rates for MSRF's 2021-2022 bid. Also, below is a brief recap of our general rate and term offer for your reference.

-Yang Ming's General TPEB (Asia to U.S.) rates and terms offered for MSRF's 2021/2022 Round #1:

-USWC: \$3200/40'

-USEC: \$4200/40'

-IPI: CHI \$5200/40' via LAX/LGB, \$5100/40' via TIW/SEA

-Premium added on top of Door Level to cover the cost of Chassis

-Ocean Freight inclusive of GRI/PSS/BK/LR/CAF/DDC/ACC/IJ/LB, but rates are subject to CYRC/DF/SJ/SQ/PA/Other (new) surcharges per YML governing tariff.

GRI: General Rate Increase

PSS: Peak Season Surcharge

BK: Bunker Fuel

LR: Low Sulphur

CAF: Currency Adjustment Factor

DDC: Destination Deliver Charge

ACC: Alameda Corridor Charge

IJ: Intermodal Door Delivery Surcharge

LB: Low Sulphur (For China, Taiwan and Hong Kong)

Rates are subject to CYRC/DF/SJ/SQ/PA/Other (new) surcharges per YML's governing tariff

-YML bunker base, BK/LR will be floating per YML's governing tariff and to be reviewed on a quarterly basis

BK: Will be backed out per below from all-in rates and float quarterly per carrier's tariff

LR: Will be backed out per below from all-in rates and float quarterly per carrier's tariff

2021 Q1

BK/LR

RX_000265

2021 Q1 BK/LR		20DC	40DC	40HQ	45HQ
BK	USWC	61	122	122	122
	USEC	118	236	236	236
LR	USWC	3	5	5	5
	USEC	0	0	0	0

CYRC: CY Receiving Fee: Prepaid at Origin

DF: Documentation Fee: Prepaid at Origin

SJ: Seal Fee: Prepaid at Origin

SQ: Security Manifest (SMDC)= USD \$30 per BL

PA: Panama Canal Freshwater Surcharge= \$15/20', \$30/40', \$30/40'HC, \$30/40'HC

*Chassis will not be provided for CY moves.

*Chassis: 10 Calendar Days for door move, per Yang Ming's Tariff after Free Time Expires.

*Preferred trucker (Forward Intermodal) will be utilized as indicated in the bid for Chicago area destinations.

Origin Free Time: Detention & Demurrage Free Time at POL will be per YML's tariff.

Destination Free Time: Detention Free Time will be 10 calendar days at POD; Per Yang Ming's Tariff after Free Time Expires.

Demurrage Free Time will be per YML's tariff.

-Yang Ming will not offer rates from India due to limited sources from Kolkata, India...

-For the TPWB Export Trade:

Please see attachment for TPWB offer with 1st round rates. Yang Ming's rates are all inclusive including DTHC where applicable, but subject to DDF and ODF (Origin Doc Fee) of \$60 per BL.

Yang Ming agrees to offer 15 calendar days of Detention Free Time at destination (China). For Hong Kong we agree to 5 calendar days of Demurrage Free Time and 10 calendar days of Detention.

Please provide your feedback after reviewing all rates as Yang Ming would love to move MSRF's business in 2021/2022.

Any questions please let me know.

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY,SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Paul Goeke – chi sls

Sent: Tuesday, February 23, 2021 5:22 PM

To: 'Rochi Mirasol' <rmirasol@msrf.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF – 2021–2022 SC – YANG MING

Hi Rochi,

I'm still waiting for YML's pricing department to offer rates. I hope to receive by your due date this Friday, February 26th.

Once I receive our new rates I will forward to your attention..

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY,SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, February 23, 2021 3:10 PM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF – 2021–2022 SC – YANG MING

Paul,

Do you have this ready?

RX_000266

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rochi Mirasol

Sent: Wednesday, February 10, 2021 2:06 PM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>

Subject: RE: MSRF – 2021–2022 SC – YANG MING

See below response in “red”

From: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Sent: Wednesday, February 10, 2021 12:41 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao – chi sls <dianeliao@us.yangming.com>

Subject: FW: MSRF – 2021–2022 SC – YANG MING

Hi Rochi,

Thanks for your below email. I have a few questions if you can answer them before I send MSRF's 2021–22 RFQ to Yang Ming's Taiwan HQ?

#1

What is MSRF's total MQC for 2021–22 in TEU's? we can't forecast right now

#2

What are you willing to sign for a new contract in TEU's with Yang Ming in 2021–22? 100

#3

I understand what PSS stands (Peak Season Surcharge), but what does PSC stand for? – peak season charge

#4 – you can use/quote your own in-house trucker as they will not give this list until the season starts.

****For all “DOOR” Delivery outside Chicago area (direct delivery), if possible, please use the inhouse preferred trucker of the customer to avoid “drop/pull” charges.**

1. **Big Lots – OH, OK, PA, CA, AL, NJ**

2. **Christmas Tree Shop – MA**

3. **Given's – CA**

Can you please supply the above customer's inhouse preferred trucker information as Yang Ming doesn't work directly with these importers?

I look forward to your soonest/positive reply to the above questions. If we have any further questions we will let you know..

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY, SUITE 330 | DOWNERS GROVE, IL 60515

630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, February 10, 2021 10:22 AM

To: Paul Goeke – chi sls <PaulGoeke@us.yangming.com>

Subject: FW: MSRF – 2021–2022 SC – HMM

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

I am sending you this updated lane. Please send your quote back on or before 2/26

Attached, please find MSRF preliminary bid spreadsheet 2021-2022 SC. Rates should be “**all inclusive**”. The spreadsheet is detailed of which origin to which destination. It is also noted, which one is a door move (DR) and which one are the port/rail only (CY). We “**requires**” 5 days demurrage and 10 days Detention to all destination ports. Please review

****I am open for suggestions with regards to additional charges (if needed) so we can secure a confirm space slot and container's availability. But, as an FYI – below are MSRF requirements for the SC**

MSRF contract requirements are:

1. NO – GRI

2. NO – PSS

3. NO - DTHC

RX_000267

4. NO – PSC

5. NO – DDC

6. Chassis charge is no more than \$60.00 (?)

7. Detention charges are “negotiable” (?)

****For all “DOOR” Delivery outside Chicago area (direct delivery), if possible, please use the inhouse preferred trucker of the customer to avoid “drop/pull” charges.**

1. **Big Lots – OH, OK, PA, CA, AL, NJ**
2. **Christmas Tree Shop – MA**
3. **Given’s – CA**

Free Time:

Origin: Demurrage 7 days & Detention 7 days

Destination: Demurrage 5 days & Detention 10 days (ALL Big Lots DC and Burlington Coat LGB/LAX)

For Alsip, Bedford Park, Des Plaines and Itasca, we have 2 truckers that you can partner with, Central State and Northshore. Please call both truckers to get your best rate for the door move for the Chicagoland area. Please make sure that door move is “all inclusive” as well of tolls & FSC. **We prefer Central State Trucking (aka: ForwardAir).**

Attn: Victor

North Shore Logistics

PH 708-496-8222

FX 708-496-8449

Email: noshwork@gmail.com

Attn: Michael S Oliver

C S T

O: 630.590.9786 | C: 708.828.0687

moliver@cstruck.com | www.CSTruck.com

Please note:

1. Heavy Import Lane (Mid-July to October)

Dest: Alsip, IL / Origin: Qingdao, China

2. Export Destination: Qingdao, China
3. Whole year shipment

a. **From** Kolkata, India to multiple US destinations

4. **All-inclusive charges (USA inbound) should be broken down one by one on “foot notes”.**
5. All origin charges (shipper) must be on foot notes

Commodities: DRY Cargo / FAK

Dry Foods, Cocoa, Coffee, Tea, , Cookies, Candies, Chocolates, drink mixes

Spice, oil, vinegar, BBQ/Hot Sauce

Giftware’s, baskets, decorative items, bamboo ware, wicker products, tea wood chest

Housewares: ceramic, stoneware, porcelain, glassware, woodenware

silicon, plastic ware, toys, tin plate, Tea press

packing material - ribbons, cardboard, papers, plastic

I look forward for a 2021-2022 partnership

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000268

To: Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
Cc: Diane Liao - chi sls[dianeliao@us.yangming.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Tue 2/23/2021 9:09:34 PM (UTC)
Subject: RE: MSRF - 2021-2022 SC - YANG MING

Paul,
Do you have this ready?

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rochi Mirasol
Sent: Wednesday, February 10, 2021 2:06 PM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: MSRF - 2021-2022 SC - YANG MING
See below response in "red"

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Wednesday, February 10, 2021 12:41 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: FW: MSRF - 2021-2022 SC - YANG MING

Hi Rochi,

Thanks for your below email. I have a few questions if you can answer them before I send MSRF's 2021-22 RFQ to Yang Ming's Taiwan HQ?

#1

What is MSRF's total MQC for 2021-22 in TEU's? we can't forecast right now

#2

What are you willing to sign for a new contract in TEU's with Yang Ming in 2021-22? 100

#3

I understand what PSS stands (Peak Season Surcharge), but what does PSC stand for? – peak season charge

#4 – you can use/quote your own in-house trucker as they will not give this list until the season starts.

****For all “DOOR” Delivery outside Chicago area (direct delivery), if possible, please use the inhouse preferred trucker of the customer to avoid “drop/pull” charges.**

1. *Big Lots – OH, OK, PA, CA, AL, NJ*
2. *Christmas Tree Shop – MA*
3. *Given's – CA*

Can you please supply the above customer's inhouse preferred trucker information as Yang Ming doesn't work directly with these importers?

I look forward to your soonest/positive reply to the above questions. If we have any further questions we will let you know..

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY, SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Wednesday, February 10, 2021 10:22 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: FW: MSRF - 2021-2022 SC - HMM

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

RX_000269

I am sending you this updated lane. Please send your quote back on or before 2/26

Attached, please find MSRF preliminary bid spreadsheet 2021-2022 SC. Rates should be “**all inclusive**”. The spreadsheet is detailed of which origin to which destination. It is also noted, which one is a door move (DR) and which one are the port/rail only (CY). We “**requires**” 5 days demurrage and 10 days Detention to all destination ports. Please review
**I am open for suggestions with regards to additional charges (if needed) so we can secure a confirm space slot and container’s availability. But, as an FYI – below are MSRF requirements for the SC

MSRF contract requirements are:

1. NO – GRI
2. NO – PSS
3. NO - DTHC
4. NO – PSC
5. NO – DDC
6. Chassis charge is no more than \$60.00 (?)
7. Detention charges are “negotiable” (?)

****For all “DOOR” Delivery outside Chicago area (direct delivery), if possible, please use the inhouse preferred trucker of the customer to avoid “drop/pull” charges.**

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Free Time:

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Destination: Demurrage 5 days & Detention 10 days (ALL Big Lots DC and Burlington Coat LGB/LAX)

For Alsip, Bedford Park, Des Plaines and Itasca, we have 2 truckers that you can partner with, Central State and Northshore. Please call both truckers to get your best rate for the door move for the Chicagoland area. Please make sure that door move is “all inclusive” as well of tolls & FSC. **We prefer Central State Trucking (aka: ForwardAir).**

Attn: Victor

North Shore Logistics

PH 708-496-8222

FX 708-496-8449

Email: noshwork@gmail.com

Attn: Michael S Oliver

C S T

O: 630.590.9786 | C: 708.828.0687

moliver@cstruck.com | www.CSTruck.com

Please note:

1. Heavy Import Lane (Mid-July to October)

Dest: Alsip, IL / Origin: Qingdao, China

2. Export Destination: Qingdao, China
3. Whole year shipment

a. **From** Kolkata, India to multiple US destinations

4. **All-inclusive charges (USA inbound) should be broken down one by one on “foot notes”.**
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Commodities: DRY Cargo / FAK

Dry Foods, Cocoa, Coffee, Tea, , Cookies, Candies, Chocolates, drink mixes

Spice, oil, vinegar, BBQ/Hot Sauce

Giftware’s, baskets, decorative items, bamboo ware, wicker products, tea wood chest

Housewares: ceramic, stoneware, porcelain, glassware, woodenware

silicon, plastic ware, toys, tin plate, Tea press

packing material - ribbons, cardboard, papers, plastic

I look forward for a 2021-2022 partnership

RX_000270

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

RX_000271

To: Paul Goeke - chi sls [PaulGoeke@us.yangming.com]
Cc: Diane Liao - chi sls [dianeliao@us.yangming.com]
From: Rochi Mirasol [/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Wed 2/10/2021 8:06:21 PM (UTC)
Subject: RE: MSRF - 2021-2022 SC - YANG MING

See below response in "red"

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Wednesday, February 10, 2021 12:41 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: FW: MSRF - 2021-2022 SC - YANG MING

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Thanks for your below email. I have a few questions if you can answer them before I send MSRF's 2021-22 RFQ to Yang Ming's Taiwan HQ?

#1

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I look forward to your soonest/positive reply to the above questions. If we have any further questions we will let you know..

Regards,

Paul Goeke

Account Manager (Sales)

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY, SUITE 330 | DOWNERS GROVE, IL 60515

630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Wednesday, February 10, 2021 10:22 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Subject: FW: MSRF - 2021-2022 SC - HMM

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi Paul,

I am sending you this updated lane. Please send your quote back on or before 2/26

Attached, please find MSRF preliminary bid spreadsheet 2021-2022 SC. Rates should be "all inclusive". The spreadsheet is detailed of which origin to which destination. It is also noted, which one is a door move (DR) and which one are the port/rail only (CY). We "requires" 5 days demurrage and 10 days Detention to all destination ports. Please review

**I am open for suggestions with regards to additional charges (if needed) so we can secure a confirm space slot and container's availability. But, as an FYI – below are MSRF requirements for the SC

MSRF contract requirements are:

1. NO – GRI
2. NO – PSS
3. NO - DTHC
4. NO – PSC
5. NO – DDC

RX_000272

CONFIDENTIAL

MSRF_YANG MING_0005167

Please have a safe year and we look forward to working with MSRF' s next contract season..

Regards,

Paul Goeke

Account Executive, Sales

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY,SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Friday, April 24, 2020 1:27 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Subject: RE: Yang Ming's 3rd Rd Rates for MSRF, Inc.'s 2020-2021 SC bid=YM's Export Surcharges=Sent 4.24.2020

Paul,

After careful review lane by lane this morning, we decided to take the offer of Evergreen to renew the SC with the same terms we have in place from last year and they lower down the rates per lane. APL also did the same. Thank you for participating on this years bid. I hope next year will be lucky for you. Good luck and keep safe.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Friday, April 24, 2020 12:08 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Subject: Yang Ming's 3rd Rd Rates for MSRF, Inc.'s 2020-2021 SC bid=YM's Export Surcharges=Sent 4.24.2020

Hi Rochi,

Happy Friday. I hope you're doing well and staying safe.

Sorry for another email.

Since today is already Friday, April 24th have you had the time to review Yang Ming's attached 3rd Round TPEB and TPWB rates for the 2020/2021 shipping season?

Hopefully we can draft up the new contract between our two companies based on our Last offer.

I look forward to your soonest/positive reply!!

Any questions please let me know...

Regards,

Paul Goeke

Account Executive, Sales

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY,SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Paul Goeke - chi sls

Sent: Monday, April 20, 2020 5:00 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: Yang Ming's 3rd Rd Rates for MSRF, Inc.'s 2020-2021 SC bid=YM's Export Surcharges=Sent 4.20.2020

Hi Rochi,

Thanks for your reply. We look forward to your positive reply after reviewing Yang Ming's 3rd Round rates.

Regards,

Paul Goeke

Account Executive, Sales

Email: paulgoeke@us.yangming.com

YANG MING (AMERICA) CORP | 3010 HIGHLAND PKWY,SUITE 330 | DOWNERS GROVE, IL 60515
630.335.4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Monday, April 20, 2020 2:20 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Chris Wimberly - chi mgm/sls <chriswimberly@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Cindy Oakes - chi sls <CindyOakes@us.yangming.com>

Subject: Re: Yang Ming's 3rd Rd Rates for MSRF, Inc.'s 2020-2021 SC bid=YM's Export Surcharges=Sent 4.16.2020

Hi Paul,

I am reviewing all the rate quotes that I received last week & I'll let you know.

Thanks & keep safe everyone

CONFIDENTIAL

RX_000273

MSRF_YANG MING_0005177

To: Williams, R. Kevin[kwilliams@clarkhill.com]
Cc: David Reich[dreich@msrf.com]
From: Rochi Mirasol[rmirasol@msrf.com]
Sent: Tue 11/22/2022 11:10:09 PM (UTC)
Subject: FW: YM Topmost 1E

[External Message]

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Tuesday, November 9, 2021 10:26 AM
To: David Reich <dreich@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: YM Topmost 1E

David,

Below is what I received from YM's LAX Import department.

-YM's LAX Import department advised the following:

"I've heard the following from port Capt., not sure if it is 100% true but it seems pretty logic. For vessels calling TraPac terminal (PS3/PS6 services), you might find she takes around 6 weeks from Asia to USWC which is much longer than usual. Trapac Terminal is an automated terminal which means they can predict berthing time more accurate based on discharge volume and terminal condition, compared to other terminals such as WBCT, ITS...etc. Instead of letting all ships lining up, anchoring waiting for berth, their strategy is to provide an available berthing time for carriers' reference. If you looked into the vessel ETA and ETB on PS6 Service (See below-you can refer to YM Target as example), you will find they are on same day, unlike other terminals, upon arrival, vessel has to wait 7-10 days for berthing. All in all, as PS6 vessels skip Oakland calling, LAX discharge volume is increasing, also, import volume surges, all ships take longer to unload containers. Therefore, terminal needs to push back berthing time. For vessel calling Trapac terminal (PS3/PS6), with more accurate berthing time provided, the Captain knows it is impossible to berth even arriving earlier. Capt. usually decide to slow down the speed after departing Asia. This is the reason you see longer traveling time of PS6 vessels compared to the vessels serving other services."

RX_000274

PS6 - PACIFIC SOUTH WEST COAST LOOP 6 (E-Bound)

New Voy. Code	Vessel Name	THEA Code	IMO NO.	YM Vessel Abbr.	Conn Voy	CNIAO		CNNGB		KRPUS	
						ETB	ETD	ETB	ETD	ETB	ETD
						FR	SUN	MON	TUE	THU	FRI
						23:00	09:00	17:00	11:00	22:00	16:00
PS6137E	ARISTOMENIS	AIS	9408841	ARMN	013E	09/17	09/19	09/20	09/22	09/23	09/24
					*	09/23	09/23	09/20	09/21	09/29	09/30
PS6138E	YM TOPMOST	TMT	9878515	YMTM	001E	09/24	09/26	09/27	09/29	09/30	10/01
					*	09/25	09/28	09/30	10/01	10/04	10/05
PS6139E	EXPRESS BERLIN	XBL	9484924	EBER	023E	10/01	10/03	10/04	10/06	10/07	10/08
					*	10/07	10/08	10/10	10/11	10/13	10/14
PS6140E	YM TRAVEL	TRV	9878503	YTVL	002E	10/08	10/10	10/11	10/13	10/14	10/15
					*	10/15	10/17	10/18	10/19	10/21	10/22
PS6141E	YM TOTALITY	TTL	9860922	YTLY	007E	10/15	10/17	10/18	10/20	10/21	10/22
					*	11/01	11/03	11/05	11/06	11/08	11/09
PS6146E	YM TARGET	TGT	9860934	YTRG	005E	11/19	11/21	11/22	11/24	11/25	11/26
					*	11/29	12/01	12/02	12/04	12/05	12/06

So the ETA of November 23rd for the YM Topmost (PS6138E) is subject to change based on earlier vessels unloading at the TraPac terminal..

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: David Reich <dreich@msrf.com>

Sent: Tuesday, November 9, 2021 8:52 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: YM Topmost 1E

So basically its been sitting off the coast of Japan since leaving Korea. And now they got to kick it into gear so the can be in LA to berth ontime

Is the berthing time solid or still subject to change?

RX_000275

CONFIDENTIAL

MSRF_YANG MING_0005556

David

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Monday, November 8, 2021 4:58 PM
To: David Reich <dreich@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: YM Topmost 1E

David,

As you mentioned below this vessel/voyage departed from Ningbo on 10/1 and arrived in Pusan on 10/4. This information is on YM's website under vessel information. (see below screen shots)
Although this vessel left Pusan on 10/5, the ship is waiting at sea for the terminals to digest all vessels arriving into LAX before she will be granted berthing into the Tra-Pac terminal in LA.
See the below information on the latest location of the YM Topmost vessel.

Search by Vessel

Vessel Name	YM TOPMOST (YMTM) (click to view Vessel Information)
Current Lane	PS6
Current Comn Voyage	001E / 001W
Current YML Vsl Voy	PS6138E / PS6138W

-- Port --	Terminal	Arrival		Berth		Depart
		Date	Status	Date	Status	Date
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/09/30 20:00	Planned	2021/09/30 22:00	Planned	2021/10/01 16:00
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/10/04 03:54	Actual	2021/10/04 05:18	Actual	2021/10/05 07:00

Previous	Current Voyage	Next	Other Vessel
----------	----------------	------	--------------

Current Voyage -

Lane	PS6
Comn Voyage	001E / 001W
Current YML Vsl Voy	PS6138E / PS6138W

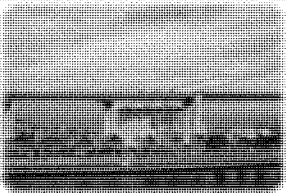
[Report S

-- Port --	Terminal	Arrival		Berth		Depart
		Date	Status	Date	Status	Date
QINGDAO	QINGDAO NEW QIANWAN CONTAINER TERMINAL CO.,LTD	2021/09/25 06:24	Actual	2021/09/25 07:48	Actual	2021/09/28 13:59
NINGBO	NINGBO BEILUN INT'L CONTAINER TERMINAL	2021/09/30 04:00	Actual	2021/09/30 11:00	Actual	2021/10/01 23:30
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/10/04 03:54	Actual	2021/10/04 05:18	Actual	2021/10/05 07:00
OAKLAND	TRAPAC, INC. (OAK)	-- Skip --	--	-- Skip --	--	-- Skip --
LOS ANGELES	TRAPAC, INC. (LAX)	2021/11/23 04:00	Estimated	2021/11/23 06:00	Estimated	2021/12/04 04:00
KOBE	PORT ISLAND PC16/17	2021/12/17 15:00	Estimated	2021/12/17 18:00	Estimated	2021/12/18 09:00

RX_000276

Please find the below website (www.marinetraffic.com) that tracks vessel movement.

https://www.marinetraffic.com/en/data/?asset_type=ports&columns=flag,portname,unlocode,photo,vessels_in_port,vessels_departures,vessels_arrivals,vessels_expected_arrivals,local_time,anchorage,geographical_area_one,geographical_area_two,coverage&quicksearch|begins|quicksearch=los%20Angeles

Ports Database ⓘ							
Quick Search: los Angeles		Select a Quick View		Add Filter			
☐	Country	Port	UN/LOC...	Photos	Vessels In Port	Departures (last 24hrs)	Arrivals (last 24hrs)
☐		LOS ANGELES	USLAX		135	84	82

You can click on the below link and then the green dot under map icon- it shows it on the actual map but it looks like the last position of the YM Topmost vessel is from 10/20..

https://www.marinetraffic.com/en/data/?asset_type=vessels&columns=flag,shipname,photo,recognized_next_port,reported_eta,reported_destination,current_port,imo,ship_type,show_on_live_map,time_of_latest_position,lat_of_latest_position,lon_of_latest_position,notes&quicksearch|begins|quicksearch=YM%20Topmost

<https://www.marinetraffic.com/en/ais/home/shipid:6728081/zoom:9>

Quick Search: YM Topmost



Select a Quick View



Add Filter



Flag

Vessel Name

Photos

Destination
Port

Reported Eta

Reported
Destination



YM TOPMOST

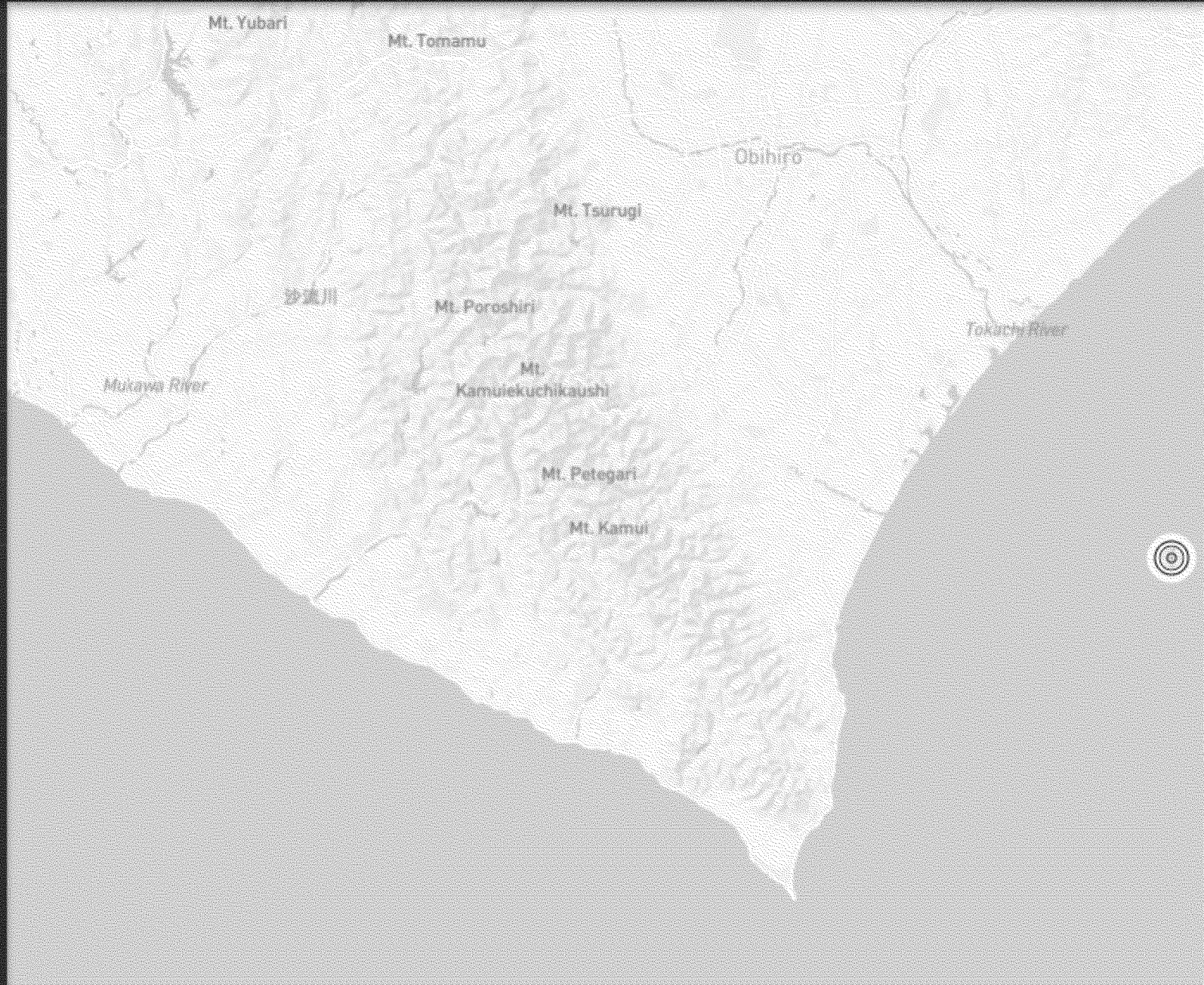
No photos for this Asse

[Upload now](#)

LOS ANGELES

2021-11-08 12:00
UTC

USLAX



Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: David Reich <dreich@msrf.com>

Sent: Monday, November 8, 2021 10:54 AM

RX_000279

CONFIDENTIAL

MSRF_YANG MING_0005560

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: YM Topmost 1E

Paul,

We surely do appreciate the emails with information that you send to us

What I don't appreciate is you playing teacher and telling us all about the port congestion. I know about it. I have been involved in ocean freight for 30+ years.

We fill containers and ship them to meet PO dates from our customers. This vessel left Qingdao on or around September 8th. Vessel tracker says it left Korea like October 5th. Congestion or no congestion it does not take two months to sail from Korea to LA.

I find it embarrassing when trying to explain the situation that we cant find anything on where this vessel is now or has been since leaving Korea.

We are painfully aware of the port congestion. We are painfully aware of what is happening in US ports. What makes it more painful is when I cant answer customer questions.

Where is this vessel now? And why is it taking 60 days to get here

Thanks

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Friday, November 5, 2021 4:27 PM

To: David Reich <dreich@msrf.com>; Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: RE: YM Topmost 1E

Hi David,

Unfortunately I don't have any further details than what is listed on Yang Ming's website. I have contacted YM's USA operations department and they have no further information to advise. If there was something wrong with the vessel and happened at the origin side

YM's origin office would have sent out a notice to shippers about the issue, but since it looked like it flowed pretty well on the Asia side it this just looks like the delay is due to the congestion on the USWC side.

The ETA into LA terminal is listed as November 23rd. Again I would just take this as an estimate as we can't give firm dates at this time due to the USWC port congestion.

PS:

FYI, please refer to my and Diane Liao's previous emails regarding the USWC/USWC port congestion. This is causing delays to all international ocean vessels to the USWC.

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

CONFIDENTIAL

RX_000280

MSRF_YANG MING_0005561

From: David Reich <dreich@msrf.com>
Sent: Friday, November 5, 2021 9:51 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: YM Topmost 1E

Paul,

Where has it been? This should have been in port long ago. I have 5 containers on this vessel that should be in my building. This is close to a 60 day voyage since leaving . was it driving in circles in the middle of the Pacific? Did you park it somewhere?

Please explain

David

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Friday, November 5, 2021 9:46 AM
To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Cc: David Reich <dreich@msrf.com>
Subject: RE: YM Topmost 1E

Hi Rochi,
Happy Friday.. I never received your voicemail..

Here's what I have found on Yang Ming's long term sailing schedule. The YM Topmost (PS6138E) was supposed to arrive on October 13th and now won't arrive into Tra-Pac (LAX terminal) on November 23rd (not December). I believe the delay is due to the USWC port congestion. Right now this vessel is scheduled to arrive on November 23rd into LAX (Tra-Pac terminal).

PS6 - PACIFIC SOUTH WEST COAST LOOP 6 (E-Bound)

New Voy. Code	Vessel Name	THEA Code	IMO NO	YM Vessel Abbr.	Conn Voy	CNTAO		CNNGE		KRPUS	
						ETB	ETD	ETB	ETD	ETB	ETD
						FRI	SUN	MON	WED	THU	FRI
						23:00	09:00	17:00	11:30	22:00	16:00
PS6137E	ARISTOMENIS	AIS	9408841	ARMN	013E	09/17	09/19	09/20	09/22	09/23	09/24
					*	09/23	09/23	09/20	09/21	09/29	09/30
PS6138E	YM TOPMOST	TMT	9878515	YMTM	001E	09/24	09/26	09/27	09/29	09/30	10/01
					*	09/25	09/28	09/30	10/01	10/04	10/05

RX_000281

Search by Vessel

▶ Vessel Name **YM TOPMOST (YMTM)** (click to view Vessel Information)
 ▶ Current Lane **PS6**
 ▶ Current Comn Voyage **001E / 001W**
 ▶ Current YML Vsl Voy **PS6138E / PS6138W**

Port	Terminal	Arrival		Berth	
		Date	Status	Date	Status
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/09/30 20:00	Planned	2021/09/30 22:00	Planned
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/10/04 03:54	Actual	2021/10/04 05:18	Actual

Previous

Current Voyage

Next

Other Vessel

Current Voyage -

▶ Lane **PS6**
 ▶ Comn Voyage **001E / 001W**
 ▶ Current YML Vsl Voy **PS6138E / PS6138W**

Port	Terminal	Arrival		Berth	
		Date	Status	Date	Status
QINGDAO	QINGDAO NEW QIANWAN CONTAINER TERMINAL CO.,LTD	2021/09/25 06:24	Actual	2021/09/25 07:48	Actual
NINGBO	NINGBO BEILUN INT'L CONTAINER TERMINAL	2021/09/30 04:00	Actual	2021/09/30 11:00	Actual
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/10/04 03:54	Actual	2021/10/04 05:18	Actual
OAKLAND	TRAPAC, INC. (OAK)	-- Skip --	--	-- Skip --	--
LOS ANGELES	TRAPAC, INC. (LAX)	2021/11/23 04:00	Estimated	2021/11/23 06:00	Estimated

Best Regards,

RX_000282

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Thursday, November 4, 2021 5:10 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Cc: David Reich <dreich@msrf.com>

Subject: RE: YM Topmost 1E

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello Paul and Diane,

Can you please reply to my email from yesterday. And Paul I left you a voice mail also yesterday.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Rochi Mirasol

Sent: Wednesday, November 3, 2021 3:51 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: YM Topmost 1E

Hi Paul,

We have several containers which are on the YM Topmost V. 1E. Some of them are thru the NVO and 2 are from our SC with HMM. If it left Qingdao port on the 28th of September and its transloaded in Pusan, Korea since the 5th of October, why is it that this vessel will not get to LA port until December? Can you please help me understand what takes so long for this vessel to get to America? Where are you hiding this vessel?

RX_000283

CONFIDENTIAL

MSRF_YANG MING_0005564

Search by Vessel

Vessel Name	YM TOPMOST (YMTM) (click to view Vessel Information)
Current Lane	PS6
Current Comn Voyage	001E / 001W
Current YML Vsl Voy	PS6138E / PS6138W

Port	Terminal	Arrival		
		Date	Status	
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/09/30 20:00	Planned	2021/
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/10/04 03:54	Actual	2021/

[Previous](#)

Current Voyage

Next

Other Vessel

Current Voyage -

▶ Lane	PS6
▶ Conn Voyage	001E / 001W
▶ Current YML Vsl Voy	PS6138E / PS6138W

-- Port --	Terminal	Arrival		
		Date	Status	
QINGDAO	QINGDAO NEW QIANWAN CONTAINER TERMINAL CO.,LTD	2021/09/25 06:24	Actual	2021/09/25 06:24
NINGBO	NINGBO BEILUN INT'L CONTAINER TERMINAL	2021/09/30 04:00	Actual	2021/09/30 04:00
PUSAN	HPNT (HYUNDAI PUSAN NEWPORT TERMINAL)	2021/10/04 03:54	Actual	2021/10/04 03:54
OAKLAND	TRAPAC, INC. (OAK)	-- Skip --	--	-- Skip --
LOS ANGELES	TRAPAC, INC. (LAX)	2021/11/23 04:00	Estimated	2021/11/23 04:00
KOBE	PORT ISLAND PC16/17	2021/12/17 15:00	Estimated	2021/12/17 15:00

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX 000284

CONFIDENTIAL

MSRF YANG MING 0005565

From: Rochi Mirasol
Sent: Wednesday, May 19, 2021 11:56 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: West Coast / East Coast=MSRF (494721) via Yang Ming=5.19.2021

Ok, go ahead

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Wednesday, May 19, 2021 11:54 AM
To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: West Coast / East Coast=MSRF (494721) via Yang Ming=5.19.2021

Hi Rochi,

Yang Ming's Taiwan HQ has suggested to included "Long Beach, CA" to your current port to port rates. We will create an amendment if that's what MSRF's wants. Please confirm..

-Yang Ming's Taiwan HQ wrote:

"Please help to arrange an Amendment to include destination "LONG BEACH,CA". We will check if any China base port can support MSRF to LAX/LGB port (Port CY/Port CY instead of IPI) at this moment.

Also, please have them understand that's workable to accommodate the space per each customer's request, which is still subject to local space and equipment availability week by week."

Commodity	Origin	POD	Destination	20'DC	40'DC	40'HQ	45'
A	BASEPORTS	USLAX/USLGB	LOS ANGELES,CA/LONG BEACH,CA	■	■	■	

We look forward to your feedback...

Best Regards,

RX_000285

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Paul Goeke - chi sls

Sent: Tuesday, May 18, 2021 6:09 PM

To: 'Rochi Mirasol' rmirasol@msrf.com; Diane Liao - chi sls dianeliao@us.yangming.com

Subject: RE: West Coast / East Coast for MSRF (494721) via Yang Ming=5.18.2021

Hi Rochi,

Thanks for your below email. Unfortunately I don't know what your chances would be if MSRF booked only to the USEC or USWC. Please check with YM's origin offices and I'll check with YM's Taiwan HQ. What are your origins that your thinking about booking this way? As I mentioned in previous emails space and equipment are at an all-time high due to overall demand and the lack of sailing options. We are hoping these skip/voided sailings will end soon as they are in place to try and bring back service schedule integrity to all trade scopes (especially to help port congestion on the USWC). Please keep pushing anything/everything to YM's origin offices and we will keep pushing.

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Tuesday, May 18, 2021 4:01 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: FW: West Coast / East Coast

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

If we will book all our containers up to USEC or USWC, what are the chances that we will get the container? We will just transload it and move it ourselves to Chicago.

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000286

CONFIDENTIAL

MSRF_YANG MING_0005567

To: Williams, R. Kevin[kwilliams@clarkhill.com]
Cc: David Reich[dreich@msrf.com]
From: Rochi Mirasol[rmirasol@msrf.com]
Sent: Tue 11/22/2022 11:09:02 PM (UTC)
Subject: FW: Qingdao Giftpackers - MSRF -#494721 - Qingdao/Chicago
[MSRF 5.20- update.xlsx](#)

[External Message]

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Tuesday, May 25, 2021 12:45 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: FW: Qingdao Giftpackers - MSRF -#494721 - Qingdao/Chicago

Hi Rochi,

Thanks for your below email. Diane Liao and I will send a message to YMs Taiwan HQ and our Qingdao office for your below request. From other account booking requests Qingdao space has been fully booked thru the end of May to mid-June. Unfortunately I don't think we will receive any good news. I would suggest your suppliers to check the upcoming June schedules and have them to accept whatever YM origin office releases.

BTW, on my other message I meant that other accounts like NVOCC's in Asia might have a higher MQC (1000-5000 TEU) would probably get some import space..

Best Regards,

Paul Goeke
Account Manager (Sales) - Chicago Region
 **YANG MING**
Yang Ming (America) Corporation
PaulGoeke@us.yangming.com
(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Monday, May 24, 2021 12:43 PM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: Qingdao Giftpackers - MSRF -#494721 - Qingdao/Chicago

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Paul
Can you please look into this 7 new bookings from our shipper out of Qingdao, China port (attached spreadsheet). The shipper is Qingdao Giftpackers and these are all coming here in Chicago rail but to different warehouse locations. Any alternative sailing/vessel from what the shipper is booking too, will be fine. Can you please work with your origin office and let me know. Thanks

RX_000287

BTW - On your other mail, you stated that our MQC in the SC is too small, which you are implying or what I interpreted is, it's impossible that we can get a container, but even if I give you 200-up TEU's I don't even know if you can give us any? It looks like this SC is just for decorations purposes only. Your origin offices keeps telling our shipper that we do not have any thing stated in our SC a word: "special protection", which I have said this to you over and over. The sad part is – there is no reply from your origin offices from all these booking?

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

MSRF Booking		
NOV/Carrier Invoice#	Yangming	Remark
[REDACTED]		

RX_000288

To: Monique Williams[monique@atsinc.net]; Shipping[shipping@mcclancy.com]; Jennifer McCluney[jennifer.mccluney@mcclancy.com]
Cc: Road[road@atsinc.net]; Renee Denton[renee.denton@mcclancy.com]
From: Shipping[shipping@mcclancy.com]
Sent: Mon 4/11/2022 7:47:48 PM (UTC)
Subject: RE: APPT. REQUEST EXPORT BKNG #'S YHU769825 & YHU769826

Hello Monique,
We are a little shorthanded in shipping , I apologize for the delay. We can load these 2 containers on Wednesday 4/13.
Can we do 11am YHU769825 and 1pm YHU769826 for loading.
Thank you,
Mona

From: Monique Williams <monique@atsinc.net>
Sent: Monday, April 11, 2022 12:43 PM
To: Shipping <shipping@mcclancy.com>
Cc: Road <road@atsinc.net>
Subject: APPT. REQUEST EXPORT BKNG #'S YHU769825 & YHU769826

Good afternoon,
Can we schedule the two above export bookings to load on 4/13?
Thanks,

Monique Williams

ATS Logistics, Inc.
Intermodal Road Coordinator
Express Customer Service
D.L. 843-746-0064
Road@atsinc.net

My Hours Are 07:00 am - 04:00 pm.

NEW Intermodal Shipment Tracking - [www.atsinc.net/search_form.html]www.atsinc.net/search_form.html

Effective 07-01-21

- Due to current Port Congestion, ATS Intermodal will not be responsible for any demurrage until the port issues are resolved. ATS is doing its best to pull the containers in a timely fashion, but with longer than expected turn times we cannot pull the same daily volumes to meet all the customers' demands.

- Please note all work orders must be confirmed as accepted/received by ATS, ATS will not be responsible for Demurrage or Per Diem for any container that is not confirmed by ATS

- Please note ATS Intermodal is not responsible to obtain Last Free Days for containers, this must be provided, ATS will not be responsible for any Demurrage on a container where the LFD is not provided

- Please note ALL RELEASES must be in place within 24 hours of Last Free Day at the port in order to be pulled out before LFD

Please visit www.atsinc.net/contracts.html for updated Accessorial sheet and FSC Table and Accessorial sheet and FSC Table

RX_000289

To: 'hxdoor'[hxdoor@us.yangming.com]; Cindy Lei - hou exp[CindyLei@us.yangming.com]
Cc: 'billh@schmidtpritchard.com'[billh@schmidtpritchard.com]; ANGELA[angela@schmidtpritchard.com]; Paul Goeke - chi sls[PaulGoeke@us.yangming.com]; Diane Liao - chi sls[dianeliao@us.yangming.com]
From: Rochi Mirasol[/O=EXCHANGELABS/OU=EXCHANGE ADMINISTRATIVE GROUP (FYDIBOHF23SPDLT)/CN=RECIPIENTS/CN=642319E6DE184737AD52E913334D188D-RMIRASOL]
Sent: Mon 4/11/2022 6:38:13 PM (UTC)
Subject: RE: ** Please Review - EC2203W ONE Apus V009W USCHS - ADVANCE to Port Cut Offs - YHU769825

Nobody called or emailed me mcclancy? What # are they calling and what email address they are using?

McClancy Seasoning Co.
8746 Charlotte Hwy
Fort Mill, SC 29707

**Please note on the booking for the Trucker - Call Renee Denton or Mona Munteanu to set up an appointment at their direct line at 1.803-548-2659 or 1.803-802-1083. If they do not pick up their phone, please email them and CC me at: shipping@mcclancy.com; Mona.Munteanu@mcclancy.com for Mona, Renee.Denton@mcclancy.com for Renee or Jennifer.McCluney@mcclancy.com for Jen
**The loading dock of this company is limited and needs to be there as early as possible.

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave.|Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

-----Original Message-----

From: Valentine Andries - hou exp ipi <ValentineAndries@us.yangming.com> On Behalf Of hxdoor
Sent: Monday, April 11, 2022 1:13 PM
To: Cindy Lei - hou exp <CindyLei@us.yangming.com>; Rochi Mirasol <rmirasol@msrf.com>; hxdoor <hxdoor@us.yangming.com>
Cc: 'billh@schmidtpritchard.com' <billh@schmidtpritchard.com>; ANGELA <angela@schmidtpritchard.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: ** Please Review - EC2203W ONE Apus V009W USCHS - ADVANCE to Port Cut Offs - YHU769825

Dear Rochi,

Same as previous booking. Trucker as has called and sent an email to warehouse, however no response yet.
Is there an alternative contact information?

Kind Regards,

-Valentine Andries- | YANG MING (AMERICA) CORP | EXPORT HOUSTON SERVICE CENTER | | 3250 Briarpark Drive,
SUITE 201., | HOUSTON, TX 77042 | 281.295.8600 (Main) | 281.295.9145 (Direct) | 281-295-8675 (Fax)

-----Original Message-----

From: Cindy Lei - hou exp <CindyLei@us.yangming.com>
Sent: Monday, April 11, 2022 12:45 PM
To: Rochi Mirasol <rmirasol@msrf.com>; hxdoor <hxdoor@us.yangming.com>
Cc: 'billh@schmidtpritchard.com' <billh@schmidtpritchard.com>; ANGELA <angela@schmidtpritchard.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: ** Please Review - EC2203W ONE Apus V009W USCHS - ADVANCE to Port Cut Offs - YHU769825

// adding HX door team to kindly assist //

Thank you,

Please note: The schedule on YM booking confirmation is only estimated and subject to change, please ensure to consistently check for terminal announcement for the receiving dates before arrange empty pull out and loads return.

Please note that the COVID-19 pandemic has changed how we communicate with our customers. Our Customer Service Representatives may be working remotely and could have limited access to company phones. As a result, we are asking our customers to respond to us via e-mail. We are committed to handling your responses in a timely manner. Thank you for your business **RX_000290**

CONFIDENTIAL

MSRF_YANG MING_0001858

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Thursday, May 27, 2021 12:32 PM
To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>
Subject: RE: Export loads for MSRF (494721) via Yang Ming=5.27.2021

Hi Rochi,

I have checked with YM's Trade management regarding your below request. Unfortunately we can't do what your requesting (loading at two different origins for one booking). Also the free time for door moves is only 1 hour.

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Thursday, May 27, 2021 11:46 AM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: Export loads

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Paul,

Would that be possible if we can load an export container to 2 warehouses? There are goods in Alsip and Itasca that we are shipping to China. Wondering if this is OK for 2 points load/pick-up?

To: Rochi Mirasol[rmirasol@msrf.com]; Diane Liao - chi sls[dianeliao@us.yangming.com]; Paul Goeke - chi sls[PaulGoeke@us.yangming.com]
From: Cindy Oakes - chi sls[CindyOakes@us.yangming.com]
Sent: Mon 5/10/2021 7:37:27 PM (UTC)
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021

Hi Rochi,
That is correct, only from Vancouver, CA.
Also, we only provide 40RF in USA and CANADA, no 20RF.

Commodity	Origin	POL	POD
3.11FZPROTEIN	VANCOUVER ,BC	VANCOUVER ,BC	SHANGHAI/QINGDAO/YANTIAN/XIAMEN/HONG KONG/PUSAN/KWANGYANG/SINGAPORE/LAEM CHABANG/CAI MEP - SSIT/HAIPHONG INTERNATIONAL GATEWAY PORT/TOKYO/KOBE/NAGOYA/KAOHSIUNG
3.12CHPROTEIN	VANCOUVER ,BC	VANCOUVER ,BC	SHANGHAI/QINGDAO/YANTIAN/XIAMEN/HONG KONG/PUSAN/KWANGYANG/SINGAPORE/LAEM CHABANG/CAI MEP - SSIT/HAIPHONG INTERNATIONAL GATEWAY PORT/TOKYO/KOBE/NAGOYA/KAOHSIUNG
3.31FZFOODSTUFF	VANCOUVER ,BC	VANCOUVER ,BC	SHANGHAI/QINGDAO/YANTIAN/XIAMEN/HONG KONG/PUSAN/KWANGYANG/SINGAPORE/LAEM CHABANG/CAI MEP - SSIT/HAIPHONG INTERNATIONAL GATEWAY PORT/TOKYO/KOBE/NAGOYA/KAOHSIUNG
3.41CHFOODSTUFF	VANCOUVER ,BC	VANCOUVER ,BC	SHANGHAI/QINGDAO/YANTIAN/XIAMEN/HONG KONG/PUSAN/KWANGYANG/SINGAPORE/LAEM CHABANG/CAI MEP - SSIT/HAIPHONG INTERNATIONAL GATEWAY PORT/TOKYO/KOBE/NAGOYA/KAOHSIUNG
3.81CGNOS	VANCOUVER ,BC	VANCOUVER ,BC	SHANGHAI/QINGDAO/YANTIAN/XIAMEN/HONG KONG/PUSAN/KWANGYANG/SINGAPORE/LAEM CHABANG/CAI MEP - SSIT/HAIPHONG INTERNATIONAL GATEWAY PORT/TOKYO/KOBE/NAGOYA/KAOHSIUNG

Best Regards,
 Cindy Oakes | YANG MING (AMERICA) CORP | TEL: 281.295.9143 (DIRECT)
 Please consider the environment before printing this email

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Monday, May 10, 2021 2:25 PM
To: Cindy Oakes - chi sls <CindyOakes@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021
You mean Vancouver port only?

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Cindy Oakes - chi sls <CindyOakes@us.yangming.com>
Sent: Monday, May 10, 2021 12:41 PM
To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021

Rochi,
We only accept port to port reefer service. We do not have REEFER equipment at inland.
Best Regards,

 Cindy Oakes | YANG MING (AMERICA) CORP | TEL: 281.295.9143 (DIRECT)
 Please consider the environment before printing this email
From: Rochi Mirasol <rmirasol@msrf.com>

RX_000292

Sent: Monday, May 10, 2021 12:38 PM
To: Cindy Oakes - chi sls <CindyOakes@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021
Please see attached signed amendment.
Can you please provide a rate quote for a reefer.
Thank you

Rochi Mirasol **PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED**

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rochi Mirasol
Sent: Monday, May 10, 2021 11:44 AM
To: Cindy Oakes - chi sls <CindyOakes@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021
yes

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Cindy Oakes - chi sls <CindyOakes@us.yangming.com>
Sent: Monday, May 10, 2021 11:38 AM
To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021
Hi Rochi,
Would you confirm if we can file attached AMD#2? Below rate has added to SC:

14CGNS	TORONTO,ON	VANCOUVER,BC	QINGDAO	
--------	------------	--------------	---------	--

Best Regards,
Cindy Oakes | YANG MING (AMERICA) CORP | TEL: 281.295.9143 (DIRECT)
Please consider the environment before printing this email

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Monday, May 10, 2021 10:20 AM
To: Cindy Oakes - chi sls <CindyOakes@us.yangming.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021
Paul,
Are we subject for the GRI?

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Cindy Oakes - chi sls <CindyOakes@us.yangming.com>
Sent: Monday, May 10, 2021 10:19 AM
To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021
Rochi,
I will add below rate to SC. The early rate Paul provided to you does not include 5/1 GRI.

Commodity	Origin	POL	RY000293	Destination
-----------	--------	-----	----------	-------------

14CGNS/10CHEM/9RESIN/6CLAY/14FAK	MONTREAL, QC/TORONTO, ON	VANCOUVER, BC		QINGDAO

Best Regards,

 Cindy Oakes | YANG MING (AMERICA) CORP | TEL: 281.295.9143 (DIRECT)

 Please consider the environment before printing this email

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Friday, May 7, 2021 3:43 PM

To: Rochi Mirasol <rmirasol@msrf.com>; Diane Liao - chi sls <dianeliao@us.yangming.com>; Cindy Oakes - chi sls <CindyOakes@us.yangming.com>

Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021

Rochi,

Best Choice is the equipment depot location for 40'DC and 40'HC in Kleinburg, Ontario Canada...

To Diane and Cindy at YM's Inside Sales,

Can you please file these new TPWB rates for MSRF, Inc (494721)?

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region



Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Sent: Friday, May 7, 2021 3:34 PM

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Cindy Oakes - chi sls <CindyOakes@us.yangming.com>

Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021

Paul,

Go ahead and file. Who is this Best Choice? Your trucker?

For 40DC/40HQ equipment Best Choice express and delivery

11339 Albion Vaughan Road.

Kleinburg, Ontario

L0J 1C0

Tel: 647-288-2850

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>

Sent: Friday, May 7, 2021 3:00 PM

To: Rochi Mirasol <rmirasol@msrf.com>

Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Cindy Oakes - chi sls <CindyOakes@us.yangming.com>

Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021

Hi Rochi,

Yang Ming's Canada EQ team advised the following information. Please advise if you want us to file these new rates??

Please see below:

For 40DC/40HQ equipment Best Choice express and delivery

11339 Albion Vaughan Road.

Kleinburg, Ontario

L0J 1C0

Tel: 647-288-2850

For 20DC/45'HQ equipment = CP Vaughan

RX_000294

CONFIDENTIAL

MSRF_YANG MING_0004070

Return location:
CP Vaughan if the loading port is Vancouver – Deltaport
Regards,
Tieu Ngo

Yang Ming Shipping (Canada) Ltd
1130 West Pender Street, Suite 380, Vancouver, BC V6E 4A4
(604 692 2050 | 7 604 681 3200 | * ngotieuucuong@ca.yangming.com
Website : www.yangming.com/canada
Best Regards,

Paul Goeke
Account Manager (Sales) - Chicago Region

YANG MING
Yang Ming (America) Corporation
PaulGoeke@us.yangming.com
(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>
Sent: Friday, May 7, 2021 11:49 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Cindy Oakes - chi sls <CindyOakes@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021

Hello Paul,
Toronto is fine according to the manufacturer because his factory is only 30 minutes away. Where exactly is the container yard for the empty and where is the full container going to be drop off? Please advise so I can ask the manufacturer to use his trucker.

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Rochi Mirasol
Sent: Friday, May 7, 2021 10:40 AM
To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Cindy Oakes - chi sls <CindyOakes@us.yangming.com>
Subject: RE: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021
The problem is, we do not know any trucker in Canada to pick up an empty from Toronto to move/load to Mississauga and back to Toronto?

Rochi Mirasol
MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>
Sent: Thursday, May 6, 2021 11:00 PM
To: Rochi Mirasol <rmirasol@msrf.com>
Cc: Diane Liao - chi sls <dianeliao@us.yangming.com>; Cindy Oakes - chi sls <CindyOakes@us.yangming.com>
Subject: Yang Ming's New Rates from CY Toronto, Ontario, Canada to CY Qingdao, China for MRSF, Inc (494721)=5.6.2021

Hi Rochi,
Due to a shortage of trucking power in Canada the best that Yang Ming can offer is CY Toronto, ON via Vancouver to CY Qingdao, China. Please advise if these new rates are acceptable so that we can add to MSRF's current contract (494721)?

Commodity	Origin	POL
14CGNS//14FAK	TORONTO,ON	VANCOUVER,BC
		RX_000295

Subject to ODF, destination charges and all future GRI's..

Place	Country	Location	CHARGE	DESCRIPTION	CURRENCY	BASIS	APPLICATION
Origin	US	All	ODF	Origin Doc Fee	USD	PER B/L	

Place	Country	Location	CHARGE	DESCRIPTION	CURRENCY	BASIS
DEST	CHINA	All	AH	Advance Manifest Filing Submission Fee	USD	PER B/L
DEST	China	All	DDF	Destination Doc Fee	RMB	PER B/L
DEST	China	All	DTHC	Destination THC Charge	RMB	PER CNTR TYPE

Best Regards,

Paul Goeke

Account Manager (Sales) - Chicago Region

YANG MING

Yang Ming (America) Corporation

PaulGoeke@us.yangming.com

(630) 335-4827 (Mobile)

From: Rochi Mirasol <rmirasol@msrf.com>

Date: May 6, 2021 at 3:18:13 PM CDT

To: Paul Goeke - chi sls <PaulGoeke@us.yangming.com>, Diane Liao - chi sls <dianeliao@us.yangming.com>

Subject: FW: Ontario, Canada to Qingdao

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi Paul,

We will have few containers from Ontario, Canada to Qingdao, China. Can you please give me a rate quote (DR/CY). Thank you

5185 Tomken Road
Mississauga, Ontario
L4W 1P1 Canada

Rochi Mirasol

MSRF, Inc.

3319 N. Elston Ave. | Chicago, IL 60618

T: (773)227-1115 x310 | F: (773)227-2031

Email: Rmirasol@msrf.com

RX_000296

To: Rochi Mirasol[rmirasol@msrf.com]
Cc: Jeff Reich[jreich@msrf.com]; David Reich[dreich@msrf.com]
From: salebj@wyhongfan.com[salebj@wyhongfan.com]
Sent: Thur 4/28/2022 1:23:41 AM (UTC)
Subject: Re: RE: Booking arrangement for 515B

Hello Rochi,

Well noted with thanks.

Stephone
salebj@wyhongfan.com

From: Rochi Mirasol
Date: 2022-04-27 23:48
To: 'salebj@wyhongfan.com'
CC: Jeff Reich; David Reich
Subject: RE: Booking arrangement for 515B

Hello Stephone,

For the inline inspections – Yes, it's by batch

Only use Evergreen **SC89086**. We no longer have SC with YML and HMM

Rochi Mirasol

MSRF, Inc.
3319 N. Elston Ave. | Chicago, IL 60618
T: (773)227-1115 x310 | F: (773)227-2031
Email: Rmirasol@msrf.com

From: salebj@wyhongfan.com <salebj@wyhongfan.com>
Sent: Wednesday, April 27, 2022 4:42 AM
To: Rochi Mirasol <rmirasol@msrf.com>
Subject: Booking arrangement for 515B

Dear Rochi,

Hope everything goes well.

Based on the sample of 515B was confirmed on Apr 22nd, the first batch of goods(2*40HQ) will be shipped around May 20.

We need your advice on two issues.

1. Do you need to in-line inspection for each batch goods?

2. For booking vessel, we have 3 SC# as below. In order to improve booking efficiency, please advise which shipping company should be preferred. As nVOCC does not provide good booking service in 2021, please let us know if there is a new option this year. Also please advise whether nvocc or SC# is preferred for booking. Thank you.

The new Evergreen SC # is: **SC89086**

YangMing – 494721

Hyundai – US2124083

6. Declaration of Paul Goeke

Before the
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-21

MSRF, INC. v. YANG MING MARINE TRANSPORT CORPORATION

DECLARATION OF PAUL GOEKE
IN SUPPORT OF
RESPONDENT'S PROPOSED FINDINGS OF FACT

PAUL GOEKE, hereby declares as follows:

1. I am a Senior Account Executive/Sales Representative for Yang Ming (America) Corporation, United States agent for Yang Ming Marine Transport Corporation (“Yang Ming” or “Respondent”).
2. I have been employed by Yang Ming for over six (6) years. Prior to my current employment, I served in similar roles for other ocean common carriers providing ocean common carriage in the U.S. foreign trades, namely Hanjin, CP Ships, and Canada Maritime.
3. I have over twenty (20) years of experience in this field.
4. I have personal knowledge of the facts set forth herein, and am fully familiar with the proceedings in this case.
5. I have reviewed Service Contract No. 494721 (“Service Contract”) and its amendments, which are kept by Yang Ming as records in the regular course of business.

6. I have reviewed the lifting reports for the Service Contract (**Exhibit A** to this Declaration) which show the cargo that was moved for MSRF by Yang Ming, by onboard date, origin and destination under the Service Contract, and which are kept by Yang Ming as records in the regular course of business.
7. I submit this Declaration in support of Yang Ming's Brief in Opposition to MSRF, Inc.'s ("MSRF") Opening Brief, Yang Ming's Replies to MSRF's Proposed Findings of Fact, and Yang Ming's Proposed Findings of Fact..
8. I am the sales representative assigned to serve MSRF, Inc.'s account.
9. On behalf of Yang Ming, I helped prepare and communicate responses to MSRF's requests for proposal ("RFP") for an ocean carriage service contract in 2020.
10. MSRF did not select Yang Ming in 2020 and did not conclude a service contract with Yang Ming in 2020.
11. In February, 2021, I helped prepare Yang Ming's response to MSRF's 2021 RFP.
12. MSRF's 2021 RFP requested bids for service for 100 TEUs from the United States to China and from China to the United States for the term May 1, 2021 to April 30, 2022.
13. When I asked for its forecasted volumes in February, 2021, MSRF stated that it could not tell me what its total cargo volumes would be between May 1, 2021 and April 30, 2022.
14. The Service Contract was the first time that MSRF selected Yang Ming as a service contract carrier.
15. The Service Contract was filed with the Federal Maritime Commission on April 18, 2023.
16. The effective date of the Service Contract was May 1, 2021 and the expiration date was April 30, 2022.

17. The Service Contract was amended by mutual agreement of Yang Ming and MSRF seven times, as follows:
18. Amendment No. 1 added ocean freight rates for Westbound shipments from origin Lockport, IL (effective May 1, 2021).
19. Amendment No. 2 added ocean freight rates for Eastbound destination Toronto, Ontario (Canada)(effective May 12-June 30, 2021).
20. On May 19, 2021, in light of the fact that MSRF was having difficulties obtaining bookings for door movements, I suggested that MSRF add port to port freight rates for import cargo to Long Beach. Amendment No. 3, adding such rates, was agreed to and became effective on May 20, 2021.
21. Amendment No. 4, effective July 6, 2021, modified carriage terms to ensure MSRF would not be charged a General Rate Increase.
22. In September, 2021, one of MSRF's Chinese agents tried to book cargo with Yang Ming from Shanghai to Tacoma. Because that routing was not provided for in the Service Contract, it could not be booked under it. Yang Ming suggested to MSRF that the new rates be added to the Service Contract and Amendment No. 5 effective on September 2, 2021, provided port to port rates from Shanghai to Tacoma.
23. Amendment No. 6, effective October 30, 2021, terminated the door freight rates for service from China to U.S. inland locations Alsip, IL, Bedford Park, IL, Des Plaines, IL, and Itasca, IL. Rates to the container yard (CY) in Chicago, IL remained and enabled MSRF to use a trucker of its choice.
24. Amendment No. 7 was filed with the Federal Maritime Commission on April 18, 2022. Amendment No. 7 revised the MQC from 100 TEUs to 10 TEUs.

25. The Service Contract expired on April 30, 2022.
26. Yang Ming carried a total of 17 TEUs of MSRF's cargo under the Service Contract between May 1, 2021 and April 30, 2022. **Exhibit A** (lifting report)
27. For U.S. imports, MSRF authorized its agents overseas to book cargo directly with Yang Ming. This was done by MSRF providing the ocean carrier Service Contract number to MSRF's overseas consignors.
28. For U.S. exports, MSRF authorized its agent (Schmidt, Pritchard) to book cargo directly with Yang Ming.
29. I communicated with MSRF and its agents on a constant basis during the term of the Service Contract.
30. Although I made MSRF aware of the space constraints and need for forecasts and early bookings, MSRF made late attempts to book cargo for carriage from Qingdao to the U.S. For example, on April 22, 2021, MSRF asked Yang Ming for space on May sailings from Qingdao. Yang Ming's sailings in May from Qingdao were already completely booked by April 22, 2021. And on May 25, 2021, MSRF asked Yang Ming for space on June sailings from Qingdao. Yang Ming's sailings from Qingdao through the end of May to mid-June by the time MSRF requested it on May 25, 2021.
31. Due to China's "zero-COVID" policy, several of the ports in the vessel rotations that served the geographic scope of Service Contract No. 494721 were essentially shutdown in 2021, some for over two months. These disruptions and closures required changes to Yang Ming's scheduled deployments of vessels, its vessel calls and schedules, and negatively affected its service.

32. Because of port closures that interrupted schedules and congestion at both U.S. and foreign ports, Yang Ming's available capacity was effectively constrained in 2021-2022.
33. Between May 1, 2021 and April 30, 2022 I advised MSRF on numerous occasions of the service disruptions caused by COVID-19 and related port closures that had the impact of decreasing Yang Ming's effective capacity. I explained that the closure or congestion at one port affected other ports in the service. I also explained to MSRF that when a vessel call is blanked, the cargo that would have been served by that vessel call would be assigned to the next vessel, causing a cascade of delays.
34. I suggested numerous times that MSRF consider alternative ports of loading and alternative routing for MSRF's import cargo besides Qingdao; I asked MSRF if it had any other origin locations in China other than Qingdao and Ningbo. I attempted to assist MSRF find alternate routings for its cargo, such as Xiamen and Yantian.
35. Nevertheless, MSRF only booked cargo to and from Qingdao. **Exhibit A** (lifting report).
36. Cargo bookings are made with the local office at the port of loading. So, for example, MSRF's agent for U.S. exports (Schmidt, Pritchard) made bookings with Yang Ming (America)(Yang Ming's U.S. agent), and MSRF's agents for Chinese exports (Qingdao Giftpackers and Waifang Kaimax) made bookings with Yang Ming's Chinese agency.
37. MSRF agents both in the U.S. and China were frequently unclear on MSRF's instructions.
38. Until August, 2021, MSRF had not given its Chinese agents, who were instructed to book directly with Yang Ming, the correct service contract number; as a result they were unable to book cargo. Later, MSRF's agent in China tried to make a booking for service that was not authorized by Service Contract No. 494721.

39. In October, 2021, MSRF's customer-nominated trucker, Forward Air, cut ties with MSRF and refused to carry MSRF cargo. This happened after the cargo had been loaded at origin in China; I worked to ensure that an amendment to the Service Contract was filed so that the change of destination (C.O.D.) to the container yard (CY) in Chicago (rather than to the door) could be rated on the move. This was Amendment No 6.
40. Yang Ming carried shipments of MSRF cargo in July, August, September, 2021 and in April, 2022 under the Service Contract. **Exhibit A** (lifting report)
41. MSRF cancelled bookings it had made with Yang Ming during the term of the Service Contract.
42. MSRF asked me if, by paying more than the ocean freight rates agreed in Service Contract No. 494721, Yang Ming would guarantee that MSRF could confirm bookings whenever they were requested. I responded that was not Yang Ming's policy and that it would not accept more than the filed and applicable service contract rates.
43. In my experience, Yang Ming never refused to provide MSRF service if it had space and equipment; if Yang Ming didn't give space, it was because they had none, or no equipment.
44. Yang Ming and MSRF agreed to a service contract in April, 2022 for the 2022-2023 shipping year.

I declare that the foregoing is true and correct to the best of my knowledge and belief.

Dated: 06 / 12 / 2023

Signed: 

EXHIBIT A

<u>TPEB</u>								
Shpvoy	B/L No	Bizcase	Service Requi	Accept Date	OB Date	Year	Month	Week
PN4127E	W240280267	494721	YD	7/8/2021	7/12/2021	2021	07	28
PN4129E	W240280586	494721	YD	7/22/2021	7/25/2021	2021	07	29
PS6128E	W240281250	494721	YY	8/5/2021	8/14/2021	2021	08	32
PN4136E	W240283287	494721	YD	9/12/2021	9/18/2021	2021	09	37
PS6214E	W240292730	494721	YY	4/15/2022	4/22/2022	2022	04	16

<u>TPWB</u>								
EC2119W	E165338910	494721	DY	6/30/2021	7/6/2021	2021	07	27
EC2203W	E165346988	494721	DY	4/14/2022	4/19/2022	2022	04	16
EC2203W	E165346989	494721	DY	4/14/2022	4/19/2022	2022	04	16

POR	POR Name	LPort	LPort Name	DPort	DPort Name	POD	Pod Name	State
CNTAO	QINGDAO	CNTAO	QINGDAO	USTIW	TACOMA	USITS	ITASCA	IL
CNTAO	QINGDAO	CNTAO	QINGDAO	USTIW	TACOMA	USITS	ITASCA	IL
CNTAO	QINGDAO	CNTAO	QINGDAO	USLAX	LOS ANGEL	USLAX	LOS ANGELES	CA
CNTAO	QINGDAO	CNTAO	QINGDAO	USTIW	TACOMA	USITS	ITASCA	IL
CNTAO	QINGDAO	CNTAO	QINGDAO	USLAX	LOS ANGEL	USLAX	LOS ANGELES	CA

USFOR	FORT MILL	USCHS	CHARLESTO	CNTAO	QINGDAO	CNTAO	QINGDAO	SD
USFOR	FORT MILL	USCHS	CHARLESTO	CNTAO	QINGDAO	CNTAO	QINGDAO	SD
USFOR	FORT MILL	USCHS	CHARLESTO	CNTAO	QINGDAO	CNTAO	QINGDAO	SD

PUBLIC VERSION - CONFIDENTIAL MATERIALS EXCLUDED

Shipper	Consignee	Goods Cate	Num20F	Num40F	Num45F	Teu	A/I RATES	DDC_A/I RATES
QINGDAO GIF	MSRF INC.	A	0.00	1.00	0.00	2.25		
QINGDAO GIF	MSRF INC.	A	0.00	1.00	0.00	2.25		
QINGDAO GIF	MSRF INC.	A	0.00	1.00	0.00	2.25		
QINGDAO GIF	MSRF INC.	A	0.00	1.00	0.00	2.00		5,841.00
QINGDAO GIF	MSRF INC.	A	0.00	1.00	0.00	2.25		
						11.00		
MSRF, INC.	QINGDAO G	14CGNS	0.00	1.00	0.00	2.00		
MSRF INC.	QINGDAO G	14CGNS	0.00	1.00	0.00	2.00		
MSRF INC.	WEIFANG K	14CGNS	0.00	1.00	0.00	2.00		
						6.00		

7. Unpublished Decisions

2005 FMC LEXIS 16

Federal Maritime Commission

July 11, 2005

Docket No. 89-26

Federal Maritime Commission Decisions

Reporter

2005 FMC LEXIS 16 *

The Government of the Territory of Guam, Complainant, v. Sea-Land Service, Inc. and American President Lines, Ltd., Respondents.

Core Terms

reparation, shipment, dismissal order, tariff, methodology, phase, horizon, commodity, carrier, rate of return, reasonable rate, calculate, unreasonable rate, ship, port-to-port, shipper, overcharge, unjust, initial decision, commodity rate, proportional, trade-wide, transport, bifurcate, domestic, reply, cancelled, refund, territory, freight

Opinion By: [*1] Bryant L. VanBrakle, Secretary

Opinion

ORDER DENYING EXCEPTIONS TO 2002 DISMISSAL ORDER AND 2003 INITIAL DECISION, DENYING REPARATIONS, AND DISMISSING THE PROCEEDING

BY THE COMMISSION: Steven R. BLUST, *Chairman*; A. Paul ANDERSON, Harold J. CREEL, Rebecca F. DYE, *Commissioners*; Commissioner Joseph BRENNAN, concurring and dissenting.

INTRODUCTION

This proceeding was initiated by a complaint filed with the Federal Maritime Commission ("FMC" or "Commission") by the Government of the Territory of Guam ("GovGuam" or "Complainant") against American President Lines, Ltd. ("APL") and Sea-Land Service, Inc. ("Sea-Land" or "Horizon Lines")¹ (collectively referred to as "Respondents").

The complaint consisted of four counts. In Count I, GovGuam alleged that APL and Sea-Land charged unjust and unreasonable rates pursuant to tariffs filed with the Commission. GovGuam

¹ Horizon Lines, LLC is Sea-Land's successor-in-interest. Horizon Lines filed exceptions to the 2003 Initial Decision; therefore, we will reference both entities interchangeably in this Order.

RX_000310

also averred that Sea-Land charged unjust and unreasonable port-to-port rates after it canceled its FMC tariffs.² GovGuam contended that APL and Sea-Land charged similarly situated shippers different rates and charges. Finally, GovGuam alleged that APL and Sea-Land charged unjust and unreasonable demurrage charges, and engaged in unreasonable preference and prejudice with respect to the assessment of demurrage fees.

In Count II, GovGuam alleged that APL and Sea-Land unjustly and unreasonably increased rates on 18 tariff [*2] items.

In Count III, GovGuam alleged that Sea-Land continued to operate port-to-port between the U.S. West Coast and Guam after withdrawing from the Guam Rate Agreement tariff.

In Count IV, GovGuam alleged that Sea-Land continued to operate port-to-port between Hawaii and Guam after canceling its applicable FMC tariff.

The proceeding was assigned to an administrative law judge ("ALJ") and discovery commenced. On GovGuam's motion, the ALJ bifurcated the proceeding into liability and reparations phases, Phase I and Phase II, respectively. The ALJ issued an Initial Decision addressing liability in 1996. GovGuam filed exceptions to the 1996 Initial Decision, to which APL and Sea-Land filed replies.

In 1998, the Commission issued an Order, The Government of the Territory of Guam v. Sea-Land Service, Inc. and American President Lines, Ltd., 28 SRR 252 (1998) ("1998 FMC Order"), in which the Commission determined that Respondents' rates were unreasonable for the years 1988-1990. The Commission remanded the proceeding to the ALJ "for a determination of the reparations due Complainants, and to quantify the number of Sea-Land containers subject to the Commission's jurisdiction." 28 SRR at 267.

Following the 1998 FMC Order, GovGuam and Respondents submitted evidence, including expert testimony regarding what reparations were owed GovGuam. APL and Horizon Lines each filed motions to dismiss, seeking dismissal of 517 APL shipments and 257 Sea-Land shipments based on a lack of standing and the inadequacy of GovGuam's evidence. The ALJ granted Respondents' motions, thereby decreasing the number of shipments for which GovGuam could recover reparations [*3] to 37 APL shipments and 5 Sea-Land shipments. The Government of the Territory of Guam v. Sea-Land Serv., Inc. and American President Lines, Ltd. - Respondents' Motions for Dismissal of Specified Claims Granted; Proceeding Assigned for Conference; Respondents to Prepare Draft Orders, 29 SRR 894 (administratively final, May 22, 2002) ("2002 Dismissal Order").³

On August, 29, 2003, the ALJ issued an Initial Decision ("2003 I.D.") on remand from the 1998 FMC Order. The ALJ found that GovGuam failed to demonstrate what the "just and reasonable

² APL and Sea-Land were parties to the Guam Rate Agreement tariff, in the trade between the U.S. mainland and Guam. Sea-Land also had a tariff covering the Hawaii-Guam trade. However, Sea-Land withdrew from the Guam Rate Agreement tariff and canceled its Hawaii-Guam tariff on June 22, 1989. After that date, it had no FMC tariffs covering the Guam trade. APL also terminated its participation in the Guam Rate Agreement tariff, but substituted an individual tariff.

³ The ALJ issued two dismissal orders, dated March 27, 2002 and April 16, 2002. These two orders were consolidated and became administratively final on May 22, 2002; therefore, we reference only the single administratively final order.

rate" for any shipment at issue would have been, and therefore, denied GovGuam's request for an award of reparations and dismissed the complaint. The Government of the Territory of Guam v. Sea-Land Serv., Inc. and American President Lines, Ltd., 29 SRR 1509 (ALJ 2003).

GovGuam filed exceptions to the 2003 I.D. on December 1, 2003. ⁴

GovGuam contends, inter alia, that the ALJ in his 2002 Dismissal Order dismissed many of the claims based upon two findings: failure to provide sufficient evidence that it paid for 517 APL shipments and 297 Sea-Land shipments, specifically GovGuam's inability to submit cancelled checks; and GovGuam's failure to show "economic harm." GovGuam's Exceptions at 63-64.

APL and Horizon Lines filed replies to GovGuam's exceptions. Both Respondents assert that GovGuam's exceptions to the 2002 Dismissal Order should be denied for untimeliness. APL and Horizon Lines aver that GovGuam is not entitled to an award of reparations, even though the Commission found that Respondents earned an excessive overall rate of return.

This proceeding is presently before the Commission on exceptions for the purpose of [*4] determining: (1) whether the ALJ properly granted Respondents' motions to dismiss specified claims; and (2) whether the 2003 I.D., which denied reparations and dismissed GovGuam's complaint, is properly grounded. For the reasons set forth below, we deny GovGuam's exceptions to the 2002 Dismissal Order and the 2003 Initial Decision. Furthermore, we affirm the 2003 I.D. denying reparations and dismissing GovGuam's complaint.

BACKGROUND

A. Shipping Act, 1916 and the Intercoastal Shipping Act, 1933

The Shipping Act, 1916 ("1916 Act"), 46 U.S.C. app. § 801 et seq., as amended, and the Intercoastal Shipping Act, 1933, ("1933 Act"), 46 U.S.C. app. § 843 et seq., as amended, [Pub. L. No. 95-475](#), [92 Stat. 1494](#) (1978) ("1978 Amendments"), were the statutes at issue in this case. The relevant provisions of the 1916 Act required carriers in the domestic offshore trades to have "reasonable" rates, authorized the Commission to investigate violations, and provided that persons may file complaints seeking reparations for violations. The 1933 Act allowed the Commission to create "guidelines" for determining "reasonable rates of return" for carriers in the domestic offshore trades, and permitted the Commission to investigate, suspend and/or refund changes in rates, i.e., general rate increases ("GRI") or decreases, but not pre-existing rates. ⁵

⁴ We note that GovGuam excepts to both the 2002 Dismissal Order and the 2003 I.D. Pursuant to 46 C.F.R. § 502.227(a)(1), a party may file exceptions within 22 days after the date of service of the initial decision or order of dismissal. GovGuam filed its exceptions to the 2002 Dismissal Order approximately a year and a half after April 16, 2002, the date of service of the 2002 Dismissal Order, which became administratively final on May 22, 2002. The 2003 I.D. was served on August 29, 2003. GovGuam's exceptions to the 2003 I.D., as well as APL's and Horizon Lines' replies, were timely filed.

⁵ Section 1 of the 1933 Act defined a General Rate Increase as "any change in rates. . . which will (A) result in an increase in not less than 50 per centum of the total rate. . . items in the tariffs per trade of any common carrier by water in intercoastal commerce; and (B) directly result in an increase in gross revenues of such carrier for the particular trade of not less than 3 per centum." 46 U.S.C. app. § 843(2).

Both statutes have [*5] since been repealed, and jurisdiction over domestic offshore trades now lies with the Surface Transportation Board. ⁶

B. The 1998 FMC Order

In the 1998 FMC Order, the Commission made several pertinent findings. First, the Commission held that port-to-port cargo movements were subject to the FMC's jurisdiction. Second, the Commission found that GovGuam had the ultimate burden of proof to demonstrate that Respondents' trade-wide revenues were excessive under General Order 11 ("G.O. 11"), but that Respondents bore the burden of demonstrating that a financial methodology other than that found in the Commission's G.O. 11 would achieve a fair and reasonable result. ⁷

Third, the Commission found that the methodology submitted by APL was not an appropriate method to determine whether Respondents' rate levels were just and reasonable. Fourth, the Commission found that the comparable earnings test was the appropriate methodology to determine whether Respondents' rates were just and reasonable. Fifth, the Commission found that a rate of return analysis was unsuitable for challenging the reasonableness of individual commodity rates. Lastly, the Commission found that APL exceeded the allowable rate of return for 1988, 1989, and 1990; and Sea-Land exceeded the allowable rate of return for 1988 and 1989. 28 SRR at 287-88.

C. 2002 Dismissal Order

On March 27, 2002, the ALJ issued an order granting Respondents' motions for dismissal of specified claims. 2002 Dismissal Order, 29 SRR at 894. With respect to jurisdiction, the ALJ dismissed certain shipments based largely upon the following rationales. First, the ALJ noted that certain shipments were beyond the scope of the litigation because they were either interior point intermodal movements or shipments whose ultimate destinations were beyond Guam. *Id.* at 907. These shipments included 50 shipments to Saipan, and 17 shipments that APL received at U.S. East Coast or inland points that GovGuam failed to demonstrate were shipped in the FMC's jurisdiction. *Id.* Second, the ALJ dismissed certain APL shipments, finding that because they originated in Singapore and Canada, and therefore, were from one foreign destination to another rather than between two places in the United States, they were not subject to the Commission's jurisdiction. *Id.*

D. 2003 Initial Decision

In 2003, the ALJ issued an I.D. on remand from the Commission's 1998 FMC Order. The issues to be determined were: (1) the number of port-to-port shipments over which the Commission had jurisdiction; (2) whether Complainant had injuries and damages resulting from Sea-Land's failure to file a tariff concerning these shipments; and (3) what reparations, if any, Respondents owed GovGuam. 29 SRR at 1553.

⁶ All the relevant statutory provisions of the 1916 and 1933 Acts were repealed, effective September 30, 1996, by the Interstate Commerce Commission Termination Act, **Pub. L. No. 104-88, 109 Stat. 803** (1995).

⁷ The Commission's regulations governing financial reports of vessel-operating common carriers in the domestic offshore trades, such as the Guam-U.S. trade, were designated originally as G.O. 11, which has been used generally over the years and in this proceeding even though that designation was superseded by Part 552 of Title 46, Code of Federal Regulations.

1. Jurisdiction

In determining the number of port-to-port shipments, the ALJ concluded that GovGuam provided no evidence to deduce the number of port-to-port movements over which the Commission had jurisdiction. The ALJ noted that GovGuam failed to address Sea-Land's contention regarding a lack of jurisdiction over post-June 23, 1989 shipments. Consequently, the ALJ held that any jurisdictional claims GovGuam had were abandoned and would not be considered further in the proceeding. Id.

2. Number of Sea-Land containers and Sea-Land's failure to file a tariff covering port-to-port shipments

The ALJ concluded that GovGuam provided no evidence in Phase [*6] II quantifying the number of Sea-Land port-to-port containers. The ALJ also found that GovGuam failed to respond to Horizon Line's assertion that GovGuam could not collect reparations on shipments occurring after June 23, 1989, because GovGuam failed to identify such shipments and, hence, failed to establish Commission jurisdiction over them.

3. Reparations

With respect to reparations, the ALJ discussed three issues: first, whether GovGuam may seek reparations for violations of section 18 of the 1916 Act or section 3 of the 1933 Act; second, whether the Commission must award reparations if a complainant pays an unjust or unreasonable rate pursuant to section 22 of the 1916 Act; and third, whether GovGuam met the evidential burden necessary to recover reparations.

a. Burden of proof

On remand, the ALJ found that GovGuam did not meet its burden of proving what the "just and reasonable rates" would have been for the commodities shipped by GovGuam, and therefore, denied GovGuam's request for reparations and ordered the complaint dismissed. Id. at 1563. The ALJ stated that, in accordance with section 4 of the 1933 Act, GovGuam must show the following in order to obtain reparations:

[t]hat upon such finding of unjustness or unreasonableness [*7] in a proceeding instituted by complainant pursuant to the provisions of section 22 of the Shipping Act, 1916, the Commission shall direct full reparation to the complainant of the difference between the charge collected and the just and reasonable rate, fare, or charge, plus interest.

Id. at 1562. (citing 46 U.S.C. app. § 845A) (emphasis added).

In order for reparations to be awarded under section 22 of the 1916 Act, the ALJ also determined that Commission and judicial precedent require a complainant to prove that: (1) it has suffered an injury; and (2) the proximate cause of the injury is the statutory violation found by the Commission. Id. at 1563.

The ALJ found that GovGuam did not prove that the proximate cause of its alleged injury was due to the unreasonable rates charged by Respondents. The ALJ determined that GovGuam's methodology for calculating reparations did not meet the requirements of section 4 of the 1933

Act (i.e., the difference between the amounts paid to the Respondents and the "just and reasonable" rates that should have been charged for each of GovGuam's shipments) . 29 SRR at 1563.

b. Guam's methodology for calculating reparations

The ALJ found that GovGuam's methodology used a rate of return, or general revenue, analysis that relied on a single, proportional, overcharge percentage derived by GovGuam from the trade-wide revenues, which the Commission found unreasonable in its 1998 FMC Order. *Id.* at 1557. GovGuam's revenue proportionality methodology is described in APL's findings of fact, which were adopted by the ALJ:

[c]omplainants rely on the Affidavit of Dr. [*8] Nadel [GovGuam's expert witness] which asserts that reparations for the complainants' shipments should be calculated as follows: (i) For every year, the entirety of the carrier's annual trade-wide after-tax "excess return" as calculated in Appendix 10 of the 6/1/98 [Commission] Decision should be converted to "excess revenue" by grossing up to pre-tax dollars. (ii) The entirety of this trade-wide excess revenue should be considered "overcharges" to be refunded to shippers. (iii) For every year, the ratio of the carrier's excess revenue to its actual revenue should be deemed to constitute an "overcharge percentage." (iv) For any given shipment by any given shipper during any given year, damages equal the annual overcharge percentage times total Bill of Lading. . . revenue for the shipment (plus interest).

29 SRR at 1510.

c. The ALJ's reparations methodology and rejection of GovGuam's methodology

The ALJ ruled that, rather than GovGuam's methodology, the "just and reasonable" rates must be determined by individually analyzing the commodity rates for each of the shipments made by GovGuam, taking into consideration traditional rate-making factors such as: (1) the general economic conditions in the trade; (2) market and competitive forces in the trade; (3) physical and economic characteristics of the product involved, including its value; (4) the volume moved; (5) commodity-specific expenses; (6) the relationship of the commodity rate to other rates in the tariff; and (7) the sensitivity of the volume shipped to rates. 29 SRR at 1510-11, 1557, 1559.

The ALJ found that GovGuam considered alternative methods for determining the difference between the unreasonable rates collected by Respondents and the "just and reasonable" rates, including physical measure of cargo, costs and other transportation characteristics. Nonetheless, GovGuam based its claim for reparations solely on its revenue proportionality methodology. *Id.* at 1557. The ALJ opined [*9] that the record in the case before him "does not support the conclusion that substituting revenue evidence for rate evidence comports with the requirement of the statute to establish 'the just and reasonable rate.'" *Id.* at 1559 (emphasis added).

The ALJ rejected GovGuam's contention that the Commission, in its 1998 FMC Order, required the use of a proportional methodology such as that employed by GovGuam. *Id.* at 1559. The ALJ found that GovGuam had taken several sentences in the Commission's 1998 FMC Order

out of context in order to arrive at the conclusion that the Commission called for an equiproportional method of calculating damages. Id.

The sentences from the Commission's 1998 FMC Order that the ALJ found to be taken out of context by GovGuam are underscored below:

The ALJ and APL are correct. The increase of eighteen commodity rates (1) changed the relationship of rates in the tariff of the Guam Rate Agreement, and (2) increased the revenue to the member lines. The rate of return analysis in this case addresses APL's overall rate of return but it does not address the relationship of individual rates in the Guam Rate Agreement tariff. If APL's revenues are found to produce an excessive rate of return, each commodity rate in the tariff would be excessive by the same percentage. In other words, the eighteen commodity rates would be excessive by the same percentage as every other commodity rate in the tariff. Likewise, any reparations would be borne equally by each commodity rate including the eighteen [*10] commodity rates in question. The relationship of the eighteen commodity rates to the other rates in the tariff would remain unchanged. In sum, under a rate of return analysis, the eighteen commodity rates are no less reasonable than any other rate in the Guam Rate Agreement tariff. Because we reject GovGuam's legal theory that a rate of return analysis can be used to determine the reasonableness of individual commodity rates, it is unnecessary for us to reach the various contentions advanced by the parties regarding the appropriate accounting methodology to determine the costs attributable to the carriage of the eighteen commodities.

1998 FMC Order, 28 SRR at 288 (footnote omitted).

The ALJ found that the underscored sentences in the foregoing quotation were a paraphrase by the Commission of GovGuam's argument that a general revenue analysis must be used to determine whether the eighteen individual rates (increased by Respondents in 1989) were unreasonable. The ALJ further found that the Commission had clearly rejected a rate of return analysis with respect to individual rates in that same paragraph, as well as in the footnote to that paragraph, and that the sentences did not announce a new method of calculating reparations in this [*11] proceeding. 2003 I.D., 29 SRR at 1558, 1560.

The ALJ also rejected GovGuam's argument that it is appropriate to use a proportional method to determine reparations because the Commission uses a proportional calculation when ordering refunds after making findings of excess rates of returns in Commission initiated proceedings (to determine whether rates were just and reasonable). The ALJ found that there was no basis to borrow the refund methodology used in Commission initiated proceedings to apply in this complaint proceeding where no GRI, uniform or otherwise, had been shown by GovGuam to have been taken by either of the Respondents. Id. at 1560.

d. The reparations methodology applied in *Matson 1979*

The ALJ found that Matson Navigation Co. -- Proposed Rate Increases, 19 SRR 263 (1979) ("Matson 1979"), did not support GovGuam's argument. In that proceeding, the Commission found that the increases in Matson's rates, resulting from an across-the-board, single percentage GRI, were unreasonable. The GRI there applied the same percentage increase to each of the affected rates. The Commission indicated in Matson 1979 that a complainant, in a separate complaint proceeding, could receive reparations based upon a rate of return analysis

only where the GRI raised rates by the same percentage for every commodity covered by the GRI, making the difference between the amount paid and the amount that should have been charged vary by the same proportion for every commodity that took the GRI. Matson 1979, 19 SRR at 270.

e. The Commission's discretion to award reparations

The ALJ stated that "[s]ection 22 of the 1916 Act provides that the Commission 'may direct the payment . . . of full reparation to the complainant for the injury caused by such violation.'" Id. (citing 46 U.S.C. app. § 821). The ALJ noted that although the 1978 Amendments to the 1933 Act stated that the Commission "shall" direct full reparations upon finding unjustness and unreasonableness, the Commission still has discretion in determining whether to award reparations. The ALJ stated further that courts may interpret a statute to best fulfill the purpose of that statute. Id. at 1556, 1562. The ALJ [*12] opined that there was no indication in the legislative history that Congress intended to remove the Commission's discretion in complaint proceedings under section 22 of the 1916 Act. Id.

In support of his finding, the ALJ cited *Consolo v. Federal Maritime Commission*, 383 U.S. 607 (1965). In that case, the Supreme Court ruled that, with respect to section 22 of the 1916 Act, the Commission could consider "whether the shipper had suffered compensable injury and whether the award of reparations would be consistent with the previous application of the Act, as well as the factor of culpability of the carrier." *Consolo*, 383 U.S. at 621-22. The ALJ also cited Military Sealift Command v. Matson Navigation Co., 21 SRR 459 (1982) ("Matson 1982"), a section 22 complaint proceeding for reparations (brought after a finding of unreasonable rates in a Commission-initiated proceeding) where the Commission held that an award of reparations was not automatic and that the carrier could raise various equitable and policy considerations in arguing that reparations should not be awarded. 2003 I.D., 29 SRR at 1562.

Nonetheless, the ALJ held that it was unnecessary to make a finding on the meaning of "shall," because he determined that GovGuam failed to prove what the "just and reasonable rates" should have been for its shipments. Id. at 1562.

f. ALJ's rejection of GovGuam's argument that reparations should disgorge the excess revenues collected by Respondents

The ALJ also found that GovGuam's proportional methodology attempted to disgorge the excess revenues found by the Commission to have been collected by Respondents rather than compensating GovGuam for its actual injury. 2003 I.D., 29 SRR at 1560-61. The ALJ found no probative evidence of a nexus between Respondents' excessive trade-wide revenues and the just and reasonable rates. The ALJ noted that GovGuam failed to file a reparations [*13] statement, pursuant to Rule 252 and Exhibit No. 1 of the Commission's Rules of Practice and Procedure, which requires the details for each shipment, including the rate and amount "as charged" and the rate and amount as it "should be." Id. at 1561 (citing 46 C.F.R. § 502.252 and Part 502, Subpart O, Exhibit No. 1) (2004).

E. Exceptions

GovGuam filed its exceptions to the 2003 I.D. and 2002 Dismissal Order on December 1, 2003. GovGuam contends that the shipments the ALJ dismissed in his 2002 Dismissal Order, were based upon two findings: GovGuam's failure to provide sufficient evidence that it paid for 517 APL shipments and 297 Sea-Land shipments, specifically its failure to submit cancelled checks; and GovGuam's failure to show that it suffered "economic harm." GovGuam's Exceptions at 63-64.

With respect to the ALJ's finding that GovGuam submitted insufficient evidence demonstrating proof of payment for transport of the dismissed shipments, GovGuam asserts that the law is flexible regarding proof of payment for shipments, and therefore, the bills of lading it submitted are reasonably reliable documentation. GovGuam argues that Rule 252 provides that bills of lading and other documents may be submitted to support an award of reparations. GovGuam contends [*14] that the ALJ also could have considered circumstantial evidence such as Respondents' continuous acceptance for years of GovGuam's prepaid shipments; the documentation Respondents never disputed regarding shipping costs from GovGuam; and the shipping costs that GovGuam's agents calculated as part of the costs of shipment. GovGuam asserts that Commission policy does not support denying reparations to a complainant who has paid unreasonable rates solely because the complainant did not provide cancelled checks for shipments. Id.

GovGuam also proffers several rebuttal arguments to the ALJ's finding that GovGuam failed to demonstrate economic harm. GovGuam asserts that there is no requirement that economic harm must be demonstrated to recover reparations. Id. at 64. GovGuam further asserts that its ability to absorb or cover losses due to carrier overcharges should not be presumed. On the contrary, if any presumption is made, it should be that "an unreasonable rate or charge is in and of itself a harm to the customer." Id. at 65. Moreover, GovGuam contends that since it has shown that it was overcharged by Respondents for three years, it has sufficiently proven and quantified the harm suffered. Id.

F. Replies

1. APL

APL proffers [*15] three contentions in support of its request that GovGuam's exceptions be denied. First, APL disputes GovGuam's argument that it was automatically entitled to reparations because the Commission found in Phase I of this proceeding that APL earned an excessive rate of return. APL's Reply at 19-21. Second, APL contends that during Phase II, the ALJ's order dismissing the majority of GovGuam's shipments was correct. Third, APL argues that the 2003 I.D. correctly dismissed the remaining shipments because GovGuam failed to show what the commodity rates should have been. Id. at 19-21.

a. Phase I

APL avers that during Phase I the Commission used the G.O. 11 methodology in its 1998 FMC Order to determine APL's rates of return because it was the best method to use at the time. Id. at 2-5. However, APL contends that the Commission did not affirmatively find the results of the G.O. 11 method accurate for several reasons. Id. at 5. APL explains that the methodology does not account for each type of carrier operation; thus, it is necessary to consider different methods

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to accurately determine a carrier's rate of return. Further, APL argues that its Guam trade is very small compared to its much larger international trade. This is significant, [*16] APL argues, because G.O. 11 applies a portion of the carrier's cost and investments of its entire trade (which in APL's case, included domestic and international) to the carrier's domestic trade to obtain a rate of return. APL contends that its rate of return using this method would be inaccurate because its international trade is much larger than its domestic, which includes Guam. Id.

a. Phase II

APL offers several arguments to support its position that GovGuam is not entitled to reparations. First, APL asserts that GovGuam's exceptions relating to the 2002 Dismissal Order should be denied for untimeliness. APL's Reply at 71-73. Second, APL claims that the Commission has a duty to consider whether or not to award reparations. Finally, APL contends that GovGuam failed to demonstrate that APL's rate of return harmed GovGuam because GovGuam failed to prove what the just and reasonable rates were. Id. at 19-21.

i. GovGuam untimely filed exceptions to the 2002 Dismissal Order

APL argues that the Commission should uphold the 2002 Dismissal Order dismissing the majority of the shipments, as GovGuam filed exceptions to the 2002 Dismissal Order approximately a year and a half after the time allowed under Commission rules. APL argues further that, absent a timely appeal or a determination [*17] by the Commission to review the 2002 Dismissal Order sua sponte, it became administratively final and became the decision of the Commission. Id. at 71 (citing 46 C.F.R. § 502.227(c)). APL asserts that GovGuam's exceptions are wholly unsupported, and fails to identify with particularity the specific findings of fact and/or legal conclusions that the Commission should review.

Should the Commission determine that GovGuam's late-filed exceptions may still be considered, APL contends that the Commission should nonetheless affirm the 2002 Dismissal Order, as GovGuam failed to submit sufficient evidence demonstrating that GovGuam paid for the dismissed shipments. Id. at 72-73. APL avers that GovGuam failed to submit sufficient evidence to demonstrate proof of payment, such as bills of lading marked "paid or the equivalent." Id. at 73.

ii. Commission has a duty to consider whether to award reparations

APL contends that GovGuam is not automatically entitled to receive reparations, despite the Commission's finding that APL earned an overall unreasonable rate of return. The Commission, APL avers, has a duty to consider whether awarding reparations would "enhance the purpose of section 22 of the 1916 Act." Id. at 61. APL claims that the 1978 Amendments to section 4 of the 1933 Act clarified that the Commission has authority to [*18] award reparations in unreasonable rate cases, as it was unclear whether the Commission could award reparations prior to the 1978 Amendments. APL avers that the Commission drafted the wording adopted in section 4 of the 1933 Act. Id. at 61.

With respect to calculating reparations, APL claims that GovGuam's method is flawed because it does not take into account the many factors that must be considered in order to establish a link

between APL's overall returns and the individual rates APL charged for the shipments in this case. Id. at 19-21.

APL avers that the Commission has the power to order rate refunds for GRIs, provided that the GRIs went into effect and the Commission finds that the GRIs are unreasonable within the 180-day period pursuant to the 1933 Act. Id. at 27. APL avers further that there was no GRI in this proceeding, as all of the rates did not increase by a single percentage and the tariff structure did not remain the same.

c. Remaining shipments were appropriately dismissed

APL contends that the remaining shipments were also appropriately dismissed because GovGuam failed to indicate the statutorily required "difference between the charge collected and the just and reasonable rate, fare, or charge." Id. at 19 (citing 46 U.S.C. app. § 845a). APL argues that under the statute, a complainant seeking reparations [*19] must identify the commodity rate that was charged for the shipment and what that rate should have been. GovGuam, APL claims, failed to do either. APL further claims that GovGuam's methodology is based on the revenues paid, not on the identification of the commodity or particular rate. APL asserts that GovGuam's methodology does not correctly focus on compensating the complainant for the difference between the rate paid and the rate it should have paid.

2. Horizon Lines

a. GovGuam waived its right to appeal the 2002 Dismissal Order

On February 27, 2004, Horizon Lines, the successor-in-interest to Sea-Land, filed its reply to GovGuam's exceptions. With respect to the 2002 Dismissal Order, Horizon Lines argues that GovGuam waived any rights it had to an appeal. Horizon Lines argues that, pursuant to Rule 227 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.227, GovGuam had 22 days after the date of service to except to the decision and failed to do so. Horizon Lines further contends that the Administrative Orders Review Act ("Hobbs Act") "provides a 60-day period within which a party seeking review of a reviewable final order may seek appellate relief." Horizon Lines' Reply at 8 (citing [28 U.S.C. § 2344](#)).

Horizon Lines argues that even if the Commission entertains GovGuam's exceptions, [*20] GovGuam has no standing to collect reparations pursuant to section 22 of the 1916 Act. Id. at 11. Horizon Lines contends that only the party that directly paid for the allegedly unlawful freight may make a claim for reparations, and therefore, GovGuam would be unable to collect reparations for violations of section 22 of the 1916 Act.

b. GovGuam failed to submit adequate evidence indicating payment

Horizon Lines claims that the ALJ's dismissal of 262 shipments was correct, as GovGuam failed to provide sufficient evidence demonstrating proof of payment. Horizon Lines asserts that shipments marked "freight prepaid" were paid by the shipper's forwarder before delivery to Guam. Therefore, Horizon Lines contends that GovGuam must show that it paid its freight forwarder who in turn paid Horizon Lines to sufficiently demonstrate proof of payment for the "freight prepaid" shipments. Shipments marked "freight collect" were paid upon or after delivery

in Guam. *Id.* at 21-22. Horizon Lines avers that while some entity paid for these shipments, there is no evidence that GovGuam paid for all of these shipments. Horizon Lines notes that GovGuam failed to provide cancelled checks for all but five of the "freight collect" shipments. *Id.* at 22-23.

c. ALJ correctly denied reparations on remaining five shipments

With respect to the five remaining shipments, Horizon Lines [*21] asserts that GovGuam is not entitled to reparations because it failed to demonstrate that Horizon Lines charged unjust and unreasonable rates for these shipments. *Id.* at 28-29. GovGuam's reparations theory, Horizon Lines argues, ignores the criteria set forth in Rule 252. *Id.* at 50. Horizon Lines claims that "Rule 252 requires a prevailing plaintiff to set forth for each shipment at issue, the commodity, rate charged, and rate 'as it should be.'" *Id.* (citing 46 C.F.R. Part 502, Subpart O, Exhibit No. 1). The Commission's 1998 FMC Order remanded the proceeding for a determination of the reparations due GovGuam; however, Horizon Lines notes that GovGuam failed to submit a reparations statement pursuant to Rule 252.

Horizon Lines asserts that GovGuam's reparations theory is fundamentally flawed, as it seeks to "put the carrier into the position it would have experienced but for the overcharge." ⁸

Id. at 53. According to Horizon Lines, the purpose and function of the law of damages is to "put the shipper, not the carrier, into the position it would have experienced but for proven economic damage." *Id.* Thus, Horizon Lines claims that GovGuam's reparations theory is inadequate and should not be relied upon by the Commission in determining [*22] whether to award reparations.

Horizon Lines argues that the record in Phase II does not identify any measurable economic harm that GovGuam suffered. Horizon Lines asserts that the relief GovGuam seeks is not contemplated by the 1916 Act or the 1933 Act and "inappropriately seeks to use the provisions of these statutes in a manner outside the lawful authority of the Commission." *Id.* at 66.

DISCUSSION

A. Timeliness of GovGuam's exceptions to the 2002 Dismissal Order

Commission Rules require that exceptions to an order must be filed within twenty-two days, unless a shorter time is established. 46 C.F.R. § 502.227(a)(1). Rule 227(a)(1) also requires exceptions to indicate alleged errors with particularity. *Id.* GovGuam filed no exceptions by this deadline, although the 2002 Dismissal Order was duly served. GovGuam did not file exceptions until December 1, 2003, when it filed its exceptions to the 2003 I.D., or approximately one and a half years after the 2002 Dismissal Order became administratively final on May 22, 2002. *Id.* Although the Commission has discretion to allow GovGuam's exceptions to the 2002 Dismissal Order, we find that: GovGuam never addressed its failure to file its exceptions to the 2002 Dismissal Order in a timely manner; GovGuam failed to request an enlargement of time; GovGuam [*23] never requested a waiver of any of the Commission's rules to permit a late filing of its exceptions; and the record does not warrant the grant of a waiver.

⁸ Although Horizon Lines cites this quote as an assertion of GovGuam, it does not identify the pleading where it appears.

1. GovGuam's failure to address its extreme tardiness

GovGuam filed exceptions to the 2002 Dismissal Order a year and a half after it became administratively final on May 22, 2002, but never provided an explanation. GovGuam's total silence as to its failure to file exceptions makes it impossible to assess whether there were exceptional circumstances that prevented timely filing.

Rule 228 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.228, permits parties to a proceeding to request additional time to file exceptions, if there are exceptional circumstances. However, GovGuam made no attempt to obtain an extension pursuant to this rule and provided no explanation for its failure to file. Therefore, there are no exceptional circumstances to consider. Accordingly, we cannot conclude that any circumstances might justify GovGuam's extraordinary lateness.

2. GovGuam's failure to request a Rule 10 waiver

Rule 10 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.10, permits waiver of the Commission's procedural rules to prevent undue hardship, manifest injustice, or if the expeditious conduct of business requires a waiver. While parties [*24] to a proceeding normally initiate requests for waivers under Rule 10, the Commission may initiate a waiver sua sponte.

GovGuam has demonstrated its familiarity with Rule 10. On December 10, 2003, GovGuam requested, and was granted, a Rule 10 waiver of the 50-page limit requirement for exceptions and the five-day advanced filing requirement for that page limit extension under Rule 227. The Government of the Territory of Guam v. Sea-Land Serv., Inc. and American President Lines, Ltd., 30 SRR 49 (2004). Respondents did not object to GovGuam's request on the condition that, inter alia, Respondents would have the same page limit. The Commission ruled that GovGuam's waiver request was fair given the case's extensive history and Respondents being treated similarly. Id.

In view of GovGuam's familiarity with Rule 10 and its failure to request a Rule 10 waiver for its exceptions to the 2002 Dismissal Order, there is no basis for the Commission to grant a waiver sua sponte. Allowing GovGuam's late-filed exceptions would further delay this proceeding and would require the Commission to take an extraordinary step and reopen matters that have become administratively final. GovGuam failed to file exceptions to the 2002 Dismissal Order in a timely manner and failed to provide any explanation regarding its lateness. Accordingly, we deny GovGuam's exceptions to the 2002 Dismissal Order as untimely.

B. Jurisdiction over certain shipments

We next address whether the Commission had jurisdiction over certain shipments between 1989 and 1990 for which GovGuam is currently seeking an award of reparations. The Commission issued its order in [*25] 1998, which remanded the proceeding to the ALJ for a determination of the number of containers falling within the Commission's jurisdiction. The 2002 Dismissal Order decreased the total number of reparations claims for APL shipments from 554 to 37 and Sea-Land shipments from 312 to 5.

1. 1998 FMC Order

In its 1998 FMC Order, the Commission addressed jurisdiction by dividing it into four issues. First, the Commission determined that the ALJ erred in a previous ruling by failing to address jurisdiction questions before delving into the merits of the case. Second, the Commission found that the cargo that shippers at Sea-Land's west coast terminals gave directly to Sea-Land, was port-to-port and thus subject to the Commission's jurisdiction. Accordingly, the Commission remanded the proceeding to ascertain the number of GovGuam containers that were within this category. Id. at 265.

Third, with respect to whether the tariffs filed by Respondents were properly within ICC jurisdiction, the Commission declined to rule on the validity of joint-through arrangements that were filed with the ICC. The Commission stated that it was not the appropriate body to draw such a conclusion. The Commission held that "GovGuam could have [*26] challenged the legality of Sea-Land's ICC tariffs at the ICC. Having failed to do so, it cannot raise the issue here." Id. at 267.

Lastly, the Commission found that while it lacked jurisdiction over movements between Hawaii and Guam that involved inland transportation within the Port of Apra, Guam, it nonetheless had jurisdiction over any port-to-port movements that did not occur pursuant to a joint-through arrangement with a Guam motor carrier. Thus, the Commission ordered that on remand the ALJ determine the number of containers that fell within this category be established. Id.

2. 2002 Dismissal Order

This proceeding is before the Commission on exceptions from the 2003 I.D. As explained above, we have determined to deny GovGuam's exceptions to the 2002 Dismissal Order as untimely. Nonetheless, we believe that with respect to jurisdiction it is necessary to initially address the 2002 Dismissal Order, which disposed of the majority of the claims for which GovGuam seeks reparations.

a. 50 Saipan shipments

The ALJ concluded in his 2002 Dismissal Order that 50 claims covering APL shipments to Saipan, Commonwealth of Northern Mariana Islands ("Commonwealth") were dismissed because the Commission lacked jurisdiction over them. 2002 Dismissal Order, 29 SRR at 907. As explained below, however, the Commission had jurisdiction with respect to shipments to Saipan during the time relevant to this proceeding. Nonetheless, the 50 Saipan shipments are not part of this proceeding because GovGuam's complaint was limited to shipments in the Guam/mainland United States trades and the Guam/Hawaii trades.

During the time relevant to this proceeding, the Commission had jurisdiction over the trade between the United States and the Commonwealth pursuant to the 1916 Act and the 1933 Act, under section 502(a)(2) of Article V of "The Covenant [*27] to Establish a Commonwealth of the Northern Mariana Islands in Political Union with the United States of America." ⁹ See "Covenant

⁹ That section reads:

to Establish a Commonwealth of the Northern Mariana Islands in Political Union with the United States of America," Act of Mar. 24, 1976, [Pub.L. No. 94-241](#), [90 Stat. 263](#) (codified as amended at [48 U.S.C. § 1801](#) (2000)). See also [Saipan Shipping Co., Inc. v. Island Navigation Co., Ltd. and Oceana Line, Inc.](#), 18 SRR 420, 424-25 (ALJ 1978) (discussion of history of the Commonwealth and finding that subpoenas could be served pursuant to the Commission's Rules of Practice and Procedure as the Commonwealth was not a foreign country as a result of the Covenant and that U.S. laws administered by the Commission have not been excepted by the Covenant).

Notwithstanding Commission jurisdiction over the trade, the Saipan shipments are not part of this proceeding and remain dismissed. GovGuam's Complaint (as originally filed and as amended) only covers shipments made in the Guam/mainland United States trades and the Guam/Hawaii trades. Additionally, the inclusion of these claims appears to have been a result of the inclusion of Saipan rate data in G.O. 11 reports regularly submitted by APL to the Commission prior to this litigation and the use of those reports by GovGuam in presenting its case. APL's Motion for Summary Disposition at 38-45. GovGuam agrees with APL that it was not seeking recovery for any shipments made in the Saipan trade and that these, and other, claims were "inadvertent and largely based upon the manner in which the financial data of the Respondents was constructed." Complainants' Opposition to Respondent American President Lines, Ltd.'s Motion for Summary Disposition of Certain of GovGuam's Claims for Reparations at 12-13. In sum, the 50 Saipan claims remain dismissed.

b. 17 APL shipments

[*28] The ALJ found that the 17 shipments that APL received at U.S. East Coast or interior intermodal points were not port-to-port, and therefore, not subject to FMC jurisdiction. *Id.* In its reply motion, GovGuam asserted that it would not pursue such complaints. Moreover, it is well established that the ICC had jurisdiction over such shipments. See [Puerto Rico Maritime Shipping Auth. v. Interstate Commerce Comm'n](#), 645 F.2d 1102 (D.C. Cir. 1981) (finding that the FMC has no jurisdiction over through-route transportation that begins or ends at an inland point); and *Trailer Marine Transp. Corp. v. Federal Maritime Comm'n*, 642 F.2d 379 (D.C. Cir. 1979). The ALJ appears to have properly dismissed these shipments for lack of jurisdiction, and thus, we affirm this ruling.

c. Shipments not subject to the 1916 Act

The ALJ dismissed two shipments from Singapore to Guam and two shipments from Canada to Guam for presumptively not being subject to the 1916 Act, as these shipments originated in foreign countries. These four shipments would be subject to the Shipping Act of 1984, which "establish[es] a nondiscriminatory regulatory process for the common carriage of goods by water in the foreign commerce of the United States." 46 U.S.C. app. § 1701. Thus, it would have been

The following laws of the United States in existence on the effective date of this Section and subsequent amendments to such laws will apply to the Northern Mariana Islands, except as otherwise provided in this Covenant:

....

(2) those laws not described in paragraph (1) which are applicable to Guam and which are of general application to the several States as they are applicable to the several States.

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proper for GovGuam to seek reparations for these shipments under the Shipping Act of 1984. However, GovGuam failed to make this claim and the ALJ appropriately dismissed these shipments. Accordingly, we affirm the ALJ's dismissal of these shipments.

d. 2003 Initial Decision

In 2003, the ALJ issued an Initial Decision on remand, which disposed of all remaining jurisdiction issues. 2003 I.D., 29 SRR at 1509. The ALJ noted that the Commission had remanded this proceeding to determine the number of containers that [*29] were subject to Commission jurisdiction. Thus, those containers that were tendered by shippers directly to Sea-Land at Sea-Land terminals were considered port-to-port and the number of shipments that fell in this category would need to be determined. Shipments that did not move pursuant to a joint-through arrangement within the Port of Apra, Guam, were also considered port-to-port and the number of shipments that fell within this category would need to be determined. *Id.* at 1553.

The ALJ stated that despite the Commission's directive in its 1998 FMC Order, GovGuam failed to identify the number of shipments that were considered port-to-port and therefore subject to Commission jurisdiction. Further, the ALJ noted that Sea-Land asserted in its opening brief that, "in the absence of any jurisdictional predicate GovGuam is foreclosed from seeking reparation for any post-June 23, 1989 shipments." *Id.* (quoting Sea-Land's Phase II Opening Brief at 1 n.1). Consequently, the ALJ found that "the contentions of GovGuam, raised earlier in its related Exception No. 2 as to jurisdiction, will be considered abandoned and will not be further considered." *Id.* Given GovGuam's inability to support any of its previously [*30] raised contentions regarding jurisdiction, we affirm the ALJ's ruling that claims relating to jurisdiction are abandoned and will not be considered further in this proceeding.

C. Reparations

1. What must be shown to prove reparations

In the 1998 FMC Order, the Commission ruled that GovGuam could challenge the Respondents' overall rate of return under section 22 of the 1916 Act for violations of section 18 of the 1916 Act. The scope of relief under section 22 of the 1916 Act, however, must be determined by reference to the 1978 Amendments to section 4 of the 1933 Act. Section 4 of the 1933 Act provides:

[t]hat upon such finding of unjustness or unreasonableness in a proceeding instituted by complainant pursuant to the provisions of section 22 of the Shipping Act, 1916, the Commission shall direct full reparation to the complainant of the difference between the charge collected and the just and reasonable rate, fare, or charge, plus interest.

46 U.S.C. app. § 845 (emphasis added). In short, GovGuam is required to show: (1) the commodity rate it actually paid for each shipment that remains before the Commission in this proceeding; and (2) the rate it should have paid for each such shipment (*i.e.*, the just and reasonable rate). Rule 252 similarly requires a complainant to identify both the rate it was charged and the rate it "should have been" charged. 46 C.F.R. § 502.252.

The ALJ found that GovGuam met the requirements [*31] for the first part of the calculation required by section 4 by identifying the rates it had paid to Respondents for shipments that remain in this proceeding. 2003 I.D., 29 SRR at 1556. However, the methodology GovGuam used to calculate the just and reasonable rates that should have been charged was rejected by the ALJ.

2. Methodology for calculation of reparations

a. GovGuam's methodology

GovGuam states in the introduction to its exceptions that the whole case is about the meaning of three sentences in the Commission's June 1, 1998 Report and Order, or "52 words." GovGuam's Exceptions at 2. There GovGuam quotes from page 288 of the 1998 FMC Order:

[i]f APL's revenues are found to produce an excessive rate of return, each commodity rate in the tariff would be excessive by the same percentage Likewise, any reparations would be borne equally by each commodity rate. . . .

[sic] The Commission holds that Respondents' rates have been shown to be unreasonable for the years indicated.

GovGuam's Exceptions at 2 (quoting 28 SRR at 288) (footnotes omitted). GovGuam further avers that its interpretation and the interpretation of the ALJ are "diametrically opposed and are not capable of reconciliation." GovGuam contends that:

[i]f they [the above quoted words from the Commission's 1998 FMC Order] mean what they appear plainly to [GovGuam] to mean, the first passage adopts [GovGuam's] reparations calculation as a central holding; every rate in Respondents' Guam tariffs was excessive and unreasonable by a known and measurable percentage based on the excessive revenues in the Guam trade, and that excess portion must be refunded to the Complainants who paid it. That holding gives a remedy, and therefore a meaning, to the second passage: Respondents' rates - each and every one of them - were unreasonable.

Id. (emphasis added).

GovGuam's revenue proportionality methodology [*32] was described in APL's findings of fact that were adopted by the ALJ:

[r]eparations for the complainants' shipments should be calculated as follows: (i) For every year, the entirety of the carrier's annual trade-wide after-tax "excess return" . . . should be converted to "excess revenue" by grossing up to pre-tax dollars. (ii) The entirety of this trade-wide excess revenue should be considered "overcharges" to be refunded to shippers. (iii) For every year, the ratio of the carrier's excess revenue to its actual revenue should be deemed to constitute an "overcharge percentage." (iv) For any given shipment by any given shipper during any given year, damages equal the annual overcharge percentage times total Bill of Lading. . . revenue for the shipment (plus interest).

Id. at 1510.

b. The ALJ's methodology

This argument by GovGuam on exceptions is, in all material respects, the same argument made by GovGuam to the ALJ. The ALJ found that GovGuam's "equiproportional reparations methodology" was not supported by the passage from the 1998 FMC Order (because it was taken out of context) and rejected it, relying on Matson 1979. 19 SRR at 263. The ALJ found that GovGuam did not establish the just and reasonable rate for each of the contested shipments. Such an analysis would entail a consideration of traditional transportation factors. Id. at 270 n.25.

The Commission in Matson 1979 initiated two docketed proceedings, each of which was to inquire into the reasonableness of [*33] the carrier's rates after implementation of GRIs. Docket No. 75-57 ¹⁰ involved a "variable or multi-tiered" GRI and the other, Docket No. 76-43, ¹¹ involved an across-the-board single percentage GRI, where the Commission held that the increases in the carrier's rates under each GRI were unreasonable. Petitions for reconsideration were filed in both proceedings, with the Military Sealift Command ("MSC"), a shipper of cargo in Docket 76-43, petitioning the Commission to provide a remedy to shippers for the carrier's collection of excessive revenues. Matson 1979, 19 SRR at 265. The Commission, which consolidated the proceedings for purposes of issuing a single order on the petitions, held that a shipper that had paid the GRI had a cause of action under section 22 of the 1916 Act and could initiate a complaint proceeding to collect reparations.

Significantly, the Commission also ruled that MSC could receive reparations based upon a rate of return analysis because the GRI raised rates by the same percentage for every commodity covered by the GRI. Id. at 270. The Commission found that the GRI percentage itself could be used to calculate reparations because it would yield a reparations amount corresponding precisely to the complainant's injury on each shipment. (i.e., the rate that should have been paid was the same percentage portion of the rate actually paid). The Commission, however, made it clear that such a single percentage method of determining reparations was not permitted in the absence of [*34] a uniform GRI:

[b]ecause each commodity bore the general rate increase by the same percentage proportion, the extent to which it was found to be excessive applies equally to all commodities that took the increase. The contrary would be true, however, if this case involved a multi-tiered general increase in rates designed to bring the comparative levels of commodity rates into line with their individual transportation factors.

Matson 1979, 19 SRR 270 n.25 (emphasis added).

The Commission's Matson 1979 ruling is an acknowledgement that, in the absence of an across-the-board single percentage GRI, a carrier's trade-wide revenue total is a composite figure made up of revenue from rates on many commodities fixed by consideration of the transportation factors for each commodity. Further, the determination of the justness and reasonableness of a carrier's trade-wide rate structure bears no relation to the analysis

¹⁰ Matson Navigation Co. - Proposed Rate Increases in the United States Pacific Coast/Hawaii Domestic Off-shore Trade, 18 SRR 1351 (1978).

¹¹ Matson Navigation Co. - Proposed Rate Increases in the United States Pacific Coast/Hawaii Domestic Offshore Trade, 18 SRR 1441 (1978).

necessary for ascertaining the complainant's actual injury. In other words, absent a single percentage GRI, for some rates the portion attributable to excess revenue may be significant, the "excess" portion for other commodity rates may be much smaller and still other shipped commodities may have no portion that is unjust or unreasonable. Hence, absent a uniform GRI, it is this commodity-by-commodity proof of excess revenue that a complainant must adduce to establish the actual injury it suffered to support an award of reparations.

We find that the ALJ properly concluded that GovGuam failed to prove that [*35] it was due reparations for its individual shipments.

c. Whether the Commission set out a reparations methodology in its 1998 FMC Order

Although the Commission's decision in Matson 1979 provides the basis for rejecting GovGuam's single percentage methodology, inasmuch as GovGuam places great reliance on the passage from the Commission's 1998 FMC Order as the primary basis for its single percentage methodology, the Commission will clarify the meaning of the passage. The entire paragraph in which the passage at issue appears reads:

[t]he ALJ and APL are correct. The increase of eighteen commodity rates (1) changed the relationship of rates in the tariff of the Guam Rate Agreement, and (2) increased the revenue to the member lines. The rate of return analysis in this case addresses APL's overall rate of return but it does not address the relationship of individual rates in the Guam Rate Agreement tariff. If APL's revenues are found to produce an excessive rate of return, each commodity rate in the tariff would be excessive by the same percentage. In other words, the eighteen commodity rates would be excessive by the same percentage as every other commodity rate in the tariff. Likewise, any reparations would be borne equally by each commodity rate including the eighteen commodity rates in question. The relationship of the eighteen commodity rates to the other rates in the tariff would remain unchanged. In sum, under a rate of return analysis, the eighteen commodity rates are no less reasonable than any other rate in the Guam Rate Agreement tariff. Because we reject GovGuam's legal theory that a rate of return analysis can be used to determine the reasonableness of individual commodity rates, it is unnecessary for us to reach the various contentions advanced by the parties regarding the appropriate accounting methodology to determine the costs attributable to the carriage of the eighteen commodities.

1998 FMC Order, 28 SRR at 288 (emphasis added).

The ALJ found [*36] that the Commission was simply paraphrasing GovGuam's argument that a proportional single percentage could be used to determine whether the 18 individual rates were unreasonable, as the Commission rejected GovGuam's rate of return analysis three separate times in the quoted paragraph. He further opined that GovGuam's interpretation was strained and extraordinary in light of decades of Commission precedent. 2003 I.D., 29 SRR at 1559.

The ALJ is correct that the Commission rejected GovGuam's rate of return analysis and that it did not set out the methodology for computing reparations in this phase of the proceeding. The passage describes the consequences of a complainant's failure to address the relationship of individual rates in the tariff where individual rates are separately challenged as they were in

Count II of GovGuam's complaint. The relationships of the 18 individual rates to the other tariff rates are critical to the determination of whether they are reasonable, hence the need to consider traditional rate-making factors. Failure to consider such rate-making factors would leave GovGuam's methodology as the only measure of unreasonableness. The Commission, however, rejected this approach in its 1998 FMC Order and [*37] has previously rejected it with respect to reparations.

In its 1998 FMC Order, the Commission clearly required the relationship of individual rates in Respondents' tariff to be addressed where there has been no uniform GRI. *Id.* Moreover, the consequence of a failure to address the traditional rate-making factors relative to individual rates when determining reparations would not comport with the Commission's holding in Matson 1979, which requires such factors to be considered with respect to reparations in the absence of a single percentage GRI. Therefore, the Commission did not set out a reparations methodology in its 1998 FMC Order and, accordingly, GovGuam's arguments to the contrary are rejected.

d. Whether Respondents would be denied due process rights if the Commission decided reparations issues in the liability phase of a bifurcated proceeding

GovGuam's argument that the Commission set out a methodology to determine reparations in its 1998 FMC Order is undercut by the fact that this proceeding was bifurcated, at the request of GovGuam, into a liability phase (Phase I) and a separate reparations phase (Phase II). Phase I was completed with the issuance of the Commission's 1998 FMC Order, and Phase II began with the remand of the proceeding to the ALJ. The proceeding was bifurcated before any evidence was rendered by GovGuam, or the Respondents, [*38] relative to reparations. For example, Respondents' economic expert's testimony on reparations was submitted pursuant to a procedural order issued after the 1998 FMC Order that governed Phase II of the proceeding. As discussed below, any ruling on reparations by the Commission in its (Phase I) 1998 FMC Order would have no controlling effect in Phase II. If a ruling were to have such an effect, this would deprive Respondents of their due process rights to notice of the issues to be addressed in Phase I and to adduce evidence before the Commission addressed reparations issues in Phase II.

In *Verizon v. Federal Communications Commission*, 269 F.3d 1098 (D.C. Cir. 2001), the court held that an agency's statements that the defendants should pay damages were not controlling in the second phase of a bifurcated proceeding for calculation of damages, even though the agency made the statements before the bifurcation. *Id.* at 14 (citing 269 F.3d at 1112). The court ruled that the question of whether damages must be paid must be left open for respondents to address in the second phase of the proceeding. *Verizon*, 269 F.3d at 1112.

With respect to the instant proceeding, the Commission's statements, purported by GovGuam to dispose of reparations issues, were made in an order that post-dated the bifurcation order by approximately [*39] six years, and consequently, well before any testimony on reparations was submitted in Phase II. As a result, the Verizon decision applies even more strongly here because the Commission statements at issue not only post-dated the bifurcation order, they came in the decision addressing the first phase established by that order.

If the Commission had decided reparations issues in Phase I of this proceeding while Respondents only addressed liability issues in reliance on the bifurcation order, the Respondents would be denied the due process right to notice of issues to be addressed and the opportunity to present evidence and legal argument relevant to such issues. See *In re Julien Co.*, 146 F.3d 420, 425 (6th Cir. 1998) (holding that due process was denied by a trial court that prematurely decided issues that were to be decided in a later phase of the proceeding pursuant to a bifurcation order)).

Consideration of the reparations issues began with the remand of the proceeding to the ALJ following issuance of the Commission's 1998 FMC Order. Similarly, the use of a single percentage formula based on Respondent's trade-wide excess revenues, as advocated by GovGuam, would be impermissible, and GovGuam's failure to provide the requisite evidence of injury **[*40]** does not support an award of reparations.

GovGuam should not be given an additional opportunity to perfect its case as discovery was reopened in Phase II at its request. GovGuam, nonetheless, failed to obtain evidence necessary to meet the requirements of Matson 1979 relative to calculation of reparations. GovGuam made the conscious decision to rely solely on its proportional methodology to calculate reparations and to eschew providing evidence (using traditional rate-making criteria) of what the rates should have been. There is no reason to again remand this proceeding to the ALJ to allow GovGuam another opportunity to prove its case.

4. Effect of Commission's finding of unreasonable rates

GovGuam argues in its exceptions that the I.D. erroneously requires proof of economic harm beyond the overcharge found by the Commission in Phase I of this proceeding. GovGuam's Exceptions at 42. GovGuam also argues that the ALJ's discussion of Commission cases addressing the requirement that the violation of law found to be the proximate cause of the injury supports GovGuam's argument as the Respondents' overcharges themselves serve as the proximate cause and the injury itself.¹² In other words, GovGuam claims that the excess revenue finding from Phase I would mean nothing if a separate **[*41]** analysis of the transportation factors of individual rates is required in the reparations phase of this complaint proceeding. Id. at 3. GovGuam has misconstrued the effects of the Commission's finding of excess revenues in its 1998 FMC Order.

As previously discussed, the Commission held in Matson 1979 that: (1) reparations may only be obtained based upon the uniform percentage used to increase rates pursuant to an across-the-board single GRI; and (2) reparations must take into account the particular transportation factors affecting the individual commodity rates in the absence of a uniform across-the-board percentage GRI.

From the time GovGuam initiated its complaint challenging Respondents' trade-wide revenues, its burden to prove the specific injury it suffered was long established in Matson 1979. The

¹² Because we hold that GovGuam has failed to prove its specific injury, there is no need to address whether the ALJ's reference to an "injury or economic harm," is different from the requirement of section 4 of the 1933 Act to show the difference between the rate paid and the "just and reasonable" rate that should have been charged. Similarly, GovGuam's failure to prove its specific injury makes it unnecessary to address the issue of proximate causation.

Commission's 1998 FMC Order did not reduce, or otherwise alter, GovGuam's burden of proof. The Commission's finding of excess revenues is not undermined by holding GovGuam to the standard of proof applied to others before it. GovGuam simply chose to prove the wrong case in Phase II, possibly with a view to causing the Commission to reverse Matson 1979; however, we decline to do so.

4. Whether the 1978 Amendments to the 1933 Act modified the Commission's discretion over award of reparations under section 22 of the 1916 Act

GovGuam argues that section 4 of the 1933 [*42] Act, as amended in 1978, leaves no discretion to the Commission whether to award reparations where a finding of unjust or unreasonable rates has been made. GovGuam's Exceptions at 45-47. GovGuam's argument is based upon language in section 4 of the 1933 Act:

[t]hat upon such finding of unjustness or unreasonableness in a proceeding instituted by complainant pursuant to the provisions of section 22 of the Shipping Act, 1916, the Commission shall direct full reparation to the complainant of the difference between the charge collected and the just and reasonable rate, fare, or charge, plus interest.

46 U.S.C. § app. 845a (emphasis added). GovGuam excepts to the ALJ's rulings that Congress expressed no intention to remove the Commission's discretion to award reparations under section 22 of the 1916 Act. *Id.* Section 22 provides, in pertinent part, that the Commission "may direct the payment . . . of full reparations to the complainant for the injury caused by such violation." 46 U.S.C. § app. 821 (emphasis added).

In Consolo, the Supreme Court ruled, with respect to section 22 of the 1916 Act, that the Commission could consider "whether the shipper had suffered compensable injury and whether the award of reparations would be consistent with the previous application of the Act, as well as the factor of culpability of the carrier." *Consolo*, 383 U.S. at 621-22. Further, in Matson 1982, a section 22 complaint [*43] proceeding for reparations brought after a finding of unreasonable rates by the Commission, the Commission found that an award of reparations was not automatic and that the carrier could raise various equity and policy considerations in arguing that reparations should not be awarded. Matson 1982, 21 SRR 459. GovGuam, however, argues that Matson 1982 is inapposite because it does not address the 1978 Amendments.

The Commission's discretion to award reparations under section 22 of the 1916 Act was unaffected by the 1978 Amendments. Matson 1982 is not the only Commission case decided after the 1978 Amendments that addresses reparations in a complaint proceeding brought under the 1916 Act. For example, in Matson Nav. Co. - Proposed Bunker Surcharge, 19 SRR 1411 (1980) ("Matson Surcharge"), holding that complaints may be filed for reparations but that an award of reparations is discretionary. *Id.* at 1413.

The Commission did not decide Matson 1982 without cognizance of the impact of the 1978 Amendments. Before enactment of the 1978 Amendments reparations in unreasonable rate

cases was doubtful ¹³ and, hence, that there could have been no Matson Surcharge or Matson 1982 reparations proceedings without the 1978 Amendments. Also of significance, Matson 1982 was initiated by a complaint filed by the Military Sealift Command as a result of the Commission's decision in Matson 1979 (in which the findings of unreasonable rates were made and were relied upon by MSC in the complaint it filed in the later case). Moreover, in Matson 1979, the Commission noted that the decisions ¹⁴ finding unreasonable rates were [*44] issued on December 12, 1978, prior to the effectiveness of the 1978 Amendments. Matson 1979, 19 SRR at 264 n.5.

The Commission's discretion to award reparations in unreasonable rate proceedings is not necessary to a decision in this proceeding because GovGuam failed to prove its case on the merits. Therefore, we have limited our discussion relating to the Commission's discretion to relevant Commission cases that touch upon the issue. If, however, it were necessary to fully address this issue, the Commission believes that it retains the discretion found under the 1916 Act, notwithstanding the enactment of the 1978 Amendments.

CONCLUSION

THEREFORE, IT IS ORDERED, That GovGuam's late filed exceptions to the 2002 Dismissal Order are denied;

IT IS FURTHER ORDERED, That GovGuam's exceptions to the 2003 Initial Decision are denied;

IT IS FURTHER ORDERED, That the 2003 Initial Decision is adopted, as modified and clarified above; and

FINALLY, IT IS ORDERED, That this proceeding is discontinued.

By the Commission. ¹⁵

¹³ See Hearings on H.R. 6503 Before the Subcomm. on Merchant Marine of the House Comm. on Merchant Marine & Fisheries, 95th Cong., 1st Sess. 356 (May 23, 1977); and Hearing on H.R. 6503 Before the Subcomm. on Merchant Marine & Tourism of the Senate Comm. on Commerce, Science, & Transportation, 95th Cong., and Sess. 15-16, 21 (Aug. 29, 1978).

¹⁴ See supra, at p. 34 n. 10 and 11.

¹⁵ Commissioner Brennan's concurrence and dissent:

I concur in the present Order except with respect to the denial of reparations and the dismissal of the Complaint. In 1998 the Commission determined that the Respondents' unreasonable rates in the overall Guam trade had yielded excess revenue of approximately \$ 23 million for 1988-1990. The Commission remanded the proceeding for a determination of the reparations due Complainants.

In order to calculate reparations with respect to individual shipments, the ALJ should have ordered briefing on any difference between the charge collected and the "just and reasonable" rate or charge within the meaning of § 4 of the Intercoastal Shipping Act, 1933. The Commission should again remand the proceeding for the taking of additional evidence and for further briefing as necessary.

The Respondents were unjustly enriched in the overall Guam trade. Any overcharge suffered by the Government of the Territory of Guam with regard to the relevant shipments was part of that illegal revenue. Sound public policy dictates that those who make financial gains by violating the law should not be able to retain those gains.

Federal Maritime Commission Decisions

End of Document

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Johnson v. Cnty. of Santa Clara

United States District Court for the Northern District of California, San Jose Division

March 21, 2023, Decided; March 21, 2023, Filed

Case No. 5:18-cv-06264-EJD

Reporter

2023 U.S. Dist. LEXIS 47868 *

ANDREW LEE JOHNSON, Plaintiff, v.
COUNTY OF SANTA CLARA, et al.,
Defendants.

Prior History: [*Johnson v. Cty. of Santa Clara*, 2019 U.S. Dist. LEXIS 64373, 2019 WL 1597488 \(N.D. Cal., Apr. 15, 2019\)](#)

Counsel: [*1] For Andrew Lee Johnson, Plaintiff: Dmitry Stadlin, Sarah Elizabeth Marinho, Stadlin Marinho LLP, San Jose, CA; Robert Ross Powell, Powell & Associates, San Jose, CA.

For Deputy Ruban, Defendant: Bryan K. Anderson, Bryan K. Anderson, Bryan K. Anderson; Winifred Botha, County Government Center, East Wing, San Jose, Ca.

For Matthew Reeves, Deputy Dominguez, Defendants: Winifred Botha, County Government Center, East Wing, East Wing, San Jose, Ca.

For Jereh Lubrin, Defendant: David John Stock, LEAD ATTORNEY, Rankin Stock Heaberlin, San Jose, CA; Jon Heaberlin, Rankin I Stock I Heaberlin Oneal, San Jose, CA.

For Jonathan Benson, Defendant: Susan Pearl Greenberg, LEAD ATTORNEY, Office of the County Counsel, San Jose, CA.

For City Of San Jose, Marco Monzon, Jamie Lee Nicholas Hall, Trent Tessler, Defendants: Wesley Klimczak, Office of the City Attorney, San Jose, CA.

Judges: EDWARD J. DAVILA, United States

District Judge.

Opinion by: EDWARD J. DAVILA

Opinion

ORDER GRANTING IN PART AND DENYING IN PART MOTIONS FOR SUMMARY JUDGMENT

Re: Dkt. Nos. 132, 136, 164, 211

In this action, Plaintiff Andrew Lee Johnson asserts that the several Defendants violated his constitutional rights during his arrest in 2014, his subsequent three years' [*2] pre-trial detention, and the trial where he was eventually acquitted of the charges for attempted murder.

Three groups of defendants have moved for summary judgment on all claims against them. Defendants City of San Jose ("City") and Officers Marco Monzon, Jamie Lee Nicholas Hall, and Trent Tessler ("Officers," collectively with City, "City Defendants") move for summary judgment on five claims arising from the investigation leading to Plaintiff's arrest, the alleged destruction of evidence, and his subsequent detention. Mot. Summ. J. ("City Mot.") 11-12, ECF No. 132. Defendant County of Santa Clara ("County") moves for summary judgment on the *Monell* municipal liability claim relating to Plaintiff's detention at the County's facility. Mot. Partial Summ. J. ("County Mot.") 1, ECF No. 136. Finally, Defendant Jereh

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Lubrin—a deputy at the Santa Clara County Main Jail—seeks summary judgment on the one claim against him for cruel and unusual condition of confinement. Mem. Points Authorities ("Lubrin Mot.") 3, ECF No. 164.

On January 21, 2022, the Court took all three motions under submission without oral argument. ECF No. 187. Having reviewed the briefs, the statements of undisputed facts, [*3] and statements of recent decisions, the Court GRANTS IN PART and DENIES IN PART the Motions.

I. BACKGROUND

A. Plaintiff's Shooting Incident

Near midnight on October 27, 2014, Plaintiff was returning home from the Bonfare Market near his apartment when he was approached on the sidewalk by two brothers, Alvaro and Bicente Castro. City Mot. 3; Wesley Klimczak Decl. ("Klimczak Decl."), Ex. I ("Johnson Dep.") 185:7-16. Plaintiff put up his hands "in a surrendering motion" with his back to traffic. Johnson Dep. 185:22-186:5. When the two brothers continued to harass him, Plaintiff attempted to deescalate by taking out the pistol he was carrying and firing two warning shots into the sidewalk. *Id.* 186:8-11. After he fired, one of the Castros attempted to attack Plaintiff with a knife, and Plaintiff responded by shooting one in the hip and the other in the leg. *Id.* 187:3-6. After he disabled both men, Plaintiff returned home to his apartment nearby. *Id.* 187:7-9.

B. City Defendants' Investigation and Preliminary Hearing

1. Defendant Officer Monzon

On October 27, 2014, Officer Monzon arrived at the scene of the shooting and followed the ambulance that transported Alvaro Castro to the hospital. Klimczak [*4] Decl., Ex. A ("Trial Tr.") 854:19-856:7; see also Defs.' Reply re Separate Statement of Undisputed Material Facts ("City UMF"), Fact 3, ECF No. 180. At the hospital, Officer Monzon obtained a recorded statement from Alvaro Castro, took photographs, and handwrote notes. Trial Tr. 856:4-7; 884:25-28. Once he had returned to the San Jose Police Department ("SJPD"), Officer Monzon attempted to upload the photographs and audio recording of Alvaro's interview onto the SJPD's Digital Crime Scene ("DCS") system, though the audio recording was unable to be located later. Trial Tr. 883:9-15; City UMF, Fact 4. He also used his handwritten notes to write a report. *Id.* 269:14-24. Officer Monzon then deleted the recording from his recording device and discarded the notes he took from the interview. *Id.* 884:5-17.

2. Defendant Officer Hall

Like Officer Monzon, Officer Hall had also arrived at the scene of the crime and followed the ambulance that took Bicente Castro to the hospital. City UMF, Fact 10. At the hospital, Officer Hall first attempted to interview Bicente in the emergency room but was unable because Bicente was "hysterical" with several doctors working on him. Trial Tr. 693:20-694:24. Officer [*5] Hall was only able to interview Bicente after the doctors moved him to a different room for a full body CAT scan. Trial Tr. 695:2-5. Officer Hall recorded the interview with an audio recorder, took notes, and took photographs of Bicente's injuries. *Id.* 701:18-24.

After he returned to the SJPD station, Officer Hall uploaded the audio recordings and photographs to the DCS. *Id.* 703:21-704:1. He also shredded his handwritten notes after

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writing his report, as he had been trained to do. *Id.* 705:21-706:2. However, when Officer Hall searched the DCS for the recordings prior to Plaintiff's criminal trial, the audio file of Bicente's interview was gone, though the photographs and the audio recording of Bicente's doctor were still present. *Id.* 704:9-21.

3. Defendant Officer Tessler

Officer Tessler—then a detective—was tasked with obtaining additional information and conducting follow-up interviews relating to the Castro shooting. City UMF, Fact 15. After reviewing Alvaro Castro's initial statement to Officer Monzon, Officer Tessler interviewed Alvaro Castro three more times because he wanted additional information to explain a gap in time in Alvaro's initial statement. *Id.*; see also Trial Tr. 1247:13-15. [*6]

Additionally, Officer Tessler interviewed the property manager of the apartment complex where Plaintiff resided and learned that residents access the complex using a key fob. City UMF, Fact 21. The property manager provided a thumb drive to Officer Tessler with Excel spreadsheets containing information associated with Plaintiff's key fob. City UMF, Fact 22. Officer Tessler testified that this raw data was later "shrunk down" but that the data was not changed. Tessler Dep. 92:10-14. He also testified that he "condensed" the spreadsheet data down to the relevant gates' data. *Id.* 93:15-21. Plaintiff, however, testified that the spreadsheet prepared by Officer Tessler did not reflect his personal recollections of his comings and goings on the relevant dates. Johnson Dep. 204:22-25.

4. Plaintiff's Arrest and Preliminary Hearing

On November 12, 2014, Plaintiff was arrested and interrogated by Officers Tessler and

Ericksen. City UMF, Fact 26.

Plaintiff's preliminary hearing was held on February 16, 2015. Klimczak Decl., Ex. B. Initially, the criminal trial court found sufficient evidence of assault with a deadly weapon but no evidence of express malice for attempted murder. See Klimczak Decl., [*7] Ex. B, at 352:13-354:27. However, the appellate court reversed the decision, and the trial court reinstated the attempted murder charges. City UMF, Fact 21; City Mot. 6.

Plaintiff does not dispute that the criminal court found probable cause to hold him over for trial on two counts of attempted murder and two counts of aggravated assault. City UMF, Fact 27.

C. County Defendant's Customs and Policies

Following his arrest, Plaintiff was in the County's custody for over three years, from November 12, 2014 to February 7, 2018. FAC ¶¶ 87, 252. Because the County only moves for summary judgment on Plaintiff's *Monell* claim for municipal liability, the Court only recites the facts relevant to this claim, specifically the County's policies, customs, or practices during Plaintiff's detention.

1. Excessive Force Policies

The County maintains a Use of Force and Restraints Policy that permits officers to only use the amount of force necessary to bring an incident under control, requires officers to attempt voluntary compliance before using force, and prohibits the use of force or restraints for discipline. Decl. David Sepulveda ("Sepulveda Decl.") ¶ 3, Ex. 1 ("Force Policy"); see also County's Reply [*8] Separate Statement ("County UMF"), Fact 1.

The County's Sheriff Correctional Deputies are

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required to attend the Santa Clara County Correctional Academy, consisting of over 400 hours of training, twenty-four (24) weeks of the Jail Training Program, and an annual twenty-four (24) hours' in-service and continuing education. County UMF, Fact 2; see *also* County Mot. 2-3. This training involves the use of force, defensive tactics, restraint techniques, and drafting reports. *Id.* The County's training has historically involved more hours than the California minimum requirement. Decl. Adam Oberdorfer ("Oberdorfer Decl.") ¶ 5.

The County also maintains an Internal Affairs Unit ("IAU") to "receive, record, and investigate all complaints alleging misconduct on the part of Department [of Correction] personnel." Sepulveda Decl., Ex. 2 ("IA Policy"), at 1.19-1; County UMF, Fact 4. The IA Policy provides for a formal investigation involving preliminary inquiries, records review, witness and employee interviews, resulting in a final investigative report with findings. IA Policy 1.19-4-1.19-9. The investigation must be completed within one year of the misconduct's discovery, with major violations resulting in disciplinary [*9] actions that may include termination. *Id.* 1.19-9-1.19-20. Plaintiff only disputes that certain IAU officers required a higher standard of proof for certain findings and did not inquire into officers' prior allegations of misconduct. County UMF, Fact 4.

In 2015, the County's Board of Supervisors established a "Blue Ribbon Commission" to reform the Custody Bureau's use of force, which resulted in a report presented to the Santa Clara Board of Supervisors in April 2016. Decl. Robert Powell ("Powell Decl."), Ex. T ("County Audit"), at 31; Johnson County Decl. ¶ 20. The Blue Ribbon Commission resulted in 629 jail reform recommendations, and the Custody Bureau implemented a new use of force policy in August 2017. *Id.*

2. Use of Force Against Plaintiff

On March 29, 2016, the IAU lodged an investigation into Plaintiff's allegations of force and abuse against Deputies Ruban, Reeves, and Dominguez for beating him after he insulted one of the deputies. County UMF, Fact 5; FAC ¶¶ 133-146.

The IAU concluded that the allegations were unfounded and notified the County's Major Crimes Unit for further investigation. The Major Crimes Unit then submitted its investigation report to the District Attorney's Office, which [*10] declined to file any charges against the deputies. Sepulveda Decl. ¶ 5; County UMF, Facts 5-6.

3. Instances of Excessive Force

David Grandara: On July 20, 2015, Grandara filed an Inmate Grievance Form that deputies used excessive force. The County investigated the allegations and determined that the use of force was justified, and Grandara did not file a lawsuit against the County. County UMF, Fact 14.

Michael Tyree: In August 2015, three deputies murdered Michael Tyree, a mentally ill inmate at the County jail, just below Plaintiff's cell. FAC ¶ 156. In October 2015, the County retained an outside law firm to investigate Tyree's murder and whether Deputies Matthew Farris, Rafael Rodriguez, and Defendant Lubrin violated County policies. The investigation concluded that all three officers violated County policies, the County terminated all three deputies, and the District Attorney criminally prosecuted all three officers, resulting in convictions for second-degree murder. Sepulveda Decl. ¶ 6; County UMF, Fact 8.

Adrian Villalon: On November 2, 2015, Villalon

submitted a grievance alleging excessive force. The County's shift lieutenant, facility commander, and supervising sergeant investigated [*11] the incident and concluded that the force used was necessary and appropriate. Villalon did not file a lawsuit against the County. Sepulveda Decl. ¶ 12.

Rikki Martinez: Martinez lodged a use of force complaint against Deputy Jacquez. On April 15, 2017, IAU issued findings that either exonerated or declined to sustain the policy violations against Deputy Jacquez. The County subsequently settled the resultant excessive force lawsuit brought by Martinez. Sepulveda Decl. ¶ 7; County UMF, Facts 9-10.

Aaron Steward: On July 13, 2017, Steward's father informed IAU that Deputy West had kicked Steward multiple times, causing injuries. On April 4, 2019, IAU issued findings declining to sustain any of the eight potential policy violations. The Major Crimes Unit also investigated Deputy West's conduct and forwarded the report to the District Attorney, who found that Deputy West was entitled to use the force he did and declined to file any charges. Sepulveda Decl. ¶¶ 8-9; County UMF, Facts 11-13. Plaintiff claims that the investigator who referred the case to the District Attorney had omitted material information and mischaracterized witness statements. County UMF, Facts 11-12.

Jesse Grant: On September [*12] 13, 2017, Grant filed a claim alleging excessive force. The County rejected his claim on October 19, 2017, and Grant did not proceed with an excessive force lawsuit against the County. Sepulveda Decl. ¶ 13; County UMF, Fact 18.

Other Complainants: Ruben Garcia, Leopoldo Manzo, Walter Roches, Daniel Reyes, and Julian Vasquez-Bernabe had brought separate lawsuits against the County. All suits were settled without any admissions from the County. None of the individual County Deputy

Defendants were named in any of these cases. Sepulveda Decl. ¶ 11; County UMF, Fact 15.

4. Housing Conditions

The parties dispute whether Plaintiff received the minimum out-of-cell time pursuant to the standards for local detention facilities. See County UMF, Facts 22-36 (indicating disputes on all facts). Plaintiff states that he was locked in his cell for 47 out of 48 hours regularly, spent 16 months in solitary confinement, and received only 15 minutes of out-of-cell time each day. Johnson Decl. ¶¶ 27-36.

Plaintiff does not identify any other instances where inmates received unconstitutional housing treatment. Instead, he cites the County's classification process and his own classification records as evidence [*13] of a "custom of housing people in solitary confinement due to their charges only." Opp. County 22.

D. Officer Lubrin's Conduct

For a period of six months, Deputy Jereh Lubrin was assigned to Plaintiff's floor during his detention at the Santa Clara County Main Jail. Plaintiff's Separate Statement of Facts ("Lubrin UMF"), Fact 9. Plaintiff was Lubrin's trustee for those six months. Lubrin UMF, Fact 21.

During this period, there was one exchange where Lubrin searched Plaintiff's cell for contraband, verbally harassed him, and threatened to "do butthole checks on all the blacks." Lubrin UMF, Facts 23-24; see also Johnson Dep. 111:15-114:8, ECF No. 163-1. Lubrin also intentionally caused a disturbance in Plaintiff's housing unit, which resulted in the entire pod being locked down for four days. Lubrin UMF, Fact 27. Plaintiff does not allege

that Lubrin subjected him to any excessive force. Lubrin UMF, Facts 31, 34.

E. Trial Proceedings and Acquittal

Before Plaintiff's criminal trial began, his counsel filed a *Trombetta* motion seeking dismissal or sanctions, based on allegations that the SJPd had intentionally destroyed and fabricated evidence. City UMF, Fact 30. The purported destruction at [*14] issue were the losses of Officers Monzon's and Hall's recorded interviews with the two Castro brothers on the night of the shooting. Klimczak Decl., Ex. D, ECF No. 60-2. Additionally, the *Trombetta* motion claimed that Officer Monzon failed to properly execute a search warrant and that Officer Hall intentionally failed to preserve surveillance footage. *Id.* The criminal court denied Plaintiff's motion. City UMF, Fact 31. It found that, although the loss of both interview recordings was "evidence of human error, inattentiveness to detail, possibly even sloppy work, and more than likely an inadequate system," there was insufficient evidence of the bad faith required to grant the *Trombetta* motion. ECF No. 60-2, at 138.

At trial, the prosecution called Officers Monzon, Hall, and Tessler to testify, and Plaintiff's defense counsel cross-examined all three officers. City UMF, Fact 32. At the close of the prosecution's case, Plaintiff moved to dismiss the attempted murder charges based on insufficient evidence. City UMF, Fact 33. In doing so, Plaintiff's defense counsel conceded that "if [the jurors] choose to ignore [Plaintiff's] testimony, they could find him guilty of the [aggravated assault] [*15] charges." Trial Tr. 1420:15-24. The trial judge ultimately denied Plaintiff's motion, finding that there was sufficient evidence for the jury to consider whether Plaintiff had an intent to kill for the attempted murder charges. City UMF, Fact 35; Trial Tr. 1453:10-18.

Plaintiff was ultimately acquitted of the attempted murder and aggravated assault charges but was convicted of drug possession. City Mot. 9.

F. Procedural History

Plaintiff filed the present suit on October 12, 2018, asserting eight claims against the County of Santa Clara, the City of San Jose, and their relevant employees. ECF No. 1. These claims changed over the course of two rounds of motions to dismiss brought by both City and County Defendants, as well as a voluntary dismissal.

Presently, Plaintiff asserts five claims against the City Defendants, as follows: (1) the Fourth Claim against Defendant Officers for Deliberate Fabrication of Evidence; (2) the Fifth Claim against Defendant Officers for Failure to Disclose Exculpatory or Impeachment Evidence; (3) the Sixth Claim against Defendant Officers for Conspiracy to deprive constitutional rights; (4) the Seventh Claim against Defendant Officers for Unlawful Detention [*16] and Malicious Prosecution; and (5) the Eighth Claim against the City for municipal liability based on continued unlawful detention and malicious prosecution. See *generally* FAC. The City Defendants seek summary judgment in their favor as to all five claims against them. ECF No. 132.

Against the County and County officials, Plaintiff maintains two claims: (1) the First Claim against County officials Timur Ruban, Matthew Reeves, Pedro Dominguez, and Jereh Lubrin; and (2) the Second Claim against the County for municipal liability based on cruel and unusual conditions of confinement. See *generally* FAC. The Third and Ninth Claims for intentional infliction of emotional distress were voluntarily dismissed by Plaintiff and by the Court, respectively. ECF Nos. 62, 93. The County only seeks summary

judgment on the municipal liability claim. ECF No. 136.

Finally, Defendant Lubrin seeks summary judgment in his favor as to the one claim against him: the First Claim for Cruel and Unusual Conditions of Confinement. ECF No. 164.

On January 21, 2022, the Court took all motions under submission without oral argument. ECF No. 187. After the motions were submitted, the parties each filed statements of recent [*17] decision, and Plaintiff has sought leave to supplement the record. ECF No. 211.

II. LEGAL STANDARD

Summary judgment is proper where the pleadings, discovery, and affidavits show that there is "no genuine issue as to any material fact and that the moving party is entitled to judgment as a matter of law." [*Fed. R. Civ. P. 56\(c\)*](#). A fact is "material" if it would affect the outcome of the suit under the governing law, and a disputed issue is "genuine" if the "evidence is such that a reasonable jury could return a verdict for the non-moving party." [*Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 248-49, 106 S. Ct. 2505, 91 L. Ed. 2d 202 \(1986\)](#).

The party moving for summary judgment bears the initial burden of identifying those portions of the record which demonstrate the absence of a genuine issue of material fact. See [*Celotex Corp. v. Catrett*, 477 U.S. 317, 323, 106 S. Ct. 2548, 91 L. Ed. 2d 265 \(1986\)](#). Where the nonmoving party bears the burden of proof at trial, "the burden on the moving party may be discharged by 'showing'—that is, pointing out to the district court—that there is an absence of evidence to support the nonmoving party's case." [*Id. at 325*](#). If the moving party can meet this initial burden, the

burden then shifts to the non-moving party to produce admissible evidence and set forth specific facts showing that a genuine issue of material fact does indeed exist for trial. See [*Nissan Fire & Marine Ins. Co. v. Fritz Companies, Inc.*, 210 F.3d 1099, 1103 \(9th Cir. 2000\)](#). If the [*18] non-moving party produces enough evidence to show a genuine issue of material fact exists, then it defeats the motion; otherwise, the moving party is entitled to summary judgment. *Id.*

In considering a motion for summary judgment, the Court must view the evidence in the light most favorable to the non-moving party. See [*Tolan v. Cotton*, 572 U.S. 650, 655, 134 S. Ct. 1861, 188 L. Ed. 2d 895 \(2014\)](#). The Court may not weigh conflicting evidence as to a disputed fact nor may it make credibility determinations; any disputed factual issues must be resolved in favor of the non-moving party. See [*T.W. Elec. Serv., Inc. v. Pac. Elec. Contractors Ass'n*, 809 F.2d 626, 630-31 \(9th Cir. 1987\)](#). However, the Court need not credit the non-moving party's version of events where it is blatantly contradicted by the record. See [*Orn v. City of Tacoma*, 949 F.3d 1167, 1171 \(9th Cir. 2020\)](#).

III. CITY AND OFFICER DEFENDANTS

City Defendants move for summary judgment on all claims asserted against them. "To succeed on a § 1983 claim, a plaintiff must show that (1) the conduct complained of was committed by a person acting under color of state law; and (2) the conduct deprived the plaintiff of a federal constitutional or statutory right." [*Patel v. Kent Sch. Dist.*, 648 F.3d 965, 971 \(9th Cir. 2011\)](#). None of the Defendants dispute the color of state law element, so the sole issue for the § 1983 claims is whether Defendants deprived Plaintiff of a federally protected right.

A. Fourth Claim: Fabrication of Evidence [*19]

Plaintiff's Fourth Claim alleges that City Defendants violated his right to a fair preliminary hearing and trial because they had deliberately fabricated evidence, including key fob data, witness statements, victim testimony, and shell casing evidence. FAC ¶¶ 271-75.

The Ninth Circuit recognizes a "clearly established constitutional due process right not to be subjected to criminal charges on the basis of false evidence that was deliberately fabricated by the government." [*Devereaux v. Abbey*, 263 F.3d 1070, 1074-75 \(9th Cir. 2001\)](#). A plaintiff can prove "deliberate fabrication" either with direct evidence or with circumstantial motive evidence. See [*Richards v. Cnty. of San Bernardino*, 39 F.4th 562, 569 \(9th Cir. 2022\)](#). Circumstantial evidence may be established by (a) continuing an investigation into the plaintiff despite knowledge that he was innocent or (b) the use of investigative techniques so coercive and abusive that defendants knew or should have known that those techniques would yield false information. *Id.* (citing [*Devereaux*, 263 F.3d at 1076](#)).

As an initial point, City Defendants argue that the issue of fabrication has been collaterally estopped by the criminal court's finding of probable cause to detain Plaintiff at the preliminary hearing. City Mot. 16-17. However, probable cause is not a required finding or relevant issue under [*20] the [*Devereaux*](#) deliberate fabrication framework summarized above. Accordingly, even if the finding of probable cause receives preclusive effect, it has no bearing on a [*Devereaux*](#) claim.

Onto the merits, City Defendants argue that Plaintiff has no evidence to support his FAC allegations that City Defendants (1) purposefully manipulated key fob data; (2) misrepresented witness statements; or (3)

used suggestive interview techniques. City Mot. 12-13; FAC ¶¶ 271-75. In his opposition brief, Plaintiff refers the Court without citation to "glaring credibility problems with Alvaro and Bicente Castro's accounts of the incident and the events in the hours preceding it" and Officer Tessler's admission that the victims' "three hours prior to the shooting were unaccounted for." Opp. City 7. Plaintiff otherwise makes no effort to argue or defend any of the following allegations in the FAC: the alleged manipulation of key fob data (FAC ¶ 271), allegedly manipulative interview techniques using receipts to "feed information" for the victims' statements (FAC ¶ 274), or alleged misrepresentations regarding bullet shell casings at the scene of the crime (FAC ¶ 275).

Plaintiff has failed to present a genuine dispute as to [*21] why City Defendants are not entitled to summary judgment on the deliberate fabrication claim. The opposition's cursory and uncited references to facts presumably somewhere in the record fall short of Plaintiff's obligations to produce at least some admissible evidence and set forth specific facts showing a genuine dispute. Opp. City 7. Furthermore, even if Plaintiff did provide specific evidence of "glaring" credibility problems, "not all inaccuracies in an investigative report give rise to a constitutional claim. Mere carelessness is insufficient, as are mistakes of tone." [*Spencer v. Peters*, 857 F.3d 789, 798 \(9th Cir. 2017\)](#) (internal citation, brackets, and quotation marks omitted). And here, Plaintiff has not provided any evidence to suggest that the alleged "glaring credibility problems" with the victims' accounts can be chalked up to anything more than "inaccuracies in an investigative report" or "mere carelessness." Opp. City 7-8. Indeed, Plaintiff's opposition brief is bereft of any actual quotations or excerpts from these witness statements that evidence "glaring credibility problems." Nor would a three-hour gap in the

shooting victims' recollections support an inference that the City Officers were fabricating evidence instead [*22] of being merely careless. Finally, to the extent Plaintiff relies solely on his own recollections of his ingress and egress from his apartment as circumstantial evidence of Officer Tessler's deliberate fabrication (City UMF, Fact 24), this evidence does not fall under either of the two methods by which deliberate fabrication can be established circumstantially. [Devereaux, 263 F.3d at 1076](#).

The Court finds that City Defendants has pointed out an absence of evidence supporting Plaintiff's fabrication of evidence claim, and Plaintiff has failed to present a genuine dispute of material fact for trial. Accordingly, the Motion is GRANTED as to the Fourth Claim against the Officer Defendants.

B. Fifth Claim: Failure to Disclose Exculpatory Evidence

Plaintiff's Fifth Claim alleges that City Defendants suppressed and destroyed exculpatory evidence, depriving him of his rights to a fair preliminary hearing and to be free from unjustified pretrial detention. Specifically, the FAC alleges that the Officer Defendants misrepresented witness statements, failed to memorialize evidence that one of the victims had a knife, and destroyed copies of initial witness statements taken by the Officers. FAC ¶¶ 282-83.

To meet their initial [*23] burden as the moving party, City Defendants have both presented affirmative rebuttal evidence and highlighted the absence of evidence to support Plaintiff's other allegations. City Mot. 13-16. They also argue that certain findings made by the criminal court collaterally estops Plaintiff from meeting the requirements for this Claim. *Id.* at 16-20.

Plaintiff argues that the City Defendants' failure to disclose exculpatory evidence deprived him of two different constitutional rights: the right to be free from unjustified pretrial detention (the *Tatum* violation) and the right to a fair hearing (the *Brady* violation). Each theory has its own separate required elements.

1. Collateral Estoppel

As with Plaintiff's [Devereaux](#) claim, City Defendants attempt again to assert the collateral estoppel defense based on the criminal court's finding of probable cause at the preliminary hearing. City Mot. 16-17. And, as with the [Devereaux](#) claim, probable cause is not a required element of either a *Tatum* or *Brady* claim. See *infra* Sections III(B)(2)-(3). Accordingly, even if Plaintiff was collaterally estopped from re-litigating "probable cause," it would not preclude his ability to establish the requisite elements for a *Tatum* or *Brady* violation.

[*24] 2. *Tatum* Violation

In addition to their collateral estoppel defense, City Defendants submit that Plaintiff is unable to establish the necessary elements for a *Tatum* violation. The Court agrees.

To establish a constitutional violation under [Tatum v. Moody, 768 F.3d 806 \(9th Cir. 2014\)](#), Plaintiff must show that (1) he was subjected to a detention of "unusual length"; (2) the detention was caused by investigating officers' failure to disclose highly significant exculpatory evidence to prosecutors; and (3) the officers had understood the risks to Plaintiff's rights from withholding the information or were completely indifferent to those risks. *Id.* at 819-20. Plaintiff fails to present evidence of a genuine dispute on the second and third [Tatum](#) requirements.

To meet the "highly significant exculpatory evidence" requirement, Plaintiff only mentions (without citing) to "Monzon[s] and Tessler's fabricated and manufactured witness statements," which the Court presumes is a reference to the Castro brothers' two victim statements "that had been crafted with Tessler's assistance." Opp. City 7-8. However, Plaintiff fails to explain how the potential bias and credibility issues with these witness statements are "not merely material but *strongly* indicative of [*25] [his] innocence." [Tatum](#), 768 F.3d at 820 (emphasis in original). The witness statements and their potential biases do not "strongly indicat[e]" innocence when Plaintiff had indisputably shot the Castro brothers and fled the scene. City UMF, Fact 1; cf. [Hernandez v. Kennedy](#), 595 F. App'x 673, 675 (9th Cir. 2014) (finding that evidence that plaintiff had been coaxed to "violate the restraining order do not prove his innocence of violating it"). Unlike [Tatum](#) and its progeny, there was no risk of mistaken identity when the City Officers detained Plaintiff.

With respect to the third [Tatum](#) requirement regarding the City Defendants' intent, Plaintiff has proffered no admissible evidence and has only cited to the FAC. Opp. City 8 ("[H]ere, Plaintiff alleges Defendants disregarded the risk of his deprivation of liberty."). This is plainly insufficient to defeat a motion for summary judgment. See [Celotex](#), 477 U.S. at 324 ("[Rule 56\(e\)](#) therefore requires the nonmoving party to go *beyond the pleadings* and . . . designate 'specific facts showing that there is a genuine issue for trial.'") (emphasis added).

Accordingly, there is no genuine dispute that Plaintiff cannot establish a [Tatum](#) claim.

3. *Brady* Violation

Plaintiff also argues that the City Defendants'

failure to disclose exculpatory evidence constituted a *Brady* violation. [*26] Opp. City 8-9. The three elements of a *Brady* violation are: (1) the evidence is favorable to the accused, (2) the prosecution suppressed the evidence, and (3) the evidence is material. [Hooper v. Shinn](#), 985 F.3d 594, 616 (9th Cir. Jan. 8, 2021).

Evidence may be deemed "suppressed" even where the failure to disclose favorable evidence was unintentional or where the prosecutor was unaware that others, acting on the government's behalf, had such evidence. [Ochoa v. Davis](#), 16 F.4th 1314, 1327 (9th Cir. 2021), cert. denied, 143 S. Ct. 126, 214 L. Ed. 2d 35 (Oct. 3, 2022). When a *Brady* violation is alleged against law enforcement officers—as Plaintiff does here—under § 1983, the plaintiff must show that the "officers acted with deliberate indifference to or reckless disregard for an accused's rights or for the truth in withholding evidence from prosecutors." [Tennison v. City & Cnty. of San Francisco](#), 570 F.3d 1078, 1088-89 (9th Cir. 2009). Evidence is "material" only if "there is a reasonable probability that, had the evidence been disclosed to the defense, the result of the proceeding would have been different." [United States v. Bagley](#), 473 U.S. 667, 682, 105 S. Ct. 3375, 87 L. Ed. 2d 481 (1985). There is a "reasonable probability" of prejudice when the suppression "undermines confidence in the outcome of the trial." [Kyles v. Whitley](#), 514 U.S. 419, 434, 115 S. Ct. 1555, 131 L. Ed. 2d 490 (1995).

City Defendants assert that Plaintiff cannot produce evidence that Officers Monzon and Hall intentionally destroyed audio recordings of their initial interviews with the shooting victims. City Mot. [*27] 13. In support, City Defendants introduce deposition testimony from Mr. Meador, a third-party engineer who manages the DCS and who testified that the Officers did not have the capability to delete files within

DCS. *Id.*; see also Klimczak Decl., Ex. H ("Meador Dep."), 24:25-26:7. Plaintiff responds with the undisputed facts that the two victims' audio interviews—by some means—were rendered inaccessible in a criminal case where the defendant was asserting self-defense, facts that Plaintiff only learned in the middle of trial. Johnson Decl. ¶¶ 5-6; see also City UMF, Facts 4, 11.

The Court finds that there is a genuine dispute as to whether Officers Monzon and Hall acted with deliberate indifference or reckless disregard for the truth when they failed to upload the two victims' interview recordings to the City's DCS database. There are two competing narratives here. If a reasonable jury were to believe the City Officers' and Mr. Meador's statements, then it could conclude that the failures to properly upload the audio files did not rise to the level of culpability required for deliberate indifference or reckless disregard. Plaintiff, however, proffers deposition testimony that the Officers [*28] Monzon and Hall failed to confirm if their recordings were actually uploaded and failed to report the missing evidence once they discovered it was missing. See City UMF, Issue 2, ECF No. 180, at 17. An equally reasonable jury could infer from these facts that the Officer Defendants conveniently turned a blind eye to the technical flaws in the City's DCS when the files at issue could be used to impeach their written reports. Mr. Meador's testimony that the Defendant Officers did not have authority to *delete* files would not preclude the inference that the Officers acted with deliberate indifference in failing to *upload* files in the first instance. See City UMF, Facts 4, 11 (acknowledging that Officers Monzon and Hall "attempted to upload the audio recording to the [DCS] database, but the file did not get uploaded"). This inference is also supported by the fact that Officer Hall's recorded interview with Bicente's doctor at the hospital was successfully uploaded and

accessible. Trial Tr. 704:9-21. The dispute between these dueling inferences, whose resolution would be material to a finding of suppression under *Brady*, is not up to this Court to resolve on a motion for summary judgment. [*29]¹

As to the Fifth Claim against Officer Tessler, however, the Court does not find that a similar dispute exists. First, Plaintiff's proffered evidence regarding the missing audio recordings do not extend to Officer Tessler. City UMF, Issue 2, ECF No. 180, at 17. Second, the only potential *Brady* allegations against Officer Tessler relate to his alleged modifications of Plaintiff's key fob data and an email where Officer Tessler requested an uploaded statement to be deleted from Plaintiff's case file. See Marinho Decl., Ex. D, ECF No. 168-4. Plaintiff has not introduced any evidence that could give rise to an inference that Officer Tessler manipulated the key fob data; he has only pointed to the fact that Officer Tessler did not specify the format he provided the data to the District Attorney's Office. City UMF, Fact 24. As to Officer Tessler's request to delete a file from Plaintiff's case file, the email in question indicates on its face that Officer Tessler had "uploaded a statement to the wrong case number." Marinho Decl., Ex. D. Plaintiff does not proffer any evidence suggesting that the purportedly deleted file was not, in fact, related to an entirely different case, [*30] much less that Officer Tessler had requested it removed with

¹City Defendants primarily focus on the "deliberate indifference" and suppression requirements, but to the extent they dispute other *Brady* elements, the Court also finds that there is at least a genuine and triable issue as to whether the victim interview recordings taken closest in time after the Plaintiff's shooting would have "tend[ed] to call the government's case into doubt" (i.e., were favorable) and whether "there is a reasonable probability that, had the evidence been disclosed to the defense, the result of the proceeding would have been different" (i.e., were material). [Ochoa, 16 F.4th at 1326-27.](#)

"deliberate indifference" or "reckless disregard" for Plaintiff's rights. With respect to both of these instances, Plaintiff fails to raise a genuine dispute that Officer Tessler had violated his *Brady* rights.

* * *

In summary, the Court finds that Plaintiff has failed to demonstrate that there exists a genuine dispute relating to his claim for a [Tatum](#) violation or with respect to Officer Tessler's conduct. However, Plaintiff has adduced sufficient evidence to raise a genuine dispute as to whether Officers Monzon and Hall acted with "deliberate indifference or reckless disregard" when they failed to upload the victims' audio recordings to the DCS database. Accordingly, the Court GRANTS City Defendants' Motion as to Officer Tessler and DENIES the Motion with respect to Officers Monzon and Hall.

C. Sixth Claim: Conspiracy

To establish a conspiracy claim under §1983, plaintiffs must show "(1) the existence of an express or implied agreement among the defendant officers to deprive him of his constitutional rights, and (2) an actual deprivation of those rights resulting from that agreement." [Avalos v. Baca](#), 596 F.3d 583, 592 (9th Cir. 2010). Because "[c]onspiracy is not itself a constitutional [*31] tort under § 1983 . . . there must always be an underlying constitutional violation." [Lacey v. Maricopa Cnty.](#), 693 F.3d 896, 935 (9th Cir. 2012). Plaintiff may "rely on indirect or circumstantial evidence to buttress his conspiracy claim. He must, however, provide specific facts showing that a conspiracy exists in order to survive summary judgment." *Stiglich v. Contra Costa Cnty. Bd. of Sup'rs*, 106 F.3d 409 (9th Cir. 1997).

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on Plaintiff's conspiracy claim based on his inability to establish a constitutional violation under any of his other claims. City Mot. 21. In their reply, they also argue that Plaintiff cannot show there was an agreement or meeting of minds to violate Plaintiff's rights. City Reply 10-11. Plaintiff relies on the facts that Officers Monzon and Hall "claimed to have uploaded the audio recordings to DCS when the neutral third-party vendor Dave Meador says they did not" and "the fact that Tessler asked someone else within the department to delete a statement from Plaintiff's case in DCS." Opp. City 13.

First, with respect to Officer Tessler, the Court found that Plaintiff has failed to provide evidence to support a genuine dispute as to constitutional violations relating to Officer Tessler's manipulation of key fob data or his request to delete a statement erroneously [*32] uploaded to Plaintiff's case file. See *supra* Sections III(A), (B)(3). Accordingly, there is no genuine dispute that the civil conspiracy claim cannot be maintained against Officer Tessler because there is no surviving underlying constitutional violation against him.

Second, regarding Officers Monzon and Hall, the Court found that there are genuine disputes of material fact as to whether these officers suppressed exculpatory evidence by independently failing to upload the audio recordings for the victims' initial interview onto DCS. See *supra* Section III(B)(3). As a result, there remains at least two potential constitutional violations against these Defendant Officers, which defeats the only basis raised in the City Defendants' opening Motion.

City Defendants, however, argue for the first time in their reply that Plaintiff is also unable to show that there exists an express or implied agreement to deprive him of his constitutional

rights. Compare City Mot. 21 with City Reply 10-11. As an initial matter, "[r]aising new arguments in a reply brief is classic sandbagging," [California Sportfishing Prot. All. v. Pac. States Indus., Inc.](#), 2015 U.S. Dist. LEXIS 127871, 2015 WL 5569073, at *2 (N.D. Cal. Sept. 22, 2015), and City Defendants provide no explanation as to why it did not assert this argument in their opening motion. Even if this [*33] argument was properly raised in City Defendants' opening motion, the Court finds that the undisputed facts raise a genuine dispute as to whether Officers Monzon and Hall had conspired in failing to upload the victim interviews' audio recordings. The undisputed circumstantial evidence here indicate that Officer Monzon failed to upload the audio recording for Alvaro Castro's interview into the DCS database and, on a purportedly separate occasion, Officer Hall similarly failed to upload the audio recording for Bicente Castro's interview. City UMF, Facts 4, 11. Both failed uploads occurred with respect to victims whose testimony would be central to Plaintiff's self-defense claim, whereas Officer Hall had no issues uploading the audio recording of his interview with Bicente's doctor. Trial Tr. 704:9-21. Moreover, neither Officer reported the missing evidence or the fact that there may be an error with DCS when they learned the recordings could not be located. See City UMF, at 17-18. A reasonable jury could infer from the fact that two officers independently failed to upload similar potentially exculpatory audio files that there existed an implied agreement or meeting of minds to do so.

[*34] In summary, the Court DENIES City Defendants' Motion as to Plaintiff's Sixth Claim for Conspiracy as to Officers Monzon and Hall but GRANTS the Motion as to Officer Tessler.

D. Seventh Claim: Malicious Prosecution and Unlawful Detention

To prevail on a claim for malicious prosecution, a plaintiff "must show that the defendants prosecuted her with malice and without probable cause, and that they did so for the purpose of denying her equal protection or another specific constitutional right." *Freeman v. City of Santa Ana*, 68 F.3d 1180, 1189 (9th Cir. 1995). City Defendants argue that Plaintiff cannot establish the requisite "probable cause" element because that issue has been collaterally estopped by the criminal court's finding of probable cause at the preliminary hearing. City Mot. 16-17. Plaintiff responds that the prior probable cause finding is not entitled to preclusive effect because he has alleged the Defendant Officers fabricated evidence in the preliminary hearing. Opp. City 12.

Unlike the City Defendants' assertions of collateral estoppel to preclude Plaintiff's *Devereaux*, *Tatum*, and *Brady* claims, probable cause is an element to a malicious prosecution claim. Accordingly, the Court considers whether the criminal court's probable cause findings [*35] would preclude Plaintiff's ability to establish his Seventh Claim.

This Court applies California law on preclusion issues, which here sets forth five requirements: "(1) the issue sought to be relitigated must be identical to the issue decided in the earlier action; (2) the issue must have been actually litigated and (3) necessarily decided in the earlier action; (4) the earlier decision must be final and made on the merits; and (5) the party against whom issue preclusion is asserted must have been a party to the earlier action or in privity with such a party." [Wige v. City of Los Angeles](#), 713 F.3d 1183, 1185-87 (9th Cir. 2013) (citing [Lucido v. Superior Ct.](#), 51 Cal. 3d 335, 341, 272 Cal. Rptr. 767, 795 P.2d 1223 (1990)). "[A] ruling on sufficiency of the evidence at a preliminary hearing would, in most cases, meet" the first three preclusion requirements, *i.e.*, identical

issues, actual litigation, and necessary decisions. [*McCutchen v. City of Montclair*, 73 Cal. App. 4th 1138, 1146-47, 87 Cal. Rptr. 2d 95 \(1999\)](#). However, "[o]ne notable exception to this rule would be in a situation where the plaintiff alleges that the arresting officer lied or fabricated evidence presented at the preliminary hearing." [*Id.* at 1147](#).

For the same reasons noted in its discussion of Plaintiff's [*Devereaux*](#) claim, the Court finds no genuine dispute that Plaintiff cannot prove that the City Defendants deliberately fabricated evidence. See *supra* Section III(A). Plaintiff's [*36] reliance on the Court's rejection of the collateral estoppel defense at the motion to dismiss stage is misplaced. ECF No. 93, at 6-8. Whereas mere allegations of deliberate fabrication may be sufficient to survive a motion to dismiss, a motion for summary judgment "requires the nonmoving party to go *beyond the pleadings* and . . . designate 'specific facts showing that there is a genuine issue for trial.'" [*Celotex*, 477 U.S. at 324](#) (emphasis added). Plaintiff's citation to [*Harris v. Roderick*](#) is inapposite for the same reasons. Opp. City 12. Arising out of the infamous Ruby Ridge incident, [*Harris*](#) was a Ninth Circuit decision on a motion to dismiss, where the plaintiff's allegations of fabricated evidence were accepted as true. [*Harris v. Roderick*, 126 F.3d 1189 \(9th Cir. 1997\)](#). Its holding does not affect or satisfy Plaintiff's obligation here to provide specific facts and evidence beyond the pleadings when challenged by a motion for summary judgment.

Plaintiff also make a passing reference to [*Patterson v. City of Yuba City*](#), invoking the exception to collateral estoppel where the "issue of probable cause was not litigated at the preliminary hearing for *tactical* reasons." [*748 F. App'x 120, 122 \(9th Cir. 2018\)*](#) (emphasis added). Plaintiff has provided a declaration that he "did not testify at his [sic] preliminary hearing [*37] based on advice of

counsel, for strategic reasons." Johnson Decl. ¶ 4. This argument misapprehends the exception; Plaintiff's decision not to testify at his preliminary hearing does not mean that the issue of probable cause was not fully litigated by his counsel. Indeed, the preliminary hearing transcript plainly evidences a vigorous defense from Plaintiff's criminal counsel. See *generally* Klimczak Decl., Ex. B.

Because Plaintiff has failed to present a genuine dispute as to whether the City Defendants had engaged in deliberate fabrication of evidence, no exception applies to block the preclusive effect of the criminal court's probable cause finding. See [*McCutchen*, 73 Cal. App. 4th at 1147 \(1999\)](#) ("[A] prior judicial determination at a preliminary hearing that there was sufficient evidence to hold the plaintiff over for trial may, in some situations, preclude the plaintiff from relitigating the issue of probable cause to arrest in a subsequent civil suit."). The Court also finds that (1) the issue of probable cause for malicious prosecution and unlawful detention is identical to the issue of probable cause considered by the criminal court; (2) Plaintiff's criminal counsel actually and fully litigated the issue, even if Plaintiff [*38] himself did not testify; (3) the criminal court was required to make a determination on probable cause to hold Plaintiff over for trial; (4) the probable cause finding was final and indeed even appealed; and (5) Plaintiff is obviously the same party in the earlier action. See [*Wige*, 713 F.3d at 1185-87 \(9th Cir. 2013\)](#).

Accordingly, the criminal court's finding of probable cause collaterally estops Plaintiff's ability to show a lack of probable cause, as required by his malicious prosecution and unlawful detention claim. The City Defendants, therefore, are entitled to summary judgment in their favor. The Court GRANTS City Defendants' Motion as to Plaintiff's Seventh

Claim for Unlawful Detention and Malicious Prosecution.

E. Eighth Claim: Municipal Liability (*Monell*)

Finally, the City moves for summary judgment on Plaintiff's *Monell* municipal liability claim for continued unlawful detention and malicious prosecution. Plaintiff's *Monell* claim is premised on two theories: (1) the SJPd had a policy or practice of failing to preserve potentially exculpatory evidence, and (2) the SJPd had a policy or practice of failing to train or discipline their employees regarding their constitutional evidentiary obligations. See Opp. City 17-19. [*39]

"A government entity cannot be held liable under 42 U.S.C. § 1983, unless a policy, practice, or custom of the entity can be shown to be a moving force behind a violation of constitutional rights." *Dougherty v. City of Covina*, 654 F.3d 892, 900 (9th Cir. 2011) (citing *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 691, 98 S. Ct. 2018, 56 L. Ed. 2d 611 (1978)). To establish a governmental entity's liability, a plaintiff must show: "(1) that [the plaintiff] possessed a constitutional right of which he was deprived; (2) that the municipality had a policy; (3) that this policy amounts to deliberate indifference to the plaintiff's constitutional right; and (4) that the policy is the moving force behind the constitutional violation." *Id.* at 900 (brackets omitted). Absent a formal policy, plaintiffs must show a "longstanding practice or custom which constitutes the standard operating procedure of the local government entity" that is so "persistent and widespread" that it constitutes a "permanent and well settled city policy." *Trevino v. Gates*, 99 F.3d 911, 918 (9th Cir. 1996).

More specifically, "a municipal defendant can be held liable because of a failure to properly train its employees [if] the government's

omission [] amount[ed] to a 'policy' of deliberate indifference to constitutional rights." *Kirkpatrick v. Cnty. of Washoe*, 843 F.3d 784, 793 (9th Cir. 2016). Although it is "ordinarily necessary" for a plaintiff to demonstrate a "pattern of similar constitutional violations [*40] by untrained employees," a pattern is not necessary where "the unconstitutional consequences of failing to train [are] 'patently obvious' and the violation of a protected right [is] a 'highly predictable consequence' of the decision not to train." *Id.*

The Court first addresses Plaintiff's theory that the SJPd had a policy or practice of failing to preserve potentially exculpatory evidence, such as the victims' interview audio recordings. As to this theory, Plaintiff has not presented any evidence that Officer Monzon's and Hall's failures to upload the victims' interview recordings were pursuant to a SJPd-wide policy or practice, as opposed to "isolated or sporadic incidents." *Hunter v. Cnty. of Sacramento*, 652 F.3d 1225, 1233 (9th Cir. 2011) (quoting *Trevino v. Gates*, 99 F.3d 911, 918 (9th Cir. 1996)). It would be strange indeed for the SJPd, with the one hand, to provide audio recording devices to its officers and set up the DCS database to store files with safeguards against unauthorized deletions and, with the other, to implement a practice thwarting the operation of that system. Accordingly, the Court finds that there is no genuine dispute as to whether there existed a policy or practice of failing to preserve potentially exculpatory evidence.

Plaintiff's second theory claims that there was a [*41] SJPd practice or policy for failure to properly train its employees in preserving evidence or a failure to investigate incidents of missing evidence. Opp. City 16, 18-19. In support of this theory, Plaintiff has not provided evidence of a pattern or other incidents where evidence was missing, but he does provide deposition testimony from

Officers Hall and Monzon, indicating there were:

- No policies requiring officers to confirm files were successfully uploaded to DCS database (Hall Dep. 26:19-27:10);
- No policies requiring officers to report missing evidence (Hall Dep. 35:12-24; Monzon Dep. 16:19-17:2);
- No policies requiring officers to report software or DCS issues (Hall Dep. 38:16-39:17; 41:11-15); and
- No policies for investigating, disciplining, or providing additional training to officers who were involved in incidents of missing evidence (Hall Dep. 42:4-44:13; Monzon Dep. 40:14-41:4).

Additionally, Officer Hall testified that he did not believe the missing audio file "was a big deal" and admitted that, at the time, he did not have "the training nor the experience to really understand [that there was a problem]". Hall Dep. 35:19-24; 39:7-17. He also testified that, when he learned [*42] Officer Monzon's audio recording was also missing, he thought the missing evidence "was most likely a systems error or something." Hall Dep. 40:23-41:4. That said, Officer Hall also testified that he had received some hands-on training on DCS. Hall Dep. 10:16-11:3.

Notwithstanding the absence of a pattern of unconstitutional activity, Plaintiff's evidence here presents a genuine and triable dispute as to whether the SJPd was deliberately indifferent to the need for further training or investigation to avoid potential *Brady* violations by its employees. Specifically, the Court finds that a reasonable jury could infer that the loss of potentially exculpatory evidence was an "obvious" or "highly predictable consequence" of the SJPd's decision not to have policies requiring officers to confirm successful DCS uploads, to report missing evidence or DCS issues, or to receive further DCS training if they were involved in an incident of lost

evidence. As the Ninth Circuit held in *Kirkpatrick*,² "[t]he lack of a formal policy is not necessarily unconstitutional if" there had been no incident of constitutional import. *843 F.3d at 796*. "Nor does a single unconstitutional incident [such as Officers Hall's and Monzon's failure [*43] to upload the interview recordings], without more, establish that a municipality failed to provide proper training." *Id.* However, the combination of both of these elements—*i.e.*, (1) SJPd officers' failure to upload exculpatory evidence on two separate occasions and (2) testimony that there was no policy in place to prevent, report, or remediate incidents of missing DCS evidence—"raises more than a spectre of deliberate indifference" that exculpatory evidence may be lost to the detriment of defendants' constitutional rights. *Id.*

Because the Court finds that there is a genuine dispute as to whether the failure to maintain policies to prevent, report, or remediate incidents of missing DCS evidence would demonstrate deliberate indifference towards the risk of *Brady* violations, summary judgment on Plaintiff's *Monell* claim is inappropriate. Accordingly, the Court DENIES City Defendants' Motion as to the Eighth Claim for *Monell* liability against Defendant City of San Jose.

* * *

In summary, the Court GRANTS IN PART and DENIES IN PART City Defendants' Motion for Summary Judgment, as follows:

- GRANTED as to the FAC's Fourth Claim against all Officer Defendants;
- GRANTED as to the Fifth Claim against Officer [*44] Tessler and DENIED as to Officers Monzon and Hall;

² City Defendants do not address or mention *Kirkpatrick* at all in their reply brief.

- GRANTED as to the Sixth Claim against Officer Tessler and DENIED as to Officers Monzon and Hall;
- GRANTED as to the Seventh Claim against all Officer Defendants; and
- DENIED as to the Eighth Claim against the City of San Jose.

IV. COUNTY DEFENDANT

The County of Santa Clara moves for summary judgment as to Plaintiff's Second Claim for Cruel and Unusual Conditions of Confinement, asserted against the County under Monell. County Mot., ECF No. 136.

The Monell claim as alleged in the FAC is premised on the County's policy and practice of deliberate indifference to the excessive force and cruel and unusual punishment violations by its employees, including "isolating people in inhumane conditions." FAC ¶¶ 253, 255-56. Plaintiff also asserts that the County has failed to train its correction deputies and failed to investigate incidents of constitutional violations. *Id.* ¶¶ 257, 259.

The Court first addresses the parties' evidentiary objections before turning to Monell.

A. Evidentiary Objections

Plaintiff moves to strike the Duran Declaration introduced by the County. Opp. County 8-12. The Court DENIES Plaintiff's motion with respect to Captain Duran's references [*45] to the "Classification Policy, Goals, and Objectives, Policy 13.01, effective as of December 2, 2022," because the County has attested that the policy was produced in discovery on May 7, 2021. Botha Reply Decl. ¶ 3, ECF No. 158. The Court also DENIES AS MOOT Plaintiff's motion to strike portions of the Duran Declaration summarizing portions of Plaintiff's Department of Corrections

classification and housing records, because the Court does not rely on Plaintiff's specific records for its decision. See *infra* Section IV(B)(2).

The County has objected to several exhibits in Plaintiff's opposition. County Reply 3-6. Most relevantly, the County objected to Plaintiff's Exhibit T, the "Management Audit of the County of Santa Clara Sheriff's Custody Operations" ("County Audit") as hearsay. Federal Rule of Evidence 801(d)(2) provides that a statement is not hearsay if, *inter alia*, it "was made by a person whom the party authorized to make a statement on the subject," Fed. R. Evid. 801(d)(2)(C), or if it was made "by the party's agent or employee on a matter within the scope of that relationship and while it existed." Fed. R. Evid. 801(d)(2)(D). The County Audit report was exhibited by Plaintiff's counsel who testified that it was prepared by the Board of Supervisors Management [*46] Audit Division and was signed by Cheryl Solov, the Management Audit Manager. Powell Decl. ¶ 11. Ms. Solov's cover letter also states that the audit "was added to the Management Audit Division's work plan by the Board of Supervisors of the County of Santa Clara, pursuant to the Board's power of inquiry specified in Article III, Section 302(c) of the Santa Clara County Charter." County Audit, Bates stamped PLTF_Rule26_000537. Accordingly, the Court finds that the County Audit may be considered as a non-hearsay statement and DENIES the motion to strike the County Audit. With respect to the remaining objections as to Plaintiff's untimely disclosed documents and lack of pin citations to exhibits,³ the Court finds such practices to be concerning and unbecoming of competent counsel. However, in the interests of engaging with the merits of the case, the Court will decline at this time to strike Plaintiff's

³ Plaintiff purportedly only produced 8 documents out of 37 exhibits in his opposition. See County Reply 5.

submitted evidence to the extent any portion did not comply with disclosure and citation requirements.

Finally, the Court finds good cause and GRANTS Plaintiff's Motion for Leave to Supplement the Record with the Final Report on the Andrew Hogan incident, prepared by the County's Office [*47] of Correction and Law Enforcement Monitoring ("OCLEM"). ECF No. 211.

B. Second Claim: Municipal Liability (Monell)

Following Plaintiff's opposition, the only [Monell](#) theories that Plaintiff continues to pursue are: (1) the County's failure to investigate and deliberate indifference towards deputies' use of excessive force, Opp. County 15-21; and (2) the County's custom of housing pretrial detainees in solitary confinement without minimum out-of-cell time, *id.* at 21-24.⁴

As summarized above in Section III(E), "[a] government entity cannot be held liable under 42 U.S.C. § 1983, unless a policy, practice, or custom of the entity can be shown to be a moving force behind a violation of constitutional rights." [Dougherty, 654 F.3d at 900](#). To establish a governmental entity's liability, a plaintiff must show: "(1) that [the plaintiff] possessed a constitutional right of which [s]he was deprived; (2) that the municipality had a policy; (3) that this policy amounts to deliberate indifference to the plaintiff's constitutional right; and (4) that the policy is the moving force behind the constitutional violation." *Id.* Absent a formal

governmental policy, plaintiffs must show a "longstanding practice or custom which constitutes the standard operating [*48] procedure of the local government entity" that is so "persistent and widespread" that it constitutes a "permanent and well settled city policy." [Trevino, 99 F.3d at 918](#).

1. Deliberate Indifference to Excessive Force

Plaintiff maintains that the County is liable under [Monell](#) for its deliberate indifference in failing to investigate and discipline incidents of excessive force. Opp. County 15-19. In support, he primarily relies on (1) deposition testimony taken in other § 1983 cases involving the County that have since settled; and (2) the County Audit's finding that the Santa Clara Custody Bureau had failed to provide full access to its "use of force" data. *Id.* at 16-18, 20-21; see also *supra* Section II(C)(3). As discussed below, the Court finds that neither set of evidence—individually or in the aggregate—suffice to establish a genuine dispute of material fact as to a practice or custom of excessive force.

With respect to the deposition testimony taken in other cases, the Court finds that Plaintiff has not provided evidence that his alleged deprivation of constitutional rights is substantially similar to those other § 1983 cases, such that a jury could infer "that the policy is the moving force behind the constitutional violation." [*49] [Dougherty, 654 F.3d at 900](#). For instance, Plaintiff provides evidence that, in the *Rikki Martinez v. County of Santa Clara* litigation (Case No. 16-cv-0626-LHK), an IAU investigator had admitted to requiring "clear and convincing" evidence to determine deputies' culpability instead of "preponderance of the evidence" as required by the IAU Policy. Opp. County 6-7; County UMF, Fact 4. However, Plaintiff does not

⁴ Plaintiff concedes that the County "does not have a policy, practice, or custom of providing intentionally indifferent medical care for serious medical needs of inmates." County UMF, Facts 44-52. He also concedes that he "was not housed in inhumane condition[s]," though he disputes that he received the minimum out-of-cell time. County UMF, Facts 37-42.

provide any evidence that this custom or practice occurred in the County's investigation into *his* grievance, *i.e.*, that the IAU had reviewed Plaintiff's grievance using a "clear and convincing" standard. See County UMF, Facts 5-6 (undisputed). Plaintiff also relies on testimony elicited in another case, *Aaron Steward v. County of Santa Clara* (18-cv-04119-SI), where an IAU investigator had omitted certain facts when forwarding the case to the District Attorney. Opp. County 16-17. Once again, however, Plaintiff neglects to establish the nexus between the practice evidenced in *Steward* with the facts of Plaintiff's case.⁵ County UMF, Fact 5 (undisputed fact that the District Attorney declined to file charges against individual County Defendants). Indeed, this practice of relying on other cases litigated by [*50] Plaintiff's counsel is remarkably similar to the strategy expressly rejected in [Alegretti v. City & Cnty. of San Francisco, 2014 U.S. Dist. LEXIS 65835, 2014 WL 1911405, at *6 n.5 \(N.D. Cal. May 13, 2014\)](#) (finding that "mere reference" to "four factually dissimilar civil rights actions [the same plaintiff's counsel] filed against the City over a three-year period . . . do[es] not demonstrate that the City has a policy of condoning excessive force").

And while Plaintiff has exhibited nine depositions from four other cases, he has not exhibited a single deposition taken in *this* case. See *generally* Powell Decl. Nor do the opposition brief or Plaintiff's declaration

provide any specific facts regarding the deficiencies of the investigation into his own alleged incident of excessive force. See *generally* Opp. County 1-8; Johnson County Decl. As a result, the lack of factual development and evidence in Plaintiff's own case prevent him from being able to raise a genuine issue that his constitutional violation was caused by the policies exhibited in other § 1983 cases against the County. In other words, even if these other cases support a custom or practice, Plaintiff has not established that it was the same—or a substantially similar—custom or practice that deprived *him* of his constitutional rights.

Plaintiff's [*51] reliance on the County Audit's reported findings regarding the Custody Bureau is also misplaced. Opp. County 20-21. Although the County Audit indicated that the Custody Bureau was not very forthcoming with their "use of force" data (County Audit 32, 38), this alone does not evidence a practice or custom condoning excessive force, similar to the one Plaintiff allegedly experienced. See [Lozano v. Cty. of Santa Clara, 2019 U.S. Dist. LEXIS 216013, 2019 WL 6841215, at *18 \(N.D. Cal. Dec. 16, 2019\)](#) (dismissing § 1983 complaint where "[a]side from making cursory reference to . . . a 'Blue Ribbon Commission' report . . . Plaintiff ha[d] not alleged that any other person was subjected to similar treatment"), *aff;d*, [2021 U.S. App. LEXIS 26995, 2021 WL 4077000 \(9th Cir. Sept. 8, 2021\)](#). To the contrary, the fact that the County's Board of Supervisors "promptly established a Blue Ribbon Commission" to "address concerns around inmate treatment and operations within the County Jail" (County Audit 31) would suggest that the County was *not* deliberately indifferent. As the Supreme Court indicated in *Connick v. Thompson*, "when city policymakers are on actual or constructive notice that a particular omission in their training program causes city employees to violate citizens' constitutional rights, the city

⁵The same reasoning applies to Plaintiff's Record Supplement, which involved an IAU investigation that was prematurely closed without explanation or a finding. ECF No. 211-3, at 43-46. Plaintiff does not provide any evidence that—even if this single incident could be considered a custom or practice—it was the custom or practice that deprived Plaintiff of his constitutional rights. Indeed, the OCLEM's subsequent investigation into the incident and the Board of Supervisors' order to publicly release the memorandum would suggest that the County is *not* deliberately indifferent to risks of deficient investigations evidenced in the OCLEM report.

may be deemed deliberately indifferent *if the policymakers choose to retain* [*52] *that program.*" [563 U.S. 51, 61, 131 S. Ct. 1350, 179 L. Ed. 2d 417 \(2011\)](#) (emphasis added). It follows, therefore, that where policymakers take affirmative action to investigate, identify over 600 potential reforms, and implement a new force policy, see *supra* Section II(C)(1), they cannot be said to be "deliberately indifferent" to constitutional violations arising from prior practices.

Finally, to the extent Plaintiff cites one other instance of alleged excessive force that he himself had witnessed (Johnson County Decl. ¶¶ 74-79), a total of two incidents fails to establish a "longstanding practice or custom which constitutes the standard operating procedure of the local government entity" that is so "persistent and widespread" that it constitutes a "permanent and well settled city policy." [Trevino, 99 F.3d at 918](#).

For the reasons outlined above, the Court finds that Plaintiff's proffered evidence does not raise a genuine and triable issue as to whether the County had a policy, practice, or custom that was deliberately indifferent to his constitutional right to be free from excessive force.

2. Custom of Unconstitutional Solitary Confinement

Apart from his [Monell](#) theory premised on a custom of excessive force, Plaintiff also argues that the County violated his right to receive [*53] "constitutionally adequate exercise." Opp. County 21. This theory is evidenced entirely by "classification records [which] are sufficient to show a custom of housing people in solitary confinement due to their charges only." *Id.* at 22. The purported "custom" appears to be the County policy that prevented Plaintiff from being eligible to be "down classed" to a lower security housing on

account of his attempted homicide charges. *Id.* Plaintiff, however, does not argue or explain in his opposition why this housing assignment policy is unconstitutional. *Id.* at 21-24. In fact, much of Plaintiff's opposition on this point appear to argue facts not present or relevant in this case. See *id.* at 23 (alleging that the challenged custom was "using force on mentally ill subjects without accommodating their disability"); 24 (citing to the *City of San Jose's* custom "during arrests of mentally ill subjects"). The Court finds that Plaintiff has failed to raise a genuine issue as to whether a policy of classifying pretrial detainees and inmates for housing based on their charges is unconstitutional.

Plaintiff also seeks to maintain his [Monell](#) claim based on assertions that he was placed in solitary confinement [*54] and denied the minimum out-of-cell time. Opp. County 21; Johnson County Decl. ¶¶ 16-36, ECF No. 148. Although the Court would be inclined to find that there may be a genuine dispute as to whether Plaintiff received the mandatory minimum out-of-cell time,⁶ he has failed to adduce any facts that this failure was a widespread County policy, practice, or custom, as opposed to an isolated or sporadic incident. See, e.g., [Hunter, 652 F.3d at 1233](#). Plaintiff relies on a consent decree against the County entered in a prior case (Case No. 15-cv-05277-RMI), that purportedly brought claims relating to the County's failure to provide out-of-cell time. Powell Decl., Ex. S. However, the consent decree does not contain any County admissions. To the contrary, it contains a provision expressly barring the use of the decree "in any other case, claim, or administrative proceedings, except that Defendant and its employees and agents may use this Consent Decree and any statement

⁶ Johnson claims he was locked in his cell for 47 out of every 48 hours. Johnson County Decl. ¶¶ 23, 30, 34; see also *supra* Section II(C)(4).

contained herein to assert issue preclusion or res judicata." *Id.*

Nor would the County Audit provide the basis for finding a policy of out-of-cell time violations. The County Audit expressly "did not find evidence to suggest lack of compliance [*55] with the law" and indicated that the County denied any use of solitary confinement against inmates, though the report did note that the County's out-of-cell time was a "distinct risk area." County Audit 39. At the summary judgment stage, however, the mere possibility that similar violations *may* exist fails to satisfy Plaintiff's obligation to set forth specific facts showing that a genuine issue *does indeed* exist for trial, much less that such violations amounted to a practice or custom.

Accordingly, the Court finds that there is no genuine dispute with regards to Plaintiff's inability to establish a "longstanding practice or custom" depriving inmates of their mandatory out-of-cell time. [Trevino, 99 F.3d at 918](#).

* * *

In opposing the County's Motion for Summary Judgment, Plaintiff relied almost entirely on deposition testimony provided in other § 1983 actions against the County. Such evidence—no matter how strongly indicative of a practice or customs in their respective cases—cannot make up for a lack of factual development in Plaintiff's own case, specifically his failure to establish a common nexus to those other practices or customs. Nor does his citation to the County Audit satisfy Plaintiff's obligation to set [*56] forth specific facts evidencing a genuine issue; if anything, the Audit would undermine Plaintiff's ability to demonstrate the County's deliberate indifference, as required by [Monell](#).

For these reasons, the Court finds that Plaintiff has failed to present a genuine issue of material fact with respect to the Second Claim

of municipal liability against the County. The County's Motion for Partial Summary Judgment is GRANTED.

V. DEFENDANT LUBRIN

Finally, Defendant Lubrin moves for summary judgment as to the one claim against him: a § 1983 claim for violation of Plaintiff's [Fourteenth Amendment](#) right to be free from cruel and unusual conditions of confinement. ECF No. 164. Lubrin argues that (1) there is no evidence that he violated any of Plaintiff's [Fourteenth Amendment](#) rights and (2), even if he did, he is entitled to qualified immunity because there was no clearly established legal authority that his conduct was unconstitutional. *Id.*

A. [Fifth Amendment](#) Waiver

Plaintiff argues that Lubrin's Motion should be denied outright because he had previously invoked his [Fifth Amendment](#) rights to decline answering significantly portions of the FAC. Opp. Lubrin 3-5. However, Lubrin's Motion does not rely on any new affirmative testimony he has provided but rather is premised on Plaintiff's [*57] own affirmative admissions and allegations. See Stock Decl. ¶¶ 2-3 (attaching only Plaintiff's deposition and the County's separate statement of facts as exhibits), ECF No. 163. The Court, accordingly, declines Plaintiff's invitation to deny the Lubrin Motion on the basis of alleged [Fifth Amendment](#) waiver.

B. Constitutional Violation

The FAC asserts that Lubrin violated Plaintiff's rights to be "free from cruel and unusual conditions of confinement" and "free from the use of excessive force by correctional deputies and other government actors." FAC ¶ 248.

Plaintiff, however, concedes that "Lubrin did not subject Plaintiff to excessive force." Lubrin UMF, Facts 31, 34 (undisputed). In his opposition, Plaintiff only argues that Lubrin engaged in "aggressively punitive and assaultive behavior" by "enter[ing] the Plaintiff's cell while repeatedly saying to Plaintiff that he would perform cavity searches on all the black prisoners — such as himself." Opp. Lubrin 6-7. This assault "contribut[ed] to a string of unacceptable conditions of confinement which in their totality added up to a [Fourteenth Amendment](#) violation." *Id.* at 8.

Plaintiff's theory is unfounded. The consistent law in this circuit has been that mere threats of [*58] bodily harm fail to state a cause of action under § 1983—indeed, the Ninth Circuit had previously characterized Plaintiff's suggestion as "trivializ[ing] the [eighth amendment](#)." [Gaut v. Sunn, 810 F.2d 923, 925 \(9th Cir. 1987\)](#); see also [Vaughn v. Smith, 127 F.3d 1108 \(9th Cir. 1997\)](#) (holding that racist remarks and threats to an inmate's life did not rise to the level of an [Eighth Amendment](#) violation). At the very least, Lubrin would also be "entitled to qualified immunity as [Gaut](#) was [and is] the law of the Ninth Circuit at the time of the alleged threats and harassment." [Hayes v. Cambra, 203 F.3d 831 \(9th Cir. 1999\)](#).

Plaintiff cites no authority that suggests mere threats—without the infliction of any actual force—would constitute cruel and unusual conditions of confinement or, indeed, any constitutional violation. The only case he cites involved a plaintiff that had expressly pled an assault claim under California law. Opp. Lubrin 7 (citing [Austin v. Terhune, 367 F.3d 1167 \(9th Cir. 2004\)](#)). Here, the FAC contains no allegation to support an assault claim against Lubrin. The persistent inquiry has been whether Lubrin violated Plaintiff's constitutional rights, not whether his actions constituted assault. Plaintiff's attempts to move the goal posts are not well taken.

Accordingly, the Court GRANTS Lubrin's Motion for Summary Judgment.

VI. CONCLUSION

Based on the foregoing, Defendants' Motions for Summary Judgment [*59] are GRANTED IN PART and DENIED IN PART.

Specifically, the City Defendants Motion is GRANTED as to the FAC's Fourth Claim against all Officer Defendants; GRANTED as to the Fifth Claim against Officer Tessler and DENIED as to Officers Monzon and Hall; GRANTED as to the Sixth Claim against Officer Tessler and DENIED as to Officers Monzon and Hall; GRANTED as to the Seventh Claim against all Officer Defendants; and DENIED as to the Eighth Claim against the City of San Jose.

The County's Motion for Partial Summary Judgment on the FAC's Second Claim is GRANTED.

Defendant Lubrin's Motion for Summary Judgment on the FAC's First Claim is GRANTED.

IT IS SO ORDERED.

Dated: March 21, 2023

/s/ Edward J. Davila

EDWARD J. DAVILA

United States District Judge

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Lisa M. v. Kijakazi

United States District Court for the Northern District of Illinois, Eastern Division

October 14, 2021, Decided; October 14, 2021, Filed

No. 18 C 5299

Reporter

2021 U.S. Dist. LEXIS 197637 *; 2021 WL 4804073

LISA M.,¹ Plaintiff, v. KILOLO KIJAKAZI,
Acting Commissioner of Social Security,
Defendant.

Counsel: [*1] For M. Ann Lisa, Plaintiff:
Harold William Conick, LEAD ATTORNEY,
Law Offices of Harold W. Conick, LISLE, IL.

For Andrew M. Saul, Commissioner of Social
Security, Defendant: Ernest Yi Ling, LEAD
ATTORNEY, AUSA-SSA, United States
Attorney's Office (NDIL - Chicago), Chicago,
IL.

Judges: Jeffrey Cole, UNITED STATES
MAGISTRATE JUDGE.

Opinion by: Jeffrey Cole

Opinion

MEMORANDUM OPINION AND ORDER

Plaintiff applied for Disability Insurance Benefits under [Title II](#) of the [Social Security Act](#), [42 U.S.C. §§416\(i\), 423](#), over seven years ago. (Administrative Record (R.) 179-85). She claimed that she became disabled as of September 13, 2013, due to arthritis, fibromyalgia, and chronic myofascial pain. (R. 220). At 5'5" and 280 pounds, she is also morbidly obese, with a BMI of 46.6. (R. 220).

Over the next three years, the plaintiff's application as to the period between September 2013 and September 1, 2015, was denied at every level of administrative review: initial, reconsideration, administrative law judge (ALJ), and appeals council. It is the most recent ALJ's decision that is before the court for review. See [20 C.F.R. §§404.955; 404.981](#). Plaintiff asks the court to remand the Commissioner's decision, while the Commissioner seeks an order affirming the decision.

Unfortunately, [*2] this case has seen significant delays. Plaintiff filed suit under [42 U.S.C. § 405\(g\)](#) three years ago, on August 2, 2018, and the case was assigned to Judge Lee. The plaintiff and the defendant filed their opening and response briefs on November 15, 2018, and December 20, 2018. [Dkt. #16, #22]. Due to a government shutdown, the Chief Judge entered an order staying litigation in the case on December 26, 2018. [Dkt. #23]. A week later, Judge Lee struck the parties' briefs, instructing them to refile them once the shutdown was over. [Dkt. #24]. The shutdown continued and, on January 28, 2019, Judge Lee entered an order saying that, once the stay was lifted, he would "rule on the summary judgment motion as if the parties' summary judgment submissions had been refiled on the day the stay. [sic]". [Dkt. #26]. The stay was then lifted later that day. [Dkt. #27].

On February 2, 2019, the defendant responded to the previous two orders by refiling its response brief [Dkt. #29], and

¹ Northern District of Illinois Internal Operating Procedure 22 prohibits listing the full name of the Social Security applicant in an Opinion. Therefore, the plaintiff shall be listed using only their first name and the first initial of their last name.

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plaintiff then filed a reply brief on February 27, 2019. [Dkt. #30]. The defendant was given leave to file a sur-reply on March 8, 2019. [Dkt. #33, #34]. Nothing happened for another five months until August 22, 2019, when the Executive [*3] Committee reassigned the case to the newly appointed Judge Rowland. [Dkt. #35].

Another seven months passed, and the Chief Judge responded to the pandemic by entering a series of Covid-19 orders from March 19 through July 10, 2020, which extended any deadlines in civil cases for a total of 77 days. [Dkt. ##37-42]. After another two months passed, on September 28, 2020, the Executive Committee reassigned the case a second time, to the new appointed Judge Valderrama. [Dkt. # 43]. On December 28, 2020, Judge Valderrama advised the parties that he would issue a ruling on the parties' briefs by mail. [Dkt. #45]. Six months later, the judge asked for a status report from the parties as to whether they consented to proceed before a magistrate judge. [Dkt. #46]. The parties then consented to my jurisdiction pursuant to [28 U.S.C. § 636\(c\)](#) on July 15, 2021. [Dkt. #47, #48].

I.

A.

Plaintiff was born on June 9, 1963, and so was 54 years old at the time of the ALJ's decision on September 28, 2017. (R. 179). She has a good work record, working fairly steadily — aside from one or two years — from 1979 through 2013. (R. 214-15). She has a high school education and worked in banking her whole life. (R. 221). But, she was [*4] involved in a motor vehicle accident on March 8, 2011 and later developed fibromyalgia and eventually quit her job in September 2013. (R.

1094).

The record in this case is 1486 pages long and, inexplicably, was filed in *twenty-five* separate installments, making review more tedious than usual and providing perhaps at least a partial explanation for the three-plus years it has languished in federal district court. As is often the case, very little in that large record has anything to do with whether plaintiff can work. In fact, the plaintiff directs the court to just two of those 1486 pages in support of her claim. [Dkt. #16-1, at 3;#30, at 3].

Following her motor vehicle accident in March 2011, plaintiff sought treatment with Dr. Lichtenberg for complaints due to fibromyalgia and osteoarthritis. On December 18, 2013, she reported she had stopped using Plaquenil on her own because of possible adverse interactions with other drugs. (R. 1096). Musculoskeletal examination was normal: normal gait and station, full range of motion of the major joints and the spine, and no edema or synovitis. (R. 1097). The only exceptions were some tender points and slightly diminished grip. (R. 1097). The [*5] doctor noted moderate osteoarthritis of the hands. (R. 1097). Neurological examination was normal: normal reflexes, sensation, and motor strength of 5/5 throughout. (R. 1097). Dr. Lichtenberg noted a history of asthma and hypothyroidism. (R. 1097). Plaintiff's prescriptions for Gabapentin, Prednisone, and Synthroid were continued. (R. 1097).

Plaintiff saw Dr. Singh on May 29, 2014, with complaints of neck, shoulder, chest, and back pain (R. R. 2F/2). Claimant reported being involved in a motor vehicle accident in March 2011 (R. 2F/2). Musculoskeletal examination demonstrated normal motor strength and tone with good range of motion in the shoulders, elbows, knees, ankles, and feet . There was no synovitis, warmth, or erythema (R. 437). But, again, there were multiple tender points.

(R. 438). Gait and station were normal. (R. 438). Examination of plaintiff's hands revealed bony hypertrophy throughout the proximal interphalangeal joints. There was reduced range of motion in the right pinky and in all digits of the left hand. (R. 437). Dr. Singh advised plaintiff to continue taking Gabapentin and start using Cymbalta and Lidoderm patch. (R. 438). She was also taking Aleve (R. 439). The doctor [*6] also noted a history of hypertension, hyperlipidemia, status post thyroidectomy, and hypothyroidism treated with Lisinopril, Zocor, Prilosec, and Synthroid (R. 439).

Plaintiff followed up with Dr. Lichtenberg on September 5, 2014, for fibromyalgia and osteoarthritis (R. 1106). At that time, she reported neck; hand, and diffuse muscle pain (R. 1106). There was no evidence of numbness, weakness, gait abnormality, joint effusion, or morning stiffness. (R. 1106). Plaintiff was taking Aleve, Synthroid, Prednisone, Gabapentin, and using an Albuterol inhaler. (R. 11006-07). Once again, musculoskeletal exam was essentially normal: normal gait and station, full range of motion of all major joints, and no edema or synovitis. (R. 1108). But, again, chronic osteoarthritis of her hands was noted, with bony deformities, and some fibromyalgia tender points (R. 1108). There were no neurological deficits: reflexes, sensation, and motor strength were all normal. (R. 1108). Dr. Lichtenberg's diagnosis continued to be fibromyalgia and osteoarthritis, and he advised a trial of Plaquenil and continued exercises (R. 1108).

Plaintiff treated with Dr. Fackler-Chapman throughout 2014 and 2015. In the main, examinations [*7] were normal aside from complaints of muscle pain in one or two joints. Plaintiff had no complaints about the arthritis in her hands. (R. 474-510). Most recently, Dr. Fackler-Chapman examined the plaintiff on April 24, 2015, and noted obesity with poor

exercising habits. (R. 471). Plaintiff complained of muscle aches and joint stiffness in one or two joints (R. 472). She was 65 inches tall and weighed 283 pounds. (R. 472). Her musculoskeletal evaluation showed tenderness around the SI joints, but normal gait and station (R. 472). Neurological exam was normal. (R. 472). Dr. Fackler-Chapman diagnosed sacroiliac strain and prescribed Gabapentin and Flexeril (R. 473).

Plaintiff underwent physical therapy from May to October in 2015. (R. 1111-95). By June 18, 2015, pain level was down to 2/10. (R. 1126). Throughout most of the course, plaintiff complained of pain in her neck, chest, and back, but not in her hands. (R. 1114, 1119, 1122, 1126, 1137, 1143, 1148, 1161). Her first mention of any problem with her hands was on August 26, 2015. (R. 1161, 1164). At that time she reported that they "were hurting more lately" and she felt like she wasn't able to hold onto items as well as before. (R. [*8] 1168). Plaintiff complained about issues with her hands thereafter. (R. 1170, 1177, 1183, 1188, 1196).

On July 7, 2016, x-rays of plaintiff's right hand revealed advanced osteoarthritic changes of the proximal interphalangeal joints of the second and third fingers; fusion of the proximal interphalangeal joint of the fifth finger; and no evidence of inflammatory type of arthritis. (R. 1217). Dr. Giangreco examined plaintiff that day and noted she was taking Gabapentin with only minimal relief. (R. 1218). She was not doing her daily stretching or strengthening exercises. (R. 1218). She complained of bilateral proximal interphalangeal joints and distal interphalangeal joints pain (R. 1218). She was on Hydroxychloroquine, Naproxen (Aleve), and Diflunisal, but could not afford Lyrica or Cymbalta, which had been recommended. (R. 1218). Examination revealed no weakness or gait abnormality. (R. 1219). Range of motion was normal

throughout with the exception of the hands and crepitus in the knees. (R. 1220).

B.

After an administrative hearing at which plaintiff, represented by counsel, testified along with a vocational expert, the ALJ found that plaintiff was not disabled under the [Social Security Act](#) prior to August [*9] 26, 2015. (R. 16-24). The ALJ determined the plaintiff had the following severe impairments: fibromyalgia, asthma, and obesity. (R. 18). The ALJ found that plaintiff's depression resulted in no more than mild limitations and was non severe. (R. 18-19). The ALJ then determined that plaintiff did not have an impairment or combination of impairments that met or medically equaled the severity of one of the impairments listed in the Listing of Impairments, 20 C.F.R. Part 404, Subpart P, Appendix 1, focusing on Listings 1.02 (dysfunction of a major joint), 3.03 (asthma), and 14.09 (inflammatory arthritis). (R. 19-20).

The ALJ then determined that plaintiff could perform sedentary work, but only frequent, as opposed to constant, reaching handling, and fingering. (R. 20). The ALJ then reviewed plaintiff's allegations and found that her "medically determinable impairments could reasonably be expected to cause the alleged symptoms; however, [her] statements concerning the intensity, persistence and limiting effects of these symptoms are not fully supported prior to August 26, 2015, for reasons explained in this decision." (R. 20). The ALJ summarized the medical evidence, noting generally normal findings aside from some tender points and bony hypertrophy in [*10] her hands. (R. 21-22). But, he also noted that in August of 2015, the symptoms in her hands increased and July 2016 x-rays revealed advanced osteoarthritis. (R. 22-23). This reduced her capacity for handling and

fingering from frequent to occasional. (R. 23).

The ALJ assigned great weight to the opinions of the state disability agency physicians who reviewed the medical record as they were consistent with that record. (R. 22). The ALJ considered the vocational expert's testimony, finding that prior to August 26, 2015, plaintiff remained capable of performing her past sedentary and other sedentary work such as information clerk (100,200 jobs in the national economy. (R. 23). After August 26, 2015, however, the Medical-Vocational Guidelines, 201.14, directed a finding of "disabled." (R. 24). Accordingly, ALJ found plaintiff not disabled prior to August 26, 2015, but disabled thereafter. (R. 39).

II.

If the ALJ's decision is supported by substantial evidence, the court on judicial review must uphold that decision even if the court might have decided the case differently in the first instance. See 42 U.S.C. § 405(g). Substantial evidence is "such relevant evidence as a reasonable mind might accept as adequate [*11] to support a conclusion." [Richardson v. Perales](#), 402 U.S. 389, 401, 91 S. Ct. 1420, 28 L. Ed. 2d 842 (1971); [Beardsley v. Colvin](#), 758 F.3d 834, 836 (7th Cir. 2014). To determine whether substantial evidence exists, the court re]views the record as a whole, [Biestek v. Berryhill](#), - U.S. -, -, 139 S. Ct. 1148, 1154, 203 L. Ed. 2d 504 (2019), but does not attempt to substitute its judgment for the ALJ's by reweighing the evidence, resolving material conflicts, or reconsidering facts or the credibility of witnesses. [Beardsley](#), 758 F.3d at 837. "Where conflicting evidence allows reasonable minds to differ as to whether a claimant is entitled to benefits," the court must defer to the Commissioner's resolution of that conflict. [Binion v. Chater](#), 108 F.3d 780, 782 (7th Cir.1997); [Schloesser v.](#)

[*Berryhill*, 870 F.3d 712, 717 \(7th Cir. 2017\)](#)

The substantial evidence standard is a low hurdle to negotiate, [*Biestek*, 139 S. Ct. at 1154](#), but, in the Seventh Circuit, the ALJ also has an obligation to build an accurate and logical bridge between the evidence and the result to afford the claimant meaningful judicial review of the administrative findings. [*Varga v. Colvin*, 794 F.3d 809, 813 \(7th Cir. 2015\)](#); [*O'Connor-Spinner v. Astrue*, 627 F.3d 614, 618 \(7th Cir. 2010\)](#). The court has to be able to trace the path of the ALJ's reasoning from evidence to conclusion. [*Minnick v. Colvin*, 775 F.3d 929, 938 \(7th Cir. 2015\)](#); [*Jelinek v. Astrue*, 662 F.3d 805, 812 \(7th Cir. 2011\)](#). Even if the court agrees with the ultimate result, the case must be remanded if the ALJ fails in his or her obligation to build that logical bridge. [*Sarchet v. Chater*, 78 F.3d 305, 307 \(7th Cir. 1996\)](#) ("... we cannot uphold a decision by an administrative agency, any more than we can uphold a decision by a district court, if, while there is enough evidence in the record to [*12] support the decision, the reasons given by the trier of fact do not build an accurate and logical bridge between the evidence and the result."); *but see*, e.g., [*Riley v. City of Kokomo*, 909 F.3d 182, 188 \(7th Cir. 2018\)](#) ("But we need not address either of those issues here because, even if [plaintiff] were correct on both counts, we may affirm on any basis appearing in the record,"); [*Steimel v. Wernert*, 823 F.3d 902, 917 \(7th Cir. 2016\)](#) ("We have serious reservations about this decision, which strikes us as too sweeping. Nonetheless, we may affirm on any basis that fairly appears in the record."); [*Kidwell v. Eisenhauer*, 679 F.3d 957, 965 \(7th Cir. 2012\)](#) ("[District court] did not properly allocate the burden of proof on the causation element between the parties, ... No matter, because we may affirm on any basis that appears in the record."). The subjectivity of the requirement — one reader might require a far sturdier bridge than another — makes it

difficult for ALJs hoping to write acceptable decisions that stand up to judicial scrutiny when challenged. But, at the same time, the Seventh Circuit has also called this requirement "lax." [*Elder v. Astrue*, 529 F.3d 408, 415 \(7th Cir. 2008\)](#); [*Berger v. Astrue*, 516 F.3d 539, 545 \(7th Cir. 2008\)](#).² "If a sketchy

² Indeed, prior to *Sarchet*'s "logical bridge" language, the court generally employed the phrase "minimal articulation" in describing an ALJ's responsibility to address evidence. [*Zalewski v. Heckler*, 760 F.2d 160, 166 \(7th Cir. 1985\)](#) (collecting cases). The court's focus was on whether an ALJ's opinion assured the reviewing court that he or she had considered all significant evidence of disability. In [*Zblewski v. Schweiker*, 732 F.2d 75 \(7th Cir. 1984\)](#), for example, the court "emphasize[d] that [it] d[id] not require a written evaluation of every piece of testimony and evidence submitted" but only "a minimal level of articulation of the ALJ's assessment of the evidence . . . in cases in which considerable evidence is presented to counter the agency's position." [*Zblewski*, 732 F.2d at 79](#). In [*Stephens v. Heckler*, 766 F.2d 284, 287-88 \(7th Cir. 1985\)](#), the court rejected a plaintiff's argument that an ALJ failed to adequately discuss his complaints of pain and was more explicit about how far ALJs had to go to explain their conclusions:

We do not have the fetish about findings that [the plaintiff] attributes to us. The court review judgments, not opinions. The statute requires us to review the quality of the evidence, which must be "substantial," not the quality of the ALJ's literary skills. The ALJs work under great burdens. Their supervisors urge them to work quickly. When they slow down to write better opinions, that holds up the queue and prevents deserving people from receiving benefits. When they process cases quickly, they necessarily take less time on opinions. When a court remands a case with an order to write a better opinion, it clogs the queue in two ways—first because the new hearing on remand takes time, second because it sends the signal that ALJs should write more in each case (and thus hear fewer cases).

The ALJ's opinion is important not in its own right but because it tells us whether the ALJ has considered all the evidence, as the statute requires him to do. . . . This court insists that the finder of fact explain why he rejects uncontradicted evidence. One inference from a silent opinion is that the ALJ did not reject the evidence but simply forgot [*14] it or thought it irrelevant. That is the reason the ALJ must mention and discuss, however briefly, uncontradicted evidence that supports the claim for benefits.

[*Stephens*, 766 F.2d at 287](#) (citations omitted). Much more

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opinion assures us that the ALJ considered the important evidence, and the opinion enables us to trace the path of the ALJ's reasoning, the ALJ has done enough." [*Stephens v. Heckler*, 766 F.2d 284, 287-88 \(7th Cir. 1985\)](#). Given the record in this case, [*13] the ALJ has done more than enough here.

III.

In a rather breezy four-page brief that cites just a single page of the 1150-page medical record, the plaintiff makes two arguments for overturning the ALJ's decision denying her benefits. First, she argues that the ALJ was mistaken in finding that her depression was not a severe impairment. [Dkt. #16-1, at 3-4]. Second, she contends that the ALJ failed to adequately explain why he gave great weight to the opinions from the state agency reviewing physicians. [Dkt. #16-1, at 4]. Any other arguments she might have made are deemed waived. See [*Schomas v. Colvin*, 732 F.3d 702, 707 \(7th Cir. 2013\)](#) (arguments not raised in district court are waived); [*Skarbek v. Barnhart*, 390 F.3d 500, 505, 105 Fed. Appx. 836 \(7th Cir. 2004\)](#).

A.

We begin with plaintiff's argument about depression, which the ALJ found was not a severe impairment. That finding is certainly supported by substantial evidence, at the very least. Indeed, there appears to be no treatment notes for depression or any mention of it as impinging on plaintiff's ability to work; plaintiff's brief certainly does not point to any. Moreover, plaintiff's counsel made no mention of treatment for depression [*15] or any

medical evidence suggesting it caused plaintiff any limitations in his brief to the ALJ. (R. 318-22).

Plaintiff relies exclusively on a report from a March 2012 neuropsychological evaluation — well over a year before her alleged onset date — where she told the doctor that "because of her depression, [she] shuts down, cries more easily, and finds it harder to hide her anger and smooth things over." [Dkt. #16-1, at 3, citing (R. 616)]. At that same visit, however, mental examination revealed that plaintiff was "consistently alert and readily responsive", speech was of normal rate and rhythm, affect and mood were normal, thought process and content were normal. (R. 617). Even testing of emotional functioning based on plaintiff's own self-reports demonstrated no more than "minimal symptomatology" in terms of anxiety and depression. (R. 619). Diagnostic impression was no more than mild affective disturbance. (R. 619).

As the plaintiff's brief puts it, this "evaluation dealt directly with how the [plaintiff's] depression affected her in work situations." [Dkt. #16-1, at 3-4]. And the answer was, it barely affected her at all. The medical evidence demonstrates no more than a mild or [*16] minimal impairment, with little effect on plaintiff's functioning, which is exactly what the ALJ determined. See [*Thomas v. Colvin*, 826 F.3d 953, 960 \(7th Cir. 2016\)](#) (a severe impairment is one that "significantly limit[s] the claimant's ability to perform basic work activities, including "walking, standing, sitting, lifting, pushing, pulling, reaching, carrying, or handling.").

The plaintiff bears the burden to prove she is disabled by producing medical evidence. [*Gedatus v. Saul*, 994 F.3d 893, 904 \(7th Cir. 2021\)](#); [*Castile v. Astrue*, 617 F.3d 923, 927 \(7th Cir. 2010\)](#); [*Eichstadt v. Astrue*, 534 F.3d 663, 668 \(7th Cir. 2008\)](#). That means that the

recently, the Seventh Circuit explained that "the 'logical bridge' language in our caselaw is descriptive but does not alter the applicable substantial-evidence standard." [*Brumbaugh v. Saul*, 850 F. App'x 973, 977 \(7th Cir. 2021\)](#).

claimant bears the risk of uncertainty. *Id.* See also [Scheck v. Barnhart](#), 357 F.3d 697, 702 (7th Cir. 2004). After all, it "is not unreasonable to require the claimant, who is in a better position to provide information about his own medical condition, to do so." [Bowen v. Yuckert](#), 482 U.S. 137, 146, n. 5, 107 S. Ct. 2287, 96 L. Ed. 2d 119 (1987). See also 20 C.F.R. § 404.1512(c) ("You must provide medical evidence showing that you have an impairment and how severe it is during the time you say that you were disabled."). It's not up to the court to sift through the record without direction from counsel in the hopes of finding something to support counsel's arguments. [Ehrhart v. Secretary of HHS](#), 969 F.2d 534, 537 (7th Cir. 1992) (holding that "compelling the court to take up a burdensome and fruitless scavenger hunt...is a drain on its time and Resources"); see also [Sommerfield v. City of Chicago](#), 863 F.3d 645 (7th Cir. 2017); [Juanita H. v. Kijakazi](#), 2021 U.S. Dist. LEXIS 134900, 2021 WL 3054814, at *6 (N.D. Ill. 2021); [Megan G. v. Saul](#), 2021 U.S. Dist. LEXIS 98295, 2021 WL 2105038, at *4 (N.D. Ill. 2021); [Shaun R. v. Saul](#), 2019 U.S. Dist. LEXIS 183720, 2019 WL 6834664, at *5 (N.D. Ill. 2019). Here, where the plaintiff has counsel at the hearing and thereafter, she is presumed to have made [*17] her best case for benefits. [Summers v. Berryhill](#), 864 F.3d 523, 527 (7th Cir. 2017). When that "best case" is made by relying exclusively on a single reference to plaintiff's reported symptoms in a 1150-page medical record — especially where the medical assessment of those symptoms rates them as minimal, at worst — it is clear that the ALJ's opinion should be affirmed.

B.

Plaintiff's other argument is that the ALJ failed to explain why he assigned great weight to the opinions from the state agency reviewing physicians -- in other words, a "logical bridge"

argument. The law is well-settled that "[t]he ALJ may properly rely upon the opinion of these medical experts." [Scott v. Sullivan](#), 898 F.2d 519, 524 (7th Cir.1990); see also [Anders v. Saul](#), Fed. Appx. , , 2021 U.S. App. LEXIS 17510, 2021 WL 2396236, at *4 (7th Cir. 2021)(proper to rely on state agency doctors because they are "highly qualified and experts in Social Security disability evaluation."); [Flener ex rel. Flener v. Barnhart](#), 361 F.3d 442, 448 (7th Cir. 2004)("The fact that these physicians reviewed the entire record strengthens the weight of their conclusions."); [Scheck v. Barnhart](#), 357 F.3d 697, 700 (7th Cir. 2004); [SSR 96-6p](#), 1996 SSR LEXIS 3, 1996 WL 374180, *3 ("In appropriate circumstances, opinions from State agency medical and psychological consultants and other program physicians and psychologists may be entitled to greater weight than the opinions of examining sources."). As the ALJ said, the opinions are consistent with the medical evidence, which, in the main, revealed normal [*18] or mild findings. It is not clear, given the record, what more of an explanation is needed. Consistency with the medical record is the hallmark of a persuasive medical opinion. [Loveless v. Colvin](#), 810 F.3d 502, 507 (7th Cir. 2016); 20 CFR 404.1527(c)(4)("Consistency. Generally, the more consistent a medical opinion is with the record as a whole, the more weight we will give to that medical opinion."). That is explanation enough. Moreover, there is no contrary medical opinion in the record. See [Thomas v. Colvin](#), 826 F.3d 953, 959 (7th Cir. 2016).

C.

Finally, it should be noted that plaintiff raised a new argument in her reply brief, calling into question the ALJ basing his finding that plaintiff became disabled as of August 26, 2015 on a report that she was "dropping

2022 FMC LEXIS 242

Federal Maritime Commission

June 10, 2022

Docket No. 16-16

Federal Maritime Commission Decisions

Reporter

2022 FMC LEXIS 242 *

MAVL CAPITAL INC. ET AL., Complainants, v. MARINE TRANSPORT LOGISTICS, INC. ET AL., Respondents.

Core Terms

reparation, marine, transport, custom, invoice, ship, market value, prevailing party, burden of proof, reliable, finance, broker, initial decision, actual injury, reasonable inference, cargo, wire

Opinion By: [*1] BY THE COMMISSION: Daniel B. MAFFEI, Chairman, Rebecca F. DYE, Louis E. SOLA, Carl W. BENTZEL, Max M. VEKICH, Commissioners; William Cody, Secretary

Opinion

Order Affirming Initial Decision on Remand

This case is before the Commission following a remand to the Administrative Law Judge (ALJ) to address the merits of Complainants' claim that Respondent Marine Transport Logistics, Inc. (Marine Transport) violated [46 U.S.C. § 41102\(c\)](#) by selling two vehicles stored as export/import cargo to cover unpaid fees without prior notice or due process. Marine Transport justified the sale as authorized by its house bill of lading. On remand, the ALJ found Marine Transport acted unreasonably and consistent with its normal, customary, and continuous practice in selling the two vehicles and that its actions violated § 41102(c). However, the ALJ denied Complainants' claim for reparations because they failed to prove "actual injury" as required by [46 U.S.C. § 41305](#) and did not produce sufficient reliable evidence substantiating the amounts they seek for the loss of the two vehicles and related expenses. The ALJ also denied Complainants' request to hold Marine Transport's employee, Respondent Dmitry Alper, personally liable for the § 41102(c) violation.

In timely-filed exceptions, Complainants argue that the ALJ misapplied the burden of proof and erred in finding their reparations evidence insufficient. Complainants seek \$ 48,500 for the loss of a 2006 Mercedes SL 26 and \$ 67,000 for the loss of a 2011 Porsche Panamera and \$ 10,000 for ocean freight charges related to the Porsche and also ask to be declared the prevailing

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parties. Complainants argue that a declaration of value for customs purposes for the Mercedes and a contract from an overseas buyer for the Porsche prove their claim. Marine Transport argues the ALJ's decision is soundly based on the record and legally correct and further asserts that the reparations Complainants seek for the two used vehicles are clearly excessive.

For the reasons set forth [*2] below, the Commission affirms the ALJ's decision in its entirety, denies Complainants' claim for reparations for lack of evidence, and denies as premature Complainants' request to be declared the prevailing parties.

I. BACKGROUND

A. Factual Background

Complainants MAVL Capital Inc. (MAVL) and IAM & AL Group, Inc. (IAM) are in the business of importing and exporting vehicles for the overseas market. Initial Decision on Remand (I.D.R.), 6. Maxim Ostrovskiy is a principal in both companies. Marine Transport is a licensed non-vessel operating common carrier (NVOCC), and Dmitry Alper acted as its General Counsel and later as Director of Operations. *Id.* Complainants stored the Mercedes and the Porsche in Marine Transport's New Jersey warehouse as import/export cargo. *Id.* at 7-9, 23. At some point, the parties had a disagreement over Mr. Ostrovskiy gaining access to the Mercedes, and he allegedly issued verbal instructions to ship the Mercedes to Germany. *Id.* at 9.

The Mercedes was not shipped to Germany but was instead sold, along with the Porsche, to cover Complainants' unpaid storage charges. Marine Transport sold the vehicles pursuant to its bill of lading which provides that "the Carrier shall have the right in its absolute discretion to dispose of the Goods and/or to sell the Goods by public auction or private sale without notice to the Merchant." *Id.* at 11-12. Both vehicles were shipped to Dubai, United Arab Emirates where the Mercedes was sold for under \$ 4,000. *Id.* at 9.

B. Procedural History

Complainants alleged that Respondents violated [*3] [46 U.S.C. §§ 41102\(c\)](#) and [41104\(a\)\(3\)](#) and (10) and 46 C.F.R. Part 515 in selling the Mercedes and the Porsche and by Respondents unlawfully interfering with Complainants' attempt to export three motorcycles stored by a competitor NVOCC. Complainants originally sought "[d]irect damages in excess of \$ 180,000 constituting the amounts paid for the purchase of the vehicles plus additional consequential damage for sums arising out of lost contracts, plus interest." Complaint, 9.

In January 2017, the ALJ dismissed all Complainants' claims except the § 41102(c) claim for the sale of the Porsche. The Commission reversed the ALJ's dismissal of the § 41102(c) claim for the sale of the Mercedes and remanded that claim to the ALJ to be decided along with the § 41102(c) claim for the sale of the Porsche. ¹On remand, the ALJ determined that Marine Transport violated § 41102(c) by selling the Mercedes and Porsche without prior notice or due

¹ The Commission's decision is published at [MAVL Capital Inc. v. Marine Transp. Logistics, Inc., FMC Docket No. 16-16, 2020 FMC LEXIS 216 \(FMC Oct. 29, 2020\)](#).

process but denied Complainants' reparations claim for lack of sufficient evidence. I.D.R., 20-32.

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In timely-filed exceptions, Complainants argue that the ALJ erred in finding their reparations evidence insufficient and ask the Commission to declare them the prevailing party since [*4] the ALJ found liability under § 41102(c). Complainants' Br. in Support of Exceptions (Exceptions) (Nov. 12, 2021). Marine Transport urges the Commission to affirm the ALJ's decision in its entirety and deny the request for prevailing party status.

II. DISCUSSION

A. Standard of Review

When the Commission reviews exceptions to an ALJ's Initial Decision, it has "all the powers which it would have in making the initial decision." 46 C.F.R. § 502.227(a)(6). The Commission therefore reviews the ALJ's findings de novo. *Id.*; see also [Maher Terminals, LLC v. Port Auth. of N.Y. & N.J., FMC Docket No. 12-02, 2015 FMC LEXIS 43, *110-*11 \(FMC Dec. 18, 2015\)](#). Complainants bear the burden of proving their allegations by a preponderance of the evidence. [5 U.S.C. § 556\(d\)](#); 46 C.F.R. § 502.155; [Maher Terminals, LLC v. Port Auth. of N.Y. & N.J., FMC Docket No. 08-03, 2014 FMC LEXIS 35, *41 \(FMC Dec. 17, 2014\)](#). Under the preponderance standard, Complainants must show that their allegations are more probable than not. *DSW Int'l, Inc. v. Commonwealth Shipping, Inc.*, FMC Docket No. 1898(F), [2012 FMC LEXIS 32, at*2 \(FMC July 23, 2012\)](#).

B. Reparations Claim

The ALJ determined that Complainants failed to meet their burden of proving an actual injury commensurate with the reparations they seek for the loss of the Mercedes and Porsche. I.D.R., 32. The ALJ found that Complainants' evidence was insufficient and inconclusive. *Id.* With respect to the Mercedes, the ALJ found that while it "is possible that Complainants paid for the Mercedes in Germany and paid the shipping costs from Germany," it was "also possible that someone else paid the [*5] purchase price and shipping fees." *Id.* The ALJ reached a similar conclusion with respect to the Porsche and determined that while it was possible Complainants had paid various sums referenced in Complainants' documents, it was equally possible that they had not. See *id.*

1. Legal Standard

Section 41305(b) provides that the Commission "shall direct the payment of reparations to the complainant for actual injury caused" by a Shipping Act violation if the claims were brought within the three-year time period for filing a complaint. ³[46 U.S.C. § 41305\(b\)](#); § 41301(a). Complainants bear the burden of proving that they are entitled to reparations. *Yakov Kobel v. Hapag-Lloyd A.G.*, FMC No. 10-06, 2014 WL 25316331, at *13 (FMC July 30, 2014). As the Commission has explained:

² The ALJ's Initial Decision on Remand is published at [MAVL Capital Inc. v. Marine Transport Logistics, Inc., No. 16-16, 2021 FMC LEXIS 161 \(ALJ Sept. 29, 2021\)](#).

³ This action was filed within three years of the sale of Complainants' vehicles, so timeliness is not an issue.

(a) damages must be the proximate result of violations of the statute in question; (b) there is no presumption of damage; and (c) the violation in and of itself without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation.

James J. Flanagan Shipping Corp. v. Lake Charles Harbor & Terminal Dist., FMC Docket No. 94-32, 2003 WL 22067203, at *7-8 (FMC Aug. 26, 2003) (quoting *Waterman v. Stockholms Rederiaktiebolag Svea*, 3 F.M.B. 248, 249 (1950)). Establishing a Shipping Act violation alone does not justify reparations--complainants must also show that they sustained a pecuniary loss as a result of the unlawful act. *Yakov Kobel*, 2014 WL 5316331, at *13.

"Reparations will only be awarded based on actual damages." *Yakov Kobel*, 2014 WL 5316331, at *14 (citing [*Tractors and Farm Equipment Ltd. v. Cosmos Shipping Co., Inc.*, FMC No. 81-57, 1992 FMC LEXIS 86, at *59-60 \(ALJ Nov. 23, 1992\)](#) (admin. [*6] final Dec. 31, 1992)). Actual damages means "compensation for the actual loss or injuries sustained by reason of the wrongdoing" which complainants must show to a reasonable degree of certainty. *Cal. Shipping Line, Inc. v. Yangming Marine Transport Corp.*, FMC No. 88-15, 1990 WL 427466, at *23 (FMC Oct. 19, 1990); *Rose Int'l Inc. v. Overseas Moving Network*, FMC No. 96-05, 2001 WL 865708, at *76 (FMC June 7, 2001). That does not require absolute precision but does require evidence sufficient to reasonably infer the actual loss sustained. See *Yakov Kobel*, 2014 WL 5316331, at *14. Reparations claims that come before the Commission generally involve lost or damaged cargo, and the Commission bases reparations either on the cargo market price or the invoice price paid by the complainant. The method chosen depends on the evidence available and which calculation more accurately measures the actual loss. See *id.*

2. Complainants' Evidence of Market Value

Complainants seek reparations based on the vehicles' "market value at the port of destination." Exceptions, 7. Complainants do not point to direct evidence of market value and instead rely on a customs broker's valuation estimate for the Mercedes and a contract to purchase the Porsche as proof of their loss. See *id.* at 8-13. Complainants also refer to other miscellaneous documents relating to wire transfers and payments as supporting their claim. See *id.*

a. Mercedes' Alleged Market Value

Complainants' sole basis for claiming the Mercedes had a market value of \$ 48,500 is the value declared for customs purposes [*7] when it arrived from Germany in November 2012. *Id.* at 8-9.

⁴Complainants do not point to any evidence indicating that this estimate was based on the car's actual condition or to show that it is a reasonable, accurate, or reliable approximation of the car's actual value. See *id.* Instead, they focus on evidence that has no apparent bearing on those critical factors. See *id.* For example, Complainants state that the customs declaration was signed by customs broker John F. Kilroy Co. Inc. as "attorney in fact" and that Kilroy received a "Customs Clearance Pass Through" fee of \$ 1,106.81 from Atlantic

⁴ Complainants ask the Commission to note that Complainant (presumably referring to Mr. Ostrovskiy) purchased the Mercedes "three years prior to its import into the United States" for his personal use. Exceptions, 8. Complainants have not produced the invoice for the Mercedes' purchase and do not cite any support in the record for this assertion or explain how (if at all) it supports the amount they seek for the loss of the Mercedes. See *id.*

Cargo Logistics. *Id.* at 9. They also rely on language on the United States Customs and Border Patrol form indicating that the signer declares the information and prices on the form are true. *Id.*

Complainants argue that this evidence regarding the customs broker and the fees paid somehow cures the defects the ALJ found and refutes the ALJ's determination that their evidence was too speculative and unreliable to prove the Mercedes had a market value of \$ 48,500. Even if the invoice and related documents show what Complainants contend--which is not at all clear since the documents do not show payments coming directly from MAVL (the Mercedes' alleged owner)--all that would establish is that Kilroy was the customs broker and was paid a fee. *See id.* The evidence Complainants discuss in their exceptions does not cure the critical deficiencies in the customs declaration. *See id.* Namely, the evidence does not address the broker's basis for assigning \$ 48,500 as the declared value, indicate what knowledge (if any) he had about the car's actual condition, or what factors he considered in assigning that value. Those ambiguities are not cured by language on the form indicating that signer represents the information provided is true. Even if the broker believed that the information he provided was accurate, that does not prove his belief was reasonable [*8] or accurate, since there is nothing to suggest he had a factual basis for that opinion. *See generally Flanagan*, 2003 WL 22067203, at *7-8 ("conclusory statements" that do not demonstrate lost business with "any particularity" insufficient to prove reparations).

Apart from the reliability issues with the customs declaration, Complainants' own statements indicate that the Mercedes was not in good condition which suggests that \$ 48,500 is unrealistically high. Mr. Ostrovskiy had the Mercedes shipped back to the United States from Germany so he could inspect it for needed repairs and order custom parts. *See I.D.R.*, 7-8 (Finding Nos. 21-23). That plan clearly suggests that Mr. Ostrovskiy believed the Mercedes needed repair work. *See id.* Otherwise he would not have gone to the trouble and expense of having the car shipped back to the United States in the fall of 2012. The ALJ's finding that the Mercedes was "sold for under \$ 4,000 in Dubai" sometime in 2013 also suggests that the brokers' estimated value was unrealistic. *See I.D.R.*, 9 (Finding No. 42).

The record also includes a June 2013 invoice naming Copart/Car Express as the seller that describes the Mercedes as having sustained "severe water damage" and lists \$ 3,600 as the total [*9] purchase price. *See I.D.R.* at 9 (Finding No. 39). Complainants submitted this invoice in support of their remand brief. *See Complainants' App.*, Vol. 1, App. H (Bates Nos. DEF 4, DEF 15). The ALJ entered several findings related to this invoice which collectively suggest that the information it contains is not accurate. *See I.D.R.*, 9 (Finding Nos. 39-41). Specifically, the ALJ found that: (1) the June 7, 2013 invoice "was not created and/or generated by Copart and 'Car Express did not purchase the VIN that is Lot 26998321," (2) the June 7, 2013 invoice "was provided to Alexander Safonov after the Mercedes arrived in Dubai;" and (3) "Aleksandr Solovyev, sole principal and officer of Car Express and [Royal Finance Group]" stated that those companies "were not involved with the 2006 Mercedes." *Id.* These findings suggest that the June 2013 invoice in and of itself does not have evidentiary value, and the Commission did not consider it as evidence that the Mercedes had actually sustained water damage, but this invoice does raise further doubts about the accuracy of the customs brokers' \$ 48,500 estimate.

Complainants assert that the ALJ erred in finding that the evidence was equally balanced because Marine Transport made contradictory statements about selling the Mercedes to Middle East Alfa for \$ 3,500. See Exceptions, 10-11. That argument misstates the ALJ's reasoning and misapplies the law. As the party seeking reparations, Complainants had the burden of proving their actual injury, and the ALJ correctly found that Complainants' evidence was not sufficiently reliable to reasonably infer that the Mercedes had a market value of \$ 48,500. See I.D.R. 9 and 32. Marine Transport's statements about the amount the Mercedes later sold for in Dubai was not a factor in finding that Complainants' evidence insufficient. Whether Complainants have met their burden of persuasion does not turn on which side's evidence is more credible--it is a matter of determining whether the Complainants' evidence is reliable and trustworthy and supports a reasonable inference that they are entitled to the reparations that they seek. See [*id. at 32*](#); see also *Yakov Kobel*, 2014 WL 5316331, at *13.

Complainants have not met their burden of proving that the Mercedes actually had a market value of \$ 48,500 as of November 2012 or in the June to [*10] August 2013 timeframe when Marine Transport seized the car and had it sold to cover its outstanding charges. Further, Complainants do not point to evidence that supports awarding a different amount for the loss of the Mercedes.

For all the reasons discussed above, the Commission affirms the ALJ's decision denying reparations for the loss of the Mercedes.

b. Porsche's Alleged Market Value or Invoice Price

Complainants' sole basis for asserting that the Porsche had a market value of \$ 67,000 is a sales contract with a Russian buyer who agreed to purchase the car in April 2013 for that price. See Exceptions, 12-14. The contract provides that IAM agrees to sell the 2011 Porsche Panamera to Sokolov Oleg Yuryevich of Moscow, Russia for \$ 67,000 with delivery to Kotka, Finland to take place within 30 days.

The ALJ did not adopt Complainants' proposed findings regarding the sale contract. See I.D.R., 9-11. Complainants proposed that the ALJ find that:

114. On April 25, 2013, IAM had sold the Porsche to "Sokolov Oleg Yuryevich" for \$ 67,000.00 and received payment from him . . .

115. After complainants failed to deliver the Porsche to Sokolov Oleg Yuryevich, and pursuant to [*11] complainants' contract with Mr. Sokolov, complainants were forced to refund the \$ 67,000.00 to him, plus an additional penalty for failure to deliver, resulting in a total loss of \$ 98,088.00 for this car . . .

Complainants' Remand Br. 32-33 (Mar. 17, 2021). Complainants did not object to the ALJ's failure to adopt these proposed findings. See Exceptions, 12-14.

Complainants' arguments challenging that the ALJ's finding that they failed to meet their burden of proof on reparations for the loss of the Porsche and related expenses (\$ 10,000 in ocean freight) are not persuasive. First, Complainants challenge the ALJ's determination that a \$ 10,000 wire transfer to Royal Finance Group on April 22, 2013 may or may not have been a

payment related to the Porsche Panamera and could have been payment for a different vehicle altogether. See Exceptions, 13. Complainants cite to a declaration from Aleksandr Solovyev of Royal Finance Group submitted in a related federal court action "wherein he explains that [Royal Finance] never tried to collect on invoices . . . related to the subject Mercedes" as support for their contention that the \$ 10,000 wire transfer "could only have been applied to [*12] the subject Porsche." *Id.* (emphasis original).

From this assertion, Complainants argue that the ALJ erred in finding the evidence "evenly balanced" since "there is no evidence on the record contradicting complainants' argument that the \$ 10,000 was payment for anything other than the subject Porsche." *Id.* Complainants summarize their argument for overturning the ALJ's denial of reparations for the loss of the Porsche as follows:

At the end of the day, MTL has not provided any evidence to contradict complainants' evidence that the Porsche was in fact sold to a customer overseas for the sum of \$ 67,000 pursuant to a contract of sale, nor that the value of the car at the port of destination was anything other than \$ 67,000 pursuant to the case law set forth above. Above that amount, and pursuant to the contract of sale, complainants were also obligated to pay a penalty to their customer for failure to deliver the car pursuant to paragraph 12.1 of the contract.

Exceptions, 13.

Complainants' argument misapplies the law and turns their burden of proof on its head. See *id.* at 13-14. As the party seeking reparations, Complainants bear the burden of producing reliable evidence supporting a reasonable inference that \$ 67,000 equals or is at least a reasonable approximation of their actual injury for the loss of the Porsche and showing that they actually paid the \$ 10,000 for ocean freight or other charges they now seek to recover. See *Yakov Kobel*, 2014 WL 5316331, at *13. Complainants' evidence rises or falls on its own merit. See *id.* It is not a question of whether Marine Transport produced evidence refuting Complainants' documents or whether its evidence or arguments are less credible. Respondents do not have the burden of proof. If the Complainants' evidence is inherently too weak or unreliable to reasonably infer that the amount they seek reasonably approximates their actual injury--they have not met their burden of persuasion and their claim fails and reparations are not awarded. See *id.* That is exactly how the ALJ applied the law.

Further, multiple findings--which Complainants do not challenge--cast doubt on the reliability of \$ 67,000 as a reliable [*13] reflection of the Porsche's actual market value. For example, the ALJ found that Aleksandr Solovyev, sole principal and officer of [Royal Finance] and Car Express, stated that 'Car Express purchased the Porsche Panamera for \$ 41,940 on or about April 18, 2013, at Plaintiff's request with financing provided by Royal Finance Group.'" I.D.R., 9-10 (Finding No. 44). Likewise, the ALJ found that an invoice from Royal Finance referencing the 2011 Porsche Panamera indicated the car cost \$ 35,379 plus shipping and other charges which brought the total cost to \$ 40,429. *Id.* at 10 (Finding No. 46). According to the ALJ's findings, another document dated April 23, 2013 from Insurance Auto Auctions (IAA) listed a price of \$

40,500 for the Porsche and a \$ 46,440 total with various fees included. *Id.* (Finding No. 48).

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The invoices on which the ALJ's findings are based involve other entities and there is no mention of IAM--the Porsche's alleged owner. See, e.g., I.D.R., 10-11 (Finding Nos. 49-54). As such, they clearly support the ALJ's determination that while the evidence does not clearly show that Complainants actually purchased or paid for the Porsche. I.D.R., 32. As the ALJ stated, while it was "possible" that Complainants wired \$ 5,500 to IAA on April 18, 2013 and \$ 10,000 to Royal Finance on April 22, 2013 for the Porsche Panamera, it is also possible that "those payments were made by someone else or were for a different shipment." See *id.* [*14] The ALJ also noted that the lack of clear evidence is consistent with and perhaps attributable to Complainant's practice of "conduct[ing] their business with limited written documentation, including making verbal requests and agreements," which makes it more difficult for them to "provid[e] evidence to establish actual injury." *Id.*

Complainants appear to argue that it is simply a matter of connecting the dots between a series of documents (including invoices, checks, and wire transfers) that collectively support their reparations claim and show that IAM actually paid for the Porsche. See Exceptions, 13-14. The record does not support that argument. Complainants do not point to a clear traceable line between these various documents which leads one to reasonably conclude that IAM paid \$ 67,000 for the Porsche or incurred the other losses (ocean freight) it now seeks to recover from Marine Transport. See *id.* The ALJ's determination that the evidence is too speculative and inconclusive to support Complainants' reparations claim is supported by the record and sound legal reasoning. Further, Complainants do not point to evidence that supports awarding a different amount for the loss of the Porsche [*15] or related expenses.

For all the reasons discussed above, the Commission affirms the ALJ's decision denying reparations for the loss of the Porsche.

D. Request to be Declared the Prevailing Party

Complainants ask the Commission to declare them the prevailing party based on the ALJ's determination that Marine Transport violated § 41102(c). Exceptions, 6-7. Complainants assert that they qualify as prevailing even though no reparations were awarded because the ALJ's determination that Marine Transport violated § 41102(c) altered the parties' legal relationship. *Id.*

Section 41305(e) provides that a prevailing party "may be awarded reasonable attorney fees" in any private party action brought under § 41301. [46 U.S.C. § 41305\(e\)](#). This provision was enacted as part of the Howard Coble Coast Guard and Maritime Transportation Act of 2014, *Pub. L. No. 113-281*, § 402, 128 Stat. 3022 (Dec. 18, 2014). The Commission adopted implementing regulations and provided further guidance on qualifying to recover fees and the discretionary factors the Commission will consider in deciding whether the petitioning party should recover its attorney fees. See 46 C.F.R. § 502.254; Final Rule: Organization and

⁵ The Commission did not take into account evidence suggesting that the Porsche was purchased as a salvage vehicle since the ALJ concluded that it "is not clear if these [documents] are reliable. I.D.R., 9 (Finding No. 43). If the Porsche was in fact sold as a salvage vehicle, that would further undermine Complainants' \$ 67,000 reparations claim.

Functions; Rules of Practice and Procedure; Attorney Fees (Final Rule), *81 Fed. Reg. 10508* (Mar. 1, 2016).

Prevailing [*16] party status is the first step of the two-party inquiry the Commission engages in to decide whether to grant a petition for attorneys' fees under 46 C.F.R. § 502.254(c). The Commission's regulations provide that "the Commission may, upon petition, award the prevailing party reasonable attorney fees" in a private complaint proceeding brought under [46 U.S.C. § 41301](#). Complainants' request to be declared the prevailing party is premature because there is not yet a final decision in this matter. Petitions for attorney fees are due "within 30 days after a decision becomes final." 46 C.F.R. § 502.254(c). The ALJ's Initial Decision on Remand is not a final order since Complainants filed exceptions. The Commission's decision on Complainants' exceptions will not become final until the period for appealing that decision to the United States Court of Appeals has expired. Under [28 U.S.C. § 2344](#), "[a]ny party aggrieved by the final order" issued by the Commission has 60 days following entry of the order to petition for its review. Therefore the Commission's order in this case will not become final until the 60 days allotted for appeal has expired.

For all the reasons discussed above, the Commission denies as premature Complainants' request to be declared the prevailing [*17] party.

IV. CONCLUSION

The Commission hereby:

- (1) denies Complainants' exceptions; and
- (2) affirms the ALJ's Initial Decision in its entirety.

By the Commission.

William Cody

Secretary

Federal Maritime Commission Decisions

End of Document

RX_000371

2015 FMC LEXIS 46

Federal Maritime Commission

December 23, 2015

DOCKET NO. 1949(F)

Federal Maritime Commission Decisions

Reporter

2015 FMC LEXIS 46 *

WALTER MUZORORI v. CANADA STATES AFRICA LINES INC. (CSAL)

Core Terms

cape, ship, emailed, cargo, port, destination, ocean, transport, claimant, bill of lading, common carrier, reparation, port of discharge, clearing agent, confirm, pod, burden of proof, shipment, terminal, freight, shipper, reply, stamp, tractor, marine, vessel, intermediary, settlement, proximate, drivers

Opinion By: [*1] Erin M. Wirth, Administrative Law Judge

Opinion

INITIAL DECISION ¹

I. INTRODUCTION

A. Overview and Summary of Decision

Claimant Walter Muzorori filed a small claim form for informal adjudication under Subpart S ("Claim") alleging that respondent Canada States Africa Lines, Inc. ("CSAL") violated sections 41 IO2(b)(2) and 41102(c) of the Shipping Act of 1984 ² when it did not honor an agreement to change the port of delivery of a shipment of two vehicles from Cape Town, South Africa, to

¹ This initial decision will become the decision of the Commission in the absence of review by the Commission. 46 C.F.R. § 502.318. An appeal by a party must be filed with the Commission's Office of the Secretary within twenty-two days from the date of service of the decision. 46 C.F.R. § 502.318.

² On October 14, 2006, the President signed a bill reenacting title 46, United States Code, Shipping, as positive law. The bill's purpose was to "reorganiz[e] and restat[e] the laws currently in the appendix to title 46. It codifies existing law rather than creating new law." H.R. Rep. 109-170, at 2 (2005).

RX_000372

Walvis Bay, Namibia, causing significant harm including damages totaling \$ 21,980. Complainant's Brief at 6.³

Respondent CSAL filed an objection to proceeding under Subpart S and asserts that there was no modification of the contract; the cargo was delivered to the port indicated on the bill of lading; and the expenses claimed are not established. Respondent's Opposition at 17-18.

As explained below, the evidence in the record supports a finding that CSAL violated section 41102(c) of the Shipping Act but does not support finding a violation of section 41102(b)(2) nor does the evidence support all of the damages claimed. Therefore, the claim is granted in part and reparations of \$ 6,405.60 are awarded. After discussion of the procedural [*2] background, evidence, and arguments of the parties, part two provides specific findings of fact, part three provides analysis and conclusions of law, and part four provides the Order.

B. Procedural Background

On December 23, 2014, the Commission received Walter Muzorori's initial filing of an informal claim under Subpart S. 46 C.F.R. § 502.304. On January 5, 2015, a Notice of Filing of Small Claims Complaint and Assignment was issued, stating that Mr. Muzorori filed an informal claim alleging a violation of the Shipping Act, sections 41102(b)(2) and 41102(c), and including a statement of events and exhibits.

On January 29, 2015, respondent CSAL filed its answer to the claim objecting to the informal procedure, denying liability, and raising affirmative defenses. On February 2, 2015, the case was converted to a formal proceeding under Subpart T, 46 C.F.R. § 502.311, and an Administrative Law Judge was assigned.

On February 19, 2015, an Initial Order was served. On March 19, 2015, the parties both filed status reports. On May 4, 2015, a pre-hearing conference was held to discuss the status of discovery and settlement negotiations. On May 12, 2015, a Briefing Schedule was issued.

On July 15, 2015, Mr. Muzorori filed his initial brief with proposed findings [*3] of fact and exhibits. On July 15, 2015, CSAL filed its opposition brief with proposed findings of fact and exhibits. On July 28, 2015, a notice of appearance and request for enlargement of time to file the reply brief was received by counsel for Mr. Muzorori, who had previously proceeded pro se. On July 29, 2015, the requested enlargement of time was granted and the parties were instructed to file a joint status report. On August 7, 2015, the parties filed a joint status report. On August 29, 2015, Mr. Muzorori filed his reply brief which, appropriately, did not include any additional exhibits. The proceeding is now ripe for decision.

C. Evidence

Under the Administrative Procedure Act ("APA"), an Administrative Law Judge may not issue an order "except on consideration of the whole record or those parts thereof cited by a party and supported by and in accordance with the reliable, probative, and substantial evidence." [5 U.S.C.](#)

³ Complainant's Brief was not numbered. Pages will be referred to as if sequentially numbered. The attached exhibits will be referred to by page number, with the first exhibit page labeled as Complainant Brief Ex. at 1. Claimant and Complainant are used interchangeably.

[§ 556\(d\)](#); see also [Steadman v. SEC, 450 U.S. 91,102 \(1981\)](#). This initial decision is based on the pleadings, exhibits, testimony, briefs, proposed findings of fact and conclusions of law, and replies thereto filed by the parties. All of the exhibits provided by the parties, including those attached to the initial pleadings and to the briefs, [*4] are admitted and were considered.

Pursuant to the APA, all evidence which is not irrelevant, immaterial, or unduly repetitious is admissible. [5 U.S.C. § 556\(d\)](#); see also 46 C.F.R. § 502.156. The Commission explained:

Consistent with guidelines set out in the APA and Commission rules governing the admission of evidence, "[f]n comparison with court trials, administrative adjudications generally are governed by liberal evidentiary rules that create a strong presumption in favor of admitting questionable or challenged evidence." In administrative proceedings, "[a]n agency Administrative Law Judge (ALJ) should admit all relevant and arguably reliable evidence and then should determine the relative probative value of the admitted evidence when . . . [writing]. . . findings of fact.

EuroUSA Shipping, Inc., Tober Group, Inc., and Container Innovations, Inc., 31 S.R.R. 540, 547 (FMC 2008) (citation omitted).

The record includes evidence of settlement negotiations between the parties. These documents are admitted and show that the parties engaged in settlement negotiations. During settlement, parties frequently offer to settle in an effort to avoid litigation expenses without regard to the merits of the claim. The content of the settlement discussions is not relevant to the issues in the proceeding and is not given weight.

This initial decision addresses [*5] only material issues of fact and law. Proposed findings of fact not included in this initial decision were rejected, either because they were not supported by the evidence or because they were not dispositive or material to the determination of the allegations of the complaint or the defenses thereto. Administrative adjudicators are "not required to make subordinate findings on every collateral contention advanced, but only upon those issues of fact, law, or discretion which are 'material.'" [Minneapolis & St. Louis R. R. Co. v. United States, 361 U.S. 173, 193-94 \(1959\)](#). To the extent individual findings of fact may be deemed conclusions of law, they shall also be considered conclusions of law: Similarly, to the extent individual conclusions of law may be deemed findings of fact, they shall also be considered findings of fact.

D. Arguments of the Parties

Mr. Muzorori contends that CSAL violated the Shipping Act when it did not adhere to the modification of the contract which changed the port of delivery from Cape Town, South Africa, to Walvis Bay, Namibia. Complainant's Reply at 17. Mr. Muzorori asserts that CSAL's failure to adhere to the terms of the modification caused significant harm to him, including damages totaling \$ 21,980 which includes the initial shipping charges, costs of re-routing [*6] the goods, and cost of ground transportation from Cape Town, South Africa, to Harare, Zimbabwe. Complainant's Reply at 17.

CSAL asserts that there was no modification of the contract and that the cargo was delivered to the port indicated on the bill of lading. Respondent's Opposition at 17-18. In addition,

Respondent contends that even if there was a Shipping Act violation, the expenses claimed to have been incurred to move the cargo would not constitute damages as it is not clear whether there was any extra cost to Claimant. Respondent's Opposition at 18-19. Respondent requests attorney's fees and costs. Respondent's Opposition at 19-20.

IL FINDINGS OF FACT

A. Parties

1. Walter Muzorori is a resident of Oxford, Pennsylvania. Small Claim Form for Informal Adjudication ("Claim") at 1. ⁴
2. CSAL is a shipping company incorporated in Canada with offices at 478 McGill Street, Montreal, Quebec H2Y 2H2, Canada. Answer at 1.

B. Shipment

3. Claimant booked carriage from Baltimore, Maryland, to Cape Town, South Africa, for two Volvo 2005 road tractors ("cargo") aboard the CSAL vessel Atlantic Impala, suggesting that CSAL may have been both an NVOCC and ocean common carrier. Respondent's Opposition Exhibit ("RX")-6.
4. The record includes [*7] a document labeled "draft" with booking number S002863CH, bill of lading number BACP03140002, shipper Walter Muzorori, vessel Atlantic Impala, port of loading as Baltimore and the port of discharge as Cape Town, and date of 05.10.2014. RX-6.
5. The record includes a document nearly identical to RX-6, with. CSAL' s logo, a label of "international bill of lading, " a stamp stating "original," and a signature stamp stating "MITCHELL COTTS MARITIME, A member of the Sturrock Grindrod Maritime Group As agents only for C.S.A.L." and a signature. RX-6.
6. Claimant asked CSAL to change the cargo's port of discharge from Cape Town, South Africa, to Walvis Bay, Namibia, while the Atlantic Impala was en route to Cape Town, Claimant and CSAL exchanged communications discussing this request. Answer at 1-2.
7. On May 15, 2014, at 2:00 PM, Mr. Muzorori emailed CSAL, in part asking whether it would be possible to change the destination for his cargo from Cape Town to Durban. Claim Ex. at 20.
8. On May 16, 2014, at 3:58:03 PM, CSAL emailed Mr. Muzorori that they would "have to charge USD 500.00 for change of POD to Durban because we will have to shift the trucks before cargo to Cape Town will be discharged." [*8] Claim Ex. at 21.
9. On May 16, 2014, at 12:40 PM, CSAL emailed Mr. Muzorori, stating "We could discharge at Walvis Bay at no additional charge. Please advise. " RX-7.
10. On May 19, 2014, at 9:42 PM, CSAL emailed Mr. Muzorori, stating "Please advise whether POD change is still required and to which port as we have to send does to customs soon." RX-7.

⁴ Claimant's small claim form and exhibits were not numbered when filed and will be referred to as if sequentially numbered, with the first page referred to as Claim at 1 and the first exhibit page referred to as Claim Ex. at 1

11. On May 19, 2014, at 1:46 PM, Mr. Muzorori emailed CSAL, stating "We have decided to go with Walvis Bay. Please let me know if there is something to provide on my end. I also just left the bank and they have requested full wire institutions [sic] in order for me to complete the transfer. Thank you." RX-8.
12. On May 19, 2014, at 2:06 PM, CSAL emailed Mr. Muzorori, stating "Please find attached CSAL bank details for wire payment." RX-8.
13. Mr. Muzorori received a document showing Walvis Bay as the port of discharge for the cargo. RX-9. This document does not have CSAL's name or logo, is not marked as an original, and is unsigned. The bill of lading, booking number, and date are the same as RX-7.
14. On May 27, 2014, CSAL requested from Mr. Muzorori the clearing agent information in Walvis Bay. Since he did not have one, Mr. Muzorori requested [*9] that the shipping line recommend one and they provided him with two companies they use. Mr. Muzorori went with their referral and appointed a company called Woker Freight in Namibia. Respondent's Opposition at 6, admitting Claimant's proposed finding number 7.
15. On May 28, 2014, at 12:37 PM, CSAL sent an email to Mr. Muzorori with the subject "RE: Inv. 2005571 - S002863CH/BACP03140002/Atlantic Impala 5403 POD change to WV" stating "Please find attached revised draft with added clearing agent details at Walvis Bay. Please confirm that all in order to issue originals at destination to Clearing Agent. " Claim Ex. at 27-28.
16. On May 29, 2014, at 10:15 AM, Mr. Muzorori emailed CSAL requesting a change in the consignee. Claim Ex. at 26-27.
17. On May 29, 2014, at 4:17 PM, CSAL emailed Mr. Muzorori, stating "Please find attached revised draft and kindly confirm all in order." Claim Ex. at 26.
18. On May 30, 2014, at 2:40:14 PM, CSAL emailed Mr. Muzorori, requesting that he "urgently confirm." Claim Ex. at 24.
19. On May 30; 2014, at 10:51 AM, ⁵ Mr. Muzorori emailed CSAL, stating "Confirmed." This email appears in the same chain of emails, with the consistent subject of "Inv. 2005571 - S002863CH/BACP03140002 [*10] / Atlantic Impala 5403 POD change to WV." Claim Ex. at 23.
20. On May 30, 2014, at 3:02:59 PM, CSAL emailed Mr. Muzorori, stating, "I have sent instructions to issue originals at destination to Clearing Agent. Thank you and have a great weekend to all." RX-13.
21. On June 4, 2014, at 6:46 PM, CSAL sent an email to Mitchell Cotts Maritime, presumably the ocean common carrier, with the subject "BACP03140002 (POD changing)" which said "We had 2 trucks under BL BACP03140002 showed on stowage for discharging in Cape Town (underwing portside # 3AFT). But as per documents their destination was changed to Walvis Bay. Please advise whether they were discharged in Walvis Bay or they are still on board?" RX-17.

⁵ Although the time stamps are not chronological, that can occur based on computer settings and time zones.

22. On June 5, 2014, at 2:37 AM, Mitchell Cotts Maritime emailed CSAL, stating "I did not receive any COD for the cargo and the B/L I was sent stated Cape Town. Attached WVB out turn report does not show these VIN numbers." RX-17.

23. A series of emails between Mitchell Cotts Maritime and Sturrock Grindrod from June 5-6, 2014, indicate that a draft bill of lading with Cape Town shown as the POD was provided by the clearing agent. RX-17.

24. The record includes a draft bill of lading which bears [*11] a Namibian customs and excise stamp dated June 3, 2014, as well as similar stamps on a landing order and customs release order, suggesting that the agent in Walvis Bay mistakenly cleared, reviewed, and released cargo that never arrived at their port. Respondent's Opposition at 7.

25. On June 5, 2014, at 3:00 PM, Mr. Muzorori sent an email to CSAL stating "The final bill of lading is Walvis Bay confirmed and, we remitted payment for that service. I think you should honor your mistake and correct it accordingly." RX-18.

26. On June 5, 2014, at 3:03 PM. CSAL emailed Mr. Muzorori, stating "Understood below as no intention to discharge in Durban. We'll proceed with discharging in Cape Town." RX-18,

27. On June 5, 2014, at 3:11 PM, Mr. Muzorori sent an email to CSAL stating "Please be advised that I do not need my cargo in Cape Town." RX-18.

28. The cargo was still on board the vessel when it docked in Cape Town and was discharged there. Respondent's Opposition at 9.

29. Mr. Muzorori claims damages of \$ 21,948.19 ⁶ and includes receipts for \$ 9,842.59 for port clearing charges at Cape Town, \$ 6,156 for transportation fees for Cape Town to Namibia border, and \$ 249.60 for drivers' plane fares to [*12] Cape Town. Claim Ex. at 9-19. These are the only receipts included by Mr. Muzorori.

III. ANALYSIS AND CONCLUSIONS OF LAW

A. Burden of Proof

Pursuant to Rule 155 and the APA, "the burden of proof shall be on the proponent of the rule or order," 46 C.F.R. § 502.155; [5 U.S.C. § 556\(d\)](#) ("Except as otherwise provided by statute, the proponent of a rule or order has the burden of proof"); *Sea-Land Serv. Inc.*, 30 S.R.R. 872, 889 (FMC 2006). The Commission has said that "the party seeking affirmative relief from the Commission has the initial burden of establishing a violation of the Act. . . . [and] the ultimate burden of proof or persuasion remains fixed throughout the litigation on the complainant." *California Shipping Line, Inc. v. Yangming Marine Transport Corp.*, 25 S.R.R.1213, 1222 (FMC Oct. 19, 1990). The party with the burden of proof must prove its case by a preponderance of the evidence. [Steadman v. SEC, 450 U.S. 91, 102 \(1981\)](#). When the evidence is evenly balanced, the party with the burden of proof must lose. [Director, Office of Workers' Compensation Programs v. Greenwich Collieries, 512 U.S. 267, 281 \(1994\)](#).

⁶ Damage amounts were converted from local currency into US dollars without objection.

As the claimant, Mr. Muzorori has the burden of proving entitlement to reparations.⁷ See *James J. Flanagan Shipping Coip. v. Lake Charles Harbor and Terminal Dist.*, 30 S.R.R. 8, 13 (2003) (quoting *Waterman v. Stockholms Rederiaktiebolag Svea*, 3 F.M.B. 248, 249 (1950)) ("As the Federal Maritime Board explained long ago: '(a) damages must be the proximate result of violations of the statute in question; (b) there is no presumption of damage; and (c) the violation in and of itself without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation. '""); *Tractors and Farm Equipment Ltd. v. Cosmos Shipping Co., Inc.*, 26 S.R.R. 788, 798-799 (ALJ 1992).

B. Discussion

The Commission has jurisdiction over this proceeding because CSAL is an ocean transportation intermediary and the complaint alleges violations of the Shipping Act for a shipment between Baltimore, Maryland, and Cape Town, South Africa. CSAL initially objected to this proceeding on the basis that it should be decided by arbitration, however, that argument was not briefed and would not preclude jurisdiction over the Shipping Act claims alleged here.

1. Operating Contrary to Agreement, Section 41102(b)(2).

Mr. Muzorori states that CSAL violated the Shipping Act "by not delivering my trucks at the agreed port of destination. " Complainant's Brief at 3. Mr. Muzorori appears to contend that CSAL violated its contract, or agreement, with him. Mr. Muzorori's reply brief asserts that an amendment to the agreement was created changing the port of discharge and that CSAL violated [*13] section 41102(b)(2) when it failed to deliver the cargo to the amended destination. Complainant's Reply at 17-19.

CSAL asserts that the 41102(b)(2) claim "is based on Claimant's unsupported assertion that the Contract of carriage (which designated Cape Town as the Port of Discharge) was somehow amended while the Cargo was en route." Respondent's Opposition at 17 (citations omitted). CSAL also focuses on the agreement, or lack thereof, between the parties.

Under the Shipping Act, a "person may not operate under an agreement required to be filed under section 40302 or 40305 of this title if . . . the operation is not in accordance with the terms of the agreement or any modifications to the agreement made by the Federal Maritime Commission." [46 U.S.C. § 41102\(b\)\(2\)](#). Section 40302, with limited exceptions, requires that "every agreement referred to in section 40301(a) or (b) of this title shall be filed with the Federal Maritime Commission." [46 U.S.C. § 41103](#). Section 40301(a) requires the filing of certain agreements between or among ocean common carriers (but not their agreements with individual shippers) and section 40301(b) requires the filing of certain agreements between marine terminal operators. [46 U.S.C. § 40301](#).

The term ocean common [*14] carrier "means a vessel-operating common carrier. " [46 U.S.C. § 40102\(17\)](#). The term marine terminal operator "means a person engaged in the United States in the business of providing wharfage, dock, warehouse, or other terminal facilities in connection

⁷ Reparations under the Shipping Act and damages are synonymous. See [Federal Maritime Comm'n v. South Carolina Slate Ports Auth.](#), [535 U.S. 743, 775 \(2002\)](#) (Breyer, J., dissenting).

with a common carrier, or in connection with a common carrier and a water carrier subject to subchapter 11 of chapter 135 of title 49 [[49 USCS § 13521](#)]." [46 U.S.C. § 40102\(14\)](#).

Section 40305 requires that an "assessment agreement shall be filed with the Federal Maritime Commission and is effective on filing." [46 U.S.C. § 40305](#). The term "assessment agreement" means an agreement, whether part of a collective bargaining agreement or negotiated separately, to the extent the agreement provides for the funding of collectively bargained fringe-benefit obligations on other than a uniform worker-hour basis, regardless of the cargo handled or type of vessel or equipment used. [46 U.S.C. § 40102\(3\)](#)

The evidence does not establish that Mr. Muzorori and CSAL are ocean common carriers nor that either party is a marine terminal operator. The evidence does not establish that the agreement at issue was an assessment agreement. The evidence does not establish, therefore, that the contract of carriage between the parties here was required to be filed [*15] with the Federal Maritime Commission. This section of the Shipping Act is not designed to regulate agreements between individual shippers and ocean transportation intermediaries but rather between ocean common carriers and marine terminal operators. Accordingly, there is not sufficient evidence to find that section 41102(b)(2) applies to this situation. Claimant's section 41102(b)(2) claim will therefore be dismissed.

2. Practices in Handling Property, Section 41102(c).

Mr. Muzorori contends that CSAL violated the Shipping Act "by not delivering my trucks at the agreed port of destination. " Complainant's Brief at 3. Many of Mr. Muzorori's arguments discussing section 41102(b)(2) apply as well to section 41102(c). Mr. Muzorori alleges that the failure to deliver cargo to Walvis Bay was an unreasonable practice in handling his cargo.

CSAL maintains that the "claimant provides absolutely no evidence, facts, or arguments to support" the section 41102(c) claim. Respondent's Opposition at 17 (citation omitted). CSAL asserts that:

By his own admission, the Claimant knew before the *Atlantic Impala* departed Baltimore that Cargo was to be delivered to Cape Town. The Claimant also knew that Cape Town was the ultimate Port of Discharge when he *requested* a deviation to [*16] Walvis Bay. The initial bill of lading designated Cape Town as the Port of discharge, as did the signed, original bill of lading that constitutes the Contract. Even the draft bill of lading that was forwarded to Claimant's clearing agent designated Cape Town, not Walvis Bay, as the Port of Discharge. The fact that there was an exchange of correspondence regarding Claimant's request to change the Port of Discharge does not alter this fundamental fact. Nor does the existence of two draft bills of lading identifying Walvis Bay. As described in greater detail above, those documents do not have CSAL's name or logo, were not signed by CSAL, were not stamped by CSAL, and were not identified as "original." Moreover, Claimant has not produced correspondence or other documentary evidence tending to substantiate his assertion that these unsigned, draft bills of lading somehow served to amend the parties' Contract. To the extent that CSAL personnel referenced these draft documents in e-mail correspondence, they do so exclusively as drafts.

Respondent's Opposition at 17-18 (footnotes omitted) (emphasis in original). CSAL further contends that "Claimant's brief fails to articulate a single instance [*17] where CSAL's regulations or practices produced an unreasonable or unfair result." Respondent's Opposition at 19.

Section 41102(c), formerly section 10(d)(1), states: "(c) Practices in handling property. -- A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property." [46 U.S.C. § 41102\(c\)](#). An ocean transportation intermediary may be a non-vessel-operating common carrier ("NVOCC") or an ocean freight forwarder ("OFF"). [46 U.S.C. § 40102\(19\)](#).

"The term 'non-vessel-operating common carrier' means a common carrier that -- (A) does not operate the vessels by which the ocean transportation is provided; and (B) is a shipper in its relationship with an ocean common carrier. " [46 U.S.C. § 40102\(16\)](#). An NVOCC assumes responsibility for transportation of a shipment. [46 U.S.C. § 40102\(6\)\(A\)](#). An NVOCC's failure to fulfill its obligation constitutes a violation of section 10(d)(1). *Houben v. World Moving Serv., Inc.*, 31 S.R.R. 1400, 1405 (FMC 2010); *William J Brewer v. Saeid B. Maralan and World Line Shipping, Inc.*, 29 S.R.R. 6, 9 (FMC 2001); *William R. Adair v. Penn-Nordic Lines, Inc.*, 26 S.R.R. 11, 22 (ALJ 1991).

"The term 'ocean freight forwarder' means a person that -- (A) in the United States, dispatches shipments from the United States via a common carrier and books or otherwise arranges space for those shipments [*18] on behalf of shippers; and (B) processes the documentation or performs related activities incident to those shipments. " [46 U.S.C. § 40102\(18\)](#). Ocean freight forwarders are fiduciaries who are required to observe the highest standards of behavior toward their principals, the shippers. *Nordanca Line AS v. Tamar Shipping, Inc.*, 27 S.R.R., 233, 236 (ALJ 1995). A freight forwarder's breach of its fiduciary duty can be a violation of section 10(d)(1). See *id.* Freight forwarders have long been held to high standards of care and integrity because they are fiduciaries who are in unique positions of trust and are able to inflict harm on their clients and on the shipping public. *Tractors and Farm Equipment Ltd., v. Cosmos Shipping Co., Inc.*, 26 S.R.R. at 796.

CSAL is an ocean transportation intermediary to whom section 41102(c) applies. It appears that CSAL was an NVOCC which did not operate the vessels by which the shipment at issue was transported and was a shipper in its relationship with the ocean common carrier. Even if CSAL was an ocean freight forwarder, a higher standard of care would apply, and the result would be the same.

As explained below, the evidence establishes that Mr. Muzorori clearly communicated to CSAL his desire to change the cargo's destination to Walvis Bay, CSAL accepted the change, and CSAL stated that final documents would be provided at the destination. More than an exchange of correspondence, the contemporaneous written documents provide evidence of an agreement. Once problems arose, CSAL's own emails demonstrate that it thought that the destination had been changed. As a factual issue, the evidence does not support CSAL's contention that the destination [*19] port was not changed.

The evidence shows that on May 19, 2014, at 1:46 PM, Mr. Muzorori emailed CSAL, stating "We have decided to go with Walvis Bay. Please let me know if there is something to provide on my end. I also just left the bank and they have requested full wire institutions in order for me to complete the transfer." RX-8. On May 19, 2014, at 2:06 PM, CSAL emailed Mr. Muzorori, stating "Please find attached CSAL bank details for wire payment," RX-8, indicating that the email confirming destination change and requesting bank wire information was received.

On May 28, 2014, at 12:37 PM, CSAL sent an email to Mr. Muzorori with the subject "RE: Inv. 2005571 - 5002863CH/BACP03140002 / Atlantic Impala 5403 POD change to WV" stating "Please find attached revised draft with added clearing agent details at Walvis Bay. Please confirm that all in order to issue originals at destination to Clearing. Agent." Claim Ex. at 28-29. On May 30, 2014, at 10:51 AM, Mr. Muzorori emailed CSAL, stating "Confirmed." This email appears in the same chain of emails, with the consistent subject of "Inv. 2005571 - S002863CH/BACP03140002 / Atlantic Impala 5403 POD change to WV." Claim Ex. at 24. On May 30, [*20] 2014, at 3:02:59 PM, CSAL emailed Mr. Muzorori, stating, "I have sent instructions to issue originals at destination to Clearing Agent. Thank you and have a great weekend to all." RX-13. Given this representation, it would be reasonable for Mr. Muzorori not to anticipate receiving further documentation regarding the changed destination.

Once problems arose, CSAL's email indicates that it thought that the cargo's destination was changed to Walvis Bay. On June 4, 2014, at 6:46 PM, CSAL sent an email to Mitchell Cotts Maritime with the subject "BACP03140002 (POD changing)" which said "We had 2 trucks under BL BACP03140002 showed on stowage for discharging in Cape Town (underwing portside # 3AFT). **But as per documents their destination was changed to Walvis Bay.** Please advise whether they were discharged in Walvis Bay or they are still on board?" RX-17 (emphasis added).

CSAL was not required to change the port of discharge. Indeed, Mr. Muzorori initially requested to change the port of discharge from Cape Town to Durban. Claim. Ex. at 21. When he was informed that this change would incur an additional charge, he decided against it. CSAL suggested that the discharge port be changed to Walvis Bay at no additional charge and Mr. Muzorori confirmed the [*21] change in destination port. Under these facts, once CSAL agreed to change the discharge port, it had a duty to deliver the cargo to the new discharge port. There is no evidence in the record that CSAL informed Mr. Muzorori that the port of discharge would not be changed until a final, original, or signed bill of lading was issued. Rather, CSAL specifically represented to Mr. Muzorori that the originals would be issued at destination to the clearing agent. Mr. Muzorori relied on these representations in arranging to retrieve the cargo. CSAL breached its duty, causing Mr. Muzorori damages.

CSAL argues that the draft bill of lading provided by the agent in Walvis Bay, Woker, which designated Cape Town as the port of discharge weighs in favor of finding that there was no agreement to change the port. This document, provided by a third party, is not dispositive of the agreement between the parties here and any miscommunication would not make the Claimant responsible for any alleged damages. In addition, the Namibian customs and excise stamp dated June 3, 2014, which appears on the draft bill of lading, a landing order, and customs release order, suggest that the paperwork provided by the [*22] agent in Walvis Bay was not reliable.

The evidence establishes that CSAL violated the Shipping Act when it failed to deliver cargo to the agreed upon destination port, after agreeing to change the destination port. CSAL either failed to establish and observe just and reasonable regulations and practices relating to or connected with delivering property or failed to enforce just and reasonable regulations and practices relating to or connected with delivering property. The failure to deliver the cargo to the agreed upon port caused Mr. Muzorori damages as discussed below. Thus, the evidence is sufficient to find that CSAL violated section 41102(c).

C. Damages

Mr. Muzorori asserts that CSAL asked him to mitigate loss by making alternative arrangements to move his cargo to the final destination, which he did. Complainant's Brief at 6. Mr. Muzorori further asserts that he incurred huge unplanned expenses that ruined his business. Complainant's Brief at 6.

CSAL asserts that:

To prevail in a case brought to enforce the Shipping Act, the Claimant must prove by a preponderance of the evidence that CSAL violated that Act, that CSAL's violations caused actual injury, and that his injuries were the proximate [*23] cause of those violations.[] This burden is his alone. Commission case law states that "there is no presumption of damage" in Shipping Act proceedings, and that violations "without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation. " Stated differently, Claimant must show a violation, an injury, and a proximate cause for each claim he asserts.

Respondent's Opposition at 16 (citations omitted). CSAL contends that with "no showing as to the ultimate, all-in costs, it is impossible to establish whether (i) there was any need to bring the cargo to Walvis Bay from Cape Town in order to get it to Harare, or (ii) whether there was any extra, net cost to Claimant associated with his delivery of tractors to his buyer in Harare." Respondent's Opposition at 18 (citation omitted).

Under [46 U.S.C. § 41305\(b\)](#), a complainant is entitled to reparations for "actual injury caused by a violation of this part." In order to recover reparations, a complainant must show with reasonable certainty that the violation of law is the proximate cause of the loss or injury. *Rose Int'l, Inc. v. Overseas Moving Network Int'l, Ltd.*, 29 S.R.R. 119, 187 (FMC 2001); *Adair v. Penn-Nordic Lines, Inc.*, 26 S.R.R. at 25.

Complainants have the burden of proving entitlement to reparations.

As the Federal Maritime Board explained long ago: [*24] "(a) damages must be the proximate result of violations of the statute in question; (b) there is no presumption of damage; and (c) the violation in and of itself without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation. "

James J. Flanagan Shipping Corp. v. Lake Charles Harbor & Terminal Dist., 30 S.R.R. 8, 13 (FMC 2003) (quoting *Waterman v. Stockholms Rederiaktiebolag Svea*, 3 F.M.B. 248, 249 (1950)).

Reparations will only be awarded based on actual damages. *Tractors & Farm*, 26 S.R.R. at 798. Actual damages means "compensation for the actual loss or injuries sustained by reason of the wrongdoing." *Cal. Shipping Line, Inc.*, 25 S.R.R. at 1230. Regardless of the method used to calculate damages, "the amount [of damages] can be based on something less than precision but something based on a reasonable approximation supported by evidence and by reasonable inferences." *Tractors & Farm*, 26 S.R.R. at 798-99. Calculation of reparations for violations of the Shipping Act are not controlled by contractual language.

Mr. Muzorori claims damages of \$ 21,948.19 and includes receipts for \$ 9,842.59 for port clearing charges at Cape Town, \$ 6,156 for transportation fees from Cape Town to the Namibia border, and \$ 249.60 for drivers' plane fares to Cape Town. These amounts have been converted to United States dollars from local currency, without objection. These are the only receipts included by Mr. Muzorori.

The other amounts sought by Mr. Muzorori include \$ 2,000 for fuel from the Namibian boarder to Walvis Bay, \$ 2,200 in drivers' wages at \$ 1,100 each, and \$ 1,500 in miscellaneous charges such as hotels, meals, tolls, etc. There are no receipts in the record for these charges. Because they are not documented, there is not sufficient evidence in the record to award them. Complainant bears the burden of establishing damages and CSAL has consistently challenged the damage calculation, [*25] putting Mr. Muzorori on notice of this issue. Accordingly, these charges will be denied as there is not sufficient evidence in the record to support them.

Mr. Muzorori seeks damages for port and clearing charges at Cape Town and provides appropriate receipts for these charges. However, if the cargo had been delivered to Walvis Bay, there would have been port and clearing charges for that port. There is no evidence that the port and clearing charges were higher in Cape Town than they would have been in Walvis Bay. These are charges that would have been incurred at some level regardless of the port of entry. Accordingly, there is not sufficient evidence in the record to award reparations for these charges.

CSAL contends that it should not have to pay damages for transportation to Walvis Bay when that was not the intended final destination for the cargo. The remaining charges, however, are for transportation to the Namibia border and driver's plane fares to Cape Town. These charges would have been incurred whether the cargo was traveling to Walvis Bay or to Harare, as CSAL contends.

The remaining charges of \$ 6,156 for Transportation fees Cape Town to Namibia border, and \$ 249.60 for drivers' [*26] plane fares to Cape Town, totaling \$ 6,405.60, are properly documented, caused by the failure to delivered to Walvis Bay as agreed, and appear reasonable. Accordingly, there is sufficient evidence to support a reparations award of \$ 6,405.60 to Mr. Muzorori.

IV. ORDER

Upon consideration of the whole record, the conclusion that CS AL violated section 41102(c) of the Shipping Act, [46 U.S.C. § 41102\(c\)](#), and for the reasons stated above, it is hereby

ORDERED that the violation of section 41102(b)(2) of the Shipping Act be dismissed. It is

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FURTHER ORDERED that CSAL be found in violation of section 41102(c) of the Shipping Act. It is

FURTHER ORDERED that CSAL be ordered to pay Walter Muzorori reparations in the amount of \$ 6,405.60.

Federal Maritime Commission Decisions

End of Document

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2022 FMC LEXIS 358

Federal Maritime Commission

August 31, 2022

DOCKET NO. 21-11

Federal Maritime Commission Decisions

Reporter

2022 FMC LEXIS 358 *

OJ COMMERCE, LLC, Complainant v. HAMBURG SÜDAMERIKANISCHE DAMPFSCIFFFAHRTS-GESELLSCHAFT A/S & CO. KG AND HAMBURG SUD NORTH AMERICA, INC., Respondents.

Core Terms

common carrier, ocean, shipper, service contract, discovery, expedite, protective order, transport, deposition, emails, intermediary, port, amended complaint, motion to dismiss, ship, confidential, doctrine, target, work product, disadvantage, shipment, unreasonable preference, spot market, disclosure, unjust, terminal, marine

Opinion By: [*1] Erin M. WIRTH, Chief Administrative Law Judge

Opinion

ORDER ON RESPONDENTS' MOTIONS TO PARTIALLY DISMISS AND FOR A PROTECTIVE ORDER AND COMPLAINANT'S MOTION FOR EXPEDITED RELIEF

I. Introduction and Procedural Background

On July 26, 2022, Respondents Hamburg Südamerikanische Dampfschiffahrts-Gesellschaft A/S & Co. KG ("HSDG") and Hamburg Sud North America, Inc. ("HSNA"), collectively "Hamburg," filed a motion to partially dismiss and/or for summary judgment ("Motion"). On August 10, 2022, Complainant OJ Commerce, LLC ("OJC") filed a memorandum of law in opposition to Respondents' motion ("Opposition"). On August 17, 2022, Respondents filed a reply to Complainant's opposition ("Reply").

On August 15, 2022, Complainant filed a request for expedited relief of discovery and confidentiality designation issues ("Expedited Motion"). On August 22, 2022, Respondents filed an opposition to Complainant's expedited motion ("Expedited Opposition").

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On August 22, 2022, Respondents filed a motion requesting a protective order ("Protective Order Motion"). On August 24, 2022, Complainant filed a response and memorandum of law opposing Respondents' protective order motion ("Protective Order Opposition").

This proceeding began on December 13, 2021, when the Commission issued a notice of filing of complaint and assignment, indicating that OJC had filed a [*2] complaint against Hamburg. An amended complaint, filed on February 18, 2022, alleges that Hamburg violated [46 U.S.C. §§ 41102\(c\), 41102\(b\)\(2\), 41104\(a\)\(3\), 41104\(a\)\(5\), 41104\(a\)\(9\), and 41104\(a\)\(10\)](#).¹In their motion, Hamburg does not seek to dismiss the allegations in Sections 41102(c) and 41104(a)(3).

For the reasons set forth below, both Respondents' motion to dismiss and/or for summary decision and OJC's expedited motion are granted in part and denied in part. Respondents' motion for a protective order is denied. Each motion is addressed separately.

II. Motion to Dismiss or for Summary Decision

A. Arguments of the Parties

Respondents argue that OJC's claim under Section 41102(b)(2) is invalid; OJC's claims under Sections 41104(5) and 41104(9) are without merit; OJC's Section 41104(10) claim should be dismissed or, alternatively, summary judgment granted in favor of Respondents; and, HSNA should be dismissed as a respondent due to the lack of jurisdiction. Motion at 3-7.

Complainant contends that Respondents' argument for dismissal and/or summary judgment of OJC's Section 41104(10) claim entirely ignores known material facts that illustrate that Respondents unreasonably refused to deal with and retaliated against OJC and must be rejected; Respondents' motion should also be denied as the parties are still engaged in discovery during which more evidence in support of OJC's claims are likely to come to light; Respondents' repetitive motion regarding HSNA has already been denied by this Court and should be rejected again; and, the remainder of Respondents' motion should be denied as well. Opposition at 10-20.

B. Motion to Dismiss and Summary Decision Standards

Although the Commission's Rules do not explicitly provide for motions to dismiss, Commission Rule 12 states that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission's Rules, to the extent that application of the Federal Rules is consistent with sound administrative practice. 46 C.F.R. § 502.12 [*3]. The "Commission looks to [Federal Rule of Civil Procedure 12\(b\)\(1\)](#) when considering dismissals based on lack of subject matter jurisdiction, and to Rule 12(b)(6) when considering dismissals based on failure to state a claim." [MAVL Capital Inc. v. Marine Transport Logistics, Inc., Docket No. 16-16, 2020 FMC LEXIS 216, at *6 \(FMC Oct. 29, 2020\)](#).

"When, as here, jurisdictional facts are intertwined with facts central to the merits of a claim, the Rule 12(b)(6) standard applies." [MAVL Capital, 2020 FMC LEXIS 216, at *6](#) (citing [Kerns](#)

¹ The Amended Complaint was filed prior to the June 16, 2022, changes to the Shipping Act.

v. United States, 585 F.3d 187, 192-93 (4th Cir. 2009)). "Under *Fed. R. Civ. P. 12 (b)(6)*, the facts alleged are taken as true and all reasonable inferences are drawn in the complainant's favor." *MAVL Capital*, 2020 FMC LEXIS 216, at *6 (citing *Maher Terminals, LLC v. The Port Authority of New York and New Jersey*, Docket No. 12-02, 34 S.R.R. 35, 54, 2015 FMC LEXIS 43, at *36 (FMC Dec. 18, 2015)).

To survive motions to dismiss for failure to state a claim under Rule 12(b)(6), a complaint must contain sufficient factual matter, accepted as true, to "state a claim to relief that is plausible on its face." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007). A claim "has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Ashcroft v. Iqbal*, [556 U.S. 662, 663] (2009).

Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc., Docket No. 09-01, 32 S.R.R. 126, 136, 2011 FMC LEXIS 12, at *25-26 (FMC Aug. 1, 2011). "A pleading that offers 'labels and conclusions' or 'a formulaic recitation of the elements of a cause of action will not do.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Twombly*, 550 U.S. at 555). "When there are wellpleaded factual allegations, a court should assume their veracity and then determine whether they plausibly give rise to an entitlement to relief." *Iqbal*, 556 U.S. at 679. The focus at this stage is not with whether a complainant can prevail on its claim, but whether it has adequately pled the claim. *Negron v. USAA Casualty Ins. Co.*, 2014 U.S. Dist. LEXIS 125179, at *5 (M.D. Tenn. 2014).

Summary decision, or summary judgment, is appropriate when "there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." *FRCP 56(a)*. The Commission has emphasized that at the summary decision stage, "the role of the judge ' . . . is not himself to weigh the evidence and determine the truth of the matter but to determine whether there is a genuine issue for trial.'" *EuroUSA Shipping, Inc., Tober Group, Inc., & Container Innovations, Inc.*, Docket No. 06-06, 31 S.R.R. 540, 545 (FMC Dec. 18, 2008) (citation omitted). Even if summary judgment is technically proper, sound judicial policy and the proper exercise of judicial discretion permit denial of such a motion for the case to be developed fully at trial. *Roberts v. Browning*, 610 F.2d 528, 536 (8th Cir. 1979); *In re Korean Air Lines Disaster*, 597 F. Supp. 613, 618 (D.D.C. 1984).

C. Discussion

1. Section 41102(b)(2)

Respondents assert that the "contract at issue in this case is [*4] a service contract between an ocean common carrier and a shipper, which is required to be filed under Section 40502 of the Shipping Act" and that because "the service contract is not required to be filed under Sections 40302 or 40305, the prohibition contained in Section 41102(b)(2) is not applicable to the service contract between OJC and HSDG, and thus no relief may be granted for any alleged violation of Section 41102(b)(2)." Motion at 4.

Complainant asserts that its "Section 41102(b)(2) claim alleges a violation of the Shipping Act and not a breach of contract, and therefore Respondents' Motion should be denied on that claim as well." Opposition at 20.

Section 41102(b), titled "Operating Contrary to Agreement," states: "A person may not operate under an agreement required to be filed under section 40302 or 40305 of this title if . . . (2) the operation is not in accordance with the terms of the agreement or any modifications to the agreement made by the Federal Maritime Commission." [46 U.S.C. § 41102\(b\)](#).

Previous proceedings have found that Section 41102(b) does not apply to contracts between shippers and ocean transportation intermediaries.

Section 41102(b) provides that a "person may not operate under an agreement required to be filed under section 40302 or 40305." [46 U.S.C. § 41102\(b\)](#). Sections 40302 and 40305 govern agreements "between or among ocean common carriers," "between or among marine terminal operators, or between [*5] or among one or more marine terminal operators and one or more ocean common carriers," and assessment agreements. See [46 U.S.C. § 40301](#). Neither Complainant nor Respondent is an ocean common carrier (vessel-operating-common carrier) or marine terminal operator. See [46 U.S.C. § 40102\(18\)](#). The service contract referred to in this section is not the contract between individual consumers and NVOCC for a specific shipment but rather the contract between common carriers. Therefore, the provisions of section 41102(b) do not apply to the parties. Complainant's section 41102(b) allegation thus does not state a plausible claim for relief.

[Dukart v. Ocean Star Int'l Inc., Docket No. 20-03, 2020 FMC LEXIS 149, at *25 \(ALJ July 10, 2020\)](#) (Notice Not to Review, 8/11/20); see also [Muzorori v. Canada State Africa Lines Inc., Docket No. 1949\(F\), 2015 FMC LEXIS 46, at *13-15 \(ALJ Dec. 23, 2015\)](#), *aff'd* Order Affirming Initial Decision (FMC July 14, 2016).

According to the amended complaint, this proceeding involves service contracts of a shipper with a common carrier and ocean transportation intermediary, not a contract between or among ocean common carriers. Amended complaint at 1-2. This type of service contract is not required to be filed under sections 40302 or 40305. Therefore, Respondents have established that, as a matter of law, Section 41102(b)(2) does not apply to the service contract at issue. Accordingly, OJC's claims [*6] under Section 41102(b)(2) are dismissed.

2. Sections 41104(a)(5) and 41104(a)(9)

Respondents assert that sections 41104(a)(5) and (9) apply to rates charged to different localities or ports and not to shippers within ports, so that these sections are inapplicable to this claim. Motion at 4-5. Complainant asserts that these sections are applicable to this proceeding and properly allege a violation of the Shipping Act. Opposition at 19-20.

Section 41104, titled "Common carriers," states that "(a) In General. A common carrier, either alone or in conjunction with any other person, directly or indirectly, shall not . . . (5) for service pursuant to a service contract, engage in any unfair or unjustly discriminatory practice against any commodity group or type of shipment or in the matter of rates or charges with respect to any

port; [or] . . . (9) for service pursuant to a service contract, give any undue or unreasonable preference or advantage or impose any undue or unreasonable prejudice or disadvantage with respect to any port." [46 U.S.C. § 41104\(a\)](#).

Complainant points to *MCS Industries*, in which an Administrative Law Judge denied a motion to dismiss these sections. Opposition at 19-20 (citing *MCS Industries, Inc. v. MSC Mediterranean Shipping Co., SA*, Docket No. 21-05, Order on Motion to Amend Complaint and Motion to Dismiss (ALJ Feb 4, 2022)). The *MCS Industries* decision addressed a motion to dismiss filed prior to discovery which did not clearly articulate the objections to these sections. It is not binding on this proceeding.

The parties do not cite to any cases other than *MCS Industries* addressing this issue. The Senate Report accompanying the Ocean Shipping Reform Act of 1997 states:

New sections 10(b)(5) and (9) substantially increase the discretion given to common carriers to provide different service contract terms to similarly situated shippers. In addition to eliminating the current requirement in section 8(c) of the 1984 Act that ocean common carriers provide the same service contract terms to similarly situated shippers, the bill narrows [*7] the application of the prohibited acts with respect to service pursuant to common carrier service contracts. Sections 10(b)(5) and (9) of the 1984 Act, as amended by the bill, would restrict common carrier service contracting flexibility in only three, narrow, ways.

First, sections 10(b)(5) and (9) of the 1984 Act, as amended by the bill, would protect localities from unjust discrimination and undue or unreasonable preference, advantage, prejudice, or disadvantage as a result of common carrier service contracts. **The Committee intends the application of these prohibitions to a locality to be limited to circumstances in which the prohibited actions are clearly targeted at the locality, not to circumstances where the actions are targeted at a particular shipper or ocean transportation intermediary which happens to be associated with that locality.** An example of this would include a clear pattern of service contracting by a common carrier that imposes an unreasonable disadvantage on all shipments from a specific nation or region of a nation, including the United States. Second, the amendments made by this section would retain similar protections for ports from unjust discrimination and undue or unreasonable preference, advantage, prejudice, or disadvantage as a result of common carrier service contracts as currently exist under the 1984 Act through references to ports and localities. Third, the amendments made by this section would protect shippers and ocean transportation intermediaries from unjust discrimination [*8] and undue or unreasonable preference, advantage, prejudice, or disadvantage as a result of common carrier service contracts due to their status as shippers' associations or ocean transportation intermediaries.

The Committee intends the application of sections 10(b)(5) and (9) of the 1984 Act, as amended by the bill, with respect to protection for shippers' associations and ocean transportation intermediaries to be limited to circumstances in which the prohibited actions are clearly targeted at shippers' associations and ocean transportation intermediaries in general, not to circumstances where the actions are targeted at a particular shippers'

association or ocean transportation intermediary. An example of such prohibited activity would include a clear pattern of unjustly discriminatory practices by a common carrier with respect to all shippers' association service contracts. The Committee expects the amendments to the 1984 Act by the bill will result in a much more competitive environment for ocean transportation rates and services. This environment should provide shippers' associations and ocean transportation intermediaries with more options when shopping for ocean transportation [*9] services and free common carriers to compete with each other to obtain shippers' associations and ocean transportation intermediaries as customers. Therefore, the Committee believes that shippers' associations and ocean transportation intermediaries require less protection as individuals in this more competitive marketplace. The Committee intends that common carriers be afforded the maximum flexibility to differentiate their service contract terms and conditions with respect to individual shippers and ocean transportation intermediaries in this more competitive environment. The Committee directs the FMC, and its successor, to focus the efforts of its limited enforcement resources, with respect to common carrier service contracts, on the most egregious examples of unjust discrimination and undue or unreasonable preference, advantage, prejudice, or disadvantage as a result of common carrier service contracting.

S. Rep. 61, 105th Cong., 1st Sess., p. 28 (1997) (emphasis added).

Section 41104(a)(5) applies to practices "against any commodity group or type of shipment or in the matter of rates or charges with respect to any port." [46 U.S.C. § 41104\(a\)\(5\)](#). The complaint does not identify any "commodity group" [*10] or any "type of shipment." The complaint does raise issues about practices regarding rates or charges but does not indicate that the practices are targeted to a specific port. Rather, it appears that the alleged conduct was targeted at a particular shipper. It therefore does not appear that the allegations would fit within the requirements of this section.

Section 41104(a)(9) applies to practices "with respect to any port." [46 U.S.C. § 41104\(a\)\(9\)](#). The complaint does not indicate that the alleged undue or unreasonable preference or advantage or prejudice or disadvantage were targeted at a specific port. Rather, it appears that the conduct was targeted at a particular shipper. It therefore does not appear that the allegations would fit within the requirements of this section.

Respondents have established that, as a matter of law, Sections 41104(a)(5) and 41104(a)(9) do not apply to the practices alleged in the amended complaint. Accordingly, OJC's claims under Sections 41104(a)(5) and 41104(a)(9) are dismissed. It is noted that OJC's claims under Sections 41102(c) (unreasonable practices) and 41104(a)(3) (retaliation) were not raised in Respondents' motion and remain pending.

3. Section 41104(a)(10): Refusal to Deal

Respondents assert that they did not refuse to deal or negotiate with OJC, and that because "HSDG was willing to do business with OJC other than under a service contract and offered to do so, OJC's claim that there was an unreasonable refusal to deal or negotiate should be

dismissed." Motion at 6. Complainant focuses its opposition on defending the refusal to deal claim, raising a number of factual arguments in support of the claim. Opposition at 10-17.

Section 41104, regarding [*11] "Common carriers" states that "(a) In General. A common carrier, either alone or in conjunction with any other person, directly or indirectly, shall not . . . (10) unreasonably refuse to deal or negotiate, including with respect to vessel space accommodations provided by an ocean common carrier." [46 U.S.C. § 41104\(a\)\(10\)](#).

The amended complaint alleges an unreasonable refusal to deal with OJC when Respondents "refused to renew Complainant's service contract and forced Complainant into the spot market for virtually all its shipments." Amended Complaint at 18. To determine whether Hamburg refused to deal with OJC and therefore violated the Shipping Act will require determination of contested facts. The complaint plausibly raises the issue and Respondents have not established that this claim should be dismissed as a matter of law. The parties are in the process of conducting discovery and may further develop the factual record. Because material facts are disputed, this claim cannot be summarily dismissed.

4. Jurisdiction over HSNA

Respondents argue that HSNA must be dismissed because it was not a common carrier, marine terminal operator, or ocean transportation intermediary, but rather an agent, and therefore the Commission has no jurisdiction over HSNA. Motion at 7. OJC responds that this issue has already been raised and denied, and that they have not completed discovery on this issue. Opposition at 18.

This issue was squarely raised and previously denied in this proceeding. "The amended complaint alleges that Hamburg NA is an ocean transportation intermediary ("OTI"), an issue which is inextricably [*12] intertwined with the merits of the case, as an OTI is a Commission-regulated entity subject to the section 41102(c) prohibitions. The amended complaint thus raises a sufficient basis for the Commission to assert jurisdiction over the complaint, and over Hamburg NA." Order on Motion to Amend Complaint and Motion to Dismiss at 4. Respondents' motion is repetitive and is denied. Moreover, the parties contest material facts regarding whether or not HSNA operated as an ocean transportation intermediary. Therefore, summary decision is also not appropriate.

5. Conclusion

For the reasons identified above, the claims of violations of Sections 41102(b)(2), 41104(a)(5), and 41104(a)(9) are dismissed. The claims of violations of Sections 41102(c) (unreasonable practices), 41104(a)(3) (retaliation), and 41104(a)(10) (refusal to deal) remain pending. Therefore, it is necessary to address the other pending motions.

III. Pending Motions

A. Complainant's Motion for Expedited Relief

OJC requests the following relief on an expedited basis:

1. The de-designation of stale, expired information that is clearly not trade secret or highly confidential but has nonetheless been so designated "Attorneys' Eyes Only" by Respondents in order to cripple OJC's prosecution [*13] of its case;
2. A finding of contempt against Respondents for failing to produce known responsive documents to OJC's RFP 26, despite the fact that this Court ordered the production of such documents and said documents being readily available to Respondents;
3. The in camera review and de-designation of emails which Respondents have wrongfully identified as "work product protected" which are critical and central to OJC's case and Respondents' defenses; and
4. The ordering of Respondents to produce their employees Søren Skou and Patrick Jany for deposition, as they have personal knowledge of facts highly relevant to OJC's claims, including for damages.

Expedited Motion at 1-2.

1. Confidential Designations

Complainant asserts that Respondents improperly classified as "attorney's eyes only" TransPacific Eastbound ("TP EB") Spot Market Rate emails from September 20, 2019, to September 14, 2020, arguing that the information is no longer highly confidential and that their prosecution of the proceeding is hindered by being unable to share them with their client. Expedited Motion at 3-4.

Respondents contend that documents relating to pricing and pricing strategy are highly confidential and sensitive, [*14] even if historic, but that "Respondents are prepared to work with OJC to reach an accommodation that would enable OJC's personnel to use the spot rate information contained in Exhibit # 1 to the Motion for purposes of calculated alleged damages." Expedited Motion Opposition at 8.

"Under *Fed. R. Civ. P. 26(c)(1)(G)*, the court may, for good cause, issue a protective order to require that 'a trade secret or other confidential research, development, or commercial information not be revealed or be revealed only in a specified way,'" and once "the party requesting that its trade secrets only be revealed in a specified way has met its initial burden, the burden then shifts to the party seeking unrestricted disclosure to establish that such disclosure is relevant and necessary to the action" and then finally, "the court must balance the need of the party seeking discovery of the trade secrets and confidential information against the opposing party's claim of injury resulting from the disclosure." [*Layne Christensen Co. v. Purolite Co.*, 271 F.R.D. 240, 248-49 \(D. Kan. 2010\)](#); see also [*Stanislaus Food Prods. Co. v. USS-POSCO Indus.*, 2012 U.S. Dist. LEXIS 176346, at *6-7 \(E.D. Cal. Dec. 11, 2012\)](#).

The D.C. Circuit has held that "district courts must evaluate three criteria when considering a request for a protective order seeking to restrict attorney-client consultation: "the harm posed by [disclosure] [*15] must be substantial and serious; the restraining order must be narrowly drawn and precise; and there must be no alternative means of protecting the public interest which intrudes less directly on attorney-client relations." [*Doe v. District of Columbia*, 697 F.2d 1115,](#)

[1120 \(D.C. Cir. 1983\)](#) (quoting [In re Halkin, 598 F.2d 176, 191 \(D.C. Cir. 1979\)](#)); see also [Broidy Capital Mgmt. LLC v. Muzin, 2022 U.S. Dist. LEXIS 98241, at *13 \(D.D.C. June 2, 2022\)](#).

Here, the spot market rates reflect pricing and pricing strategy and are the type of information that may be highly confidential. However, this information is also highly relevant to the claims in this proceeding, including to the damages calculation, and the client would benefit from being able to discuss this information with its attorney. Complainant is not a competitor of Respondents and so this does not require releasing competitively sensitive information to a competitor. Moreover, the requested rates typically are updated weekly and the rates at issue are two years old or older. Given the length of time since the rates were in effect and the need established by Complainant, the TP EB Spot Market Rate emails from September 20, 2019, to September 14, 2020, will not be treated as attorney's eyes only, although they may still be treated as confidential. In addition, any additional spot market rate emails that are provided in discovery [*16] and are less than two years old will remain as attorney's eyes only as they are more recent and therefore more competitively sensitive. Complainant's request is therefore granted.

2. Responses to OJC's RFP 26

Complainant asserts that Respondents have not produced all the documents ordered by the Order on Motion to Compel, issued June 29, 2022, including pricing documents from January 1, 2020, to the present. Expedited Motion at 5-6. OJC requests that Respondents be ordered to provide the documents and held in contempt for violating the order by striking any challenge to OJC's damage claims. Expedited Motion at 6.

Respondents contend that OJC failed to meet and confer regarding this issue; that relevant documents were produced; and that the discovery request may be resolved between the parties. Expedited Opposition at 6-7.

OJC's RFP 26 was previously addressed:

OJC RFP 26 requests documents showing pricing, including how prices are determined and why prices may vary between shippers. Respondents state that "prices vary among customers based on a number of factors, including the volume committed in a particular trade lane and in other trade lanes." Opposition at 9. This request will be narrowed to any policies, procedures, guidance, training, or instructions regarding pricing for shipping or determining prices charged for shipments under service contracts and on the spot market. Respondents will not be required to review or provide documents regarding pricing for individual shippers. So, for example, the negotiations with individual shippers would not be disclosed but an email with information about pricing on a specific route must be disclosed. Accordingly, OJC RFP 26 is compelled as limited.

Order on Respondents' Motion to Compel and Revised Schedule at 4.

Although the timeframe was limited for other requests, the timeframe for OJC RFP 26 was not limited in the prior order. For consistency, the timeframe for responses to OJC RFP 26 is hereby limited to documents prior to January 1, 2021. The parties are hereby ordered to consult with

each other regarding outstanding discovery requests including OJC RFP 26. Respondents are instructed to provide the discovery which has previously been ordered, and warned that failure to do so may result [*17] in sanctions, including directing facts to be established, prohibiting claims or defenses, striking pleadings, or dismissing claims or defenses. 46 C.F.R. § 502.150(b). Respondents are again ordered to provide complete responses to OJC RFP 26 and all responsive documents must be provided within seven calendar days of the date of this order.

3. Attorney Work Product Designations

Complainant asserts that work product privilege should be denied for emails inadvertently disclosed on or around May 3, 2022, arguing that "[n]either of these emails are eligible for work product protection, because the communications appear to be between non-attorneys made in the ordinary course of business about an upset customer, namely OJC." Expedited Motion at 7. OJC also contends that Respondents have waived any work product protection and that OJC has a "substantial need" for the material. Expedited Motion at 8.

Respondents allege that the "two emails in question were appropriately redacted to protect information prepared in anticipation of litigation and protected by the work product doctrine" and that emails are eligible for work product protection even if they are between non-attorneys. Expedited Opposition at 3-4. Respondents further contend that there was no waiver and they redacted the two emails to protect only "portions containing the 'mental impressions, conclusions, opinions, or legal theories' of Respondent's representative concerning the anticipated litigation as permitted by *Fed. R. Civ. P. 26(b)(3)(B)*." Expedited Opposition at 5-6.

The attorney work product doctrine "is designed to balance the need of the adversary system to promote an attorney's preparation against society's general interest in revealing all facts relevant to the resolution of a dispute." [*In re Sealed Case*, 856 F.2d 268, 273 \(D.C. Cir. 1988\)](#). "Opinion work product includes notes, legal memoranda, and other materials that taken from client and witness interviews [*18] reveal the mental processes of the attorney." [*Alexander v. F.B.I.*, 198 F.R.D. 306, 313 \(D.D.C. 2000\)](#). "The purpose of the work product doctrine is to protect an attorney's mental processes so that the attorney can analyze and prepare for the client's case without interference from an opponent." 6 Moore's Federal Practice - Civil § 26.70 (2022).

If the attorney work product protection doctrine applies, "the party seeking discovery may obtain the materials only on showing (1) substantial need of the materials in preparation of the party's case, and (2) that the party is unable without undue hardship to obtain the substantial equivalent of the materials by other means." 6 Moore's Federal Practice - Civil § 26.70 (2022). An "example of materials for which a 'substantial need' often exists are contemporaneous statements taken from, or made by, parties or witnesses. Such statements are unique in that they provide an immediate impression of the facts." *Id.* "Opinion work product,' i.e., documents containing the attorney's mental impressions, conclusions, opinions, or legal theories, are either absolutely protected, or require a much higher showing before production will be ordered." *Id.*

Here, Respondents have not established that the emails [*19] at issue involve attorney work product. Respondents state that the emails involved "Respondent's representative" but does not contend these representatives were attorneys or legal representatives. Rather, the emails

appear to demonstrate contemporaneous employee statements. There is no indication that the emails include attorney's mental impressions, conclusions, opinions, or legal theories. Therefore, the emails are not entitled to the attorney work product protections. Complainant's request to remove attorney work product protection from the two emails in question is therefore granted.

4. Skou and Jany Depositions

OJC seeks an order compelling Respondents to produce A.P. Moller-Maersk A/S ("Maersk") CEO Soren Skou and CFO Patrick Jany for depositions. Expedited Motion at 9-11. These depositions are the subject of Respondents' motion seeking a protective order and are addressed below.

B. Respondents' Motion for a Protective Order

Respondents filed a motion seeking a protective order prohibiting OJC from taking the depositions of Maersk CEO Soren Skou and CFO Patrick Jany. Protective Order Motion at 1. Respondents argue that the notices of depositions are invalid as A.P. Moller-Maersk A/S is not a party to this proceeding; senior executives [*20] are protected from depositions; OJC cannot satisfy the apex doctrine test; and, the depositions are harassment. Protective Order Motion at 2-6.

Complainant asserts that Respondents' arguments belie the testimony of their witnesses and their own document production, as Skou and Jany have unique information directly relevant to Respondents' defenses; Respondents' allegation that "[t]he depositions are harassment" is pure fiction; and Respondents' have distorted the meet and confer process to run out the clock on discovery. Protective Order Opposition at 2-8.

On September 28, 2012, the Commission issued revised rules of practice and procedure which sought to "modernize and more closely conform them to the current version of the [Federal Rules of Civil Procedure] and to encourage focused and expeditious use and completion of discovery." [77 Fed. Reg. 61519-61535](#) (FMC Docket 11-05). The 2012 revision of the Commission's Rules imposed limitations on discovery and required initial disclosures and disclosures of expert reports. In Commission proceedings, parties "may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense" and for good cause, "the presiding [*21] officer may order discovery of any matter relevant to the subject matter involved in the action. Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence." 46 C.F.R. § 502.141(e)(1).

The Commission Rules allow the presiding officer to "limit the frequency or extent of discovery otherwise allowed by these rules." 46 C.F.R. § 502.141(e)(2). "The Commission or presiding officer may, for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense." 46 C.F.R. § 502.141(j)(1). "It is fundamental that the scope of discovery is not limitless and is restricted by the concepts of relevancy." *American President Lines, Ltd. v. Cyprus Mines Corp.*, Docket No. 91-27, 26 S.R.R. 1227, 1234 (FMC Jan. 31, 1994). In addition, pursuant to Commission Rules, "[a]fter

making every reasonable effort to resolve discovery disputes, a party may request a conference or rulings from the presiding officer on such disputes." 46 C.F.R. § 502.141(i)(2).

Complainant contends that the depositions of Maersk CEO Soren Skou and CFO Patrick Jany are relevant because of statements made by them such as "record profits" "due to significant increase in container freight rates" during the "exceptional market conditions" and financial documents which list Skou and Janey as contacts for further information. Protective Order Opposition at 1-2. These general statements about the company's financial position do not establish that that Skou or Janey have information relevant to decisions [*22] made about OJC or this particular service contract.

OJC presents deposition testimony of Hamburg's Senior VP that "pricing decisions at the end of the day came from Maersk's trade management." Protective Order Opposition at 3. It appears, therefore, that Maersk's trade management have relevant information regarding financials, pricing, and damages, at least for the period after September of 2020. However, it is not clear who at Maersk would have this information.

The statements by the Maersk CEO Soren Skou and CFO Patrick Jany refer to general trends and not necessarily the Complainant or the particular trade routes at issue here, and therefore will not be required at this time. However, Respondents are hereby ordered to identify Maersk management who would have information regarding pricing decisions. If appropriate Maersk witnesses are provided, then the depositions of Maersk CEO Soren Skou and CFO Patrick Jany will not be required. However, if appropriate witnesses at Maersk are not identified and provided for deposition, then the depositions of Maersk CEO Soren Skou and CFO Patrick Jany will be permitted. Even if Maersk were considered a non-party, if their managers have [*23] relevant information then their testimony can be subpoenaed. Respondents must identify appropriate witnesses and within seven calendar days of the date of this order agree on a date and time for their depositions. Respondents' motion for a protective order is therefore denied.

Because this request can be decided on the basis of relevance, the question of whether or not the apex doctrine applies to Commission proceedings does not need to be addressed. The apex doctrine shields certain high-ranking officials from being deposed, however not all circuits have adopted it. For example, the DC Circuit states that it "has recognized that 'highranking *government* officials are generally not subject to depositions unless they have *some* personal knowledge about the matter and the party seeking the deposition makes a showing that the information cannot be obtained elsewhere.'" [Zimmerman v. Al Jazeera Am., LLC, 329 F.R.D. 1, 6-7 \(D.D.C. 2018\)](#) (citing [Sourgoutsis v. United States Capitol Police, 323 F.R.D. 100, 114 \(D.D.C. 2017\)](#)) (emphasis in original).

IV. Order

Upon consideration of the record herein, the arguments of the parties, and the conclusions and findings set forth above, it is hereby

ORDERED that Respondents' motion to dismiss and/or for summary decision be **GRANTED IN PART AND DENIED IN PART** and that OJC's claims under Sections 41102(b)(2), 41104(a)(5), and 41104(a)(9) [*24] be **DISMISSED**. It is

FURTHER ORDERED that OJC's motion seeking expedited relief is **GRANTED IN PART AND DENIED IN PART** as outlined above. It is

FURTHER ORDERED that Respondents' motion seeking a protective order be **DENIED**.

Erin M. Wirth

Chief Administrative Law Judge

Federal Maritime Commission Decisions

End of Document

RX_000397

2014 FMC LEXIS 31

Federal Maritime Commission

November 21, 2014

DOCKET NO. 14-06

Federal Maritime Commission Decisions

Reporter

2014 FMC LEXIS 31 *

SANTA FE DISCOUNT CRUISE PARKING, INC., d/b/a EZ CRUISE PARKING; LIGHTHOUSE PARKING INC.; and SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING v. THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES; and THE GALVESTON PORT FACILITIES CORPORATION

Core Terms

motion to dismiss, cruise, tariff, terminal, ship, marine terminal, passenger, parking space, transport, negotiate, port, decal, failure to state a claim, common carrier, discovery, shuttle, user, federal rule, wharf, violation of section, motion to strike, oppose a motion, moot, taxicab, hotel, reply, disadvantage, reparation, deadline, off-port

Opinion By: [*1] Clay G. Guthridge, Administrative Law Judge

Opinion

ORDER ON PENDING MOTIONS and PARTIAL DISMISSAL

PART I--BACKGROUND

I. FACTUAL BACKGROUND.

Respondents The Board of Trustees of the Galveston Wharves and The Galveston Port Facilities Corporation (Respondents) own and operate the Texas Cruise Ship Terminal at Piers 25 and 27 (Cruise Terminal) and Terminal parking lots in Galveston, Texas. ¹ The Cruise Terminal is a marine terminal and Respondents are marine terminal operators within the meaning of the Shipping Act of 1984 (Shipping Act or Act). Complainants Santa Fe Discount Cruise Parking, Inc. d/b/a EZ Cruise Parking, Lighthouse Parking, Inc., and Sylvia Robledo d/b/a 81st Dolphin Parking (Complainants) are private companies that own and/or operate parking lots

¹ The facts stated are derived from the Complain and exhibits attached to the Complaint. Facts alleged in the Complain are taken as true when considering the motion to dismiss. [Sinatrainal v. Coca-Cola Co., 578 F.3d 1252, 1260 \(11th Cir. 2009\)](#).

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outside the Cruise Terminal. Complainants are in the business of providing parking for passengers who embark on cruises from the Cruise Terminal. As part of their service, Complainants provide transportation for passengers between their lots and the Cruise Terminal.

Respondents opened the Cruise Terminal in 2000. Common carriers such as Royal Caribbean Cruise Lines and Celebrity Cruise Lines call on the Cruise Terminal. Each Complainant operates a parking lot located within a few blocks of the Cruise Terminal. They focus [*2] their businesses on providing cruise passengers with convenient and secure parking lot storage for their vehicles while they are on cruises. Each Complainant operates shuttle buses to transport customers with their luggage directly to and from the Cruise Terminal, allowing them to stay with their luggage, keep their families together, and avoid traffic at the port facility entrance otherwise associated with unloading baggage from their cars themselves prior to parking.

In August 2006, Respondents promulgated Tariff Circular No. 6 to establish fees charged to operators of private parking lots and other companies that drop off and pick up customers at the Cruise Terminal. To receive a permit, an applicant must pay an application fee, comply with certain liability and other insurance requirements, pay a decal fee, and pay an access fee. The 2006 tariff established a decal fee of \$ 10.00 per decal per year for charter buses, commercial passenger vehicles, limousines, and off-port parking users, and a \$ 7.50 per decal per year for taxicabs with City of Galveston permits. The tariff established a per-trip access fee for charter buses and commercial passenger vehicles, but did not impose [*3] an access fee on taxicabs or on limousines with seating capacity of not more than eight persons. (Complaint Exh. A at 3F Note C.)

The tariff defines "Off-Port Parking User":

[A] commercial business entity which provides or arranges for one or more commercial passenger vehicles, courtesy vehicles, buses or shuttles, however owned or operated, to pick up or drop off passengers within a terminal complex of the Galveston Wharves in connection with the operations of a business of the user involving the parking of motor vehicles of any type at a facility located outside of the boundaries of property owned, operated or controlled by the Galveston Wharves.

(Complaint Exh. A at 31.) Complainants meet this definition. As off-port parking users, in addition to the decal charge, Complainants were charged an access fee of "\$ 8.00 per parking space located in the Off-Port Parking User's parking facility, with number of billable parking spaces to be confirmed periodically by the Galveston Wharves." (Complaint Exh. A at 3F-3G Note D.) Complainants paid the access fee, apparently without complaint, until they commenced this proceeding. See *Santa Fe Discount Cruise Parking, Inc. v. The Board of Trustees of the Galveston Wharves*, C.A. No. 3:14-cv-00206 (S.D. Tex. Aug. 5, 2014) (Agreed Interim [*4] Order).

Respondents amended the tariff on November 21, 2013, (Complaint Exh. C at 3F-3G), but apparently never implemented the amendment.

In the action that precipitated this proceeding, on May 19, 2014, Respondents again amended the tariff and made the amendment effective July 1, 2014. The amended tariff imposed a \$ 60.00 parking fee on charter bus owners and operators; a charge of \$ 25.00 per decal per

vehicle annually and \$ 30.00 per access/trip on commercial passenger vehicles, courtesy vehicles, shuttles, or limousines with seating capacity of fifteen persons or more; and a charge of \$ 15.00 per decal per vehicle annually and \$ 20.00 per access/trip on commercial passenger vehicles, courtesy vehicles, shuttles, or limousines with seating capacity of fewer than fifteen persons. Taxicabs with a City of Galveston permit were charged \$ 7.50 per decal per vehicle annually and no access fee. (Complaint Exh. H at 3F Note C.)

Those Off-Port Parking Users, as defined herein, in operation and accessing the Texas Cruise Ship Terminal on Galveston Island(R), or the Texas Cruise Ship Terminal at Pier 27, collectively the Cruise Ship Terminal Complex, as of August 15, 2006 shall, in lieu of the [*5] Access/Trip fee, be subject to a monthly Access Fee equal to the amount of \$ 28.88 per parking space located in the Off-Port Parking User's parking facility, with number of billable parking spaces to be confirmed periodically by the Galveston Wharves. The Access Fee will be effective on and after July 1, 2014.

(Complaint Exh. H at 3F-3G Note D.)

On June 16, 2014, Complainants responded to the May 22, 2014, tariff amendment by filing a Complaint with the Commission alleging that Respondents violated the Shipping Act. Complainants also filed a complaint in the Southern District of Texas seeking declaratory and injunctive relief pursuant to the Federal Declaratory Judgment Act, [28 U.S.C. § 2201](#), and a preliminary injunction pursuant to the Shipping Act that would bar Respondents from enforcing the amended tariff. See [46 U.S.C. § 41306\(a\)](#) ("After filing a complaint with the Federal Maritime Commission under section 41301 of this title, the complainant may bring a civil action in a district court of the United States to enjoin conduct in violation of this part."). On August 5, 2014, the district court entered an agreed order permitting Complainants herein to deposit the monthly access fee in excess of \$ 8.00 per parking space [*6] per month into the court registry. *Santa Fe Discount Cruise Parking, Inc. v. The Board of Trustees of the Galveston Wharves*, C.A. No. 3:14-cv-00206 (S.D. Tex. Aug. 5, 2014) (Agreed Interim Order).

On September 22, 2014, Respondents again amended the tariff. Fees for charter bus owners and operators, commercial passenger vehicles, courtesy vehicles, shuttles, and limousines, and taxicabs were not changed from the May 22, 2014, tariff. (Proposed First Amended Verified Complaint PP IV.HH-NN; Motion to Dismiss, Affidavit of Michael Mierzwa Exh. 1 at 3F Note C.) The amended tariff rescinded the provision that determined the access fee for off-port parking users as a multiple of the number of parking spaces and imposed an access fee identical to that imposed for other users.

Prior to October 1, 2014, those Off-Port Parking Users, as defined herein, in operation and accessing the Texas Cruise Ship Terminal on Galveston Island(R), or the Texas Cruise Ship Terminal at Pier 27, collectively the Cruise Ship Terminal Complex, shall, in lieu of the Access/Trip fee, be subject to a monthly Access Fee equal to the amount of \$ 8.00 per parking space located in the Off-Port Parking User's parking facility, with number of billable parking spaces to be confirmed periodically by the Galveston [*7] Wharves. In addition, Off-Port Parking Users shall pay a decal fee of \$ 15.00 per decal per vehicle annually. This Access Fee and decal fee will be effective until October 1, 2014.

Beginning on October 1, 2014, all Off-Port Parking Users, as defined herein, shall be governed by the Provision of Note C above.

(Motion to Dismiss, Affidavit of Michael Mierzwa Exh. 1 at 3F-3G Note D.)

II. PROCEDURAL BACKGROUND.

A. Complaint.

The Complaint recites the factual background and alleges that Respondents violated three sections of the Shipping Act: engaging in unjust, unreasonable, and unlawful practices in violation of [46 U.S.C. § 41102\(c\)](#); giving unreasonable preference or advantage, and/or imposing undue or unreasonable prejudice or disadvantage with respect to persons in violation of [46 U.S.C. § 41106\(2\)](#); and, unreasonably refusing to deal or negotiate with Complainants in violation of [46 U.S.C. § 41106\(3\)](#). (Complaint P V.A.) Complainants also filed their Complaint in the Southern District of Texas seeking declaratory and injunctive relief pursuant to the Federal Declaratory Judgment Act and the Shipping Act. Pursuant to an order in that case, Complainants have deposited the monthly access fee in excess of \$ 8.00 per parking space per month into the district court registry.

B. "Amended" Complaint.

On October 21, [*8] 2014, the Secretary received a document entitled "First Amended Verified Complaint" from Complainants. The "Amended Complaint" adds paragraphs alleging that after the Complaint was filed, Respondents amended the tariff on September 22, 2014. When advised by the Secretary that "[a]mendments or supplements to any pleading (complaint, Order of Investigation and Hearing, counterclaim, crossclaim, third-party complaint, and answers thereto) will be permitted or rejected, either in the discretion of the Commission or presiding officer," 46 C.F.R. § 502.66(a), Complainants resubmitted the "First Amended Verified Complaint" with an Opposed Motion for Leave to File First Amended Verified Complaint. Respondents have filed an opposition to that motion and it is ripe for decision.

C. Respondents' Motion to Dismiss and Respondents' Motion to Strike Response to Motion to Dismiss.

Also on October 21, 2014, Respondents filed a motion to dismiss the Complaint. On November 10, 2014, Complainants filed a response to the motion. On November 13, 2014, Respondents filed an opposed motion to strike Complainants' response to the motion to dismiss arguing that the opposition was filed late. Complainants have filed a response to the motion to strike. On November 17, 2014, Respondents filed their reply to the opposition to the [*9] motion to dismiss. The motions are ripe for decision.

D. Joint Motion to Temporarily Abate Discovery Schedule.

On October 31, 2014, the parties filed a joint status report. As part of the report, they jointly request that the scheduling order entered September 30, 2014, be temporarily abated pending rulings on the motion to amend and the motion to dismiss.

The motion for leave to amend, motion to dismiss, motion to strike, and joint motion to abate are addressed in this order.

PART II -- OPPOSED MOTION FOR LEAVE TO FILE FIRST AMENDED VERIFIED COMPLAINT

The first twenty-four pages of the "First Amended Verified Complaint" are substantially identical to the original Verified Complaint, Complainants add P IV.HH through P IV.NN setting forth facts related to the September 22, 2014, amendment to the tariff. Because these facts occurred after the original Complaint was filed, this pleading is correctly described as a supplemental complaint. See [Fed. R. Civ. P. 15\(d\)](#) ("On motion and reasonable notice, the court may, on just terms, permit a party to serve a supplemental pleading setting out any transaction, occurrence, or event that happened after the date of the pleading to be supplemented."). Misnaming the pleading does not prevent me from considering the motion. 6A Wright, Miller, & Kane, *Federal Practice and Procedure* § 1504(2010).

Respondents oppose the motion for leave [*10] to amend. First, relying on Commission Rule 66 which states, "[w]henver by the rules in this part a pleading is required to be verified, the amendment or supplement must also be verified," 46 C.F.R. § 502.66(c), they contend that the motion to amend should be denied because the amended pleading submitted with the motion is not verified. (Respondents' Response to Motion to Amend at 1-2.) The Commission does not have a rule specifically directed at failure to sign a document. "In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. Under the federal rules, "[t]he court must strike an unsigned paper *unless the omission is promptly corrected after being called to the attorney's or party's attention*" [Fed. R. Civ. P. 11 \(a\)](#) (emphasis added). Subsequent to filing the motion to amend, Complainants verified the First Amended Verified Complaint. I find this satisfies the requirement that a supplemental pleading must be verified and the failure to have an amended pleading verified prior to its submission is not grounds to deny the motion for leave to file the amended pleading.

Second, Respondents contend that "[i]n general, [Commission Rule 66] prohibits amended [*11] pleadings which would broaden the issues of the proceeding. 46 C.F.R. § 502.66(a). Contrary to their assertions, Complainants' proposed First Amended Complaint broadens the issues of this litigation by challenging Respondents' ability to assess and collect access fees." (Respondents' Response to Motion to Amend at 2.)

Respondents do not quote the rule on which they rely in its entirety. Commission Rule 66 states: "No amendment will be allowed that would broaden the issues, *without opportunity to reply to such amended pleading and to prepare for the broadened issues.*" 46 C.F.R. § 502.66(a) (emphasis added). The supplemental pleading repeats the claims of the original Complaint, adds facts that occurred after the original Complaint was filed, and makes new claims based on those fact, but does not add any new sections of the Act alleged to have been violated. The parties are still early in the discovery process. I find that to the extent that the supplemental Complaint may broaden the issues, Respondents have an opportunity to reply and prepare for the broadened issues.

Third, Respondents contend that the September 22, 2014, amendment to the tariff moots Complainants' claims. (Respondents' Response to Motion to Amend at 2-3.) As set forth more fully below, I find that Complainants' claims are not moot.

Therefore, Complainants' [*12] motion for leave to file the "First Amended Verified Complaint" is granted. On or before December 5, 2014, Respondents must file their answer to the "First Amended Verified Complaint." 46 C.F.R. § 502.66.

PART III -- MOTION TO DISMISS and MOTION TO STRIKE

I. STATUTORY FRAMEWORK.

Complainants filed their Complaint pursuant to section 11 of the Act.

A person may file with the Federal Maritime Commission a sworn complaint alleging a violation of this part, except section 41307(b)(1). If the complaint is filed within 3 years after the claim accrues, the complainant may seek reparations for an injury to the complainant caused by the violation.

[46 U.S.C. § 41301\(a\)](#). The Complaint alleges that Respondents are marine terminal operators within the meaning of the Act.

The term "marine terminal operator" means a person engaged in the United States in the business of providing wharfage, dock, warehouse, or other terminal facilities in connection with a common carrier, or in connection with a common carrier and a water carrier subject to subchapter II of chapter 135 of title 49.

[46 U.S.C. § 40102\(14\)](#).

The term "common carrier" -- (A) means a person that -- (i) holds itself out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign country for compensation; (ii) assumes [*13] responsibility for the transportation from the port or point of receipt to the port or point of destination; and (iii) uses, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a port in the United States and a port in a foreign country.

[46 U.S.C. § 40102\(6\)](#).

Complainants allege that Respondents have violated three sections of the Act:

1. "A . . . marine terminal operator . . . may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property. " [46 U.S.C. § 41102\(c\)](#).

2&3 "A marine terminal operator may not . . . (2) give any undue or unreasonable preference or advantage or impose any undue or unreasonable prejudice or disadvantage with respect to any person; or (3) unreasonably refuse to deal or negotiate. " [46 U.S.C. § 41106](#).

The Complaint alleges that Complainants have been injured by Respondents' alleged violations of the Act and seeks a reparation award for its actual injuries. The Act defines actual injury.

(a) *Definition.* -- In this section, the term "actual injury" includes the loss of interest at commercial rates compounded from the date of injury.

(b) *Basic amount.* -- If the complaint was filed within [*14] the period specified in section 41301(a) of this title, the . . . Commission shall direct the payment of reparations to the complainant for actual injury caused by a violation of this part, plus reasonable attorney fees.

[46 U.S.C. § 41305.](#)

II. COMMISSION RULES OF PRACTICE AND PROCEDURE PERMIT CONSIDERATION OF A MOTION TO DISMISS OR A MOTION FOR JUDGMENT ON THE PLEADINGS.

Complainants filed their Complaint on June 16, 2014, and Respondents filed their answer on July 21, 2014. An answer is a pleading. [Fed. R. Civ. P. 7\(a\)\(2\)](#). Rule 12(b)(6) of the federal rules provides that the defense of failure to state a claim may be raised by motion, but further provides: "A motion asserting [a 12(b)(6) defense] must be made before pleading" [Fed. R. Civ. P. 12\(b\)](#). "Technically therefore, a post-answer 12(b)(6) motion is untimely" 5B Wright & Miller, *Federal Practice and Procedure* § 1357 (2010). Respondents filed their motion to dismiss on October 21, 2014, three months after filing their answer. Therefore, the motion is technically untimely.

Rule 12 further provides that "[f]ailure to state a claim upon which relief can be granted . . . may be raised . . . (B) by a motion under Rule 12(c)." [Fed. R. Civ. P. 12\(h\)\(2\)](#). When considering a motion for judgment on the pleadings for failure to state a claim on which relief can be granted, a court applies the same standard as it does when considering a motion under Rule 12(b)(6): "[F]or [*15] purposes of the court's considerations . . . , all of the well pleaded factual allegations in the adversary's pleadings are assumed to be true and all contravening assertions in the movant's pleading are taken to be false." 5B Wright & Miller, *Federal Practice and Procedure* § 1368 (2010). I find that the fact that Respondents filed the motion to dismiss after filing their answer does not bar consideration of its arguments.

Commission administrative law judges "make and serve initial or recommended decisions," 46 C.F.R. § 502.223, not judgments. See also 46 C.F.R. § 502.69(g) (defining motion for summary decision (not judgment) as a dispositive motion). A party may seek Commission review of a "dismissal of the proceeding in whole or in part." 46 C.F.R. § 502.227(b)(1) (emphasis added). In this administrative forum, I find that it is appropriate to treat Respondents' motion as a motion to dismiss and use this terminology rather than "judgment" as is used in Rule 12(c).

The Commission's Rules of Practice and Procedure, 46 C.F.R. Part 502, do not explicitly provide for a motion to dismiss. As stated by the Commission:

Rule 12 of the Commission's Rules of Practice and Procedure (the Rules) states that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission's Rules, to the [*16] extent that application of the Federal Rules is consistent with sound administrative practice. 46 C.F.R. § 502.12. As the Commission's Rules do not address motions to dismiss for lack of subject matter jurisdiction or failure to state a claim, Federal Rules 12(b)(1) and 12(b)(6) apply in this case. See, e.g., The Lake Charles Harbor

and Terminal District v. West Cameron Port, Harbor and Terminal District, 2007 WL 2468431 (F.M.C.).

Rule 12(b)(1) permits a party to raise by motion lack of subject matter jurisdiction, and Rule 12(b)(6) permits a party to raise by motion failure to state a claim. With regard to motions to dismiss a complaint for lack of subject matter jurisdiction under Rule 12(b)(1), such motions may assert either a factual attack or a facial attack to jurisdiction... A factual attack challenges "the existence of subject matter jurisdiction in fact, irrespective of the pleadings, and matters outside the pleadings, such as testimony and affidavits, are considered." . . . In a facial attack, on the other hand, the court examines whether the complaint has sufficiently alleged subject matter jurisdiction. As it does when considering a Rule 12(b)(6) motion to dismiss for failure to state a claim, the court construes the complaint in the light most favorable to the plaintiff and accepts all well-pled facts alleged . . . in the [*17] complaint as true.

[*Sinaltrainal v. Coca-Cola Company*, 578 F.3d 1252, 1260 \(11th Cir. 2009\).](#)

To survive motions to dismiss for failure to state a claim under Rule 12(b)(6), a complaint must contain sufficient factual matter, accepted as true, to "state a claim to relief that is plausible on its face." [*Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 \(2007\)](#). A claim "has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." [*Ashcroft v. Iqbal*, \[556 U.S. 662, 677\] \(2009\)](#). The complaint must be sufficient to "give the defendant fair notice of what the . . . claim is and the grounds upon which it rests." [*Bell Atlantic*, 550 U.S. at 555](#) (quoting [*Conley v. Gibson*, 355 U.S. 41, 47 \(1957\)](#)); see also 5 Charles Alan Wright & Arthur R. Miller, *Federal Practice & Procedure Civ.* § 1215 (3d ed. 2010) ("[T]he test of a complaint's sufficiency simply is whether the document's allegations are detailed and informative enough to enable the defendant to respond.").

Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc., 32 S.R.R. 126, 136 (FMC 2011).

[A] plaintiff's obligation to provide the "grounds" of his "entitle[ment] to relief: requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do, see [*Papasan v. Allain*, 478 U.S. 265, 286](#) ... (1986) (on a motion to dismiss, courts "are not bound to accept as true a legal conclusion couched as a factual allegation").

[*Bell Atlantic Corp. v. Twombly*, 550 U.S. at 555.](#)

The 12(b)(6) dismissal device -- as well as [*18] the corollary Rule 8(a)(2) requirement that a pleading contain a "short and plain statement of the claim showing that the pleader is entitled to relief" -- is premised upon the principle that the plaintiff must provide the court and defendants with "fair notice of what the claim is and the grounds upon which it rests." [*Twombly*, 550 U.S. at 555](#) (citing Rule 8(a)). To that end, "allegations in a complaint must be complete enough to enable a reader to understand how each defendant was personally involved in the wrongdoing plaintiff is alleging." [*Sikhs for Justice v. Nath*, 893 F. Supp. 2d 598, 616 \(S.D.N.Y. 2012\)](#). Consequently, the plaintiff cannot rely upon "a generalized term like 'defendants' to obfuscate each defendant's role in the alleged conduct or the legal theory

of liability on which [it] is relying." [*Watkins v. Smith, No. 12 Civ. 4635 \(DLC\), 2013 U.S. Dist. LEXIS 24712, 2013 WL 655085, at *9 \(S.D.N.Y. Feb. 22, 2013\).*](#)

[*Danaher Corp. v. Travelers Indem. Co., No. 10 Civ. 121 \(JPO\), 2014 U.S. Dist. LEXIS 39300, at *10-11 \(S.D.N.Y. Mar. 21, 2014\).*](#)

Complainants attached ten exhibits to their Complaint. Federal Rule 12(d) provides:

If, on a motion under Rule 12(b)(6) or 12(c), matters outside the pleadings are presented to and not excluded by the court, the motion must be treated as one for summary judgment under Rule 56. All parties must be given a reasonable opportunity to present all the material that is pertinent to the motion.

[*Fed. R. Civ. P. 12\(d\).*](#)

[O]n a motion to dismiss, a court may consider "documents attached to the complaint [***19**] as an exhibit or incorporated in it by reference,... matters of which judicial notice may be taken, or... documents either in plaintiffs' possession or of which plaintiffs had knowledge and relied on in bringing suit." Because this standard has been misinterpreted on occasion, we reiterate here that a plaintiff's *reliance* on the terms and effect of a document in drafting the complaint is a necessary prerequisite to the court's consideration of the document on a dismissal motion; mere notice or possession is not enough. See [*Cortec Indus., Inc. v. Sum Holding L.P.*, 949 F.2d42, 47-48 (2d Cir. 1991)].

[*Chambers v. Time Warner, Inc., 282 F.3d 147, 153 \(2d Cir. 2002\)*](#) (emphasis and ellipses in original) (footnote omitted). Complainants cited to each of their exhibits and relied on them when they drafted the Complaint. Therefore, I conclude that the exhibits are integral to the Complaint and may be considered in connection with the motion to dismiss without treating it as a motion for summary judgment as provided by Federal Rule 12(d).

Complainants also relied on the September 22, 2014, tariff when they drafted their "First Amended Verified Complaint," but did not attach a copy of the tariff. Respondents attached the September 22, 2014, tariff to their motion to dismiss. Rule 12(d) does not require conversion of this [***20**] motion to dismiss to a motion for summary decision in order to consider the September 22, 2014, tariff.

Under the "incorporation by reference" doctrine in this Circuit, "a court may look beyond the pleadings without converting the Rule 12(b)(6) motion into one for summary judgment." [*Van Buskirk v. Cable News Network, Inc., 284 F.3d 977, 980 \(9th Cir. 2002\)*](#). Specifically, courts may take into account "documents whose contents are alleged in a complaint and whose authenticity no party questions, but which are not physically attached to the [plaintiff's] pleading." [[*Kniveau v. ESPN, 393 F.3d 1068, 1076 \(9th Cir. 2005\)*](#)] (alteration in original) (internal citation and quotation marks omitted). A court "may treat such a document as part of the complaint, and thus may assume that its contents are true for purposes of a motion to dismiss under Rule 12(b)(6)." [[*United States v. Ritchie, 342 F.3d 903, 908 \(9th Cir. 2003\)*](#)].

[*Davis v. HSBC Bank, 691 F.3d 1152, 1160 \(9th Cir. 2012\)*](#). See also [*Broder v. Cablevision Sys. Corp., 418 F.3d 187, 196 \(2d Cir. 2005\)*](#) ("We are not limited solely to the allegations in the

complaint, however. Where a plaintiff has 'relied on the terms and effect of a document in drafting the complaint,' and that document is thus 'integral to the complaint,' we may consider its contents even if it is not formally incorporated by reference. Insofar as the complaint relies on the terms of Cablevision's customer agreement, therefore, we need not accept its description of those terms, but may [*21] look to the agreement itself." (citation omitted); [*Cortec Indus., Inc. v. Sum Holding L.P.*, 949 F.2d 42, 47 \(2d Cir. 1991\)](#) ("[W]hen a plaintiff chooses not to attach to the complaint or incorporate by reference a [document] upon which it solely relies and which is integral to the complaint, the defendant may produce the [document] when attacking the complaint for its failure to state a claim, because plaintiff should not so easily be allowed to escape the consequences of its own failure."), *cert. denied*, 503 U.S. 960 (1992).

Therefore, I may rely on the copy of the September 22, 2014, tariff attached to Respondents' motion to dismiss in ruling on this motion without converting it to a motion for summary decision.

The Commission has jurisdiction over complaints that allege violations of the Shipping Act.

[T]he . . . appropriate test is whether a complainant's allegations are inherently a breach of contract claim, or whether they also involve elements peculiar to the Shipping Act. We find that as a general matter, allegations essentially comprising contract law claims should be dismissed unless the party alleging the violation successfully rebuts the presumption that the claim is no more than a simple contract breach claim. In contrast, where the alleged violation raises issues beyond [*22] contractual obligations, the Commission will likely presume, unless the facts as proven do not support such a claim, that the matter is appropriately before the agency.

Cargo One, Inc. v. COSCO Container Lines Co., Ltd., 28 S.R.R. 1635, 1645 (FMC 2000)(footnote omitted).

III. RESPONDENTS' MOTION TO STRIKE COMPLAINANTS' RESPONSE TO THE MOTION TO DISMISS IS DENIED.

Based on their contention that Complainants' response to the motion was filed on November 10, 2014, when it should have been filed on November 5, 2014, Respondents move to strike the response. A motion to dismiss is a dispositive motion. 46 C.F.R. § 502.69(g). Commission rules require that "[a] response to a dispositive motion must be served and filed within 15 days after the date of service of the motion." 46 C.F.R. § 502.70(b).

According to the certificate of service attached to their motion to dismiss filed with the Commission, Respondents "certify that on the 21st day of October, 2014, a copy of the [motion to dismiss] was served by certified United States mail, return receipt requested on Complainants' counsel of record." (Motion to Dismiss at Certificate of Service.) Respondents do not rely on the certificate of service filed with the Commission as grounds for their motion to strike Complainants' response, however. Instead they rely on an email dated October 21, 2014, from Respondents' counsel's legal assistant to counsel for Complainants that states [*23] that the motion to dismiss is attached to the email. Respondents contend that pursuant to Commission rules, Complainants' response to the motion to dismiss was due no later than November 5, 2014, but Complainants did not serve their response until "November 10, 2014, nearly one week after the applicable deadline. Complainants have not filed any motions

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requesting additional time for response ..., nor have they demonstrated any reasonable grounds for their failure to timely file their Response." (Respondents' Opposed Motion to Strike Complainants' Response to Motion to Dismiss at 2.) Respondents move to strike Complainants' opposition to their motion, but do not articulate any remedy beyond that.

Complainants concede that the motion to dismiss was served on October 21, 2014, by certified mail and that Respondents also sent a courtesy copy by email on that date. Complainants contend that under Federal Rule 6(d), whether service is considered by certified mail or by email, "3 days are added after the period would otherwise expire." [*Fed. R. Civ. P. 6\(d\)*](#). The fifteen-day period from October 21, 2014, ends on November 5, 2014, but when three days are added, the end date is November 8, 2014, a Saturday.

Pursuant [***24**] to 46 C.F.R. 502.101, when the last day of the period falls on a Saturday, Sunday, or national legal holiday, the period "runs until the end of the next day which is not a Saturday, Sunday, or national legal holiday." Thus, Complainants' Response to Respondents' Motion was due on Monday, November 10, 2014. . . .

(Response to Opposed Motion to Strike at 5-6.) In the alternative, Complainants argue that Respondents have not demonstrated any prejudice resulting from the late filing. (*Id.* at 6.)

Respondents are correct that Complainants' response to the motion to dismiss was due November 5, 2014. Complainants' reliance on the federal rules adding three days for mailing is misplaced: The Commission rule controlling computation of time does not have this provision. 46 C.F.R. § 502.101. Commission Rule 1 requires that its rules "be construed to secure the *just*, speedy, and inexpensive determination of every proceeding," 46 C.F.R. § 502.1 (emphasis added), and "any of the rules in this part, except §§ 502.11 and 502.153, may be waived by... the presiding officer in any particular case to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires." 46 C.F.R. § 502.10 . "The Commission traditionally has sought to 'do equity' rather than [***25**] permit a party to be cut off from an opportunity to be heard due to a rigid or mechanical application of the Commission's rules." *Verucci Motorcycles, LLC v. Senator International Ocean, LLC*, FMC No. 06-05, Order at 4 (FMC May 7, 2008) (Order Reopening the Proceeding). In this situation, where Complainants have mistakenly complied with the federal rule instead of the Commission rule and where Respondents have not identified any prejudice resulting from the late filing, I find it appropriate to permit the late filing of Complainants' response to the motion to dismiss. Therefore, Respondents' motion to strike the response is denied.

IV. RESPONDENTS ARE MARINE TERMINAL OPERATORS WITHIN THE MEANING OF THE ACT.

The Complaint alleges that Respondents provide wharfage, dock, warehouse, or other terminal facilities to cruise lines such as Royal Caribbean and Celebrity. (Complaint P II.C.) These well-pleaded facts are taken as true for purposes of the motion to dismiss. Cruise lines are common carriers within the meaning of the Act. *Lisa Anne Cornell and G. Ware Cornell, Jr. v. Princess Cruise Lines, Ltd. (Corp)*, *Carnival plc, and Carnival Corporation*, FMC No. 13-02, Order at 11 (FMC Aug. 28, 2014) (Order Reversing Initial Summary Decision in Part, Affirming in Part, and Vacating in Part), *Pet. For Rev. Filed*, No. 14-1208 (D.C. Cir. Oct. 21, 2014). Therefore, the

Complaint alleges sufficient facts to establish that Respondents are marine terminal operators within [*26] the meaning of the Act.

V. THE COMPLAINT DOES NOT STATE A CLAIM OF VIOLATION OF [46 U.S.C. § 41102\(c\)](#).

Complainants contend that Respondents have engaged in unjust, unreasonable, and unlawful practices in violation of [46 U.S.C. § 41102\(c\)](#). (Complaint P V.A.) Section 41102(c) states that a marine terminal operator "may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property." [46 U.S.C. § 41102\(c\)](#) (emphasis added).

Respondents did not move to dismiss the Complaint for failure to state a claim of violation of section 41102(c). Complainants do not put forth an argument about section 41102 in their response. Commission Rule 70 provides: "A reply [to a response to a dispositive motion] may not raise new grounds for relief or present matters that do not relate to the response" 46 C.F.R. § 502.70(d). Despite this rule, in their reply, Respondents contend that section 41102(c) applies only to property. "This case does not involve receiving, handling or delivering property. Thus Complainants seek much broader relief which Congress has never authorized." (Reply to Response to Motion to Dismiss at 4 n.5.) Raising this argument for the first time in reply violates Rule 70(d).

Nevertheless, "a district court *sua sponte* may dismiss [*27] a complaint under Rule 12(b)(6) as long as the dismissal does not precede service of process." [Smith v. Boyd, 945 F.2d 1041, 1043 \(8th Cir. 1991\)](#). See also 5B C. Wright & A. Miller, *Federal Practice and Procedure* § 1357 (3d ed. 2004) ("Even if a party does not make a formal motion under Rule 12(b)(6), the district judge on his or her own initiative may note the inadequacy of the complaint and dismiss it for failure to state a claim as long as the procedure employed is fair to the parties."). Despite Respondents' improper argument, it is appropriate to rule on the propriety of a section 44102(c) claim at this point.

Complainants are in the business of transporting passengers, not property, to and from common carriers at the Cruise Terminal. While the passengers' luggage is also transported with them, I find that this is not "receiving, handling, storing, or delivering property" within the meaning of section 41102(c). Because the Complaint does not allege that Tariff Circular No. 6 relates to or is connected with receiving, handling, storing, or delivering property within the meaning of section 41102(c), I conclude that the Complaint fails to state a claim of violation of section 41102(c) and dismiss this claim. When a complaint is dismissed for failure to state [*28] a claim, leave to amend need not be given if amendment would be futile. [Cornelius v. Bank of Am., NA, No. 13-14905, 2014 U.S. App. LEXIS 18396, at *9-10 \(11th Cir. Sept. 25, 2014\)](#) (per curiam); [Cockrell v. Sparks, 510 F.3d 1307, 1310 \(11th Cir. 2007\)](#) (per curiam). Based on the allegations in the Complaint and the evidence in the supporting documents, I conclude that amendment to the Complaint would be futile. Therefore, the dismissal is with prejudice.

VI. THE COMPLAINT DOES NOT STATE A CLAIM OF VIOLATION OF [46 U.S.C. § 41106\(3\)](#).

The Complaint alleges that Respondents violated section 41106(3) of the Act, which states that a marine terminal operator may not "unreasonably refuse to deal or negotiate." [46 U.S.C. §](#)

[41106\(3\)](#). (Complaint P V.A.) Respondents' motion to dismiss cites to section 41104(10) of the Act, a parallel requirement for common carriers: "A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not . . . (10) unreasonably refuse to deal or negotiate. " [46 U.S.C. § 41104\(10\)](#). (See Motion to Dismiss at 7.) Until 2006, the Act applied this common carrier provision on marine terminal operators by reference. See 46 App. U.S.C. § 1709(b)(10) (2002) ("No common carrier, either alone or in conjunction with any other person, directly or indirectly, may . . . unreasonably refuse to deal or negotiate. "); 46 App. U.S.C. § 1709(b)(10) (2002) ("The prohibitions in subsections (b)(10)... of this section apply to marine terminal [*29] operators."). "On October 14, 2006, the President signed a bill reenacting the Shipping Act as positive law. The bill's purpose was to 'reorganiz[e] and restat[e] the laws currently in the appendix to title 46. It codifies existing law rather than creating new law.' H.R. Rep. 109-170, at 2 (2005)." *Shipco Transport, Inc. v. Jem Logistics, Inc.*, 32 S.R.R. 1855, 1856 n.2 (FMC 2013). As part of this reorganization and restatement, the prohibition against marine terminal operators unreasonably refusing to deal or negotiate was placed in its own section. As the Commission recognizes, this reorganization did not change the law. Therefore, Respondents' reference to the wrong section of the Act is not fatal to their motion to dismiss.

Respondents move to dismiss this claim on two grounds. First, they contend that this claim is directed toward the period preceding promulgation of the May 22, 2014, version of the tariff and that the September 22, 2014, promulgation thus moots the claim. Second, they contend that the facts show Respondents did negotiate in the period prior to the May 22, 2014, promulgation. Complainants' problem is that Respondents did not adopt Complainants' position. (Motion to Dismiss at 6-8.)

Complainants respond that:

The Complaint expressly asserts that Respondents' refusal to negotiate "is based upon intentionally misleading information about the Cruise Terminal's financial condition and not any legitimate business rationale and therefore is unreasonable." (Complaint at P V.E.) As previously indicated, Complainants have alleged that Respondents purposefully and wrongfully allocated certain costs and [*30] expenses against the Cruise Terminal's revenue flow to show a loss that would support raising their Tariff for access fees to generate revenue to pay for another cruise terminal. (Complaint PP IV.N - Q, and W.) As previously outlined, Respondents' refused to negotiate over the increase because same was being earmarked for development of a new cruise terminal, which is unreasonable and unrelated to legitimate transportation considerations.

Faced with these allegations, which must be accepted as true in this context, Respondents argue that "the Wharves did negotiate with Complainants before the May 2014 amendment... was adopted." (Respondents' Motion at 6.) Respondents' "negotiation" tactics, however, amount to nothing more than "bullying" or "offers you can't refuse" -- as demonstrated by their conduct in amending the Tariffs access fees three times this year already (i.e., November 2013, May 2013, and Sept 2013). Respondents assert that the fact that Complainants' representatives came to a public meeting of the Board of Trustees to communicate their position should be construed as meaning Respondents must have negotiated in that regard. No such inference is warranted, however, particularly [*31] not in a motion to dismiss where all reasonable inferences are drawn in favor of Complainants.

(Complainants' Response to Motion to Dismiss at 6-7.)

Neither the original Complaint nor the "First Amended Verified Complaint" alleges that Complainants were barred from access to the Cruise Terminal at any time between the promulgation of the 2006 tariff and the preparation of the "First Amended Verified Complaint." At no time were Complainants "shut out" of the Cruise Terminal for any reason, much less for a reason "having no relation to legitimate transportation-related factors." *New Orleans Stevedoring Co. v. Bd. of Commissioners of the Port of New Orleans*, 29 S.R.R. 345, 351 (ALJ 2001), *aff'd*, 29 S. R.R. 1066, 1070 (FMC 2002). Complainants do not allege that they did not have access to the Cruise Terminal, only that the access was on terms not to their liking. Because Complainants always had access to the Cruise Terminal, Respondents did not refuse to deal with them. Therefore, I conclude that the Complaint fails to state a claim of violation of section 41106(3) and dismiss this claim. When a complaint is dismissed for failure to state a claim, leave to amend need not be given if amendment would be futile. [*Cornelius v. Bank of Am., NA, supra*](#); [*Cockrell v. Sparks, supra*](#). Based on the allegations in the original Complaint and the Supplemental Complaint and the evidence in the supporting documents, I conclude that amendment to the Complaint would be futile. Therefore, the dismissal is with prejudice.

VII. THE COMPLAINT STATES A CLAIM OF VIOLATION OF [46 U.S.C. § 41106\(2\)](#).

The Complaint alleges that since 2006, local hotels have engaged in a business substantially identical to Complainants' businesses by providing parking for persons embarking on cruises. The hotels operate shuttles that transport their customers to the Cruise Terminal, but Respondents have not charged the hotels either a per trip fee or a per space per month fee. Complainants contend that the "*de facto* exemption of local hotels from the 2006 and [May 22, 2014] 2014 Tariffs is unreasonable, and creates a competitive disadvantage due to improper allocation of the costs of the Port of Galveston's service among recipients [*32] of those services." (Complaint P IV.DD.) It appears that the hotels may be required to pay the appropriate charge pursuant to the September 22, 2014, tariff.

The Complaint alleges that there are two private off-terminal parking facilities (collectively referred to as "V.I.P.") that are competitors of Complainants. Respondents "Historically allowed V.I.P.'s passengers to walk with their luggage across Harborside Drive through the 25th Street Gate into the Cruise Terminal" (Complaint P IV.EE). Complainants contend that since the underlying rational of the 2006 tariff and the May 22, 2014, tariff was "focused on the benefit [off-port parking facilities] receive from the ... generation of cruise business in the Port of Galveston, which attracts passengers to park at their private facilities," (Complaint P IV.GG), exempting these two off-port parking facilities from access charges is unreasonable and discriminatory. It does not appear that these lots will be required to pay an access fee under the September 22, 2014, tariff.

Section 41106(2) provides that a marine terminal operator may not "give any undue or unreasonable preference or advantage or impose any undue or unreasonable prejudice [*33] or disadvantage with respect to any person." [46 U.S.C. § 41106\(2\)](#). The Commission has stated that:

In order to establish an allegation of an unreasonable preference or prejudice, it must be shown that (1) the two parties are similarly situated or in a competitive relationship, (2) the

parties were accorded different treatment, (3) the unequal treatment is not justified by differences in transportation factors, and (4) the resulting prejudice or disadvantage is the proximate cause of injury. The complainant has the burden of proving that it was subjected to different treatment and was injured as a result and the respondent has the burden of justifying the difference in treatment based on legitimate transportation factors.

Ceres Marine Terminal, Inc. v. Maryland Port Administration, 27 S.R.R. 1251, 1270-1271 (FMC 1997).

The Complaint alleges that Respondents violated section 41106(2) of the Act. (Complaint P V.A.) The Complaint alleges that: (1) there are at least two classes of parties similarly situated to or in a competitive relationship with Complainants -- (a) the hotels that rent parking spaces for the duration of a cruise and provide shuttle service to the Cruise Terminal; and (b) the "V.I.P." lots that rent parking spaces for the duration of a cruise but do not provide shuttle service to the Cruise [*34] Terminal -- that (2) were accorded different treatment from Complainants -- they were not charged an access fee -- and (4) the resulting prejudice or disadvantage is the proximate cause of injury to Complainants. The determination of whether the unequal treatment is justified by differences in transportation factors is a merits determination requiring consideration of facts beyond the allegations of the Complaint and is therefore not appropriate for determination on a motion to dismiss. Therefore, the Complaint states a claim of violation of section 41106(2).

The Complaint alleges that taxicabs are accorded different treatment because they have not been and are not charged an access fee for each trip. (Complaint P IV.F; Motion to Dismiss, Affidavit of Michael Mierzwa Exh. 1 at 3F Note C.) While taxicabs do not pay an access fee, the Complaint does not allege that they operate off-port parking lots; therefore, they do not appear to be similarly situated to or in a competitive relationship with Complainants. The Complaint also alleges that Claimants are harmed because their shuttles are not permitted to enter the Cruise Terminal through the back gate as Respondents permit their own shuttles [*35] to enter. (Complaint P IV.D.) It is not clear how Complainants contend they are harmed by this restriction. This proceeding remains open for proof on these issues.

Respondents contend that the Complaint is moot because the September 22, 2014, tariff rescinds the per space per month access fee charged under the 2006 tariff. (Motion to Dismiss at 3-4.) Complainants respond that they "have previously paid hundreds of thousands of dollars in alleged illegal assessments on their parking spaces prior to the tariff being increased in May 2014," (Response to Motion to Dismiss at 6), and that these claims are not moot. They also contend that the September 22, 2014, tariff "continues to preferentially exempt certain commercial vehicles, such as taxicabs, from access fees and fails to resolve Complainants' previous and outstanding discriminatory practice complaints regarding enforcement issues." (*Id.* at 6-7.) Complainants contend:

By refusing to charge such motel/hotels the flat fee per month based on their total number of parking spaces, Respondents have already forced Complainants to subsidize their share of Cruise Terminal costs for several years, providing them with an undue preference or advantage [*36] over Complainants. Outstanding issues remain concerning whether Complainants are owed reparations and attorney's fees for the aforementioned

unreasonable, unduly prejudicial, and/or discriminatory allocation of the Cruise Terminal's costs upon Complainants.

(Response to Motion to Dismiss at 11.) The Complaint alleges injury and seeks a reparation award for payments under the 2006 tariff. (Complaint PP VI and VII.) Therefore, the Complaint states a claim of violation of section 41106(2).

As concluded above, Complainants have stated a claim of violations of section 41106(2) of the Act. The Act provides that if a complainant proves a violation, the Commission "shall direct the payment of reparations to the complainant for actual injury caused by a violation of this part. . . ." [46 U.S.C. § 41305\(b\)](#). This claim is not mooted by the September 22, 2014, tariff.

The motion to dismiss the section 41106(2) is denied.

PART IV -- JOINT MOTION TO TEMPORARILY ABATE DISCOVERY

The parties state that they have agreed to postpone depositions in this case for thirty days to address the revised tariff and to provide time for additional settlement discussions. They jointly request that existing deadlines be postponed thirty days from the current deadlines. I note that the current [*37] due date for the Initial Decision is June 24, 2015.

The request to abate discovery is moot. The parties have stated good cause to amend the discovery schedule. The parties' proposed revised schedule is adopted with adjustments to avoid having deadlines on Sundays and federal holidays.

ORDER ²

Upon consideration of Complainants' Opposed Motion for Leave to File First Amended Verified Complaint, the opposition thereto, and the record herein, and for the reasons stated above, it is hereby

ORDERED that the motion for leave to file be **GRANTED**. The Secretary is asked to enter the First Amended Verified Complaint on the docket. It is

FURTHER ORDERED that on or before December 5, 2014, Respondents file their answer to the First Amended Verified Complaint.

Upon consideration of Respondents' Opposed Motion to Strike Complainants' Response to Motion to Dismiss, the opposition thereto, and the record herein, and for the reasons stated above, it is hereby

ORDERED that the motion to strike be **DENIED**.

Upon consideration of Respondents the Board of Trustees of the Galveston Wharves' and the Galveston Port Facilities Corporation's Motion to Dismiss, the opposition thereto, and the record herein, and for the reasons stated above, it is hereby

ORDERED that the motion [*38] to dismiss be **GRANTED** in part and **DENIED** in part. It is

² The dismissals will become final in thirty days unless a party appeals the dismissals or the Commission reviews the dismissals on its own motion. 46 C.F.R. §§ 502.227(b) and (c).

FURTHER ORDERED that the claims of violation of section 41102(c) of the Shipping Act, [46 U.S.C. § 41102\(c\)](#), be **DISMISSED** with prejudice. It is

FURTHER ORDERED that the claims of violation of section 41104(3) of the Shipping Act, [46 U.S.C. § 41106\(3\)](#), be **DISMISSED** with prejudice. It is

FURTHER ORDERED that in all other respects, the motions to dismiss be **DENIED**.

Upon consideration of the Joint Motion to Temporarily Abate Discovery, it is hereby

ORDERED that the motion be **DISMISSED** as moot. The discovery schedule is revised *sua sponte* as follows:

October 15, 2014	Parties may commence with depositions of fact witnesses.
December 22, 2014	Complainants must designate affirmative expert witnesses and produce expert reports for same.
January 5, 2015	Deadline for Parties to serve written discovery requests. The Parties are ordered to respond to discovery requests within 30 days of service.
January 19, 2015	Respondents must designate affirmative expert witnesses and produce expert reports for same.
February 2, 2015	Parties must designate rebuttal expert witnesses and produce expert reports for same. Deadline for Parties to complete discovery. Parties may depose rebuttal experts prior to February 20, 2015.

The parties are ordered to file joint status reports on December 22, 2014, January 12, 2015, and February 2, 2015. The January 12, 2015, status report should address the following matters; (1) The parties must propose a schedule for submission of proposed findings of fact, appendices with documentary evidence supporting the proposed findings, and briefs; (2) If a party or parties believe that an oral hearing is necessary, the parties should identify with particularity the issues that cannot be resolved without a hearing and/or the nature of the matters in issue that require a hearing. If the parties believe that an oral hearing is necessary, they must propose a location for the hearing. The presiding judge will determine the necessity of an oral hearing and place of the hearing.

Federal Maritime Commission Decisions

2023 FMC LEXIS 86

Federal Maritime Commission

February 24, 2023

DOCKET NO. 22-31

Federal Maritime Commission Decisions

Reporter

2023 FMC LEXIS 86 *

THOMPSON PIPE GROUP, INC., Complainant v. OMNI LOGISTICS LLC, Respondent.

Core Terms

amended complaint, motion to dismiss, subject matter jurisdiction, ocean, ship, shipment

Opinion By: Erin M. WIRTH, Chief Administrative Law Judge

Opinion

ORDER ON MOTION TO AMEND COMPLAINT AND MOTION TO DISMISS [*1]

I. Introduction and Procedural Background

On November 29, 2022, a Notice of Filing of Complaint and Assignment ("Notice") was issued for this proceeding by the Federal Maritime Commission ("FMC" or "Commission"), stating that Thompson Pipe Group, Inc. ("TPG"), also referred to as TPG Pressure Inc., had filed a complaint against Omni Logistics, LLC ("Omni"). TPG alleges unjust and unreasonable practices in connection with billing demurrage and other charges in violation of the Shipping Act of 1984 ("Shipping Act").

On January 24, 2023, Omni filed a motion to dismiss TPG's complaint ("Dismissal Motion"). On February 9, 2023, TPG filed a combined response to the motion to dismiss and cross-motion for leave to amend the complaint ("Dismissal Opposition and Amended Complaint Motion"), to which it attached the proposed amended complaint, which added new allegations and a new Respondent, Epic Freight Solutions LLC ("Epic"). On February 17, 2023, Omni filed a combined reply to the dismissal motion and response to the amended complaint motion ("Dismissal Reply and Amended Complaint Response").

For the reasons set forth below, TPG's motion to file the amended complaint is granted and Omni's motion [*2] to dismiss is denied as moot. By copy of this order, the Office of the Secretary is requested to serve the amended complaint. Both Respondents must file a response

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to the amended complaint within 25 days after the date of service, and the parties shall file a joint status report within twenty days of the answer, as required by the initial order.

II. Motion for Leave to Amend the Complaint

A. Arguments of the Parties

The amended complaint changes the name of Complainant, refines allegations, adds new allegations, and adds another Respondent. TPG asserts that under [Federal Rule of Civil Procedure 15\(a\)\(1\)\(B\)](#), a party may amend its pleading once as a matter of course and under Federal Rule 15(a)(2), leave to amend a complaint should be freely given when justice so requires. Dismissal Opposition and Amended Complaint Motion at 14.

In response, Omni states that it does not oppose TPG's motion for leave to amend but that it reserves the right to raise the motion to dismiss arguments in response to the amended complaint. Dismissal Reply and Amended Complaint Response at 2.

B. Discussion

Commission Rule 66(a) provides in pertinent part that amendments "will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will [*3] be allowed that would broaden the issue, without opportunity to reply to such amended pleading and to prepare for the broadened issues." 46 C.F.R. § 502.66(a).

The Commission's Rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint. However, Commission Rule 12 provides that "for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), "a party may amend its pleading once as a matter of course" within 21 days after service of a responsive pleading. [F.R.C.P. 15\(a\)\(1\)\(B\)](#). After that period, an amended pleading is permitted with the opposing party's written consent or leave of court, which should be freely given when justice so requires. [F.R.C.P. 15\(a\)\(2\)](#). "Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments." [Bancoult v. McNamara, 214 F.R.D. 5, 8 \(D.D.C. 2003\)](#) (citations omitted); see also [Foman v. Davis, 371 U.S. 178, 182 \(1962\)](#).

The amended complaint addresses some of the issues raised by Omni in its dismissal [*4] motion, clarifies allegations, and revises the parties. There are no grounds under the Federal Rules warranting denial of the proposed amendment and Omni does not oppose it. TPG will thus be allowed to amend its complaint.

By this order, the Office of the Secretary is requested to serve the amended complaint. In addition, the parties must file a joint status report with proposed schedule as required by the initial order within twenty days of filing of the answer.

III. Motion to Dismiss

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Omni moves to dismiss TPG's complaint on the grounds that the Commission lacks subject matter jurisdiction over this dispute because Omni did not perform any "common carrier" services on behalf of Complainant; count I does not state a claim that is plausible because it alleges overbilling that arose after the shipments had been completed; and Count II should be dismissed because it alleges a violation that was not in effect during the relevant times. Dismissal Motion at 5-16.

The Omni motion to dismiss is based on the allegations in the original complaint. Omni's motion to dismiss the complaint is now moot, given that TPG has been granted leave to amend its complaint and the amended complaint supersedes [*5] the original complaint. Respondents' motion to dismiss is, therefore, denied. However, the arguments, which may apply to the amended complaint, are addressed briefly below to provide guidance and avoid unnecessary motions practice.

The complaint alleges that Respondent violated section 41102(c) of the Shipping Act, which states: "A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property." [46 U.S.C. § 41102\(c\)](#). The motion requests dismissal based on subject matter jurisdiction, section 41102(c) elements, and retroactivity. Each argument is briefly discussed below.

A. Subject Matter Jurisdiction

Omni asserts that neither "Epic nor Omni ever issued an ocean bill of lading to Complainant or directly arranged for a single ocean shipment of goods" and that "Omni did not act as a common carrier with respect to any of Complainant's shipments." Dismissal Motion at 10. TPG asserts that both Omni and Epic are NVOCCs and that Omni was retained by TPG to provide transportation services, including international ocean transport. [*6] Dismissal Opposition and Amended Complaint Motion at 4-6.

Respondents may raise a factual, as well as a facial, attack in a Federal Rule 12(b)(1) motion to dismiss for lack of subject matter jurisdiction. *Mitsui O.S.K. Lines Ltd v. Global Link*, Dkt. 09-01, [2011 FMC Lexis 12, at *25 \(FMC Aug. 1, 2011\)](#). However, if the jurisdictional inquiry is bound up with the merits, a full trial on the merits may be necessary. [Osborn v. United States, 918 F.2d 724, 730 \(8th Cir. 1990\)](#); [Crawford v. United States, 796 F.2d 924 \(7th Cir. 1986\)](#). Therefore, where a claim arises out of a common nucleus of operative facts, the Commission has jurisdiction. *TCW, Inc., v. Evergreen Shipping Agency (Am.) Corp.*, Docket No. 1966([I](#)), [2022 FMC LEXIS 589, at *5-6 \(FMC Dec. 29, 2022\)](#).

It appears that Respondents are regulated entities. The complaint alleges violations of the Shipping Act for international transportation of cargo via ocean common carriage. The Respondents may contest whether they operated as NVOCCs on these shipments, however, that issue has a common nucleus of operative facts and is bound up with the merits of the proceeding. Therefore, there does not appear to be any reason to dismiss the proceeding for lack of subject matter jurisdiction.

B. Section 41102(c) Elements

Omni asserts that TPG does not allege that the conduct was engaged in on a normal, customary, and continuous basis and that alleged overbilling arose after the shipments had been completed and therefore was not connected [*7] to the handling, storage, or delivery of property. Dismissal Motion at 13-14. TPG contends that Omni's practices lasted from November 2021 to October 2022 and applied to at least 227 containers, and that it has alleged numerous instances of unjust and unreasonable practices. Dismissal Opposition and Amended Complaint Motion at 7-9.

The complaint alleges that the practices at issue applied to over two hundred containers which is sufficient to allege a normal, customary, and continuous basis. The complaint's allegation that the practices at issue denied TPG the ability to receive the cargo timely and without additional fees is sufficient to allege a connection to the handling, storage, or delivery of property. Therefore, the amended complaint appears to sufficiently allege a violation of section 41102(c). Allowing the case to proceed to discovery will allow the parties to uncover evidence pertinent to the elements of a section 41102(c) claim.

C. Retroactivity

Omni asserts that the vast majority of invoices were issued after enactment of the Ocean Shipping Reform Act ("OSRA"), which cannot be applied retroactively. Dismissal Motion at 15-16. TPG contends that the new rule does not [*8] depart from the Interpretive Rule on Demurrage and Detention and that OSRA should be applied retroactively. Dismissal Opposition and Amended Complaint Motion at 9-12.

Sections 41102(d), 41104(a)(14), and 41104(a)(15) were created by OSRA and may only apply to invoices issued after June 16, 2022. However, the other alleged violations, including section 41102(c) and Commission Regulations, would apply to all of the allegations. Moreover, the conduct identified by OSRA may be relevant to determining the reasonableness of rules and practices.

IV. Order

Upon consideration of the record herein, the arguments of the parties, and the conclusions and findings set forth above, it is hereby

ORDERED that the motion for leave to amend the complaint be **GRANTED**. The Secretary is requested to serve the amended complaint. Respondents must respond to the amended complaint within 25 days of service of the amended complaint. It is

FURTHER ORDERED that Respondent's motion to dismiss be **DENIED AS MOOT**. It is

FURTHER ORDERED that the parties shall submit a joint status report with proposed schedule within twenty days of service of Respondents' answer.

Erin M. Wirth

Chief Administrative Law Judge

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[Davenport v. Wendy's Co.](#)

United States District Court for the Eastern District of California

July 25, 2014, Decided; July 28, 2014, Filed

No. 2: 14-cv-00931 JAM DAD

Reporter

2014 U.S. Dist. LEXIS 103058 *; 2014 WL 3735611

MITCH DAVENPORT, as an individual and on behalf of all others similarly situated, Plaintiff, v. THE WENDY'S COMPANY, a foreign corporation, WENDY'S RESTAURANTS LLC, a foreign limited liability company, WENDY'S INTERNATIONAL, INC. (dba THE WENDY'S RESTAURANT SYSTEMS IN THE UNITED STATES), a foreign corporation, and DOES 1 through 20, inclusive, Defendants.

Subsequent History: Request granted, Motion granted by [Davenport v. Wendy's Co., 2015 U.S. Dist. LEXIS 108255 \(E.D. Cal., Aug. 17, 2015\)](#)

Prior History: [Davenport v. Wendy's Co., 2013 U.S. Dist. LEXIS 180437 \(E.D. Cal., Dec. 24, 2013\)](#)

Counsel: [*1] For Mitch Davenport, Plaintiff: Charles A. Jones, LEAD ATTORNEY, Kelly McNerney, Jones Law Firm, Reno, NV; Matthew Righetti, Righetti Law Firm PC, San Francisco, CA.

For Wendy's Restaurants LLC, Wendy's International, Inc., Doing business as The Wendy's Restaurant System in the United States, Defendants: Mark David Kemple, LEAD ATTORNEY, Greenberg Traurig, Los Angeles, CA.

Judges: JOHN A. MENDEZ, UNITED STATES DISTRICT JUDGE.

Opinion by: JOHN A. MENDEZ

Opinion

ORDER DENYING PLAINTIFF'S MOTION TO REMAND AND DENYING DEFENDANT'S MOTION TO DISMISS

This matter is before the Court on Plaintiff Mitch Davenport's ("Plaintiff") Motion to Remand (Doc. #10) and Defendant Wendy's International, Inc.'s ("Defendant") Motion to Dismiss ("Doc. #8) Plaintiff's First Amended Complaint ("FAC") (Doc. #1, Ex. B). Defendant opposed Plaintiff's motion (Doc. #13) and Plaintiff opposed Defendant's motion (Doc. #12). Plaintiff replied (Doc. #14), as did Defendant (Doc. #15). For the following reasons, Plaintiff's Motion to Remand is DENIED and Defendant's Motion to Dismiss is DENIED.¹

I. FACTUAL ALLEGATIONS [*2] AND PROCEDURAL BACKGROUND

Plaintiff Davenport is former employee of Defendant Wendy's International, Inc. FAC ¶ 13. Defendant is engaged in the business of operating fast food restaurants throughout North America. FAC ¶ 8. Plaintiff worked for Defendant as a "salaried General Manager" until July 26, 2013, when he resigned from the company. FAC ¶ 13.

Plaintiff alleges that he and all other salaried General Managers employed by Defendant in

¹This motion was determined to be suitable for decision without oral argument. [E.D. Cal. L.R. 230\(g\)](#). The hearing was scheduled for June 4, 2014.

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California were "routinely required to work in excess of eight (8) hours a day and/or forty (40) hours per week without receiving overtime compensation." FAC ¶ 14. Plaintiff alleges that all General Managers were "expected and required to work five (5) ten (10) hour shifts per week and generally averaged fifty (50) or more hours per week." FAC ¶ 17. Plaintiff further alleges that salaried General Managers working for Defendant "consistently spend more than fifty percent (50%) of their working hours performing non-managerial tasks." FAC ¶ 25. Accordingly, Plaintiff alleges that he and all other salaried General Managers were "improperly misclassified . . . as exempt from California's overtime laws." FAC ¶ 49. Plaintiff alleges that Defendant "knew or [*3] should have known that the salaried General Managers did not qualify as exempt employees and purposely elected not to pay them for their overtime labor." FAC ¶ 52.

According to Plaintiff, "[d]ue to chronic understaffing, tight restrictions on labor by [Defendant], and meeting [Defendant's] speed of service standards, Plaintiff rarely had time to take an uninterrupted, thirty (30) minute meal period, when working shifts in excess of five (5) hours in duration." FAC ¶ 42. Plaintiff further alleges that Defendant "failed to keep the records of hours worked by its salaried General Managers as required by California's Wage Orders." FAC ¶ 51.

Plaintiff purports to bring this action on behalf of two classes: (1) "All persons who, at any time during the four years preceding the filing of this Complaint up until the date of entry of judgment after trial, are or were employed at any of [Defendant's] corporately owned fast food restaurants in California as salaried General Managers;" and (2) "All persons who, at any time during the four years preceding the filing of this Complaint up until the date of entry of judgment after trial, are or were employed at any of [Defendant's] corporately owned fast

[*4] food restaurants in California as salaried General Managers who did not receive an uninterrupted, off-duty thirty (30) minute meal period, for each day in which they worked in excess of five (5) hours." FAC ¶ 1.

On August 5, 2013, Plaintiff filed the original Complaint (Doc. #1, Ex. A) in Sacramento County Superior Court. On September 12, 2013, Plaintiff filed the First Amended Complaint ("FAC") (Doc. #1, Ex. B). On October 17, 2013, Defendant filed its first Notice of Removal. District Judge Burrell found that this removal was improper because the amount in controversy necessary for diversity jurisdiction under [28 U.S.C. § 1332\(a\)](#) was lacking. On April 15, 2014, Defendant filed its second Notice of Removal (Doc. #1), removing the action to this Court pursuant to [28 U.S.C. § 1332\(d\)](#), the Class Action Fairness Act of 2005 ("CAFA").

The FAC includes the following causes of action:

(1) "Failure to Pay Overtime Wages" in violation of California Labor Code ("CLC") [§ 203](#), [§ 510](#), [§ 1194](#), and [§ 1198](#); (2) "Failure to Provide Meal Breaks" in violation of CLC [§ 226.7](#); (3) "Violation of California Labor [§ 226](#);" (4) "Violation of Business and Professions Code [§§ 17200](#) and [17203](#);" and (5) "Violation [*5] of Labor Code [§ 2699\(f\)](#) for Violations of Labor Code [§§ 201-203](#), [226\(a\)](#) 226.7, [510](#), [1194](#) and [1198](#) and Penalties pursuant to Labor Code [§ 2699\(a\)](#) for violations of Labor Code [§ 226.3](#)."

II. OPINION

A. Motion to Remand

1. Legal Standard

CAFA gives the district courts original jurisdiction in any civil action where: (1) "the matter in controversy exceeds the sum or value of \$5,000,000, exclusive of interest and

costs," (2) the number of putative class members is not less than 100 persons, and (3) "any member of a class of plaintiffs is a citizen of a State different from any defendant." [28 U.S.C. § 1332\(d\)](#). Under CAFA, a removing defendant must prove that these elements are satisfied by the preponderance of the evidence.

2. Discussion

In his Motion to Remand, Plaintiff argues that Defendant has "concede[d] that there were not 100 or more class members at the time the complaint and/or FAC were filed." Motion to Remand ("MTR") at 7. Plaintiff further argues that the removal was "premised on the incorrect assumption that CAFA diversity jurisdiction can be satisfied if, although lacking at the time of the filing of the Complaint or Amended Complaint, by virtue of the passage of time the number of [*6] class members grows to over 100." MTR at 7-8. Plaintiff maintains that, on a motion to remand, the Court's inquiry is limited to "whether the 100 person requirement necessary for CAFA jurisdiction existed at the time of the filing of Plaintiff's Complaint." MTR at 9.

Defendant responds with two arguments. First, it disputes Plaintiff's construction of the law, arguing that federal jurisdiction is determined at the time of removal, not the time of filing. Opp. at 5. In the alternative, Defendant maintains that "the putative class size has always exceeded 100 — even as of the date of initiation of the action." Opp. at 2.

Defendant has presented uncontested evidence that the CAFA class-size requirement was satisfied at the time the original complaint was filed. Martha Shannon, a "Legal Manager" for Defendant Wendy's, submitted a declaration stating that "the number of putative class members *at the time this action was commenced* . . . exceeded 100 persons." Shannon Declaration ¶ 5 (emphasis

added). In making this conclusion, Ms. Shannon reviewed Defendant's HR databases, Oracle and People Soft. Shannon Declaration ¶ 5. Plaintiff presents no evidence to rebut this testimony, other than Defendant's [*7] own statements in the Notice of Removal. Reply at 1. The Shannon Declaration is sufficient to satisfy Defendant's burden. See, e.g., [Ray v. Wells Fargo Bank, N.A., 2011 U.S. Dist. LEXIS 53155, 2011 WL 1790123 at *6 \(C.D. Cal. May 9, 2011\)](#) (holding that a sworn declaration is sufficient to meet a removing defendant's burden, and that "there is no need . . . to provide the business records themselves"); [Lewis v. Verizon Communs., Inc., 627 F.3d 395, 397 \(9th Cir. 2010\)](#) (holding that remand was improper where the removing defendant had "supplied an affidavit to show that the potential damages could exceed the jurisdictional amount").

Plaintiff's contention that Defendant "conceded" this point in its Notice of Removal is without merit. MTR at 7. First, Plaintiff cites no authority for its position that Defendant is bound by representations made in its Notice of Removal. Moreover, neither of Defendant's statements is a clear and definitive admission that the class size was insufficient at the time of filing. Defendant's statement that the "class size expands over time . . . as Defendant hires persons in this role" and that "[o]ne hundred or more persons now fit with Plaintiff's putative class description" is consistent [*8] with Defendant's current position. Notice of Removal ¶ 13. More problematic is Defendant's statement that "[s]ubsequent to the prior removal and the prior remand, this action became removable . . . because the class size now meets or exceeds 100 persons[.]" Notice of Removal ¶ 8. The clear implication of this statement is that, at the time of the prior removal and remand, the class size did not exceed 100 members. Nevertheless, this statement stops short of directly making that admission. Regardless, Plaintiff has not

established that such an admission, even if made, would be binding on Defendant for purposes of a motion to remand. Moreover, prior to Plaintiff's motion to remand (filed on May 1, 2014), Defendant clearly communicated its current position to Plaintiff. In an April 30, 2014 letter to Plaintiff's counsel, Defendant's counsel unambiguously stated that "the number of class members *at the time you commenced the action* exceeded 100 persons[.]" Kemple Declaration, Ex. D (emphasis added). Accordingly, the Court finds that Defendant has not "conceded" that the number of class members at the time the action was commenced was less than 100 persons.

The Court does not consider Plaintiff's [*9] argument — made for the first time in its reply — that Defendant's removal was untimely. It is well-established that a party may not raise a new argument in its reply brief. See, e.g., [Harrold v. Experian Info. Solutions, Inc.](#), 2012 U.S. Dist. LEXIS 133385, 2012 WL 4097708, at *4 n.2 (N.D. Cal. Sept. 17, 2012) (noting that "[s]andbagging with a new legal theory in a reply brief will not be tolerated"); [Tovar v. U.S. Postal Serv.](#), 3 F.3d 1271, 1273 n.3 (9th Cir. 1993) (striking new information from a reply brief, while noting this practice "deprived the [opposing party] of an opportunity to respond"). Prior to filing its motion to remand, Plaintiff had advance notice of Defendant's position that the class size requirement was satisfied "at the time [Plaintiff] commenced the action[.]" Kemple Declaration, Ex. D. Therefore, Plaintiff cannot contend that Defendant has argued this "for the first time" in its Opposition to remand." Reply at 1 (emphasis in original). Accordingly, any argument in Plaintiff's reply brief that the removal was untimely is stricken as improper. [Tovar](#), 3 F.3d at 1273 n.3. As the Court does not consider Plaintiff's new argument, Defendant's request to file a response to address this new argument [*10] (Doc. #17) is

unnecessary. Accordingly, because the Court finds that the number of class members exceeded 100 persons at the time the action was commenced, Plaintiff's Motion to Remand is DENIED.

B. Motion to Dismiss

1. Failure to Allege Wrongdoing against Individual Plaintiff

Defendant argues that each of Plaintiff's five causes of action must be dismissed because Plaintiff "offers no allegations of wrongful conduct concerning himself." Motion to Dismiss ("MTD") at 5 (emphasis removed). Defendant maintains that the "only allegations specific to Plaintiff Davenport are found in paragraphs 39 through 42 of the FAC[.]" MTD at 5. Plaintiff responds by listing the numerous allegations made with regard to "General Managers" employed by Defendant, and noting that that group included Plaintiff.

Plaintiff specifically alleges that he "was employed by Defendants as salaried General Manager in California[.]" FAC ¶ 39. Elsewhere in the FAC, Plaintiff alleges that "all of [Defendant's] California based salaried General Managers are and were classified as 'exempt' from California's overtime laws[.]" FAC ¶ 17 (emphasis added). Plaintiff continues to refer to "General Managers" under the subheading "Factual [*11] Allegations" in the FAC, rarely referring to Plaintiff individually. FAC ¶¶ 16-31. However, given Plaintiff's characterization of himself as a salaried General Manager in California, and given the initial allegation that "all" General Managers were classified as exempt, each factual allegation made with regard to "General Managers" must be read to include Plaintiff. FAC ¶¶ 17, 39. Accordingly, Plaintiff has made sufficient factual allegations concerning himself, individually.

2. Failure to Pay Overtime Wages

Defendant argues that Plaintiff's first cause of action for failure to pay overtime wages must be dismissed because "not a single instance of overtime is factually alleged as to anyone." MTD at 5. Defendant also argues that Plaintiff has failed to state a claim because he did not allege that Defendant "suffered or permitted" unpaid overtime. MTD at 6. Plaintiff responds that "the law does not require specific instances. In other words the law does not require a Plaintiff to allege that on July 26, 2012 he worked 2.5 hours of overtime." Opp. at 7. Plaintiff further argues that he is not required to allege that Defendant suffered and permitted the violations, because "California law, [*12] unlike the FLSA, does not contain any language regarding 'suffer and permit.'" Opp. at 7.

Plaintiff does not merely allege that Defendant improperly failed to pay General Managers for overtime work. Rather, Plaintiff makes the additional allegation that "all of [Defendant's] California based salaried General Managers are/were expected and required to work five (5) ten (10) hour shifts per week and generally averaged fifty (50) or more hours per week." FAC ¶ 17. This factual allegation distinguishes the present case from those cases relied upon by Defendant, in which plaintiffs made conclusory allegations that merely mimicked the statutory language. See, e.g., [Villegas v. J.P. Morgan Chase & Co., 2009 U.S. Dist. LEXIS 19265, 2009 WL 605833 at *1 \(N.D. Cal. Mar. 9, 2009\)](#) (granting motion to dismiss where plaintiffs alleged that "the defendants have a policy of not paying members of the class all overtime wages earned"); [Acosta v. Yale Club of New York City, 1995 U.S. Dist. LEXIS 14881, 1995 WL 600873 at *4 \(S.D.N.Y. Oct. 12, 1995\)](#) ("[s]imply stating that Plaintiffs were not paid for overtime work does not sufficiently allege a violation"); [Harding v. Time Warner, Inc., 2010 U.S. Dist. LEXIS 5896, 2010 WL 457690 at *4 \(S.D. Cal. Jan. 26, 2010\)](#) (granting motion to dismiss

[*13] where the plaintiff alleged that "Defendant ... regularly and repeatedly fail[ed] to compensate Plaintiffs and similarly situated individuals for all hours actually worked"). As Plaintiff has alleged a specific number of hours worked by General Managers each week (50 hours), the present case is analogous to [Yuckming Chiu v. Citrix Sys., Inc., 2011 U.S. Dist. LEXIS 151365, 2011 WL 6018278 at *4 \(C.D. Cal. Nov. 23, 2011\)](#). Accordingly, the Court finds that Plaintiff's allegations are sufficient to state a claim for failure to pay overtime wages.

Moreover, as a number of courts have previously held, the Court finds that "it cannot be the case that a plaintiff must plead specific instances of unpaid overtime before being allowed to proceed to discovery to access the employer's records." [Acho v. Cort, 2009 U.S. Dist. LEXIS 100064, 2009 WL 3562472 at *3 \(N.D. Cal. Oct. 27, 2009\)](#); see also, [Muan v. Vitug, 2013 U.S. Dist. LEXIS 77107, 2013 WL 2403596 at *2 \(N.D. Cal. May 31, 2013\)](#) (noting that "[i]t would be unfair to require [the plaintiff] to provide in his complaint a detailed employment record when the law clearly requires the employer, [*14] not the employee, to maintain such a log").

Furthermore, Plaintiff is not required to allege that Defendant "suffered and permitted" the unpaid overtime violations. As noted in [Washington v. Crab Addison, Inc.,](#) unlike the FLSA, [California Labor Code \("CLC"\) section 510](#) does not include "suffer and permit" language. [Washington v. Crab Addison, Inc., 2010 U.S. Dist. LEXIS 69692, 2010 WL 2528963 at *3 \(N.D. Cal. June 18, 2010\)](#). Therefore the FLSA and [section 510](#) "cannot be subjected to the same analysis." [2010 U.S. Dist. LEXIS 69692, \[WL\] at *3](#). For this reason, Defendant's reliance on [Jong v. Kaiser Found.](#)

[*Health Plan, Inc.*, 226 Cal. App. 4th 391, 171 Cal.Rptr.3d 874 \(Cal.Ct.App. 2014\)](#) is misplaced. Although the court in [*Jong*](#) concluded that a plaintiff must establish that an employer has "suffered or permitted" the [*CLC section 510*](#) violation, the court relied entirely on FLSA cases in coming to this conclusion. [*Jong*, 171 Cal.Rptr.3d at 877-78](#). The *Jong* court expressly noted that "the parties and the trial court assumed the applicability" of FLSA principles in [*section 510*](#) cases, and it therefore declined to "question this basic premise on which all parties . . . proceeded." [*Jong*, 171 Cal.Rptr.3d at 877-78](#). In the instant case, however, the parties have not assumed the [*15] applicability of FLSA standards to a [*section 510*](#) claim, and this Court finds that the absence of "suffer and permit" language in [*section 510*](#) indicates that Plaintiff need not allege that Defendant "suffered and permitted" the unpaid overtime violations.

3. Failure to Provide Meal Breaks

Defendant argues that Plaintiff's second cause of action for failure to provide meal breaks must be dismissed because "Plaintiff's pleading is a classic instance of a formulaic recitation of the elements of a claim that does not state a claim." MTD at 8 (internal citations and emphasis omitted). Defendant also contends that Plaintiff is required to allege that Defendant expressly ordered him to skip meal breaks. MTD at 7. Plaintiff responds that his allegations regarding "chronic understaffing, tight restrictions placed on labor [and,] speed of service standards" lay sufficient factual background for his "failure to provide meal breaks" claim. Opp. at 11. Plaintiff also argues that, in light of a recent ruling by the California Supreme Court, he is only required to allege that Defendant had a policy of creating incentives to forgo legally protected meal breaks. Opp. at 11, n.6.

Plaintiff alleges that he [*16] "rarely had time to take an uninterrupted, thirty (30) minute

meal period, when working shifts in excess of five (5) hours," primarily due to "chronic understaffing, tight restrictions placed on labor by Defendants, and meeting Defendants' speed of service standards." FAC ¶ 42. He further alleges that "extreme pressure" was placed on General Managers to meet the "corporately mandated speed of service standards" and that failure to meet these standards "frequently resulted in salaried General Managers receiving poor performance reviews, being unable to make bonuses, being demoted, reprimanded, and even terminated." FAC ¶ 24. As a result of this pressure and "chronic understaffing," Plaintiff alleges that he "rarely had time" to take mandatory meal breaks." FAC ¶ 42. These allegations provide sufficient factual details and distinguish the present case from those cases relied upon by Defendant. See, e.g., [*Brown v. Wal-Mart Stores, Inc.*, 2013 U.S. Dist. LEXIS 55930, 2013 WL 1701581 at *5 \(N.D. Cal. Apr. 18, 2013\)](#) (granting motion to dismiss where the plaintiffs alleged that the defendant "pressured, incentivized, and discouraged" employees from taking meal breaks, but did "not provide any facts surrounding these alleged [*17] tactics") (emphasis in original); [*Bellinghausen v. Tractor Supply Co.*, 2013 U.S. Dist. LEXIS 131384, 2013 WL 5090869 at *1 \(N.D. Cal. Sept. 13, 2013\)](#) (granting motion to dismiss where the plaintiff alleged that the defendant "failed to provide . . . an uninterrupted meal period of at least thirty (30) minutes on each day that [plaintiff] worked five (5) hours or more").

Defendant's citation to [*Lopez v. Wendy's Int'l, Inc.*, 2011 U.S. Dist. LEXIS 151513, 2011 WL 6967932 \(C.D. Cal. Sept. 19, 2011\)](#) is unpersuasive. MTD at 7-8. *Lopez* purports to make a distinction between "being ordered to [skip] breaks and being ordered to complete one's assigned tasks, which results in one skipping breaks." [*2011 U.S. Dist. LEXIS 151513, \[WL\] at *3*](#). However, subsequent to

the Lopez decision, the California Supreme Court decided Brinker Rest. Corp. v. Superior Court, 53 Cal.4th 1004, 139 Cal. Rptr. 3d 315, 273 P.3d 513 (2012). In Brinker, the court held that "an employer may not undermine a formal policy of providing meal breaks by pressuring employees to perform their duties in ways that omit breaks." Brinker, 53 Cal.4th at 1040. Accordingly, Plaintiff's allegations that Defendant's staffing and speed of service standards caused him to skip required meal breaks are sufficient to state a claim for "failure to provide meal breaks." [*18] See Fields v. W. Marine Products Inc., 2014 U.S. Dist. LEXIS 16638, 2014 WL 547502 at (N.D. Cal. Feb. 7, 2014) (denying motion to dismiss where "employees were also impeded by the fact that they often worked alone and had no one to run the store had they stopped for a break").

4. Failure to Provide Accurate Wage Statements

Defendant seeks dismissal of Plaintiff's third cause of action for failure to provide accurate wage statements on the grounds that Plaintiff has not sufficiently pled an injury resulting from Defendant's failure to provide accurate wage statements. Defendant contends that this claim includes only the "bare conclusion that [Plaintiff] was 'injured' in some unstated way." MTD at 10. Plaintiff responds that, in light of a recent statutory amendment to the CLC, the threshold for establishing an injury under section 226(e) is very low. Opp. at 14.

To state a claim under section 226(e) of the CLC, an employee must suffer injury as a result of the intentional failure by his employer to provide an accurate wage statement. However, "the injury requirement is minimal," as indicated by the 2013 statutory amendment to section 226(e), which clarifies that "[a]n employee is deemed to suffer injury . . . if the [*19] employee cannot promptly and easily

determine from the wage statement alone . . . the amount of gross wages or net wages" due to the employee. Cal. Lab. Code § 226(e)(2); Fields v. W. Marine Products Inc., 2014 U.S. Dist. LEXIS 16638, 2014 WL 547502 at *8 (N.D. Cal. Feb. 7, 2014). Accordingly, an "injury" under section 226(e) includes "the possibility of not being paid overtime, employee confusion over whether they received all wages owed them, [and] difficulty and expense involved in reconstructing pay records." Elliot v. Spherion Pacific Work, LLC, 572 F.Supp.2d 1169, 1181 (C.D. Cal. 2008). Plaintiff alleges that Defendant "failed to accurately record the start and end times for work performed by the Plaintiff and class members, and failed to provide them with timely and accurate wage and hour statements[.]" FAC ¶ 60. As another district court has held, "a reasonable inference can be drawn that [Plaintiff], in order to determine how much he should have been paid, will be required to engage in discovery and mathematical computations in an effort to reconstruct the missing information." Schneider v. Space Sys./Loral, Inc., 2012 U.S. Dist. LEXIS 76443, 2012 WL 1980819 at *3 (N.D. Cal. June 1, 2012). Defendant's reliance on Lopez is therefore [*20] unavailing, as it preceded the 2013 statutory amendment to section 226(e). MTD at 9-10 (citing Lopez v. Wendy's Int'l, Inc., 2011 U.S. Dist. LEXIS 151513, 2011 WL 6967932 (C.D. Cal. Sept. 19, 2011)). Accordingly, Plaintiff has sufficiently alleged an "injury" under section 226(e).

As further discussed below, Plaintiff alleges that the Defendant "purposely" misclassified salaried General Manager employees as exempt, and therefore Plaintiff has sufficiently alleged that the failure to provide accurate wage statements was "knowing and intentional" under section 226(e). FAC ¶ 52; see Hennighan v. Insphere Ins. Solutions, Inc., 2013 U.S. Dist. LEXIS 58888, 2013 WL

[1758934 at *5 \(N.D. Cal. Apr. 24, 2013\)](#) (holding that "an allegation of purposeful misclassification is required" to satisfy the "knowing and intentional" element in [section 226](#)).

5. Waiting Time Penalties

Plaintiff's claim for "waiting time" penalties under [CLC section 203](#) (FAC ¶52) must be dismissed, according to Defendant, as "Plaintiff offers no allegations concerning a waiting time penalty claim" and has failed to allege that the failure to pay wages was "willful." MTD at 10. Plaintiff responds that his allegation of "purposeful misclassification" is sufficient to support an award [*21] under [section 203](#). Opp. at 16.

[CLC section 203](#) provides that, "[i]f an employer willfully fails to pay . . . any wages of an employee who is discharged or who quits, the wages of the employee shall continue as a penalty from the due date thereof at the same rate until paid" for a maximum of 30 days. [Cal. Lab. Code § 203](#). An allegation of "deliberately implement[ing] a . . . policy of not paying overtime" is sufficient to satisfy the "willful" requirement of [section 203](#). [Yuckming Chiu v. Citrix Sys., Inc., 2011 U.S. Dist. LEXIS 151365, 2011 WL 6018278 at *5 \(C.D. Cal. Nov. 23, 2011\)](#). [Section 203](#) also requires an allegation that "some of the Putative Class members were discharged or quit . . . and have failed to receive the overtime wages due to them." [Yuckming, 2011 U.S. Dist. LEXIS 151365, 2011 WL 6018278 at *5](#).

Plaintiff has alleged that Defendant "knew or should have known that the salaried General Managers did not qualify as exempt employees and purposely elected not to pay them for their overtime labor." FAC ¶ 52. Moreover, Plaintiff has alleged that his "employment with Wendy's as a salaried General Manager ended when he resigned from the company effective July 26, 2013."

FAC ¶ 13. Accordingly, Plaintiff has sufficiently alleged both elements [*22] of a claim for waiting time penalties under [CLC section 203](#).

6. UCL and PAGA Claims

Plaintiff's fourth and fifth causes of action are brought under the Unfair Competition Law ("UCL") and Private Attorney General Act ("PAGA"). These claims are derivative of his first three causes of action under the CLC. As Plaintiff has sufficiently stated a claim for at least one of these causes of action, he has also stated a claim under the UCL and PAGA. See [Cortez v. Purolator Air Filtration Products Co., 23 Cal. 4th 163, 178, 96 Cal. Rptr. 2d 518, 999 P.2d 706 \(2000\)](#) (recognizing that "any business act or practice that violates the Labor Code through failure to pay wages is, by definition . . . an unfair business practice" in violation of the UCL); [Arias v. Superior Court, 46 Cal. 4th 969, 980, 95 Cal. Rptr. 3d 588, 209 P.3d 923 \(2009\)](#) (noting that an "aggrieved employee" under PAGA may bring suit for violations of the CLC).

7. PAGA Claim as Class Action

Defendant argues that Plaintiff's PAGA claim is pled as a "representative" action, rather than a class action, and therefore runs afoul of Article III of the U.S. Constitution. MTD at 11. Plaintiff responds that his PAGA claim is indeed pled as a class action. Opp. at 19. In the alternative, Plaintiff argues that a "representative" [*23] PAGA action is not prohibited by Article III. Opp. at 20.

Paragraphs 1 and 32 of the FAC leave no doubt that the entire action is brought as a class action. FAC ¶¶ 1, 32. Each of these allegations refers to the action as a "class action" and makes no distinction between the first four causes of action and Plaintiff's fifth cause of action — the PAGA claim. FAC ¶¶ 1, 32. Plaintiff's reference to "aggrieved employees" rather than "class members" in the

fifth cause of action does not change this. Under PAGA, an "aggrieved employee" is "any person who was employed by the alleged violator and against whom one or more of the alleged violations was committed." [Cal. Lab. Code §2699](#). Under this definition, and the class definition included in the FAC, "aggrieved employees" and "class members" are one and the same. FAC ¶ 1. Every aggrieved employee is a class member and vice versa. This is consistent with Plaintiff's characterization of "aggrieved employees" as "he and other similarly situated members of the classes, [who] suffered the Labor code violations alleged herein[.]" FAC ¶ 28.

Given that the Court finds that Plaintiff's PAGA claim is being pursued as a class action, it need not reach Defendant's Article III [*24] argument.

8. Plaintiff's Class Allegations

Defendant urges the Court to strike Plaintiff's class allegations. MTD at 15. Defendant maintains that the Court may strike Plaintiff's class allegations, despite the fact that Plaintiff has not yet filed a motion to certify the proposed class, pursuant to [Rule 23](#). MTD at 16. Plaintiff responds that Defendant's motion to strike is premature, as "Defendant has not yet filed an answer to the complaint, discovery has not yet commenced, and no motion for class certification has been filed." Opp. at 21.

As noted by Plaintiff, courts "routinely deny motions to strike class allegations as premature" when no answer has been filed, discovery has not commenced, and no motion for class certification has been filed. Opp. at 21; see, e.g., [In re Wal-Mart Stores, Inc. Wage & Hour Litig.](#), 505 F. Supp. 2d 609, 616 (N.D. Cal. 2007) (holding that the defendant's motions to dismiss or strike the class allegations are premature" where the defendant had not answered the complaint, discovery had not yet commenced, and no

motion for class certification had been filed); [Fields v. W. Marine Products Inc.](#), 2014 U.S. Dist. LEXIS 16638, 2014 WL 547502 (N.D. Cal. Feb. 7, 2014) (denying the defendant's [*25] motion to strike class allegations, noting that "such motions are disfavored because a motion for class certification is a more appropriate vehicle" for evaluating compliance with [Rule 23](#)); [Gillibeau v. City of Richmond](#), 417 F.2d 426, 432 (9th Cir. 1969) (noting that "compliance with [Rule 23](#) is not to be tested by a motion to dismiss for failure to state a claim"). The above-cited cases are only a sampling of the many instances in which district courts within the Ninth Circuit have determined that motions to strike class allegations are premature under similar circumstances. See Opp. at 21-22 (string-citing similar cases).

Defendant cites a number of cases for the proposition that, "[w]here a plaintiff fails to properly plead the requirements of [Rule 23](#), the class allegations should be stricken, and class discovery may not be commenced." MTD at 16. These cases are not persuasive. [Kamm v. California City Dev. Co.](#), 509 F.2d 205, 210 (9th Cir. 1975) does not stand for the proposition for which it is cited. The [Kamm](#) court merely approved a district court's dismissal of a class action, upon a finding that that a state court action was a "superior method of resolving the controversy." [Kamm](#), 509 F.2d at 212. [*26] At no point did the [Kamm](#) court address the plaintiff's failure to properly plead the requirements of [Rule 23](#). Similarly, [John v. Nat'l Sec. Fire & Cas. Co.](#), 501 F.3d 443, 445 (5th Cir. 2007) does not stand for the proposition for which it is cited. [John](#) merely holds that class allegations may be dismissed if "it is facially apparent from the pleadings that there is no ascertainable class." [John](#), 501 F.3d at 445. Defendant has not argued that is administratively impossible for the Court to "determine whether a particular individual is a member" of the proposed class,

so the class is sufficiently "ascertainable." [*Mauro v. Gen. Motors Corp.*, 2008 U.S. Dist. LEXIS 93897, 2008 WL 2775004 at *4 \(E.D. Cal. July 15, 2008\)](#) (holding that a proposed class is sufficiently defined and "ascertainable" if it is "administratively feasible for the court to determine whether a particular individual is a member"). Likewise, Defendant's citation of [*Mauro v. Gen. Motors Corp.*, 2008 U.S. Dist. LEXIS 93897, 2008 WL 2775004 \(E.D. Cal. July 15, 2008\)](#) is inapposite. Indeed, the *Mauro* court specifically noted that arguments that the proposed class does not meet the requirements of [Rule 23](#) are "more appropriately raised at the class certification stage." [*Mauro*, 2008 U.S. Dist. LEXIS 93897, 2008 WL 2775004 at *5](#). [*27] Finally, Defendant's citation of two out-of-circuit cases is unpersuasive, given the abundance of in-circuit cases cited by Plaintiff. MTD at 16-17 (citing [*Stubbs v. McDonald's Corp.*, 224 F.R.D. 668 \(D. Kan. 2004\)](#) and [*Glewwe v. Eastman Kodak Co.*, 2006 U.S. Dist. LEXIS 33449, 2006 WL 1455476 \(W.D.N.Y. May 25, 2006\)](#)).

Declining to address the class allegations is particularly appropriate here, given the strict limitations on the length of briefs filed in this Court. The issue of [Rule 23](#) class certification is "better addressed through a fully-briefed class certification hearing," rather than tacked on to the end of an extensive motion to dismiss (as is done here). [*Yuckming Chiu v. Citrix Sys., Inc.*, 2011 U.S. Dist. LEXIS 151365, 2011 WL 6018278 at *3 \(C.D. Cal. Nov. 23, 2011\)](#). Forcing Plaintiff to respond to both motions in an abbreviated manner would be unduly prejudicial. Defendant's arguments regarding commonality, individualized calculation of damages, and the "highly fact-specific stop watch test" can be made if and when Plaintiff moves to certify the proposed class. MTD at 17-20.

III. ORDER

For the reasons set forth above, the Court

DENIES Plaintiff's Motion to Remand and DENIES Defendant's Motion to Dismiss:

IT IS SO ORDERED.

Dated: July 25, [*28] 2014

/s/ John A. Mendez

JOHN A. MENDEZ,

UNITED STATES DISTRICT JUDGE

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13. With respect to Allegation 5, state in detail every significant upon which you rely to support the allegation that “Respondent overall has continued to operate at or near pre-pandemic capacity,” including whether capacity was effectively limited by congestion at ports within the geographic scope of the Service Contract.

ANSWER: None other than the facts referenced in Complainant’s Complaint.

14. With respect to Allegation 7, explain in detail what were the “agreed intervals” contained in the Service Contract.

ANSWER: The agreed intervals are those referred to in paragraph 7 of the Service Contract.

15. Explain in detail the significant facts that you believe support Complainant’s assertion in Allegation 9 that “[s]hortly after entering into the service contract with MSRF, Respondent began breaching its contractual service commitments by providing MSRF with hardly any of the agreed allotments of space on their respective ocean vessels, and instead forcing MSRF to make alternate transportation arrangements at substantially higher spot market prices.” This should include identification of (i) what provision(s) in the Service Contract required Yang Ming to provide MSRF space on any particular vessels and/or on an as-requested basis, (ii) every request for booking or space made by MSRF that was not accepted by Yang Ming, including what alternate transportation arrangements MSRF in fact made and whether Yang Ming offered space on an alternative loading port(s) or receiving port(s).

ANSWER: Complainant objects to Interrogatory No. 16 as compound. Subject to this objection, as to (i), the Service Contract required Yang Ming to provide MSRF